

Publications of the Scottish History Society, Volume 36

Lord John Lauder Fountainhall

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Volume 36**

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PUBLICATIONS OF THE SCOTTISH HISTORY SOCIETY, VOLUME XXXVI

LAUDER OF FOUNTAINHALL'S JOURNALS

MAY 1900

[Illustration: LORD FOUNTAINHALL.]

**JOURNALS OF SIR JOHN LAUDER LORD
FOUNTAINHALL WITH HIS OBSERVATIONS
ON PUBLIC AFFAIRS AND OTHER
MEMORANDA**

1665-1676

Edited, with Introduction and Notes, by
DONALD CRAWFORD
Sheriff of Aberdeen, Kincardine, and Banff

[Illustration: SIR JOHN LAUDER, FIRST BARONET.
(Lord Fountainhall's Father.)]

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All reproduced from pictures in the possession of Lady Anne Dick
Lauder.

INTRODUCTION

THE MANUSCRIPTS

There are here printed two manuscripts by Sir John Lauder, Lord Fountainhall, and portions of another. The first[1] is a kind of journal, though it was not written up day by day, containing a narrative of his journey to France and his residence at Orleans and Poitiers, when he was sent abroad by his father at the age of nineteen to study law in foreign schools in preparation for the bar. It also includes an account of his expenses during the whole period of his absence from Scotland. The second,[2] though a small volume, contains several distinct portions. There are narratives of visits to London and Oxford on his way home from abroad, his journey returning to Scotland, and some short expeditions in Scotland in the immediately following years, observations on public affairs in 1669- 70, and a chronicle of events connected with the Court of Session from 1668 to 1676; also at the other end of the volume some accounts of expenses. The third[3] may be described as a commonplace book, for the most part written during the first years of his practice at the bar and his early married life, but it also contains some notes of travel in Fife, the Lothians, and the Merse in continuation of those in MS. H., and a list of the books which he bought and their prices, brought down to a late period of his life. These manuscripts have been kindly made available to the Scottish History Society by the owners. The first is in the Library of the University

of Edinburgh. The second is the property of the late Sir William Fraser's trustees. The third has been lent by Sir Thomas North Dick Lauder, Fountainhall's descendant and representative.

[1] Referred to as MS. X.

[2] Marked by Fountainhall H.

[3] Marked by Fountainhall K.

It was Lord Fountainhall's practice, during his whole life, to record in notebooks public events, and his observations upon them, legal decisions, and private memoranda. He kept several series of notebooks concurrently with great diligence and method. In all of those which have been preserved there is more or less matter of value to the student of history. But at his death his library was sold by public auction. The MSS. were dispersed, though their existence and value was known to some of his contemporaries. [4] Some are lost, in particular the series of *Historical Observes*, 1660-1680, which, judging from the sequel, which has been preserved and printed by the Bannatyne Club, would have been of great value. According to tradition the greater part of what has been recovered was found in a snuff-shop by Mr. Crosby the lawyer, the supposed original of Scott's Pleydell, and purchased at the sale of his books after his death by the Faculty of Advocates.[5]

[4] Preface to Forbes's *Journal of the Session*, Edinburgh, 1714.

[5] MS. Genealogical Roll of the Family of Lauder by the late Sir Thomas Dick Lauder, in possession of Sir T.N. Dick Lauder.

Eight volumes came into the possession of the Faculty of Advocates, and under their auspices two folio volumes of legal decisions from 1678 to 1712

were published in 1759 and 1761.[6] In 1837 the Bannatyne Club printed *The Historical Observes*, 1680-1686, a complete MS. in the Advocates' Library, and in 1848 they printed two volumes of *Historical Notices*, 1661-1688. These are after 1678 selections from the same MSS. from which the folio of 1759 was compiled, and the additions to the text of the folio are not numerous, though the historical matter, which was buried among the legal decisions, is presented in a more convenient form. But from 1661 to 1678 (about half of vol. i.) and especially from 1670 (for the previous entries occupy only a few pages) the notices are all new and many of them of considerable interest. In printing these volumes, which I believe are acknowledged to contain some of the best material for the history of Scotland at the time, the Bannatyne Club carried out a design which had been long cherished by the late Sir Thomas Dick Lauder,[7] though he did not live to see its complete fulfilment, and he was helped in his efforts by Sir Walter Scott. The story[8] is worth telling more fully than has yet been done. In the winter of 1813-14 Sir Thomas, then a young man, met Sir Walter at a dinner-party. Sir Walter expressed his regret 'that something had not been done towards publishing the curious matter in Lord Fountainhall's MSS.,'[9] and urged Sir Thomas to undertake the task. In 1815 Sir Thomas wrote to Scott asking about a box in the Advocates' Library believed to contain MSS. of Fountainhalls. Sir Walter replied as follows:—

[6] See Mr. David Laing's Preface to the *Historical Notices*, p. xx, Bannatyne Club.

[7] Author of *The Moray Floods*, *The Wolf of Badenoch*, and other well-known books.

[8] The original correspondence was bound up by Sir Thomas in a volume along with Mylne's book (see *infra*), and is in the possession of Sir T.N. Dick Lauder.

[9] Letter, Sir T.D. Lauder to Sir W. Scott, 22nd May 1822, *infra*.

'Dear Sir,—I am honoured with your letter, and should have been particularly happy in an opportunity of being useful in assisting a compleat edition of Lord Fountainhall's interesting manuscripts. But I do not know of any in the Advocates' Library but those which you mention. I think it likely I may have mentioned that a large chest belonging to the family of another great Scottish lawyer, Sir James Skene of Curriehill, was in our Library and had never been examined. But I could only have been led to speak of this from the similarity of the subject, not from supposing that any of Lord Fountainhall's papers could possibly be deposited there. I am very glad to hear you are busying yourself with a task which will throw most important light upon the history of Scotland, and am, with regard, dear sir, your most obedt. servant,

'WALTER SCOTT. *Edinr., 19 February 1815.*'

After a further interchange of letters in 1816 the matter slumbered till 1822 when there appeared a volume entitled *Chronological Notes of Scottish Affairs from 1680 till 1701, being chiefly taken from the Diary of Lord Fountainhall* (Constable, 1822), with a preface by Sir Walter Scott, who had evidently forgotten his correspondence with Sir Thomas.[10] The volume in reality contained a selection, comparatively small, from Fountainhall's notebooks in the Advocates' Library, with copious interpolations by the author, Robert Mylne (who died in 1747), not distinguished from the authentic text of the notes, and greatly misrepresenting Fountainhall's opinions. The next stage in the correspondence may be given in Sir Thomas's own words:—

[10] The preface and Mylne's interpolations are appended to Mr. Laing's preface to the *Historical Notices*.

'Having been much astonished to learn, from a perusal of the foregoing review,[11] that Sir Walter Scott had stolen a march on me, and published a Manuscript of Lord Fountainhall's, at the very time when he had reason to believe me engaged in the work, and that by his own suggestion, and being above all things surprised that he had not thought it proper to acquaint me with his intention before carrying it into effect, I sat down and wrote to him the following letter, in which, being aware how much he who I was addressing was to be considered as a sort of privileged person in literary matters, I took special care to give no offence, to write calmly, and to confine myself to such a simple statement of the facts as might bring a blush into his face without exciting the smallest angry feeling. I hoped, too, that I might prevail on him, as some atonement for his sins, to lend a helping hand to bring forth the real work of Lord Fountainhall in a proper style.'

[11] In Constable's Magazine. See *infra*.

TO SIR WALTER SCOTT OF ABBOTSFORD, BARONET.

'Relugas, near Forres, 22nd May 1822.'

'DEAR SIR,—From *Constable's Magazine* for last month, which has this moment fallen into my hands, I learn, for the first time, with some surprise, but with much greater delight than mortification, that you have condescended to become the Editor of a portion of my Ancestor Lord Fountainhall's MSS. From this I am led to believe, that the circumstance of my having been engaged in the work since 1814 must have escaped your recollection, otherwise I think you would have informed me of *your* intention or inquired into *mine*. In the winter 1813-14, I had the happiness of meeting you at the table of our mutual friend, Mr. Pringle of Yair, where you expressed regret to me that something had not been done towards publishing the curious matter contained in Lord

Fountainhall's MSS., urging me at the same time to undertake the task. Having also soon afterwards been pressed to perform this duty by Mr. Thomas Thomson, Mr. Napier, and several other literary friends, I was led to begin it, and Lord Meadowbank having presented my petition to the Dean and Faculty of Advocates, they were so liberal as to permit me to have the use of the MSS. in succession at Fountainhall, where I then was on a visit to my Father, and where I transcribed everything fit for my purpose. Emboldened by the remembrance of what passed in conversation with you at Mr. Pringle's, I took the liberty of trespassing on you in a letter dated 18th February 1815, to beg you would inform me whether you knew of the existence of any of Lord Fountainhall's MSS. besides the eight Folio volumes I had then examined. You did me the honor to write me an immediate reply, in which you stated that you knew of no other MSS. but those I had mentioned, and you conclude by saying, that you were glad to hear that I was busying myself in a task which would throw much light on the history of Scotland. In May 1816, whilst engaged here in arranging and retranscribing the materials I had collected for the work in the order of a Journal, I met with a little difficulty about the word FORRES, which the sense of the passage led me to read FORREST, meaning ETTRICK FORREST. Knowing that you were the best source from which true information on such subjects was to be drawn, and presuming upon your former kindness, I again addressed you, 23rd May 1816, begging to know whether I was right in my conjecture. To this I received a very polite answer in course of post, in which you express great pleasure in complying with my request, and are so obliging as to conclude with the assurance that at any time you will be happy to elucidate my researches into my ancestors' curious and most valuable Manuscripts with such hints as your local knowledge may supply.

'Since the period to which I have just alluded, I have continued to prosecute the work, but only at intervals, having met with frequent interruptions, among which I may mention an excursion to Italy; and after having finished about two-thirds of it in my own handwriting, it is only now that I have been able to complete it, by the aid of an amanuensis. I do not much wonder that, employed as you are in administering fresh draughts of enjoyment from the exhaustless spring of your genius to the ever-increasing thirst of a delighted public, you should have forgotten my humble labours. But whilst I regret that they should have been so forgotten, inasmuch as they might have contributed to aid or lessen yours, I beg to assure you, that every other feeling is absorbed in that of the satisfaction I am now impressed with in learning that you have taken Lord Fountainhall under your fostering care, as I am well aware that, independent of the honor done him and his family by his name being coupled with that of Sir Walter Scott, there does not now, and perhaps there never will, exist any individual who could elucidate him so happily as your high talents and your deep research in the historical anecdote of your country must enable you to do. I am naturally very desirous to see your publication, of which I cannot procure a copy from the booksellers here. I should not otherwise have intruded on you until I had seen the book, as I am at present ignorant how far it clashes or agrees with the plan of the work I have prepared. As business calls me to Edinburgh, I can now have no opportunity of perusing it before my departure, as I leave this on Tuesday the 28th instant I observe, however, with great gratification, from a quotation in the *Magazine* from your preface, that you hold out hopes of a farther publication, and I am consequently anxious to avail myself of being in Edinburgh to have the honor of an interview with you, that I may avoid any injudicious interference with your undertaking, and rather go hand in hand with you in promoting it. As I shall be detained on the road, I shall not be in

Edinburgh until the evening of Friday the 31st, and my present intention is to remain in town only Saturday and Sunday, unless unavoidable circumstances occur to prevent my leaving it on the Monday. If you could make it convenient to grant me an audience on either of the days I have mentioned, viz., on Saturday, or Sunday, the 1st or 2nd of June, you would very much oblige me, and it will be a further favor if you will have a note lying for me at Mrs. President Blair's, or at my Agent, Mr. Macbean's, 11 Charlotte Square, stating the precise time when you can most conveniently receive me, that I may not be so unfortunate as to call on you unseasonably. With the highest respect, and with very great regard, I have the honor to be, dear sir, very truly yours,

THOS. DICK LAUDER.'

To this Sir Walter replied:—

'MY DEAR SIR,—I am sorry you could for a moment think that in printing rather than publishing Lord Fountainhall's Notes or rather Mr. Milne's, for that honest gentleman had taken the superfluous trouble to write the whole book anew, I meant to interfere with your valuable and extensive projected work. I mentioned in the advertisement that you were engaged in writing the life of Lord Fountainhall, and therefore declined saying anything on the subject, and I must add that I always conceived it was his life you meant to publish and not his works. I am very happy you entertain the latter intention, for a great deal of historical matter exists in the manuscript copy of the collection of decisions which has been omitted by the publishers, whose object was only to collect the law reports and who appear in the latter volume entirely to have disregarded all other information. There is also somewhere in the Advocates' Library, but now mislaid, a very curious letter of Lord Fountainhall on the Revolution, and so very many other remains of his

that I would fain hope your work will suffer nothing by my anticipation, which I assure you would never have taken place had I conceived those Notes fell within your plan. The fact was that the letter on the Revolution was mislaid and the little Ma[nuscript] having disappeared also, though it was afterwards recovered, it seemed to me worth while to have it put in a printed shape for the sake of preservation, and as only one hundred copies were printed, I hope it will rather excite than gratify curiosity on the subject of Lord Fountainhall. I expected to see you before I should have thought of publishing the Letter on the Revolution, and hoped to whet your almost blunted purpose about doing that and some other things yourself. I think a selection from the Decisions just on the contrary principle which was naturally enough adopted by the former publishers, rejected[12] the law that is and retaining the history, would be highly interesting. I am sure you are entitled to expect[13] on all accounts and not interruption from me in a task so honorable, and I hope you will spare me a day in town to talk the old Judge's affairs over. The history of the Bass should be a curious one. You are of course aware of the anecdote of one of your ancestors insisting on having the "auld craig back again."

'Constable undertook to forward to you a copy of the Notes with my respects, and it adds to my piggish behaviour that I see he had omitted it. I will cause him send it by the Ferry Carrier.

'I beg to assure you that I am particularly sensible of the kind and accomodating view you have taken of this matter, in which I am sensible I acted very thoughtlessly because it would have been easy to have written to enquire into your intentions. Indeed I intended to do so, but the thing had gone out of my head. I leave Edin'r in July, should you come after the 12 of that month may I hope to see you at Abbotsford, which would be very agreeable, but if you keep your purpose of being

here in the beginning of June I hope you will calculate on dining here on Sunday 2d at five o'clock. I will get Sharpe to meet you who knows more about L'd Fountainhall than any one.—I am with great penitence, dear Sir Thomas, your very faithful humble servant,

'WALTER SCOTT.'

[12] *sic* for rejecting.

[13] A word is omitted, perhaps 'assistance.'

'N.B.—The foregoing letter from Sir Walter, written in answer to mine of the 25th May,[14] sufficiently shows the extent of the dilemma he found himself thrown into. It is full of strange contradictions. He talks of "*printing* rather than *publishing*" a book which was *publickly* advertised and *publickly* sold. He assures me that he believed that it was *Fountainhall's Life*, and not his *works* I meant to publish, though the former part of the correspondence between us must have made him fully aware that it was *the works* I had in view; and he unwittingly proves to me immediately afterwards that he had not altogether forgotten that it was *the works* I had taken in hand to publish, for he says, "I expected to see you before I should have thought of publishing the letter on the Revolution, and hoped to *whet your almost blunted purpose about doing that and some other things yourself*." And again afterwards—"it would have been easy to have written to enquire into your intentions, indeed *I intended to do so*, but the thing had gone out of my head." Why did you intend to write to me, Sir Walter, about intentions which you have said you were unconscious had any existence? But who can dare to be angry with Sir Walter Scott? Who could be savage enough to be angry with the meanest individual who could write with so much good nature and bonhommie as he displays in his letter? Had one particle of angry feeling lurked in my bosom against him, I should have merited scourging. My answer was as follows....'

[14] *sic* for 22nd May.

Sir Thomas was unable to accept Sir Walter's invitation, but proposed to call on him, and received the following reply:—

'My dear Sir Thomas,—I am much mortified at finding that by a peremptory message from my builder at Abbotsford, who is erecting an addition to my house, I must set out there to-morrow at twelve. But we must meet for all that, and I hope you will do me the honour to breakfast here, though at the unchristian hour of *Nine o'clock*, and if you come as soon after eight as you will, you will find me ready to receive you. I mention this because I must be in the court at *Ten*. I hope this will suit you till time permits a longer interview. I shall therefore expect you accordingly.—Yours very sincerely,

WALTER SCOTT.

'*Castle Street, Friday*'

'It gives me sincere regret that this unexpected news[15] prevents my having the pleasure of receiving you on Monday.'

[15] This word doubtful. It is indistinctly written.

Sir Thomas proceeds in his narrative:—

'N.B.—I kept my appointment accurately to the hour and minute, and found the Great Unknown dashing off long foolscap sheets of what was soon to interest the eyes, and the minds, and the hearts of the whole reading world; preparing a literary food for the voracious maw of the many-headed monster, every mouth of which was gaping wide in expectation of it. He received me most kindly, though I could not help secretly grudging, more than I have no doubt he did, every moment of the time he so good-naturedly

sacrificed to me. He repeated in words, and, if possible, in stronger terms, the apologies contained in his letter. I offered him my Manuscript and my humble services. He insisted that he would not rob me of the fruits of my pious labours. "As I know something of publishing," said he, with an intelligent smile on his countenance, "I shall be able to give you some assistance and advice as to how to bring the work properly and respectably out." I thanked him, and ventured to entreat that he would add to the obligation he was laying me under by giving me a few notes to the proposed publication. In short, the result of an hour's conversation was that he undertook to arrange everything about the publication with a bookseller, and to give me the notes I asked, and, in fact, to do everything in his power to assist me, and I left him with very great regret that a matter of business prevented me from accepting of his pressing invitation to breakfast. Before parting, he wrote for me the ensuing letter to Mr. Kirkpatrick Sharpe, which I was deprived of an opportunity of delivering by the shortness of my visit to Edinburgh.'

Sir Thomas soon afterwards completed his transcript, and on 7th June 1823 he wrote:—

'Relugas, near Forres, 7th June 1823.

'MY DEAR SIR WALTER,—Can you pardon me for thus troubling you, in order to have my curiosity satisfied about our old friend Fountainhall, whose work I gave you in July last. I hope you received the remainder of the Manuscript in October from my agent, Mr. Macbean. If you can spare time to say, in a single line, what is doing about him, you will confer a great obligation, on yours very faithfully,

T.D. LAUDER.'

Sir Walter replied:—

'MY DEAR SIR,—We have not taken any steps about our venerable friend and your predecessor, whose manuscript is lying safe in my hands. Constable has been in London this long time, and is still there, and Cadell does not seem willingly to embark in any enterprize of consequence just now. We have set on foot a sort [of] Scottish Roxburgh Club[16] here for publishing curiosities of Scottish Literature, but Fountainhall would be a work rather too heavy for our limited funds, although few can be concerned which would come more legitimately under the purpose of our association, which is made in order to rescue from the chance of destruction the documents most essential to the history and literature of Scotland.

'We are having a meeting on the 4th July, when I will table the subject, and if we possibly can assist in bringing out the worthy Judge in good stile, we will be most ready to co-operate with your pious endeavours to that effect. I should wish to hear from you before that time what you would wish to be done in the matter respecting the size, number of the impression, and so forth. Whatever lies in my limited power will be gladly contributed by, dear sir, your very faithful servant,

'WALTER SCOTT. *'Castle Street, 18 June 1823.'*

[16] The Bannatyne Club was instituted on 15th February 1823. Its object was to print works of the history, topography, poetry, and miscellaneous literature of Scotland in former times. Sir Walter Scott was president till his death. The Club's last meeting was in 1861, but there were some publications till 1867.

And in answer to further inquiry he again wrote on 10th July 1823:—

'MY DEAR SIR THOMAS,—You are too easily alarmed about the fate of your ancestors. I did not mean it would not be published—far less

that I would not do all in my power to advance the publication—but only that the size and probable expense of the work, with the limited sale for articles of literature only interesting to the Scottish Antiquaries, rendered the Booksellers less willing to adopt the proposal than they seemed at first. However I thought it as well to wait until Constable himself came down from London, as I had only spoken with his partner, and I have since seen him, and find him well disposed to the undertaking. I told him I would give with the greatest pleasure any assistance in my power in the way of historical illustration, and that I concluded that you, to whom the work unquestionably belongs, would contribute a life of the venerable Lawyer and some account of his family. Mr. Thomson has promised to look through the Manuscript and collate it with that of Mr. Maule, and is of opinion (as I am) that it would be very desirable to retrench all the mere law questions which are to be found in the printed folios. Indeed the Editors of those two volumes had a purpose in view directly opposed to ours, for they wished to omit historical and domestic anecdotes and give the law cases as unmixed as possible, while it would be our object doubtless to exclude the mere law questions in favour of the other. No doubt many of the law cases are in themselves such singular examples of the state of manners that it would be a pity not to retain them even although they may be found in the printed copy because they are there mixed with so much professional matter that general readers will not easily discover them.

"The retrenching of the mere law will entirely advantage the general sale of the work besides greatly reducing the expense, and in either point of view it will make it a speculation more like to be advantageous. I think Constable will be disposed to incur the expense of publishing at his own risque, allowing you one half of the free profits which the established mode of accounting amongst authors and booksellers circumcises so closely that the sum netted by the author seldom exceeds

a 3'd or thereabout. But then you have no risque, and that is a great matter. My experience does not encourage me to bid you expect much profit upon an undertaking of this nature, in fact on any that I have myself tried I have been always rather a loser; but still there may be some, and I am sure the descendant of Lord Fountainhall is best entitled to such should it arise on his ancestor's work. I think you had better correspond with Constable, assuring him of my willingness to help in any thing that can get the book out, and I am sure Mr. Thomson will feel the same interest I have to leave here to-morrow for four months, but as I am only at Abbotsford I can do any thing that may be referred to me.

'As for Milne's notes, there are many of them that I think worth preservation as describing and identifying the individuals of whom Fountainhall wrote, although his silly party zeal makes him, like all such partizans of faction, unjust and scurrilous.

'I have only to add that the Manuscript is with Mr. Thomson for the purpose of collation, and that I am sure Constable will be glad to treat with you on the subject of publication, and that I will, as I have always been, be most ready to give any notes or illustrations in my power, the only way I suppose in which I can be useful to the publication. The idea of retrenching the law cases, which originates with Thomson, promises, if you entertain it, to remove the only possible objection to the publication, namely the great expense. My address for the next four months is, Abbotsford, by Melrose, and I am always, dear Sir Thomas, very much your faithful, humble servant,

WALTER SCOTT.

'Edin'r, 10 July 1823.'

Again on 27th November 1823:—

'Dear Sir Thomas,—I have sent the Manuscript to Mr. Macbean, Charlotte Square, as you desire. It is a very curious one and contains many strange pictures of the times. Our ancestors were sad dogs, and we to be worse than them, as Horace tells us the Romans were, have a great stride to make in the paths of iniquity. Men like your ancestor were certainly rare amongst them. I had a scrap some where about the murder of the Lauders at Lauder where Fountainhall's ancestor was Baillie at the time. After this misfortune they are said to have retired to Edinburgh. Fountainhall's grandfather lived at the Westport. All this is I hope familiar to you, I say I hope so, for after a good deal of search I have abandoned hope of finding my memorandum.

'I have seen Constable who promises to send me the sheets as they are thrown off, and any consideration that I can bestow on them will be a pleasure to, dear Sir Thomas, your most obedient servant,

WALTER SCOTT.

'Edin'r, 2d December.'

The last letter on the subject, written apparently by Mr. Cadell, is as follows:—

'Edinburgh, 28 July 1824.'

'Dear Sir,—We duly received your much esteemed letter of 16 instant, and beg to assure you that we are as willing as ever to do what we stated last year in bringing out your MS. in a creditable way. The reason, and the only reason of delay, has been the indisposition of Mr. Constable, who has from last November till about a month ago been unable to give his time to business.

'Having communicated your letter to him we beg now to state that we shall take immediate steps for getting the work expedited. The MS. is still in Mr. Thomson's hands, but we shall see him on the subject forthwith. It is proposed to print the work in 2 vols. octavo handsomely, the number 500 copies.—We remain, sir, with much respect, your most,

ARCH. CONSTABLE & Co.

'Sir Thos. Dick Lauder, Bart.'

'The publication,' as Mr. Laing says in his Preface, 'intended to form two volumes in octavo, under the title of *Historical Notices of Scottish Affairs*, had actually proceeded to press to page 304 in 1825, when the misfortunes of the publisher put a stop to the enterprise. After an interval of several years the greater portion of Sir Thomas's transcripts was placed at the disposal of the Bannatyne Club.' The result was the publication of the *Observes* and the *Historical Notices*. Mr. Laing adds, 'If at any subsequent time some of his missing MSS. should be discovered, another volume of Selections, to include his early Journal and extracts from his smaller notebooks, might not be undeserving the attention of the Bannatyne Club.' The Journal in France, though never printed, was reviewed by Mr. Cosmo Innes in 1864 in the *North British Review*, vol. xli. p. 170.

OUTLINE OF FOUNTAINHALL'S LIFE

A short relation of Lord Fountainhall's life is given in Mr. David Laing's preface to the *Historical Notices*. He was born in 1646. His father was John Lauder, merchant and bailie of Edinburgh, of the family of Lauder of that Ilk.[17] He graduated as Master of Arts in the University of Edinburgh in 1664. He went to France to study in 1665, and returned from abroad in 1667. He was 'admitted' as an advocate in 1668. He was married in 1669 to Janet, daughter of Sir Andrew Ramsay of Abbotshall,[18] Provost of

Edinburgh, afterwards a Lord of Session. In 1674, along with the leaders of the bar and the majority of the profession, he was 'debarred' or suspended from practising by the king's proclamation for asserting the right of appeal from the decisions of the Court of Session, and was restored in 1676. He was knighted in 1681. In the same year his father, who was then eighty-six years old, purchased the lands of Woodhead and others in East Lothian. The conveyance is to John Lauder of Newington in liferent, and Sir John Lauder, his son, in fee. The lands were erected into a barony, called Fountainhall. In 1685, he was returned as member of Parliament for the county of Haddington, which he represented till the Union in 1707. In 1686 his wife, by whom he had a large family, died. In 1687 he married Marion Anderson, daughter of Anderson of Balram. He was appointed a Lord of Session in 1689, and a Lord of Justiciary in 1690. He resigned the latter office in 1709, and died in 1722. His father had been made a baronet in 1681 by James VII. The succession under the patent was to his son by his third marriage; but in 1690, after the Revolution, a new patent was granted by William and Mary to Sir John Lauder, senior, and his eldest son and his heirs. The first patent was reduced in 1692, and in the same year Fountainhall succeeded on his father's death.

[17] 'Sir John Lauder of Fountainhall is descended of the Lauders of that ilk, and his paternall coat is immatriculate and registrate in the Lyons Book of Herauldrie.'—Unprinted MS. by Lauder, in possession of Sir T.N. Dick Lauder. A Genealogical Roll in MS., of the Lauder Family, compiled by Sir T. Dick Lauder, also in the present baronet's possession, has afforded much useful information; and for Lauder's family connections, I have also consulted Mrs. Atholl Forbes's *Curiosities of a Scottish Charter Chest*, and Mrs. Stewart Smith's *Grange of St. Giles*.

[18] See Appendix III.

The following estimate of his character in Forbes's Preface to the *Journal of the Session* (1714), a rare book, is quoted by Mr. Laing, but is too much in point to be omitted here. 'The publick and private character of this excellent judge are now so well known that I need say no more of him than that he signalized himself as a good patriot and true Protestant in the Parliament of 1686 in defence of the Penal Laws against Popery. This self-denied man hath taken no less pains to shun places that were in his offer than some others have been at to get into preferment. Witness his refusing to accept a patent in the year 1692 to be the King's Advocate, and the resigning his place as a Lord of Justiciary after the Union, which Her Majesty with reluctancy took off his hand. In short, his lordship is (what I know by experience) as communicative as he is universally learned and knowing. He hath observed the decisions of the Session from November 1689 till November 1712, which I have seen in Manuscript; but his excessive modesty can't be prevailed on to make them publick.'

There are no materials for expanding Mr. Laing's sketch of Fountainhall's life, except in so far as the notes of his travels and his expeditions into the country, and the accounts, here printed, give some glimpses of his habits and his domestic economy in his early professional years. He lived in troubled times, but his own career was prosperous and comparatively uneventful. The modesty which Professor Forbes truly ascribes to him disinclined him to take a part, as a good many lawyers did, in public affairs, except for a short period before the Revolution, as a member of Parliament; and, together with his prudence and strong conscientiousness, preserved him from mixing in the political and personal intrigues which were then so rife in the country. The same modesty is apparent in his writings in mature life to a tantalising degree. It may not be so conspicuous in his boyish journal, when he was ready enough to throw down the gauntlet in a theological discussion; but in the later voluminous MSS., when even dry legal disputes are enlivened by graphic and personal touches, the author

himself rarely appears on the scene. We miss the pleasant details of Clerk of Penicuik's *Memoirs*.^[19] We learn little of the author's daily walk and conversation. It does not even appear (so far as I know) where his house in Edinburgh was. We do not know how often he went to Fountainhall, or whether he there realised his wish to spend half his time in the country.^[20] We do not know how he occupied himself there, though it may be gathered that he took much interest in the management of his property and in country business, and he records with much gratification his appointment as a justice of the peace. He tells us nothing of his wife, except how much money she got for housekeeping, and nothing of his children, except when he records their births or deaths. Nothing of his personal relations with his distinguished contemporaries at the bar, or with the men who, as officers of State and Privy Councillors, still governed Scotland in Edinburgh.

[19] Scottish History Society.

[20] Journal, p. 21.

On the other hand, his opinions on all subjects, on public affairs and public men, on such questions of speculation or ethical interest as astrology and witchcraft, often strikingly expressed in language always racy and sincere, are scattered through the published volumes of his writings, all printed without note or comment. It may at least be a tribute to Fountainhall's memory to present a short view of his opinions, and for that purpose I have not scrupled to quote freely, especially from the *Historical Observes*, a delightful book, which deserves a larger public than the limited circle of its fortunate possessors. Fountainhall's political opinions were moderate, in an age when moderation was rare. We are tempted to think, if I am not mistaken, that in that dark period of Scottish history, every man was a furious partisan, as a Royalist or a Whig, or as an adherent of one or other

of the chiefs who intrigued for power. But it may be that Lauder's attitude reflects more truly the average opinions of educated men of the time.

HIS POLITICAL OPINIONS

His political position has perhaps been imperfectly understood by the few writers who have had occasion to refer to it. Mr. Laing's statement, that prior to the Revolution 'he appears generally to have acted only with those who opposed the measure of the Court,' is not, I venture to think, wholly accurate. It is true that on one occasion, no doubt memorable in his own life, he incurred the displeasure of the government. When James VII. on his accession proposed to relax the penal laws against Roman Catholics, while enforcing them against Presbyterians, Lauder, who had just entered Parliament, opposed that policy and spoke against it in terms studiously moderate and respectful to the Crown. The result, however, was that he became a suspected person. As he records in April 1686, 'My 2 servants being imprisoned, and I threatened therewith, as also that they would seize upon my papers, and search if they contained anything offensive to the party then prevailing, I was necessitat to hide this manuscript, and many others, and intermit my Historick Remarks till the Revolution in the end of 1688.'

Hence the Revolution was perhaps welcome to him. As an adherent of character and some position he met with marked favour from the new sovereigns, who promoted him to the bench, and corrected the injustice which had been done to him in the matter of the patent of his father's baronetcy, and also granted him a pension of £100 a year, an addition of fifty per cent. to his official salary. Shortly afterwards he was offered the post of Lord Advocate, but declined it, because the condition was attached that he should not prosecute the persons implicated in the Massacre of

Glencoe.[21] From these facts it has been sometimes inferred that Lauder was disaffected to the Stewart dynasty, and that his professional advancement was thereby retarded. In reality his career was one of steady prosperity. Having already received the honour of knighthood while still a young man, and being a member of parliament for his county, he became a judge at the age of forty-three. So far from holding opinions antagonistic to the reigning house, Lauder was an enthusiastic royalist. He was indeed a staunch Protestant at a time when religion played a great part in politics. In his early youth the journal here published shows him as perhaps a bigoted Protestant. But he was not conscious of any conflict between his faith and his loyalty till the conflict was forced upon him, and that was late in the day. In this position he was by no means singular. Sir George Mackenzie, who as Lord Advocate was so vigorous an instrument of Charles II.'s policy, refused, like Lauder, to concur in the partial application of the penal laws, and his refusal led to his temporary disgrace. Lauder was not even a reformer. He was a man of conservative temperament, and while his love of justice and good government led him to criticise in his private journals the glaring defects of administration, and especially the administration of justice, there is no evidence that he had even considered how a remedy was to be found. There was indeed no constitutional means of redress, and all revolutionary methods, from the stubborn resistance of the Covenanters, to the plots in London, real or imaginary, but always implicitly believed in by Lauder, and the expeditions of Monmouth and Argyll, met with Lauder's unqualified disapproval and condemnation.

[21] It has been said that there is no sufficient evidence of this honourable incident in Fountainhall's career. But Sir Thomas Dick Lauder (MS. Genealogical Roll, *supra*) reproduces it in a poem to the Memory of Sir John Lauder, published in 1743, and attributed to Blair, the author of 'The Grave,' in which the following lines occur. He

'Saw guiltless blood poured out with lavish hand,
And vast depopulated tracts of land;
And saw the wicked authors of that ill
Unpunished, nay, caressed and favoured still.
The power to prosecute he would not have,
Obliged such miscreants overlooked to save.'

[Sidenote: H.O. 148]

[Sidenote: H.O. 6]

[Sidenote: Decisions, p. 232.]

I shall cite some passages in illustration. When Charles II. died and James was proclaimed, Lauder writes that 'peoples greiff was more than their joy, having lost their dearly loved king'; then after a gentle reference to 'his only weak syde,' he says, 'he was certainly a prince indued with many Royall qualities, and of whom the Divine providence had taken a speciall care by preserving him after Worchester fight in the oak.' ... 'A star appeared at noon day at his birth; he was a great mathematician, chemist, and mechanick, and wrought oft in the laboratories himselfe; he had a natural mildnesse and command over his anger, which never transported him beyond an innocent puff and spitting, and was soon over, and yet commanded more deference from his people than if he had expressed it more severely, so great respect had all to him. His clemencie was admirable, witnesse his sparing 2 of Oliver Cromwell's sones, tho on of them had usurped his throne. His firmnesse in religion was evident; for in his banishment he had great invitations and offers of help to restore him to his croun if he would turne Papist, but he always refused it. As for his brother James, now our present King, he is of that martiall courage and conduct, that the great General Turenne was heard say, if he ware to conquer the world, he would choise the Duke of York to command his

army,' Such were Lander's loyal sentiments, as set down in a private journal a year before his servants and clerks were arrested, and the seizure of his papers threatened. But his Protestantism and his jealousy of Popery were equally strong. In 1680 he notes that the minister of Wells in Nithsdale had 'turned Roman Catholic: so this is one of the remarkable trophies and spoils the Papists are beginning to gain upon our religion.' A little further on he is indignant at ridicule being thrown on the Popish Plot 'Not only too many among ourselves, but the French, turned the Plot into matter of sport and laughter: for at Paris they acted in their comedy, called Scaramucchio, the English tryall, and busked up a dog in a gowne like Chief Justice Scrogs.' Again, 'A Papist qua Papist cannot be a faithful subject,' He had, however, no sympathy with the Covenanters, a name which he does not use, but he describes them as 'praecise phanaticks.' He did not consider it unjust to bring them to capital punishment, because they denied the right of the king to govern, though on grounds of humanity and policy he was inclined to mercy. In 1682 he observes on the execution of Alexander Home, a small gentleman of the Merse, who had commanded a party at the insurrection of Bothwell Bridge, 'tho he came not that length,' 'It was thought there was blood enough shed on that quarrell already ... for they are like Sampson, they kill and persuade more at their death than they did in their life.' He couples the Roman Catholics and Presbyterians together as troublesome citizens. 'These foolish people that assume the name of Presbyterians have unwarily drunk in these restless principles from the Jesuites and seminary priests, who have had a hand in all our troubles and blown the coal.' Apart, however, from the political attitude of the Covenanters, whom he regarded as disaffected subjects, there is no evidence that he concerned himself with the controversy as to the Episcopal or Presbyterian form of Church government, or that he regretted the re-establishment of Presbytery after the Revolution. He was not interested in Church matters. In 1683 he writes, 'The Synod of Edinburgh' [which was then Episcopalian] 'sat down, and not

having much else to do, enacted 1^o that ministers should not sit in the pulpit, but stand all the time they are in it.'[22]

[22] A devotional diary, for 1700, apparently one of a series, preserved in the Edinburgh University Library, No. 274, and an undated letter in the Dick Lauder MSS. about the election of a 'godly, primitive, and evangelicall pastor,' lead me to think that his views were Calvinistic, and not out of sympathy with the Presbyterian Establishment of the Revolution.

In the present volume, p. 229, there is a striking example of his sympathy with the royal prerogative. He says it was believed that the project of Union was 'mainly set on foot by his Majestie and so much coveted after by him that he may rid himselfe of the House of Commons, who have been very heavy on his loines, and the loins of his predecessors.... I confesse the king has reason to wrest this excessive power out of the Commons their hand, it being an unspeakable impairment of the soveraintie, but I fear it prosper not.'

His repugnance to anything savouring of revolutionary methods, combined with his always candid recognition of merit, appears in his observation when Sidney was executed.

[Sidenote: H.O. p. 110.]

He was a gallant man, yet had he been so misfortunat as ever to be on the disloyal side, and seemed to have drunk in with his milk republican principles.' In December 1684 Baillie of Jerviswood was prosecuted for being art and part in a treasonable conspiracy in England, along with Shaftesbury, Russell, and others. Lauder and Sir George Lockhart were commanded on their allegiance to assist the King's Advocate in the prosecution. The Court, after deliberating from midnight till three in the

morning, brought in a verdict finding 'his being art and part of the conspiracy and design to rise in arms, and his concealing the same proven,' He was hanged and quartered the same day. Fountainhall did not disapprove of his condemnation. He says, 'he carried all this with much calmness and composure of mind; only he complained the time they had given him to prepare for death was too short, and huffed a little that he should be esteemed guilty of any design against the life of the King or his brother, of which he purged himself, as he hoped to find mercy, so also he denied any purpose of subverting the monarchical government, only he had wished that some grievances in the administration of our affairs might be rectified and reformed; but seeing he purged not himself of the rest of his libel, his silence as to these looked like a tacit confession and acknowledgment thereof.'

[Sidenote: Decisions, i. 366.]

[Sidenote: H.O. 74]

[Sidenote: H.N. 11]

[Sidenote: H.O. 184]

[Sidenote: Decisions, i. 160.]

[Sidenote: H.O. 55.]

A still more striking illustration of Lauder's political views is afforded by his numerous observations on Argyll, who played so great a part in public affairs during the period covered by the manuscripts until his execution in 1685. Argyll was not a sympathetic figure to Lauder, but, as usual, he does justice to his qualities, and recognises the tragedy of his fate. On the day of his execution he notes, 'And so ended that great man, with his family, at that

time.' He had a more cordial personal admiration for a very different statesman, Lauderdale, though he often disapproved of his policy. At his death he writes, '24 of August, 1682, dyed John Maitland, Duke of Lauderdale, the learnedest and powerfuller Minister of State of his age, at Tunbridge Wells. Discontent and age were the ingredients of his death, if his Dutchesse and Physitians be freed of it; for she had abused him most grosely, and got all from him she could expect.... The Duke of York was certainly most ungrate to Lauderdale; for Lauderdale was the first who adventured in August 1679 to advise the King to bring home the Duke of York from Flanders.'[23] Argyll he deemed to be wanting in magnanimity. In 1671 he writes on the subject of a point in a lawsuit being decided in Argyll's favour, 'This was my Lord President's doing [Stair], he being my Lord Argyle's great confidant. It was admired by all that he blushed not to make a reply upon his Father's forfaitor, and whow he had committed many treasonable crimes before the discharge, and to see him rather than tyne his cause, suffer his father rather to be reproached and demeaned as a traitor of new again, by his own advocats,' So fourteen years later he writes, 'Whatever was in Argile's first transgression in glossing the Test (which appeared slender), yet God's wonderfull judgements are visible, pleading a controversie against him and his family, for the cruall oppression he used, not only to his father's, but even to his ounne creditors. It was remembered that he beat Mistris Brisbane done his stairs for craving hir annuelrents, tho he would have bestowed as much money on a staff or some like curiosity.' He was, however, one of Argyll's counsel when he was prosecuted for taking the Test, with the explanation 'that he conceived that this Test did not hinder nor bind him up from endeavouring alterations to the better either in Church or State.' Argyll, who had escaped, was sentenced to death in his absence, attainted, and his estates forfeited. Lauder strongly disapproved of the proceedings. He writes, 'There was a great outcry against the Criminal Judges, their timorous dishonesty....' These words, 'consistent with my

loyalty, were judged taxative and restrictive, seeing his loyalty might be below the standard of true loyalty, not five-penny fine, much less eleven-penny,' ... 'The design was to low him, that he might never be the head of a Protestant party, and to annex his jurisdiction to the Crown, and to parcel out his lands; and tho' he was unworthily and unjustly dealt with here, yet ought he to observe God's secret hand, punishing him for his cruelty to his own and his father's creditors and vassals, sundry of whom were starving.' Lauder speaks of 'that fatal Act of the Test.' He had no favour for it, and he narrates with glee how 'the children of Heriot's Hospitall, finding that the dog which keiped the yairds of that Hospitall had a publick charge and office, they ordained him to take the Test, and offered him the paper, but he, loving a bone rather than it, absolutely refused it; then they rubbed it over with butter (which they called an Explication of the Test in imitation of Argile), and he licked of the butter, but did spite out the paper, for which they hold a jurie on him, and in derision of the sentence against Argile, they found the dog guilty of treason, and actually hanged him.'

[23] Sir George Mackenzie also, who criticises Lauderdale's proceedings very freely, pays a fine tribute to one trait in his character, 'Lauderdale who knew not what it was to dissemble.'—*Memoirs*, p. 182.

[Sidenote: H.O. 166]

[Sidenote: H.O. 196.]

[Sidenote: H.O. 189.]

Although Lauder considered that Argyll had been unjustly condemned in the matter of the Test, his opinion about the expedition of 1685 was very different. He did justice to his capacity. He writes, 'Argile had always the reputation of sense and reason, and if the Whigs at Bothwell Bridge in 1679

had got such a commander as he, it's like the rebellion had been more durable and sanguinarie' But as soon as the news of Argyll's landing on the west coast came, this is his note, 'Argyle, minding the former animosities and discontents in the country, thought to have found us all alike combustible tinder, that he had no more adoe then to hold the match to us, and we would all blow up in a rebellion; but the tymes are altered, and the peeple are scalded so severely with the former insurrections, that they are frightened to adventure on a new on. The Privy Council, though they despised this invasion, yet by proclamations they called furth the whole heritors of Scotland,' and so on. 'Some look on this invasion as a small matter, but beside the expence and trouble it hes put the country to, if we ponder the fatall consequences of such commotions, we'll change our opinions: for when the ramparts of government are once broke down, and the deluge follows, men have no assurances that the water will take a flowing towards their meadows to fructify them; no, no, just in the contrare.' Argyll was discovered and apprehended in his flight by a weaver near Paisley, of whom Lauder says, 'I think the Webster who took him should be rewarded with a litle heritage (in such a place wher Argyle's death will not be resented), and his chartre should bear the cause, and he should get a coat of arms as a gentleman, to incouradge others heirafter.' It does not appear that this suggestion was acted upon.

But while Lauder was a supporter of the existing order of government and opposed to all revolutionary plans, his journals disclose that in the state of public affairs he found much matter for criticism and ground for anxiety. In 1674 he tells of what will happen 'whenever we get a fair and unpraelimited Parliament, which may be long ere we see it.' In 1683 he writes sadly: 'Though we change the Governors, yet we find no change in the arbitrary government. For we are brought to that pass we must depend and court the Chancelor, Treasurer, and a few other great men and their servants, else we shall have difficulty to get either justice or despatch in our

actions, or to save ourselves from scaith, or being quarrelled on patched up, remote and innocent grounds. This arbitrary way Lauderdale attempted, but did not attain so great a length in it as our statesmen do now; and they value themselves much in putting the military and ecclesiastic Laws to strict and vigorous execution, so that, let soldiers commit as great malversations and oppressions as they please, right is not to be got against them. Witness John Cheisly of Dalry's usage with Daver and Clerk, in the Kings troupe, and Sir John Dalrymple's with Claverhouse.' In the same year he says of James, then Duke of York, and Monmouth, 'We know not which of their factions struggling in the womb of the State shall prevail.' He regarded these political evils and dangers as beyond his power to remedy. It was not till after he had entered Parliament in 1685 that he made any public utterance on politics. In the last two years of James's reign the Test Act was enforced against Nonconformist Protestants but not against Roman Catholics. Lauder, being then in Parliament, considered it his duty to take a part, and he made one or two very moderate speeches, which, although expressed with studious respect to the sovereign, were doubtless highly displeasing to the government.

OPINIONS ON ADMINISTRATION OF JUSTICE AND HIS CONTEMPORARIES.

INFLUENCE OF STUDIES ABROAD

[Sidenote: H.N. 40.]

In the matter of the administration of justice he writes with much less reserve in his journals. The system was bad. The jurisdiction of the Privy Council, who tried a considerable number of causes, was ill-defined. The judges since the time of Charles I. were removable magistrates, entirely in the dependence of the Crown. Even the ordinary Lords of Session were not

always trained lawyers—Lauder's father-in-law, for example, Sir Andrew Ramsay, long Provost of Edinburgh, became a judge with the title of Lord Abbotshall. There were besides four extraordinary lords who were never lawyers, and were not bound to attend and hear causes pleaded, but they had the right to vote. At the Revolution one of the reasons assigned for declaring the Crown vacant was 'the changing of the nature of the judges' gifts *ad vitam aut culpam*, and giving them commissions *ad bene placitum* to dispose them to compliance with arbitrary sourses, and turning them out of their offices when they did not comply.' Thus in 1681, when the Test Act was passed, five judges were dismissed, four ordinary, including the President, Stair, and one extraordinary, Argyll, and a new commission issued. When the Court was so constituted, it could hardly inspire implicit confidence, and the instances are numerous in which Lauder complains that injustice has been done, and the principles of the law perverted through the influence of political and private motives. Even the most eminent of the judges were not in his opinion clear from this blot. I have quoted one passage in which Lauder hints at Stair's partiality for Argyll. In another case in which Argyll was concerned he observes, 'Every on saw that would be the fate of that action, considering the pershewar's probable intres in the President.' [24] In 1672 when, as he considered, a well-established rule of law had been unsettled, he writes, 'This is a miserable and pittiful way of wenting our wit, by shaking the very foundations of law, and leaving nothing certain. The true sourse of it all is from the wofull divisions in the House, especially between the President and the Advocat [Mackenzie], each of them raking, tho from hell, all that may any way conduce to carry the causes that they head, *Flectere si neque superos*,' etc. One decision which excited his warm indignation was given in a suit by Lord Abbotshall against Francis Kinloch, who held a wadset over the estate of Gilmerton, which Abbotshall maintained was redeemable. He lost the case. After an extraordinary account of the way in which the decision was arrived at

Lauder proceeds, 'the Chancellor's [Roths] faint trinqueting and tergiversation for fear of displeasing Halton (who agented passionately for Francis) has abated much of his reputation. The 2d rub in Abbotshall's way was a largesse and donation of £5000 sterling to be given to Halton and other persons forth of the town's revenue for their many good services done to the toune. By this they outshot Sir Androw in his oun bow, turned the canon upon him, and *justo Dei judicio* defait him by the toune's public interest, with which weapone he was want to do miracles and had taught them the way[25].... This decision for its strangeness surprised all that heard of it; for scarce even any who once heard the case doubted but it would be found a clear wodsett, and it opened the mouths of all to cry out upon it as a direct and dounright subversion of all our rights and properties.'

[24] Lauder was a very young man at the bar when he wrote these strictures on Stair. They may be compared with and in part corrected by a passage in Sir G. Mackenzie's *Memoirs*, p. 240, which also bears on the appointment of incompetent judges. 'Lauderdale by promoting four ignorant persons, who had not been bred as lawyers, without interruption, and in two years' time, to be judges in it [the Session], viz., Hatton, Sir Andrew Ramsay, Mr. Robert Preston, and Pittrichie, he rendered thereby the Session the object of all men's contempt. And the Advocates being disoblged by the regulations did endeavour, as far as in them lay, to discover to the people the errors of those who had opprest them: and they being now become numerous, and most of them being idle, though men of excellent parts, wanting rather clients than wit and learning, that society became the only distributor of fame, and in effect the fittest instrument for all alterations: for such as were eminent, did by their authority, and such as were idle, by well contrived and witty raillery, make what impressions they pleased upon the people. Nor did any suffer so much as the Lord Stairs, President of the Session; who,

because of his great affection to Lauderdale, and his compliance with Hatton, suffered severely, though formerly he had been admired for his sweet temper and strong parts. And by him our countrymen may learn, that such as would be esteemed excellent judges must live abstracted from the court; and I have heard the President himself assert that no judge should be either member of Council or Exchequer, for these courts did learn men to be less exact justiciars than was requisite.'

[25] See Appendix III.

It is not to be inferred from such strictures on the administration of justice, a matter on which, as an upright lawyer, Lauder was keenly sensitive, that he was an ill-natured critic of his professional brethren or of public men. On the contrary, the tone of his observations, though shrewd and humorous, is kindly and large-minded. He admired Lockhart, who was his senior at the bar, and whom he perhaps regarded more than any other man as his professional leader and chief, though he does not escape a certain amount of genial criticism. His enthusiastic eulogy of Lockhart's eloquence has been often quoted. In his estimation of Mackenzie it is easy to see, that while he doubted the wisdom and humanity of his relentless prosecutions, and while his arrogance comes in for criticism in a lighter vein, respect for his capacity, learning, and industry was the predominating element. It is pleasant to see the constant interest that he took in Bishop Burnet's books and movements, though they do not appear ever to have met. 'Our Dr. Burnet,' as he calls him. But that only means that he was a Scotsman, for he describes Ferguson the Plotter in the same way. There is nowhere a touch of jealousy or envy in those private journals.

The influence of Lander's period of youthful travels, his *Wanderjahre*, on his future development is seen in various ways. He always kept up his

interest in foreign countries and foreign literature. He bought a great many books, a list of which year by year is preserved, and he read them. The law manuscripts, though they embrace a pretty wide field, are confined to domestic affairs. But in the *Observes* there are every year notes and reflections on the events passing in every part of Europe, and especially France. There is some interest in the following passage, almost the last sentence in the *Historical Observes*, 'In regard the Duke of Brandenburg and States of Holland have not rourne in ther countries for all the fugitive Protestants, they are treating with Pen and other ouners of thesse countries of Pensylvania, Carolina, etc., to send over colonies ther; so that the purity of the Gospell decaying heir will in all probability passe over to America.' The foreign schools of law where he had studied naturally affected his treatment of legal questions. Until the publication of the great work of Stair, the common civil law of Scotland was in a comparatively fluid state, though there were some legal treatises of authority, such as Craig's *Feudal Law*. Mackenzie's *Criminalls* was published in 1676, and is often referred to by Lauder. Many of his contemporaries at the bar had studied like himself in the foreign schools of the Roman Civil Law, and in his reports of cases the original sources are quoted with enviable familiarity and appositeness.

TORTURE, ASTROLOGY, AND WITCHCRAFT

In questions of social ethics, such as torture, and of popular belief, such as astrology and witchcraft, Lauder was not much in advance of his age. He frequently mentions the infliction of torture without any comment. When Spence and Carstairs were tortured with the thummikins, he describes them as 'ane ingine but lately used with us,' and possibly he had some misgiving. The subjects of astrology and witchcraft had an attraction for his inquiring and speculative mind.[26] He believed in the influence of the heavenly bodies, and more firmly in witchcraft, for which many unhappy women

were every year cruelly put to death. These trials at times evidently gave him some uneasiness. But usually, with regard to both topics, his doubts do not go beyond a cautious hint of scepticism tinged with humour. He was fundamentally a religious man, and where he touches on the great issues of life, and the relation of man to his Maker, it is in a tone of deep solemnity. But he loves to discourse in a learned fashion on the influence of the stars. 'Charles the 2d,' he says, 'fell with few or no prognosticks or omens praeceeding his death, unlesse we recur to the comet of 1680, which is remote, or to the strange fisches mentioned, supra page 72, or the vision of blew bonnets, page 74,[27] but these are all conjecturall: vide, supra Holwell's prophecies in his Catastrophe Mundi,' and so on. In 1683 'we were allarumed with ane strange conjunction was to befall in it of 2 planets, Saturn and Jupiter in Leo.... Our winter was rather like a spring for mildnes. If it be to be ascrybed to this conjunction I know not.' In the case of comets there was less room for scepticism. In December 1680, 'a formidable comet appeared at Edinburgh.' In discoursing on this comet he remarks that Dr. Bainbridge observed the comet of 1618 'to be verticall to London, and to passe over it in the morning, so it gave England and Scotland in their civill wars a sad wye with its taill. They seldom shine in wain, though they proceed from exhalations and other natural causes.'

[26] Mr. Andrew Lang has pointed out to me that Lauder's remarks on the identity of the popular legends in France and Scotland (*Journal*, p. 83) are a very early instance of this observation, now recognised to be generally applicable.

[27] P. 74, i.e. of his MS. For the vision of blue bonnets, compare H.O., p. 142, and Wodrow's *History*, iv. 180.

[Sidenote: H.N. 198.]

[Sidenote: H.N. 146.]

Lauder relates several trials for witchcraft in much detail, and they evidently gave him some uneasiness. Some of the women commonly confessed and implicated other persons. In one such case the women, who among other persons, accused the parish minister, said that the devil sometimes transformed them 'in bees, in crows, and they flew to such and such remote places; which was impossible for the devil to doe, to rarefy the substance of their body into so small a matter ... thir confessions made many intelligent sober persons stumble much what faith was to be adhibite to them.' In another case from Haddington a woman confessed and accused five others and a man. Lauder saw the man examined and tested by pricking. He says, 'I remained very unclear and dissatisfied with this way of triall, as most fallacious: and the man could give me no accompt of the principles of his art, but seemed to be a drunken foolish rogue.' Then, according to his custom, he cites a learned authority, Martino del Rio, who lays bare the craft and subtlety of the devil, and mentions that 'he gives not the nip to witches of quality; and sometimes when they are apprehended he delets it....' 'The most part of the creatures that are thus deluded by this grand impostor and ennemy of mankind are of the meanest rank, and are ather seduced by malice, poverty, ignorance, or covetousness.' But he finds comfort in the pecuniary circumstances of the Tempter. 'It's the unspeakable mercy and goodness of our good God that that poor devill has not the command of money (tho we say he is master of all the mines and hid treasures of the earth) else he would debauch the greatest part of the world.'

CONTENTS OF HIS EARLY JOURNALS AND ACCOUNTS

It has already been mentioned that Lauder's later journals, when he came to chronicle public affairs and legal decisions, though they are full of graphic detail, contain little that is personal to himself. The manuscripts here printed, besides giving a picture of a Scottish student's life in France during

the seventeenth century, include a narrative of his visits to London and Oxford on his return from abroad, his journey by coach and post from London to Edinburgh, and various expeditions in Fife, the Lothians, and the Merse, Glasgow, and the Clyde district, places where he had connections. He travelled on horseback. He kept one horse at this time, which appears in the Accounts. Considering his evident relish for travelling, it is remarkable that in his long life he never seems to have left Scotland after his return in 1667, though many of his more political brethren at the bar were constantly on the road between Edinburgh and Whitehall.

He kept his accounts with great care. There were no banks, and his method was to account for each sum which he received, detailing how it was spent in dollars, merks, shillings sterling and Scots, pennies, etc. We have both his accounts during his period of travel, which are included in the first manuscript, and those during the years 1670 to 1675. From the latter copious extracts are given, and they are informatory as to the prices of commodities, and the mode of life of a young lawyer recently married. There was settled on him by his father in his marriage contract an annuity of 1800 merks (£100), secured on land. His wife's marriage portion was 10,000 merks (about £555), half of it paid up and invested, the remainder bearing interest at 6 per cent. His 'pension' as one of the assessors of the burgh was £12 (sterling). His house-rent was £20 (sterling): in one place it is stated a little higher; and he sublet the attics and basement. The wages of a woman servant was nearly £2 (sterling). We find the prices of cows, meal, ale, wine, clothing, places at theatres, etc., the cost of travelling by coach, posting, fare in sailing packet to London and so on.

[Sidenote: H.O. 137.]

[Sidenote: Genealogical Roll.]

There are many illustrations throughout Lauder's manuscripts of the poverty of Scotland, relatively not only to the present time but to England. The official salary of a judge before the Union was £200, and it only reached that figure during his lifetime. Some time after the Union it was raised to £500. On the appointment of the Earl of Middleton as joint Secretary of State for England with Sunderland, in place of Godolphin, Lauder notes, 'This was the Dutchesse of Portsmouth's doing, and some thought Midleton not wise in changing (tho it be worth £5000 sterling a year, and 3 or 4 years will enrich on), for envy follows greatness as naturally as the shadow does the body, and the English would sooner bear a Mahometan for ther Secretar than a Scot, only he has now a good English ally, by marrieng Brudnell Earle of Cardigan's sister.' Thus the salary of a Secretary of State in England was the same in 1684 as it is now, whereas the salary of a Scottish judge was only one eighteenth part of its present amount: Lauder in his will gives a detailed account of his own investments. Sir Thomas Dick Lauder computes that he left about £11,000 besides the estate of Fountainhall, which he inherited. He was, however, the son of a wealthy man. At his marriage before he had any means of his own, 90,000 merks were settled by his father, who had several other children, on the children of the marriage (£5000 sterling, representing a sum many times as large in the present day).

MONEY

Lauder mentions a great variety of coins both in his Journal in France and in his Accounts after his return home. Some explanation of the principal coins may be useful. It is necessary to keep in mind that the value of coins was in a perpetual flux. There were during the century frequent changes in the value of coins relatively even to those of the same country.

1. In France.

(1) *Livre*. The livre used by Lauder, and called by him indifferently 'frank,' was the livre tournois,[28] of 20 sous. It was, subject to exchange, of the same value as the pound Scots,[29] 1s. 8d. sterling, which greatly simplifies calculations. The £ s. d. French was equal to the £ s. d. Scots, and one twelfth of the value of the £ s. d. English or sterling.

[28] The livre parisien contained 25 sous.—Major's *Greater Britain* (S.H.S.), p. 32, note.

[29] See pp. 3 and 4 and *passim*.

(2) *Ecu, écu blanc, or d'argent*, a silver coin worth 3 livres,[30] or 5s. sterling, thus of the same value as the English crown, and sometimes called crown by Lauder.

[30] The value varied a little, but it was three livres in 1653.—*Mémoires de l'Académie des Inscriptions et de Belles Lettres* (1857), Tome 21, 2^{me} partie, p. 350.

(3) *Ecu d'or, or couronne*, golden crown. It was worth about 5 livres 12 sous,[31] equal to 9s. 4d. sterling. (P. 155, 'I received some 56 ll. in 10 golden crowns.')

[31] The exact value in 1666 in livres tournois was 5 ll. 11s. 6d. — *Mémoires, ut supra*, p. 256.

(4) *Pistole*. A Spanish gold coin current in France. Its standard value was 10 livres tournois, equal to 16s. 8d. That fairly corresponds with a proclamation in Ireland in 1661 fixing it at 16s. Littré (*Dict. s.v.*), states the value of the coin a good deal higher, though he gives the standard as above. But its value gradually increased, like that of other gold coins, and in later Irish proclamations is much higher.

The British gold coins *Jacobus* and *Carolus* were also used by Lauder in France, and are explained below.

2. In Scotland and England.[32]

[32] See Cochran Patrick's *Records of the Coinage of Scotland* (1876); Ruding's *Annals of the Coinage* (1817); and *Handbook of the Coins of Great Britain and Ireland* in the British Museum, by H.A. Grueber (1899); Burns, *Coinage of Scotland*.

(1) *Jacobus* (2) *Carolus*. James VI. on his accession to the throne of England, with a view to the union of the kingdoms, issued a coinage for both countries, which was in this sense uniform that each Scottish coin was commensurable and interchangeable with an English coin. The ratio of the Scots to the English £ s. d., which during centuries was always becoming lower, was finally fixed at 1 to 12. The English 20s. and Scots 12 l. pieces of equal value now issued were called the unite. The double crown or 10s. piece was the Scots 6 l. piece, the crown the Scots 3 l. piece, and so on.

The unite was so called from the leading idea of union, just as the double crown had the legend, *Henricus Rosas Regna Jacobus*. As Henry VII. united the Red and White Roses, James was to unite the two kingdoms. It seems probable that James intended the unite as a 20s. or pound piece to be the standard and pivot of the coinage of both countries, as the pound or sovereign has now become. This enlightened policy, though it had lasting effects, soon broke down in detail. In England the shilling proved too strong for the unite, and in Scotland the merk maintained its hold. To prevent the exportation of gold, the value of the unite of 154 grains[33] was raised to 22s. in 1612, though the king had himself proposed rather to lower the weight of silver. That caused confusion, 'on account of the unaptness for tale' of the gold pieces at their enhanced value, and a lighter 20s. piece of 140 grains was issued in 1619 for England only, known as the laurel piece,

from the wreath round the king's head. In Scotland the original unite remained, and was sometimes called the 20 merk piece, to which value it roughly corresponded. It was repeated in the coinage of Charles I., the last sovereign who coined gold in Scotland prior to the Revolution. Thus it was the only Scottish 20s. sterling piece. Charles I.'s unite or double angel (20s. piece) for England was of the same lighter weight as the laurel. In 1661 the value of the gold coin was again heightened, the old unite to 23s. 6d., and the lighter English unite to 21s. 4d.

[33] The weights are given in round numbers.

The above information is necessary in order to identify the two gold coins which Lauder used. He generally calls the larger the Jacobus and the smaller the Carolus. At p. 80 the one is mentioned as 'the Scotese and English Jacobuses, which we call 14 pound peices,' and the other as 'the new Jacobus, which we call the 20 shiling sterling peice.' At p. 154 he speaks of '10 Caroluses, or 20 shiling peices,' so that the new Jacobus and the Carolus are the same. While there was only one weight of Scots gold piece of the issue value of 20s. sterling, in England during the reigns of James I., Charles I., and Charles II. there were four: 1, the sovereign of James I. (172 grains); 2, the unite or double angel of James (154 grains), the same as in Scotland; 3, the laurel of James, the unite of Charles I., and the broad of Charles II. (140 grains); 4, the guinea[34] of Charles II., first struck in 1663 (131 grains). Now Lauder's larger coin was a Scots or English Jacobus, therefore it is the unite of James VI.; and his smaller coin is called both a Carolus and a new Jacobus, therefore it is the coin of 140 grains. The two pieces are mentioned in a proclamation by the Privy Council in 1661 heightening certain coins.[35]

[34] Once mentioned by Lauder, p. 220.

[35] This table may be compared with Louis XIII.'s valuation of some of these coins (p. 80). The Scots piece there mentioned with two swords, and the legend *Salus*, etc., is no doubt the sword and sceptre piece of James VI. (1601-4). But the issue value of the whole piece, not the half piece, was 611. Scots.

£ s. D. Scots. £ s. D. Scots. formerlie current at now to be current at The
Double Angel [36] 13.06.08 14.04.08 The Single Angel 6.13.04 7.02.04 The
Dager Peice 6.13.04 7.02.04 The Scots Ryder 6.13.04 7.02.04

The New Peice[37] 12.00.00 12.16.00
The Halfe 6.00.00 6.08.00
The Quarter 3.00.00 3.04.00

The Rose Noble, Scots and English. 10.13.04 11.07.04

The Hary Noble 9.06.08 9.19.00

[36] Lauder's Jacobus.

[37] Lauder's Carolus.

(3) *Dollar*. In Lauder's accounts the reader is struck by the prominent position of the dollar. While debts and obligations were calculated in pounds Scots or merks, dollars supplied the currency for household and other payments, just as pounds do at the present day. They were foreign coins of various denominations and various intrinsic value, but of inferior fineness to the Scots standard of silver money, which was eleven penny fine—eleven parts silver to one part alloy. They passed current for more than their intrinsic value, and the native silver money was withdrawn from the country. All through the reigns of Charles I. and Charles II. the subject gave great concern to the Mint, the Parliament, the Privy Council, and bodies

with commercial interests like the Convention of 'Burrowis.' In 1631 the Privy Council issued a proclamation 'considering the greit skarsitie of His Majestie's proper coynes ... occasioned by the frequent transport theirow and importing of dollours in place of the same,' prohibiting the receipt of any dollars for coal or salt after 1st November next to come. 'That in the mean tyme the maisters and owners of the coalhewes and saltpans may give tymous advertisement to the strangers trading with them for coal and salt that they bring no dollours with them for the pryce of the salt and coal,' and that merchants exporting bestial or other commodities to England are to 'make return of the pryses' not in dollars, but either in H.M. proper coin or in the following foreign coins, the value and weight of which is fixed by the proclamation: Spanish pistolet, French crown, rose noble, half rose noble, quartiskue, single ryall. The proper method of dealing with the difficulty was matter of great controversy.

In 1633 George Foulis, master coiner, says in a memorial, 'In the first it is to be considerit that *the most pairt of the moneys presently in Scotland is only dollouris*.

'Secondlie, these dollouris are not all alike in wecht, some wheirow are 15 drops wecht, some 14-1/2 and many others lesser in wecht.

'Thirddie, they are different in fineness, some 10, some 10-1/2, others baser. The best 15 drop and 10 1/2 fineness will not answer to the King's money in wecht or fynness to 54s. Scots.'

The best of these dollars was the Rex or Rix Dollar (Reichsthaler, dalle imporiale). In the reign of Charles I. the baser dollars which gave most trouble to the authorities were the dog dollars and the cross dollars. In the reign of Charles II. we hear more of the leg dollar, which approached the rex dollar in value, and had got a pretty strong footing.

On 14th January 1670, the Privy Council issued a proclamation on the narrative, 'Forasmuch as there hath been of late imported into this kingdom great numbers of those dollars commonly called leg dollars Haveing the impression of a man in armes _with one leg _and a shield ... covering the other leg ... which does usually pass at the rate of 58s. Scots money, and seeing that upon tryall of the intrinsick worth and value thereof they are found to fall short of the foresaid rate, and that in the United Provinces where the forsaid dollars are coyned, the passe only at the rate of crosse dollars, Therupon the King's Mtie with advice of his P.Cs. doth declare that (the rex or bank dollars now passing at 58s. Scotts) the true and just value at which the forsaid legs dollars ought to passe and be current in this kingdome is 56s. Scotts money....'

Thus we get the authorised value of these dollars at the period of Lauder's accounts. The accounts themselves show that the current value varied indefinitely, and is sometimes different in two consecutive items.[38]

[38] With regard to the etymology of 'leg,' Mr. Hallen in his introduction to the *Account Book of Sir John Foulis of Ravelston* (S.H.S.), p. xxxiii, gives some strong and perhaps convincing reasons in favour of Liége. But the descriptions in the Proclamation above quoted, and the fact that Lauder sometimes calls them 'legged,' seem to show that the popular etymology in Scotland was the man's leg on the coin.

Charles II. struck four merk-pieces at the issue value of 53s. 4d. Scots in two issues, the first in 1664, the second in 1675-1682. The second, and only the second issue, came at some later but unknown period to be known to numismatists as dollars. But I do not think there is any reason to suppose that Lauder called those pieces dollars. The accounts are in the period of the first issue, and Lander's dollar was of higher value. Probably his dollars

were all foreign coins, generally rex dollars, as he often calls them. When they are leg dollars, he appears always so to distinguish them.

(4) *The Merk*, 13s. 4d. Scots, was raised in value by James VI. to 13-1/2d. sterling, to make it interchangeable with English money. He coined none after his accession to the throne of England, and probably intended that no more should be coined. But the merk had too strong a hold in Scotland, and half merks were struck by Charles I., and various multiples and parts of merks by Charles II. at the old issue value of 13s. 4d. the merk. On the other hand, in 1651 Parliament 'cryed up' the 12s. Scots piece—equal to the English shilling—to one merk; and in 1625 the Britain crown or 31. Scots piece is officially described as 'known as the five merk piece,' though its issue value was only five shillings. This illustrates the confusion and uncertainty of the relative value of coins, of which parenthetically two other examples may be given. On 20th June 1673 Lauder notes the receipt of his year's salary as one of the assessors for the burgh, 'being 150 lb. Scots, which is about 229 merks,' whereas with the merk at 13s. 4d. (the standard value), 150 lb. is exactly 225 merks. In the same way he constantly states the same salary indifferently at 150l. Scots or £12 sterling, whereas 150l. Scots ought to have been equal to £12, 10s. sterling.

(5) *Shilling*. Lauder applies the name without distinction to the English shilling, 12s. Scots piece, which at page 80 he calls our shilling, and to the shilling Scots. The context generally shows which he means.

(6) *Groat*. Lauder's groat is the English groat of four pence, sterling. The groat Scots of less value had not been coined for a century.

(7) *Penny*. As in the case of the shilling, Lauder uses the name indifferently for English pence and pennies Scots, but more often English.

Such coins as testoons, placks, bodles, bawbees and turners, do not appear in his accounts, but some of them are casually mentioned in the text of the MSS., and are explained in footnotes.

LANGUAGE AND SPELLING

No alteration has been made on the text of the MSS. except the substitution of capital letters for small ones, where capitals would now be used. In this matter Lauder's practice is capricious, and it may safely be said that it was governed by no rule, conscious or unconscious. He spells the pronoun I with a capital, and usually begins a sentence with one. But names of persons and places are very often spelt with small letters. The use of capitals was not yet fixed, as it is now, and the usage of different languages, such as English, French and German, as it came to be fixed, is not identical. Some changes in the punctuation have also been made in transcription for the sake of clearness, but the punctuation, which is scanty, has not been systematically altered. In the MSS. some single words have been erased, or rubbed off, at the top and the foot of the page. The blanks are indicated, and as a rule, but not quite invariably, explained in footnotes. MSS. X and H are printed entire, with two unimportant omissions, one in each, which are noted and explained, and as regards MS. H, with the exception of some detached pages of accounts, and a catalogue of some books. Of these it was thought that the Appendix contains enough. From MS. K only extracts are given. The remainder contains more accounts, and a further catalogue of books, without the prices, and other memoranda and reflections, now of no interest. The spelling is to a large extent arbitrary.[39] It is less regular than, for example, the contemporary Acts of Parliament, but more regular than the letters of some of Lauder's contemporaries, in high positions.[40] A word is often spelt in different ways on the same page. There are, however, many constant peculiarities, some of which may have a linguistic interest,

thus 'laugh' 'rough' 'enough' 'through' are spelt with a final *t*. The use of a final but silent *t* Mr. Mackay in his introduction to *Pitscottie*, [41] p. cxl, says is a distinct mark of Scots of the middle period. 'Voyage,' 'sponge,' and 'large' are sometimes spelt without the final *e*. 'Knew,' 'slew,' 'blew' are spelt 'know,' 'slow,' 'blow.' 'Inn' is spelt 'innes.' 'See' is always spelt 'sy' or 'sie,' and 'weigh,' 'wy.' But these are only examples, taken at random. 'One,' 'off,' 'too,' 'thee' are spelt 'on,' 'of,' 'to,' 'the,' a snare to the unwary reader. 'V' and 'W' are frequently interchanged.

[39] Lauder's French in the *Journal in France* is full of mistakes, both of grammar and spelling. He was only learning the language.

[40] Cf. Bishop Dowden's introduction to *Lauderdale Correspondence* (S.H.S.), *Miscellany*, vol. i. p. 230.

[41] *Historic and Chronicles of Scotland*, by Robert Lindesay of Pitscottie (Scottish Text Society, 1899).

Lauder's language is idiomatic, and he uses many Scottish words which were not common in the written literary language of his time. A few of these words are now rare and even difficult to trace.[42] Most of them are quite intelligible to persons who have been accustomed to hear Lowland Scots spoken, but for the sake of other readers I have been convinced that occasionally interpretation is not superfluous.

[42] One of them is 'dron,' p. 146. With reference to the words '*arbres*,' in the description of the Mail at Tours, p. 20, Mr. A. Lang has suggested to me that *arbres* might be a term in the *Jeu de Mail*. Mr. H.S.C. Everard has kindly sent me the following quotations from Joseph Lauthier's book on the game (1st ed., 1717): 'C'est quand deux ou plusieurs jouent à qui poussera plus loin, et quand l'un est plus fort que l'autre, le plus foible demande avantage, soit

par distance d'arbres, soit par distance de pas.' 'On finit la Partie en touchant un arbre ou une pierre marquée qui sert de but.' If certain trees were marked as goals, that would be a better explanation than the one given in the note.

The thanks of the Society and my own are due to the owners of the MSS. I am grateful to Sir T.N. Dick Lauder and Sir William Fraser's Trustees (Sir James Balfour Paul, Lyon King of Arms, and the late Mr. James Craik, W.S.), for intrusting me with their MSS. for a long time, which made my work much easier; and more satisfactory. The Society is also indebted to Mr. David Douglas for the use of his transcript of MS., and for the first suggestion that the MS. should be printed.

By the kindness of Lady Anne Dick Lauder four portraits in her possession are reproduced. 1. Lord Fountainhall, in ordinary dress, a different picture from the one in robes published by the Bannatyne Club. 2. His first wife, Janet Ramsay, an attractive picture, which suffers in the photographic reproduction. 3. Sir John Lauder, Fountainhall's father. 4. Sir Andrew Ramsay, Lord Abbotshall, his father-in-law.

I have received constant assistance and advice from Mr. T. Graves Law, Librarian of the Signet Library. I have also to thank Sir Arthur Mitchell, who read some of the proofs, and gave me valuable suggestions, Mr. J.T. Clark, Keeper of the Advocates' Library, for ready help on many points, Mr. H.A. Webster, Librarian of Edinburgh University, Mr. W.B. Blaikie, of Messrs. T. and A. Constable, and Mr. Alex. Mill of the Signet Library, who in transcription and otherwise has given me efficient and obliging assistance.

I am particularly grateful to Miss Cornelia Dick Lauder, for the interest which she has taken in the book, and the help which she has given me in obtaining the necessary materials for it.

D.C.

EDINBURGH, *March* 1900.

I

JOURNAL IN FRANCE

1665-1667

I

JOURNAL 1665-1667.

[The first leaves of the Manuscript are wanting. Lauder left Edinburgh on 20th March 1665, travelling by Berwick and Durham, and arrived in London on 1st April. See page 154.]

* * * * *

We saw also the fatall chair of Scotland wheirin our kings for many ages used to be croune. I fand it remarkable for nothing but its antiquity, it being thought to have come from Egypt some 3,000 years ago.

I went in the nixt place to the Tower, wheir on our entrin according to custome I left my sword. Heir first we saw a very strong armory for weapons of all sorts, as many as could furnish 20,000 men; we saw great field pieces of ordinance as also granadoes; we saw also many coats of maill, and among the rest on[43] very conceity all joined like fines of fisches on to another, which they informed me came as a present from the great Mogull who comands over 36 kings. The[re] ware hinging their as Trophées several peices of armour that they had taken from the french in their wars wt them. Their we saw the huge armour of John of Gaunt, duke of Lancaster. We came nixt and saw the honors, wheir we saw the sword and seipter of honor; the croun was not their, by reason the parliament had

use for it at Whitehal. We saw also a most rich Globe of christal beset wt most precious diamonds. We came in the 3d place to sie the Lyons, the Leopards, the aigle, and a long skine of a snake.

[43] One. Lauder's usual spelling.

We arrived London on Saturday 1 of April, we left it on Thursday 6 of April; about 4 a cloack we took boat, and landed at Gravesend about 10 a cloack at night, in which space we ware so merry in singing never but some of us singing and sometymes all, that the rowers protested that they never carried so merry a company doune the Thames. On the way we was tuise stoopt by men of war to know whither their ware any seamen in it, that they might be sent to the fleet: at which we alleadged Captain Blawprine[44] G. Moor was much troubled, for he was exceeding skipper like. To morrow tymously we tooke post about 6 a cloack, and reach Dover about one; yet we got not passage til ij at night. What a distressed brother I was upon the sea neids not hear be told, since its not to be feared that I'l forget it, yet I cannot but tell whow[45] Mr. John Kincead and I had a bucket betwixt us strove ... who should have the bucket first, both being equally ready; and whow at every vomit and gasp he gave he cried Gods mercy as give he had bein to expire immediately.

[44] Compare Blawflum (Jamieson), a deception. 'Prine' may be prein, pin, a thing of little value. Moor is playfully described as captain or skipper.

[45] How.

About 5 in the morning we landed on France the land of graven images. Heir we divided into 8 companies: Joseph Marior wt one Mr. Colison went into Flanders; Mr. Dick Moor and Kinkead went to Deip and so to Roan. Mr. Strachan, Hamilton, and I stayed in Calais til Monday, 10 of April, and

joined wt the messenger for Paris one Pierre, a sottish fellow, yet one that entertained us nobly; their went also wt him besides us on Mr. Lance Normand, Newmarks gouvernor and a son of my Lord Arreray or Broll,[46] a very sharp boy wt his governour Doctor Hall. In our journey we passed severall brave tounes as Bulloigne, Monstrul, Abewill, Poix, Beauveaus, wheir is the most magnificent church I had ever then sien. We chanced to lay a night at a pittty vilage called Birny, wheir my chamber was contigue to a spatious pleasant wood that abounded wt nightingales, small birds to look upon; who wt the melodiousnesse of their singing did put sleip quit from me. The great number we meit of souldiers all the way begat in us great fears of wooling [robbing],[47] yet it pleased God to bring us most safely to Paris 14 of April at night. Mr. Strachan led Mr. Ham[ilton] and me to one Turners, a Scotsman, wheir I lay that night, and wheir I recountred wt several of our countrimen, as Patrick Mein, Mr. Castellaw, Mr. Murray, Mr. Sandilands, a man wonderfully civil, Mr. Wilky, Mr. Gibson, and Mr. Colt. The day following I made my addresse to F. Kinloch, and brought wt me a letter containing my safe anivall to go in his packet for Scotland, I not having written any thing since I wrot at my parting from London. I delivered him also my fathers letter, B.[48] Kinlochs letter, and Thomas Crafurds, wt the bill of exchange; my fathers is as followeth:

[46] Roger Boyle, 1621-1679, first Baron of Broghill and Earl of Orrery, M.P. for Edinburgh, 1656-58, member of Cromwell's House of Lords. He was succeeded by his son Roger, 1646-1710.

[47] 'Robbing' interlined. 'Wooling' may mean 'shearing,' so robbing.

[48] Bailie.

Edinburgh, March 15, 1665.

SIR,—The bearer heirof, my sone, inclining to study the french tongue and the Laws, I have theirfor thought it expedient to direct him to you, being confident of your favour and caire, intreating[49] ... recommendation by a few lynes to one Monsieur Alex.[49] ... [pr]ofessor of the Laws at Poictiers to which place I intend he sould go: as also to place him their for his diet in the most convenient house but especially wt on of our profession and Religion. He hes a bill drawen on you wt a letter of advice and credit; which I hope ye will obey. I have bein desired by severalls to have direct him to our Mr. Mowat and have bein profered to cause answer him what money he sould neid for 20 shiling the Frank: but I inclined rather to send him to you (whilk I hope ye will not take as trouble) tho I have payed Thomas Crafurd 21 shiling. [50] What he stands in neid of during his abode I hope ye wil answer him, and upon your advertisment and eis receipt I sal either advance or pay the money upon sight. I most without vanity or flattery say hitherto he hes not bein inclined to any vice or evill way and I hope sall so continue. I know not positively what may defray his charges in his studies, diet, and otherwise, but I conceive about 7 or 8 hundred franks a year may do it; whowever I entreat you let me hear from you what ye think wil do it and what ye will take for the frank. So being confident of your cair heirof, and in doing wheirof ye sall very much oblige him who is, Sir,—your reall friend,

JOHN LAUDER.

[49] Page torn.

[50] See Introduction, p. xlvihi.

The bill of exchange is as followeth:

Edinburgh, 17 March 1665, for 400 livres T.L.[51]

Sir,—4 dayes after sight of this my first bill of exchange (my 2 not being payed) please pay to Mr. John Lauder or his order 400 livres TL value receaved heir from his father B. John Lauder. Make punctuall payment and please it to account, as by the advice of your humble servant,

THOMAS CRAFTURD.

For Mr. Francis Kinloch, Merchant in Paris.

[51] See Introduction, p. xlii.

Francis having read thir, out of his kindnese would suffer me to stay no wheir but in his oun house, wheir I stayed all the space I was at Paris, attended and entertained as give I had bein a Prince. While I was heir I communicated my intentions and directions for going straight to Poictiers to these countrymen fornamed, who ware all unanimously against it, not sieing what good I could do their since the Colledge was just upon the point of rising; they conceived theirfor that I might imploy my tyme much better either in Orleans at Mr. Ogilvyes house, or Saumur at Mr. Dualls; for in either of these I could have a richer advantage in reference to the language, both because its better spoken their [then at] Poictiers, as also fewer Scotsmen their then in Poictiers. I sould also have for a pistoll[52] a month a master to give me a lesson on the Instituts once a day, which I could not so have at that rate at Poictiers. Thus they reasoned, and I fand Mr. Kinloch to be of the same mind. I considering that it was not expedient for me to step one step wtout direction from my father, I wrot the Vednesday following, 19 of Aprill, acquainting him wt it; and that I sould attend his answer and will at Orleans.

[52] See Introduction, p. xliii.

While I was at Paris I went and saw the new Bridge, and Henry 4 his stately statue in brasse sent as a present by the King of Denmark. I was also at the Place Royale wheir stands Lewis the 13, this king of France his father, caused to be done by that great statesman in his tym, Cardinall Mazarin, whom he left tutor to the young king during his minority.

I was also at the Palais Cardinal and that Palais wheir the Lawyers pleads. The choops[53] their have great resemblance wt those in the hie exchange at London. I saw also that vast stupendious building, the Louwre, which hath layd many kings in their graves and yet stands unfinished; give[54] all be brought to a close that is in their intentions I think the Grand Seigniours seraglio sall bear no proportion to it. All we saw of it was the extrinsecks, excepting only the king's comoedy house which the force of mony unlocked and cost open; which truly was a very pleasant sight, nothing to be sein their but that which by reason of gilding glittered like gold. But the thing that most commended it was its rare, curious, and most conceity machines: their they had the skies, boats, dragons, vildernesses, the sune itselke so artificially represented that under night wt candle light nothing could appear liker them.

[53] Shops.

[54] Give for gif, if.

The day before I left Paris, being according to the French account the 5 of May, according to the Scots the 25 of Aprill, Mr. Kinloch wt his wife and daughter Magdalen took Mr. Mein, Mr. Dick,[55] Mr. Moor and me in coach 4 leagues of Paris to Ruell to sie the waterworks their, which wtout controll be the best of any about Paris, by the way we passed thorow one of the pleasantest woods or Parks that ever my eyes did sie, called the Park of Boloigne. We saw Madrid also, but not that in Spaine; the occasion of the building wheirof was this: Francis, one of the kings of France, became

Spaines prisoner, who demanded ...[56] ransome 8 milions. The french king payes him 4, and ...[56] promises him upon the word of a king that having once lifted it in France he sould come in person to Madrid and pay it. Thus vinning home he caused build a stately house a litle from Paris, which he named Madrid, and so wrot to the Spaniard that he had bein at Madrid and payed what he owed, according to that, '*qui nescit dissimulare nescit regnare*' We saw also Mount Calvary, which the Deluded Papists will have to be the true representative of that Calvary wheir our Saviour suffered: its situate at that same distance from Paris that the true's from Jerusalem, of that same hieght, and so in all the circumstances.

[55] This may be James Dick, who was born in the same year as Lauder, 1646, afterwards Sir J. Dick of Priestfield, Lord Provost of Edinburgh, and created a baronet.

[56] Page torn.

Thus we come to Ruell, wheir so many gallant sights offered themselves that I know not wheir to begin; first the pleasant ponds abounding wt fishes of divers sorts, as carps, picks, etc., comes to be considred. But the rich waterworks are the main commendation of the place. It is not to be forgotten whow finely the fellow that showed us them, and set them on work by his engines did wet Mr. Dick, and followed him in the litle house (the Grotto) whethersoever he could stir. The thing that mainly moved my admiration was the hie ascendance of the water: what secret hidden power could carry the water clean contrary to its natural inclination which is to deschend, as every other heavy body, so hy that in some of them a man wt a speir could not reach its top.

The most wonderfull thing ever I saw is the infinit art that some curious painter hath shoven on a large timber broad, standing in a corner of the yard: a small distance from it their is a revell put up which makes it appear

the more lively, so that we win no nearer then the revell would let us. At this distance ye would think ye saw the heavens thorow the wal on the other syde of it, so wonderously is the blew skie drawen; so that bring me a man without acquainting him wt the devce he sal constantly affirme he sies the lift on the other syde of the wall. On the same broad beneath the skie on the earth, as ye would think, is drawen a woman, walking thorow a montain in a trodden path, the woman, the mountain, the way, so cunningly drawen that I almost thought I saw a woman walking on the other syde of the wall over a hil throw the beaten rod. I constantly asserted also that the broad was wery inaequall and that it had many utraisings[57] because I seimed to sie as lively as ever I saw any thing pillars coming furth and standing out wt a great deal of prominency from that which seimed to be the skie, that at least I judged it halfe a ell farder out; yet it was but a mistake; for its certainly knowen that the broad is as smooth and aequall as can be. We also went out wtout the yeard to the back of the wall, wheir by the back and sydes of the broad we discerned it to be of such thinnesse that it could not admit any utcomings, as these pillars seimed to us.

[57] Outraisings, reliefs.

In our coming home from Ruell we went in and saw the king's brother the Duke of Orleances house, Saint Low: it hath also a wery pretty yard, wheir we saw many water-works also, and in the pond several swanes. We saw also many orange trees, some of which had their ripe fruit, some very green, some betwixt the 2, according to the natur of the orange tree. The house we fand wery rich; many brave portraicturs; our kings portraitur is their better done then ever I saw it in my life. The partition that divides one roome from another is of strange glasse that showes a man his body in some of them 5 tymes, so that I saw in one of them 5 John Lauders. After this we came back to Paris, on the morrow after, being the 6 of May according to the French account, the 26 of April according to the Scots. I joined wt the

messenger for Orleans severall accompanieng me to my horse, their went 4 Englishes alongs also, one of which was the doctor whom his cometicall face told to have the clap.

We came to Orleans May 7 at night. I straight directed my course to Mr. Ogilvyes, which I did that I might get the better accomodation knowing that the Doctor also intended their. I delivered him the letter I brought him from F. Kinloch, which was as followeth:

Mr. John Ogilvy.

Paris, May 6, 1665.

SIR,—Thesse are to accompany the bearer heirof, Mr. John Lauder, whose father is my wery much honored friend, his mother my neir kinswomen, and himselfe a very hopful youth inclined to vertue every way. He intends to stay som tyme wt you, theirfor I do earnestly recommend him to your best advice and counsell in what may concerne his welfare to assist him theirin, in all which I recommend him to you againe and againe as give he were my oune sone, assuring you that what favor or friendship you sall be pleased to show him, I sall ever acknowledge it as done to my selfe. He intends to improve his tyme in the study of the Laws, and having got some knowledge of the french tongue, he intends for Poictiers some moneths hence. Help him to a master that may come to him once a day and give him a lesson on the Instituts; and for the language I beseich you assist him in it. If their be no accomodation for him at your house, I pray you place him wheir he may be weil used and in good company. Let him not want what he stands in neid of for monyes or other necessities, all which I sall make good to you thankfully upon advice from you. Thus recommending him to your care as my oune. Kissing your hand wt madam Ogilvyes, your daughters, and al your families, I rest your real friend and servant,

FRANCIS KINLOCH.'

At my arrival heir I fand in pension wt him the Mr. of Ogilvy[58] wt his servant, a very civil lad[59] James Hunter, young Thirlestan[60] wt his man Patrick Portues: besides them also their ware English, French, and Germans. The city (called Aurelia ather *a bonitate auroe*, or from Aurelian the emperor who keipt a station heir) I fand to be as big as Edinborough laying wt it also the next greatest citty of Scotland. I discovered likewise the city to abound wt such a wast number of lame folk, both men and women, but especially women, even many of them of good quality, that I verily beleive their are more lame women their at Orleans then is in all Scotland or much of France. Enquiring what the reason of this might be, the general voice was that it proceeded from the nature of the Aurelian wine, which they alledge to have such influence on the sperm of man as to produce a creature imperfect in their legs. Others sayd it was the purity of the air about Orleans whence the city has the name of Aurelia. But what influence the air can have in this point is hardly explicable. Monsieur Ogilvy more rationally informed me that he took it to be a race and generation of people who transmitted it hæreditarly to their posterity, for which I meit after[61] a very strong presumption: I saw a mother lame, not only the daughters lame, but in the very same faschion that the mother; and this I saw confirmed seweral tymes.

[58] Apparently David, afterwards third Earl of Airlie. His grandfather was already dead, and he is afterwards called Lord Ogilvy in the Journal.

[59] Probably the servant, though the punctuation is as in the text.

[60] Thirlestan, probably Thurston in East Lothian, belonging to the family of Hunter.

[61] Meit after, i.e. met afterwards.

Just the morrow after my arrival was kept very solemnly by the whole toune in remembrance and commemoration of the valiant maid of Orleans, who, when the English had reduced al France excepting only Orleans to their obedience, and ware so fair for Orleans that they gained to the mids of the bridge over Loyer, most couragiously animated the citizens and beat them shamelesslie back: for which when the English got hir in their power they brunt hir at Roan quick.

The ceremony we saw consisted of a procession partly spiritual or Ecclesiastick, partly civil or Temporal. To make the spirituall their was their all that swarm of grassopers which we are fortold sould aschend out of the bottemlese pit; all these filthy frogs that we are fortold that beast that false prophet sould cast out of his mouth, I mean that rable of Religious orders within the body of that Apostolical and Pseud-apostolicall Church of Rome. Only the Jesuits was wanting; the pride of whose hearts will not suffer them to go in procession with the meaner orders. In order went the Capuchines, then the Minimes, which 2 orders tho they both go under the name of Cordeliers by reason of that cord they wear about their midle, on whilk cord they have hinging their string of beads, to the end of their string is hinging a litle brazen crosse, tho also they be both in on habit, to wit long broun gowns or coats coming doune to their feet, a cap of that same coming furth long behind just like a Unicornes horne, tho the go both bar leged only instead of shoes having cloogs of wood (hence when I saw them in the winter I pitied them for going bar leged; on the other hand, when I saw them in the summer I pitied them that they ware necessitat by the first institution of their orders never to quate their gounes which cannot be but to hot for them; yea, never to suffer any linnen only wooll to come neirest their skine), notwithstanding of this its easy to distinguish them by the Clerical Tonsure, you sall never find a capuchin but wt a very liberall bard:

for the Minime he most not have any. Again in their diet and other such things they differ much: the Minime most renounce for ever the eating of fleche, their only food is fishes and roots; hence Erasmus calles them fischy men (homines piscosos). Not so wt the Capuchines. Their be also many other differences that tyme most discover to me. Thir 2 orders our Bucanan means when he names *nodosa canabe cinctos*.^[62] To returne to our purpose their came also the Dominicans or Jacobins, which are but one order having 2 names; then came the Chartereus or Carthusians: both which go in a long white playding robe. Only the Jacobins hood is black; the Carthusians is white: then followed the Franciscans, who now are called Recollects because being al banished France by reason of their turbulency and intromitting wt the state (of which wery stamp they seim to have bein in the tyme of our James the 5, when he caused Buchanan writ his Franciscani against them) by the prævalent faction the Pope had in France then, they were all recalled, so that France held them not so weil out as Venice do'es the Jesuits. Then came the Peres de l'Oratere, who goes allmost in the same very habit wt the Jesuits. Then comes the Augustines wt their white coat and a black gown above, after them came the moncks of the order of St. Bennet or the Benedictin friers, who goes in a white coat indeed, but above it he wears a black cloak to his heels, wt the Jesuits he wears also a hat as they do. Then came the chanoins of the Church of Saint Croix in their white surplices above their black gounes and their 4 nooked caps. Tyme sould feel me ere I could nombair over all orders, but thir ware the most principall, each of which had their ounne crosse wt the crucifix carried by one of their order. This much for the Ecclesiastick procession. After them came the tounes men in armes; in a knot of whom went a young fellow who represented the Maid of Orleans, clad in the same very habit, girt wt that sam very sword wt which the Maid beat the Englishes. This went thorow all the toun.

[62] At line 19 of Buchanan's *Franciscanus* is this passage:

'O sanctum festumque diem! cum cannabe cinctus
Obrasumque caput duro velante cucullo,' etc.

During my abode heir, about the end of May, I had occasion to sie another custome of the city. At that tyme of the year the tounes men put upon the other syde of the bridge a pole as hie as the hiest house in Edenborough: on the top of it they fasten a bird made of brasse at which they, standing at the feet of the pole, shoot in order, beginning at the better, wt gunes, having head peices on their heads, to sie who can ding it down. I went and saw them shoot, but no man chanced to shoot it down that year I was their.

During the tyme I was heir their was so many fests or holy dayes that I werily think the thrid part of their year is made up of them. The principal was fest de Dieu, on which, such is the fury of the blinded papists, the Hugonots are in very great hazard if they come out, for if they kneel not at the coming by of the Hosty or Sacrament they cannot escape to be torn in peices; whence I can compare this day to no other but that wheir the Pagans performed their Bacchanalian feasts wheir the mother used to tear hir childrens. The occasion of the institution of this day they fainge to be this. The Virgin appeared say they to a certain godly woman (who wt out doubt hes been phrenetick and brain sick), and made a griveous complaint that she had 4 dayes in the year for hir, and God had only the Sabath: this being devulged it was taken as a admonition from God, whence they instituted this day and ordainned it to be the greatest holy day in the year. The most part of all the city was hung with tapistry, espescially the principall street which goes straight from the one end of the toun to the other, which also was covered all above in some parts with hingings, in other wt sheits according to the ability of the persones; for every man was obliged to hing over against his oune house, yet the protestants ware not, tho John Ogilvy was also called before the Judges for not doing it; yet producing a

pladoyes[63] in the Hugonets faveurs they had nothing to say against it; yet they caused the wals of his house to be hung wt publick hingings that belonged to the toune. For to sy the procession I went wt the other pensioners to a place wheir when all others went to the knees, to wit, when the Hosty came by, we might retire out of sight. I retired not so far as they did, but boldly stood at a little distance that I aen might sy it the better. This procession was on the 4 of June, a little after followed Saint Barnabas day. Then came mid-Summer even, on whiclck the papists put on bonfires for John Baptists nativity. The day after, called S. Jeans day, was keiped holy by processions.

[63] Plaidoyer, pleading, legal argument.

On the 1 of July was S. Pierres day, on which I heard a chanoin preach in S. Croy upon PETERS confession, thou art the sone of the living God, very weill, only he endeavored to have Pierre for the cheife of the Apostles because forsooth in the 10 of Mathew, wheir al the Apostles are named, he finds Piter formost.

That I might have a full survey of the toune I went up to the steeple of St. Croy, which truly is on of the hiest steeples I saw abroad; from it I had a full visy of the toune, which I fand to be of that bigness specified; then the sight of the country lying about Orleans, nothing can be pleasanter to the eye. We saw also the forest of Orleans which environs the northren syde of the city as a halfe moon: in it ar many wild beasts and particularly boors; one of which, in the tyme of wintage, give it chance to come out to the vineyards wheir they comit great outrages, the boors or peasants uses to gather to the number of 2000 or 3000 from all the adiacent contry wt dogs, axes and poles to kil the boor.

During my abode heir I went also to the Jesuits Colledge and discoursed wt the praefectus Jesuitarum, who earnestly enquiring of what Religion I

was, for a long tyme I would give him no other answer but that I was religione christianus. He pressing that he smeled I was a Calvinist, I replied that we regarded not these names of Calvin, Luther, Zuinglius, yea not their very persons, but in whow far they hold the truth. After much discourse on indifferent matters, at our parting he desired me to search the spirits, etc. I went and saw the Gardens of the Minims, the Jacobins, the Carthusians, and the Peres de l'Orat.[64]

[64] *Oratoire.*

Many contrasts ha'es bein betwixt J.O. and I. laboring to defend presbytery and the procedures of the late tymes. During my abode heir 2 moneths I attended the Sale de dance wt Mr. Schovaut as also Mr. le Berche, explaining some of the institutions to me. John was my Mr. of language.

A part of the tyme that I was heir was also the Admiral of Holland, Obdams Sone, who wt the companions carried himselfe marvelously proud. He and they feed themselves so up wt the hoop of the victory that they præpared against the news sould come of the Engleshes being beat a great heap of punchions of wine wheir wt they intended to make merry, yea as I was informed to make Loyer run wt win. But when the news came the Hollanders was beat, that his father was slain,[65] he and his sunk away we know not whither. That ranconter that happened betuixt him and Sandwichs Viceadmiral of England sone coming from Italy (which the Mr. of Ogilvy getting wit of from the Germans came runing to my chamber and told me) is very remarkable. The first bruit that came to our ears of that battle was that the Engleshes had lost, the Duc of York was slain. When the true news came the Hollanders sneered at it, boasting that they would equippe a better fleet ere a 4 night. The French added also the pace, vilifieng and extenuating the victory as much as they could, knowing that it was not their

interest nor concernment that the King of England should grow to great. It was fought in the channel eagerly for 3 dayes; and tho at a good distance from Calice, yet the noice of their canon mad it all to shake.

[65] Admiral Opdam was blown up with his ship in the battle near Lowestoft, when the Dutch fleet was defeated by the English, commanded by the Duke of York, 4th June 1665.

Some weeks that I was heir the heat was so great that afternoon (for then it was greatest) I would not have known what to have done. It occasioned also several tymes great thunders and such lightnings that sometymes ye would have thought this syde of the heavens sometymes that, sometymes all on a fire.

During my staying heir I have learned a lesson which may be of use to me in the rest of our travels, to wit, to beware of keeping familiar company with gentlemens servants, for such a man shall never get respect from the Mrs. [66]; to beware also of discoursing homely with any servants. We should keep both their for at a prudent distance. The Mr. of Ogilvy and I were very great. I know not what for a man he'll prove, but I have heard him speak very fat nonsense whiles.

[66] i.e. Masters.

About 20 dayes ere I left Johns house the Mr. of Lour (Earle of Ethie's sone)[67] with his governour David Scot, Scotstovets nephew, came to Orleans; the Mr. the very day after took the tertian ague or axes....[68]

[67] Apparently David, afterwards third earl. The title was changed from Ethie to Northesk after the Restoration. The Master was grandson to the first earl, who died in 1667.

[68] Seven lines erased in MS.

That Globe that stands on the top of S. Croix is spoken to be of so large a periphæria and circumference that 20 men may sit wt in about a round table.

One day as I was going to my Mr. of Institutes as I was entring in a lane (about the martroy) I meit in the teeth the priests carrieng the Sacrament (as they call it) with a crosse to some sick person: my conscience not suffering me to lift of my hat to it, I turned back as fast as I could and betook me selfe to another street wheir I thought I might be safe: it followed me to that same very street, only fortunately I got a trumpket[69] wheir I sheltred myselfe til it passed by.

[69] Spiral stair.

Theirs a pretty maille their; we saw a better one at Tours one many accounts; the longitude wheirof we meeted and fand it to be neir 1000 paces, as also that of Orleans is only 2 ranks of tries; in some places of it 3; all the way ye have 4 ranks of tries all of a equall hight and most equally sett in that of Tours.

About 10 days before my parting from Orleans at Mademoiselles invitation the Mr. of Ogilvy and I went wt hir, hir mother and Mr. Gandy ther Tutor, in their coach (for which I payed satly,[70] that being their policy) to their country village 9 leagues of, situat in the midst of the forest of Orleans, much of which is now converted into manured land. This tyme was the first adventure I made of speaking the language, wheir they ware pleased all to give me applause testifieng that I spake much for my tyme. I took coach tymously in the morning before halfe 6 and returned the day after about 8 at night. By the way we saw 2 places wery weill worth the sieng, Shynaille and Chasteau neuf: Shynaille[71] for its garden and the

other both for its house and garden. At Synaille a great number of waterworks; creatures of all shapes most artificially casting furth water: heir ye may sy a frog sputing to a great hieght, their a Serpent and a man of marble treading on his neck, the water gliding pleasantly partly out at his meickle too, partly out at the Serpents mouth: in a 3 part a dog, in a 4, Lions; and all done most livelylie. We regrated that the prettiest machine of all was broken; wheir was to be sein wtin a little bounds above 300 spouts sending furth water and that in sundry formes. In one place it would arise uprightly as a spear; in another as a feather; in a trid[72] it sould rise sydelings and so furth, and when it had left of ye sould not be able to discern whence the water ishued. The main thing in the house of Chasteau neuf was the rich furniture and hingings; yet the richest Tapisstry that used to be in that house was at that tyme in Paris; the master of the house being one of the Kings Counsellors; yet these we saw ware wery rich; some of them ware of leather stamped marvelously weill wt gold; others in silver; others wrought but wondrous livelylie. From the house we saw the extent of the yard, which was a monster to sy, being like a little country for bigness, and yet in marvelous good order in all things, but especially in the regularity of its walks, each corresponding so weill to the other; having also a pretty forrest of tries on every syd of it: the circuit of this yard will be nothing under 3 miles. I never saw a woman worse glid[73] then she was (tho otherwise a weelfawored women) that took us thorow the house. At night we lay at their country village.

[70] i.e. Sautly, saltly.

[71] I cannot find this name in the maps.

[72] Third.

[73] Gleyed, squint-eyed.

On the morning we went and hard the curé say Mass, wheir saw a thing we had not sien before, to wit in a corner of the Church having 4 or 5 rocks of tow, some tied wt red snoods, some wt blew. On the sieng of this I was very sollicitous to know what it might mean. Having made my selfe understood about it I was told that when any honest women died she might leive a rock full of tow to be hung up in the church as a symbol that they were vertuous thrifty women. This put me in mind of Dorcas whose coats and thrift the women showed to Paull after she was died. Mass being ended I went and fell in discours with the Curé. We was not long together when we fell hot be the ears: first we was on the Jansenists opinion about Prædestination, which by a bull from the present Pope, Alex'r the 7, had bein a litle before condemned at Paris; then we fell in one frie wil, then one other things, as Purgatory, etc.; but I fand him a stubborn fellow, one woluntary blind. We was in dispute above a hower and all in Latin: in the tyme gathered about us neir the half of the parish, gazing on me as a fool and mad man that durst undertake to controlle their curé, every word of whose mouth, tho they understood it no more nor the stone in the wall did, they took for ane oracle, which minds me of the miserableness and ignorantnesse of the peasants of France above all other commonalty of the world; our beggars leading a better life then the most part of them do.

In our returning amongs the best merriments we had was my French, which moved us sewerall tymes to laughter; for I stood not on steeping stones to have assurance that it was right what I was to say, for if a man seek that, he sall never speak right, since he cannot get assurance at the wery first but most acquire it by use. 4 leagues from Orleans, we lighted at Gargeau[74] wt Maddle.[75] Ever after this Mademoiselle and I was wery great, which I know not whow the Mr. of Ogilvy took, I being of much shorter standing their in Orleans then he was.

[74] Now Jargeau.

[75] Mademoiselle.

Just the Sabath before my parting from Orleans began the Jesuits Logick and Ethick theses to be disputed: the Mr. of Ogilvy and I went to hear, who bleetly[76] stayed at behind all almost; I, as give I had bein a person interested thrust into the wery first rank wheir at the distributor I demanded a pair of Theses, who civilly gave me a pair, against which tho I had not sein them till then, I durst have ventred a extemporary argument, give I had knowen their ceremonies they used in their disputing and proponing, which I fand litle differing from our oun mode. The most part of the impugners ware of the religious orders; some of them very sharply, some tolerably and some pittifully. The first that began was a Minim against a Logickall Thes[is] that was thus, *Relatio et Terminus non distinguuntur*. The fellows argument was that usual one, *quæ separantur distinguuntur et hæc*, etc.; the Lad answered by a distinction, *quæ separantur per se verum: per accidens, falsum*; and so they went on. The lad chanced to transmit a proposition one tyme: the fellow in a drollery replied, *si tu transmittas ego—revocabo*. Thus have we dwelt enough on Orleans, its hy tyme for us to leeve it.

[76] Blately, modestly.

On the 2'd day after this dispute, being the 14 of July wt the French and consequently the 4 wt the Scots, I took boat at Orleans, the Mr. of Ogilvy wt James his man, as also Danglebern accompanieng me to the boat. I left Salt[77] Orleans and sett up for Blois. In the boat among others were 3 of the order of Charité (as they call it) who beginning to sing their rediculous matins, perceiving that I concurred not wt them, they immediatly suspected me for a Hæretick. One of them put me in mind of honest James Douy not only for his wisage but also for his zeall and ardeur he showed to have me converted and brought back to the mother church. That he seimed to me to personate Mr. Douy not only in his wisage but also in his strickness and

bigotry—being oftner in telling of his beads then both his other 2 companions fat-looged stirrows[78] ware—made me fall into the abstract notion that thess who resemble in wisage usually agry in nature and manners, which at that tyme I thought was to be imputed to that influence which the temperament or crasis 4 *primarum qualitatum* hath on the soull to make it partaker of its nature.

[77] Dear, expensive.

[78] Fat-eared fellows. I presume that loog is lug, ear.

Betuixt Orleans and Blois of tounes on the river we saw first Merug,[79] then Baniency.[80] At night we came to Blois, wheir I was the day after to wiew the Toune. I fand it situat on a wery steep eminence, in some places as wearisom to go up as our Kirkheugh. I went and saw the Kings Garden as they call it; but nowise in any posture; only theirs besydes it a large gallery on every syde, wheirof I counted 60 windows, and that at a considerable distance one from another; it hath pillars also for every window on whelk it stands. I went nixt and saw the Castle whilk stands on a considerable eminence, only its the fatality theirow not to be parfaited, which hath happened by the death of the Duke of Orleans, who had undertaken the perfecting of it and brought it a considerable length. On the upmost top of that which he hath done stands his portraict in marble. She that showed in the rooms was a gay oldmouthed wife who in one chamber showed me wheir one of the Kings was slain, the very place wheir he fell (the Duke of Guise, author of the Parísien massacre) and the back door at which the Assasins entered: in another wheir one of their Kings as also seweral of the nobility ware kept prisoners, and the windows at whilk one of ther queen mothers attempted to escape, but the tow proving to short she fell and hurt herself.

[79] Meung, now Meun.

[80] Beaugency.

When I was in the upmost bartizan we had one of the boniest prospects that could be. About 2 leagues from us in the corner of a forest we saw the Castle of Chamburgh,[81] a place wery worthy the sieng (as they say) for the regularity of its bastimens. We saw wtin a league also tuo pretty houses belonging to Mr. Cuthbert, whom we would have to be a Scot. I went and saw sewerall Churches heir. I lay not at the Galere, but at the Chass Royall: part of the company went to the Croix Blanche.

[81] Chambord.

I cannot forget one passage that behappened me heir: bechance to supper I demanded give he could give me a pullet, he promises me it. My pullet comes up, and wt it instead of its hinder legs the hinder legs of a good fat poddock. I know them weill enough because I had sien and eaten of them at Orleans. I consedering the cheat called up my host and wt the French I had, demanded him, taking up the leg, what part of the pullet that might be, he wt a deal of oaths and execrations would have made me believe it was the legs of a pullet, but his face bewrayed his cause; then I eated civilly the rest of my pullet and left the legs to him: such damned cheats be all the French.

Having bein a day at Blois I took boat for Tours in new company againe, of some Frenchmen, a Almand and a Dutchman; wt whom I had again to do vindicating my prince as the most just prince in the world in all his procedures wt the Hollandez. The fellow behaved himselfe wery proudly. Betuixt Blois and Tours we saw Amboise, which is in estime especially by reason of its casle. As we was wtin halfe a league of Tours by the carelesnese of the matelots and a litle pir of wind that rose we fell upon a fixt mill in the river, so that the boat ran a hazard of being broken to peices, but we wan of, only 3 or 4 dales in hir covert was torn of.

Arriving at Tours about 3 a cloack we all tooke another boat to carry us about a league from the city to sie a convent of the Benedictines (Marmoustier) a very stupendious peice give ended. It hath also a very beautifull church, many of the pillars of it being of marble, others of alabastre, and that of sundry coleurs, some red, some white, etc.: whence on the entry theirs a prohibition hung up interdicting all from engraving their name or any other thing on the pillars, least of deforming them. One of the fathers of the order came and did let us sy the relicts of the church which ware the first relicts I saw neir at hand: I having sien some at a distance carried in processions at Orleans. Their we saw the heart of Benedictus, the founder of their order, enclosed in a crystall and besett wt diamonds most curiously. We of our company, being 6, ware all of the Religion, whence we had no great respects for the relict; but their ware som others their that ware papists; who forsooth bit[82] to sit doune on their knees and kist. At which I could not contein my selfe from laughing.

[82] Were obliged.

Their saw we also a great number of old relicts of one St. Martin. They had his scull enclosed (give his scull and not of some theife it may be) in a bowll of beaten silver. In a selver[83] besyde was shank bones, finger bones and such like wery religiously keipt. He showed us among others also a very massy silver crosse watered over wt gold very ancient, which he said was gifted them by a Englishman. I on that enquired whow they might call him. He could not tell til he cost up his book of memorials of that church; and then he found that they called him Bruce, on which I assured him that that was a Scots name indeed of a wery honorable family.

[83] Salver.

Then we returned back to Tours, wheir we went first to sie their mail[84] (which I counted by ordinar paces of whilk it was 1000.7 arbres).[85] About

the distance of less than halfe a league we saw the Bridge that lays over the river of Chere, which payes its tribut to the Loier at Langes,[86] a little beneath Tours. Next we went and saw some of their churches. In their principal was hinging a iron chaine by way of a trophee. I demanding what it might mean, I was told it was brought their by the Chevaliers or Knights of Malta.

[84] English, mall. Originally an alley where a game was played with a *mail*, a strong, iron-bound club, with long, flexible handle, and a ball of boxwood.

[85] Arbre (arbour) probably means 'a shaded or covered alley or walk.'—Murray's *New English Dict.*, s.v. 'Arbour.' The history of the word, with its double derivation from the Anglo-Saxon root of 'harbour' and the Latin *arbor*, is very curious. See Introduction, p. 1, note 2.

[86] Langest in Blaeuw's map, now Langeais.

We lodged at the Innes.[87] To-morrow tymously we took boat for Saumur (St. Louis). Al the way we fand nothing but brave houses and castles standing on the river, and amongst other that of Monsoreau tuo leagues large from Saumur, wheir the river of Chattellerault or Vienne, which riseth in the province of Limosin, tumbleth it selfe into the Loier; this Monsereau is the limits of 2 provinces; of Torrain, to the east of whilk Tours is the capital, and of Anjou to the west, in whilk is Saumur, but Angiers is the capitall. When we was wtin a league of Saumurs they ware telling us of the monstrous outbreakings the river had made wtin these 12 years upon all the country adiacent, which made us curious to go sie it. Whence we landed; and being on the top of the bank we discovered that the river had bein seiking a new channell in the lands adiacent, and had left a litle young Loier behind it; the inundations of this river seims so much the stranger to

many, that finding it so shallow generally that we could not go a league but we had our selves to row and work of some bed of sand or other, makes men to wonder whence it sould overflow so. Thir beds randers it wery dangerous in the winters; yea in our coming doun we saw in 3 or 4 places wheir boats had bein broken or sunk thir last winter; some part or other of them appearing above as beacons. In sewerall places it wines so on the land that it makes considerable islands, yea such as may give some rent by year. At last we landed at Saumur, but before I leive the,[88] fair Loier, what sall I say to thy commedation? Surely if anything might afford pleasure to mans unsatiable appetit it most be the, give they be any vestiges of that terrestrial paradise extant, then surely they may lively be read in the. Whow manie leagues together ware their nothing to be sein but beautiful arbres,[89] pleasant arrangements of tries, the contemplation of which brought me into a very great love and conceit of a solitary country life, which brought me also to pass a definitive sentence that give I ware once at home, God willing, I would allot the one halfe of the year to the country and the other halfe for the toun. Is it not deservedly, O Loier, that thou art surnamed the garden of France, but I can stay no longer on the, for I am posting to Mr. Doul my countrymans house, who accepts us kindly. His wife was in the country, seing give the pleasures of the samen might discuss and dissipat the melancholy she was in for the parting of her sone, whom his father had some dayes before send for England, to wit, for Oxford, meirly that he might be frie from his mothers corruptions, who answering him to franckly in mony, the lad began to grow debauched. Behold the French women as great folls as others. On the morrow after she returned, amongs other expressions, she said, that it gave heer encouragment to let hir sone go wt the better will that she saw that I, as a young man, had left my native country to come travell.

[87] Innes for inn, cf. p. 38 at top.

[88] i.e. thee.

[89] See p. 20, note 3.

I went and saw my Lord Marquis of Douglass[90] at Mr. Grayes, whom I was informed to live both very quietly and discontentedly, many not being answered him as it should be to one of his quality; and this by reason of discord amongst his curators, multitude whereof hath oft been seen to redound to the damage of Minors. He was wearing his winter cloath suit for lack of another. He had a very civil man as could be to his governour, Mr. Crichtone, for whom I had a letter from William Mitchell.

[90] James, second marquis, born 1646, died 1700.

Sabbath forenoon we went together and heard sermon in their church, which is within the Towne; afternoon we took a walk out to a convent which they call St. Florans. By the way he communicated to me his intentions for leaving the Marquis, whom he thought within some few months would return for Scotland, his affairs demanding his own presence, as also his resolutions of going into Italy give it took foot. I demanded him how a man that came abroad might improve his time to the best advantage, and what was the best use that might be made of travelling. He freely told me that the first thing above all was to remember our Creator in the days of our youth, to be serious with our God: not to suffer ourselves to grow negligent and slack in our duty we owe to God, and then to seek after good and learned company whence we may learn the customs of the country, the nature and temper of the people, and what vast diversity of humours is to be seen in the world. He told me also an expression that the Protestant Minister at Saumur used to him, whereby he taxed the most part of strangers as being ignorant of the end they came abroad for, to wit, that these that came to see Saumur all they had to write downe in their book was

that they went and saw such a church, that they drank good wines, and got good wictuals at the Hornes, a signe wheir strangers resorts.

The convent we fand to be liker a castle than a Religious house. We saw a large window, the covert wheirof was stenchells like those that are on the windows of the Abby at Holyrood House; but very artificially all beat out of one peice of iron, but not ioined and soudred together as they used to be. Saumurs is a pretty little toun wt fields upon all hands most pleasant.

I, amongs other things, enquired at Mr. Doull what was their manner in graduating their students their. He told me it was wholly the same wt that in other places. They give out Theses which the students defended, only they had a pretty ceremony about the close: each of these to be graduat got a laurell branch, on the leaves wheirof was every mans name engraven in golden letters. Item, he said that when he reflected on the attendance that the Regents in Scotland gave to ther classes, he thought he saw another Egyptiacall bondage, for wt them they attended only 4 dayes of the weeks, and in thess no longer than they took account of ther former lesson, and gave them out a new one, which they send them home to gett.

On a afternoon I was their I made a tour doune throu the suburbs of the toun to the Convent of Nostre Dame des Ardilliers.[91] On my return Mr. Doull and Mr. Crightoun demanding of me wheir I had bein, I freely told: wheirupon they fell to to scorne me, asking what I went to seek their. I told meerly to walk. They alleadged that John Ogilvy at Orleans bit to have told me of the place; that it was the most notorious part of France for uncleanness, and that women that could not gett children at home, coming their ware sure to have children. To speak the truth the place seimed to me very toun like, for their came a woman to me and spered whey I all alone.

[91] The Church of Notre Dame d'Ardiliers, of the sixteenth century, was enlarged by Richelieu and Madame de Montespan.

The night before my parting from Saumur a young gallant of the toune, to show his skill, showed the wholle toune some fireworks in a boat on the river, but they ware wery pittifull, the principall thing we saw being only some fireballs which they cost up in the air to a considerable hight som tymes.

Theirs one thing we most not forget in the river. In our coming doune in sewerall places on the syde of the rivers bank we saw pleasant little excrescencyes of litle rocks and craigs, which makes exceidingly to the commendation of the places. In thes craigs are built in houses, which be the vertue of Antiperistasis is cold in summer and hot in winter, tho their be some of them they dare not dwell in in winter by reason of the looseness of the earth then.

Having stayed 2 dayes in Saumur I hired horse for Poictiers, only the fellow who aught the horse running at my foot. We rode by Nostre Dame and along the side of Loier as far as Monsereau. Heir I'm sure I was thrie miles togither under the shade of wast valnut tries on each syde ladened wt fruit, great abondance of which I meit all the way thorow. At Monsereau I left Loier, and struck south east be the banks of the river of Chasteleraut in Turrain, of whilk Tours is the capitall, the most renouned toune of France for manufacturies of silks of all sorts. We dined at Chinon, standing on that river 5 great leagues from Saumur. As we ware about a league from Chinon, I leiving my guid a considerable distance behind me, thinking that I bit always to keep close be the river syde, I went about a mile wrong. The fellow thinking I was in the right way he strikes in the right; I begines to look behind me. I cannot get my eye upon him; stands a long tym under a shade very pensive. First I saw some sheirers (for in France it was harvest then, being only the beginning of July wt the Scots) at their dinner. I imagined that the fellow might have sit doune wt them to take scare.[92] After waiting a long tyme I began to steep back, and drawing neir the

sheirers I could not discover him, whence a new suspicion entred in my head, because I had given him at Chinon, on his demand, 14 livres of 17 which I was to give him to defray all my charges to Poitiers, that he had slipped away wt that that he might bear no more of my charges, being sure enough that he would get his horse when I brought it to Poitiers. All this tyme I never dreamed I could be out of the way, yet I spered at the sheirers what might be the way to Richelieu, who told me I was not in the way. Then I know the fellow bit to be gone that way, whence I posted after him, and about a league from that place I overtook him laying halfe sleiping in a great deall of care, the poor fellow wery blaith to sy me. I demanded what was his thoughts, whether he thought I was a voler that had run away wt his horse. He said he quaestioned not in the least my honesty but he began to suspect I might have fallen amongs robbers.

[92] Share, pot-luck.

Thus we came to Chopigni,[93] a pretty village a league from Richelieu, and about 5 a cloack we entred Richelieu, a toune that give yeell consider its bigness it hath not its match in France. For being about a mile in circuit, besides a wery strong wall, it hath a considerable ditch environing it having something of the nature of a pond; for it abounds wt all sorts of fisches. The French calls it une canale. Being entred the toune ye have one of the prettiest prospects thats imaginable. It hath only one street, but that consisting of such magnifick stately houses that each house might be a palace. Ye no sooner enter unto the toune but ye have the clear survey of the whole wt its 4 ports; which comes to pass by the aequality of the houses on both sydes of the street, which are ranked in such a straight line that a Lyncaean or sharpest eye sould not be able to discover the least inaequality of one houses coming out before another. They are all reased also to the same hieght, that ye sall not sy one chimly hier then another: for they are al

3 story hy and built after that same mode window answering to window; so that ye sall sy a rank of about a hundred windows in a straight line.

[93] Champigny.

But I hast to the Castle, which is bueatiously environed wt that same canale on the banks of which are such pleasant arrangements (palissades) [94] and umbrages of tries making allies to the length of halfe a mile; in which I fand that same I had observed in the toune: the tries ranked so aequally that its wonderfull to hear; tho monstrously hy yet all of them observing such a aequality that ye sould find none arrogating superiority over his neighbour. We entred the castle by a stately draw bridge over the canale. Over the first gate stands a marble Lowis the 13, this present kings father, on horseback: on his right hand stands Mars the God of Armes; on his left Hercules wt his great truncheon or club.

[94] Interlined, palissades. Rows of trees planted close. Term derived from fortification. See Littré's *Dict*.

Having past this gat, we entred into the court or close round about whilk the palace is built. The court is 3 tymes as large as the inner court of the Abbey.[95] Al around the close stand a wast number of Statues infinitely weill done: only I fand they had not provided weill for the curiosity of spectateurs in withholding their names and not causing it to be engraven at their feet. They informed me they ware the statues of the bravest old Greeks and Romans: as of Alex'r, Epiminondas, Cæsar, Marcellus, and the rest. By the wertue of powerful money all the gates of the Castle unlockt themselves. The first chamber we entred into he called the chamber de Moyse, getting this denomination from the emblem hinging above the chimly, wheirin was wondrously weill done the story whow Pharoes daughter caused hir maid draw the cabinet of bulrushes wheirin Moses was exposed upon the Nile to hir sitting on the land. This room (the same may

be repeated of the rest) was hung wt rich tapistry and furnished wt wery brave plenishings, as chairs, looking glasses, tables and beds. For the præserving of the curtains each bed had *tours de lit* of linnen sheets, which, causing to be drawen by, we fand some hung wt rich crimson velvet hingings; others wt red satin; others wt blew; all layd over so richly wt lace that we could hardly decerne the stuffe. We fand one bed in a chamber (which they called one of the kings chambers) hung wt dool, which when occasion offered they made use of. This minded me of Suintones wife, who when she was in possession of Brunstone[96] had hir allyes and walks so appropriated to particular uses that she had hir ally wheirin she walked when she was in mourning, another when she had one such a goune, and so furth. But to return, in another chamber we was put to the strait of exercising our *Liberum Arbitrium*. Many pleasant objects offering themselves to our wiew at the same tyme, we was at a pusle wt which of them to begin: for casting up our eyes to the cieling we fand it cut out most artificially unto sewerall sorts of creatures. Theirs a lion standing ramping ready as ye would think to devore you; yonder a horse; yonder a dog at the chass; and all this so glittering by reason that its covered wt gold that it would dazell any mans eyes. But calling away your eyes from this we deschended to the walls of the chamber, wheir ye have standing in one broad Justice, a martiall like woman wt a sword in hir one hand, and the balance in the other. On her right stands Verity, a woman painted naked to show that the truth most be naked since it demands no coverture. On the other stands Magnanimity, a woman of a bravadoing countenance. In another broad stands Prudence. In a 3d (la chambre de Lucesse) as a emblem of Chastity we have the story of Lucretias rapture by Tarquinius Superbus sone: first ye have him standing at hir chamber door wt his men at his back looking thorow the lock whither she was their or not; in the same broad[97] ye have represented the violence he used to hir; then as the epiloge of the tragædy

ye have hir killing herselfe. In another broad ye have to the life don the story of Judith bringing away the head of Holofernes.

[95] Holyrood.

[96] When the Duke of Lauderdale was under forfeiture the estate of Brunston, belonging to him, was granted to Swinton of Swinton.
— Sir G. Mackenzie's *Memoirs*, p. 48.

[97] Panel.

In another chamber ye have Lewis the 13 portraicts wt those of all the rest of the royall family and the most part of the courtiers, counsellors and statesmen of that tyme, together wt a embleme of the joy of the city of Paris at the nativity of this King.

Of this chamber goes a pittie but pretty litle cabinet for Devotion. Their stands a large crucifix of marble wonderously weill done, round about hings the 12 Apostles wt the sufferings they ware put to. Their may ye sie the barbarous Indians knocking Bartholemew, who was spreading the gospell among them, wt clubs to death; and so of the rest.

In another chamber on the cielery we have panted Thetis dipping hir sone Achilles in the Ocean to render him immortall. She hath him by the foot, whence in all his parts he becam immortal and impatible, save only in the sole of his feet, which ware not dippt. Next ye have him slain by Paris whiles he is busy on his knees at his devotion in the temple; Paris letting a dart at him thorow a hole of the door, which wounding him in the sole of his foot slow him. Nixt ye have Achilles dragging Hectors dead body round about the walls of Troy. Then ye have Priamus coming begging his sones body. Ye have also Diomedes and Glaucus frendly rencontrer wt the exambion they made of their armes.

In another chamber we found wery delicat weill wrought Tapistry wheirin ware to be sien, besydes sewerall other stories taken out of Homer, the funestous and lamentable taking of Troy.

In this same chamber saw we hinging the cardinals oune portraiture to the full, in his ride robes and his cardinals hat wt a letter in his hand to tel that he was the Kings secretary: his name is beneath. *Armandus Richeleus anagrammatized Hercules alter*. Surely the portrait represents a man of wery grave, wise and reverend aspect. Besydes him hinges the portraict of his father and mother. His father had bein a souldier; the cardinal was born in Richeliew.

In another chamber was hinging 3 carts[98] (al done by Sampson), the one exceeding large of France done by one Sanson, the Kinges Geographer; the 2nd of Italy wt the Iles adiacent of Corsica, Sardinia, Sicily, etc.; the 3d of the countrys that lyes on the famous river of Rhein, which runes thorow Germany, and in the low countries embrasses the sea.

[98] Maps.

At length we came unto a very large gallery, wher hinges the emblems of al the things of greatest consequence that happened in France during the tyme of the Cardinall, as the beseigding of tounes that revolted, and the stratagemes by whilk some of them were taken. At each end of the gallery stands a table, but I sal confine my selfe to speak only of the one. Removing a cover of leather their appeares a considerable large table as long as etc., the richest beyond controversy of France: it consistes of precious stones and diamonds, but joined wt such wonderfull artifice that a man would easily take it for one inter stone of sewerall colours, the proportion also of their joinctures, each colour answering to another, makes much to the commendation of it. Give their be a rid Sardix heir, it hath direictly of that same very bigness another Sardix answering to it their; or ye may suppose it

to be a blew saphir. In the wery center and midle of the table is planted about the meikledoom[99] of a truncher[100] a beautifull green smaradyes; round about it stands a row of blew saphire, then another of rid diamonds; then followes a joincture of golden chrysolites, the bigness wheirof renders them wery wonderfull, being exceeding rare to be found of the halfe of that bigness. Their is not any colour which is not to be found amoungs the Stones of that table. They are joined so marvelously that nothing can be smoother or æqualer. Thus breifly for the house.

[99] Size.

[100] Trencher.

Of one of the balconies we descryed the garden, which was wery pleasant, having great resemblance wt that of Chateau Neuf, up and doune it ware growing Holyhaucks of all colours; but I cannot stay no longer upon the, for I am hasting to your church, which I find wery rich, as generally all the churches in France are.

After I had supped I could not but come and wiew the situation and walls wtout; but fareweil, for the morrow night settis me in Poictiers. On the hy way as I travelled I mett bothe aples and plumes, which I looked not one as forbidden fruit, but franckly pulled. As soon as I came wtin sight of Poictiers I welcomed it heartily as being to be a place of rest to me for a tyme. Entering into the suburbes of the toun, I easily discovered the reason of our Buchannans expression, *Pictonum ad scopulos*: for then and afterwards I discovered it to be environed wt raging rocks and craigs, the toun it selfe also to be situat on a considerable eminence; and give ye take in all its circuit it neids not yeeld much to Paris in bigness; only much of it is filled up wt spacious gardens for the most part belonging to religious orders, sometymes of men sometymes of women. It hath also wines that

growes within its circumference, as these that grow in the place of the Scots walk may testify.

Having entred the toune we sought out Mr. Garnier the Apothecaries, for whom I had a letter from Mr. Doull at Saumurs, who on that accepted us kindly enough, only they had not such accomodation as I demanded, whence I took occasion to deliver a letter I brought wt me out of Scotland from young John Elies to Mr. Daillé, wt whom I entred pensionar about 8 dayes after I had bein in Poictiers, to wit 28 July 1665.

I cannot bury in silence the moderation of Mr. Garniers wife, so wertous and sparing a house wife she was that Wine never entred in hir mouth. Always hir drink was pure water, tho no restraint was laying upon hir to do it.

As the nature of thir peeple is to be wery frugall, so I fand that they ware right Athenians loving to tell and to hear news, which may be marked also in the most part of them that live on the Loier; for I had not bein a night in Poictiers when all that Street, and in sewerall other places of the toune, sundry knew that a Scotsman was come to the toune; that he came from Saumur, that he brought a letter for Mr. Garnier wt whom he quartred. The first night on my arrivall after I had supped came in my Hosts brother, a marchand, who amongs others enquired if I might know Mr. Douglas. I replied, yes; he added that he had left a child behind him, which tho Mr. Daillé owned for his, yet it had wholly a Scots cry not a French.

The morning after my arrivall they chanced to have sermon in the Protestants church at Quatre Picket, wher I fand Colinton,[101] who a little before had returned from the Rochell, wher he had bein also on the Isle of Rhee and that of Oleron. He after dinner took me to Mr. Alex'rs, wher I found all our Countrymen convened, only Alex'r Hume was at that tyme out in the Campaigne some leagues. Their I fand my right reverend good Sir

Mr. Patrick Hume,[102] for whom I had two letters, one from Pighog,[103] another from John Suty at London, David Hume, for whom I had a letter from Saumur, Mr. Scot, Ardrosses sone, and Mr. Grahame, Morphees sone. Shortly after I saw both the 2 Alex'rs, Alexander the professour, to whom I delivred a letter from young J. Elies and Alex'r Hume: them all one night I took in to a Hostellery called le Chapeau d'Or and gav them their supper, which cost me about 17 livres 10 souse.

[101] Probably James Foulis, son of Sir James Foulis, Lord Colinton, advocate 1669, a lord of Session 1674, with the title of Lord Reidford.

[102] The friend thus playfully described may be Sir Patrick Hume, advocate, who often appears as a litigant in Fountainhall's *Decisions*.

[103] See page 145, note 2.

About 8 dayes after I had bein in Poictiers was kept be the Jesuits Ignatius Loyola their founders day, whence in the Jesuits Church their was preaching a fellow that usualy preaches, extolling their patron above the wery skies; evicting whow that he utstripped infinitely the founders of all other orders, let it be St. François, St. Dominick, or be who he will, by reason that he founded a order to the universal good of Christendome; the order not being tyed to one place, as other religious are, but much given to travelling up and doune the world for the conversion of souls, which truly may be given as a reason whey all that order are usually so experimented and learned; for their are of them in Americk itselfe. From all this he concluded that Ignatius was and might deservedly be named the universall Apostle of the Christian World. He showed also the manner of his conversion to that manner of life; whow he had bein a soger (he was a Spaniard by nation) til his 36 or 40 year of age. One tyme in a battell he had

received a wound right dangerous, during the cure of this wound one tyme being some what veary and pained he called for a Story or Romance. They having none their, some brought a devot book termed the Saints Rest, not that of Baxters; in which he began to read wt a sort of pleasure, but wtout any touch. At lenth continuing he began to feel himselfe sensibly touched, which wrought so that he wholly became a new man; and wt the permission and confirmation of the Pope then instituted the order.

A litle after followed St. Dominicks day observed by the Jacobins, wher I went to hear his panegyrick preached. Their preached a fat-looged[104] fellow of the order. His text was out of the 36 of Ecclesiasticus, *Vas auroeum*[105] *repletum omni lapide proetioso*: all his sermon ran to make Dominick this vessell. He deduced all that a man might be praised for from the 3 fold sort of dueties: 1, these we ow to God; 2, these towards our neighbours; and 3, these towards himselfe. For the vertues that are relative to God, he numbered them up to 13, and that out of Thomas, whom they follow in all things; amongs which were piety, sanctité, zeal for Religion, which broke out to that hieght that he caused sundry of the poor Albingenses, over the inquisition of whom he was sett, to be brunt; but this he mentioned *no*. For duties of the 2nd sort he numbered up out of the same Thomas amongs others thir, Chastité. Of Dominicks chastity he sayd he was as sure as of one thats new borne. Charité, which was so great one tyme that having nothing to give to the poor, he would have given himselfe to a poor widow woman; at which we could not but laugh, tho' his meaning was that he would have bein content to sell himselfe that the woman might get the money. He forgot not also his strictness of life and discipline, so that after his death their was found a cord in wtin his wery flech he girded him selfe so strait wt it. Heir he reckoned upe his prudence and magnanimity. Amongs the duties a man owes to himselfe amongs others he reckned up Temperance; in which he would gladly have us beleiving that St. Dominick never eated any in his dayes, so great was his abstinence. Then he came to

compare him wt the cælestial powers, which he divided out of Dionysius pseudareopagita into the Hierarchies receaved in the Romish Church, of Angels, Archangels, Powere, Dominations, Cherubins, Seraphines, etc., and then showed his Dominick to excell them all. Many stories he told us which are to be seen in his legends, but never a word of the zeal he had when he sat doune and preached to the birds (and seing a frier kissing a nun he thanked God that their was so much charité left in the world). His epiloge was that St. Dominick was worth all the Saincts of them. And to speak the truth, beleiving him he made him on of the perfectest men of the world, subject to no imperfection. I could discover no difference he made betuixt him and Christ.

[104] See p. 17, note 2.

[105] *For aureum.*

The forme of their preaching is thus. After they are come unto their pulpit they signe their foorfront and breast with the signe of the cross wt that in nomine patris, filij, and S.S., as a means to chass away Satan; then they go to their knees for a wery short space as our bischops do; then raising they read their text; after which they have a short prayer direct to Christ and his mother, or even the Sainct, if they be to speak of any, for their aid and assistance. Then they preach; after which thess that please to walk may do it. The rest stay out the Vespres.

The forme of the protestant churches differs not much from ours. On the Sabath morning during the gathering of the congregation they sing a psalme; the minister coming up by a short sett forme of exhortation, stirring them up to ioin wt him in prayers, he reads a sett forme of confession of sines out of their priers ecclesiastiques or Liturgie; which being ended they singes a psalme, which the minister nominats, reading the first 2 or 3 lines of that to be sung, after which they read no more the line, as we do, but the

people follows it out as we do in Glory to the Father, The psalme being ended, the minister has a conceaved prayer of himselfe adapted for the most part to what he's to discourse on. This being ended he reads his text. Having preached, then reads a prayer out of their Liturgy, then sings a psalme, and then the blissing.

About a 4 night after I had bein their some 2 chanced to be taken in the order of the Capuchins, of which order this is strange that the poorest yet they are numerousest, their being dailly some or other incorporating themselves, Their poverty is such that they have nothing to sustein them but others charité when they come begging, and that every 24 hours. They having nothing layd up against tomorrow, if their be any day amongs others wheirin they have gotten litle or nothing, notwtstanding of this they come al to the Table, tho' nothing to eat. Each man sayes his grace to himselfe, their they sit looking on one another, poor creatures, as long as give they had had something to eat. They fast all that day, but if their be any that cannot fast it out, then he may go doune to the yard and houck out 2, 3 carrots to himselfe, or 'stow some likes some sibows, beets or such like things, and this is their delicates. If their be any day wheirin they have gotten more then suffices them all, the superplus they give to the poor. The convent hath no more rent than will defray their charges in keiping up their house about their ears. Al this do thir misers under the hopes of meriting by the samen: yet I would be a Capuchin before any other order I have sein yet.

To sie the ceremony of their matriculation unto the order I went wt my good sire, wheir the principal ceremony was that they cast of their cloathes wheirwt they ware formerly cloathed and receaves the Capuchines broun weid, as also they get the clerical tonsure, the cord about their west, and the clogs of wood on their bare feet. A great number of speaches being used in the intervalls containing as is probable their dueties, but we could not understand them for the bruit. At the point of each of them all the people

cried Amen. Finally we saw them take all the rest of ther brethren by the hand, all of them having burning torches in their hands.

After this, on August 14, came about Ste. Radegondes daye, wheiron I saw sewerall things: first wt Mr. Bouquiet we went doune to the church of Ste. Radegonde, which stands almost on the bord of the river Sein, which runes by Poictiers; and their visited hir tomb; but we had a difficulty of accez, such multitude was their dronning over their prayers, *Sainte Radegonde, Radegonde, priez pour nous et nos ames*, and this a 100 tymes over, at each tyme kissing the sepulchre stone which standes reasonable hy.

From this we went to hir Chappell that stands besydes the Church of St. Croix, to sy the impression that Christ left wt his foot (so sottish is their delusion) on a hard great stone when he appeared to Ste. Radegonde as she was praying at that stone. The impression is as deip in the stone as a mans foot will make in the snow; and its wonderfull to sy whow thir zealots hath worn the print much deiper in severall parts wt their continuall and frequent touching of it thorow the iron grate wt which it is covered, and kissing it on Ste. Radegondes day when the iron grate is removed; according to that, *gutta cavat lapidem*, etc. All this they do thinking it the least reverence they can do to the place wheir our Saviours foot was. For immediatly upon the notification of that by Ste. Radegonde they caused erect a chappell above the stone, and hath set up Christ upon the right of the impression wt Capuchin shoes on his feet: and on the left Ste. Radegonde on hir knees wt hir hands folded praying to him. On the wall besydes they have this engraven, *Apparuit Dominus Jesus sanctae beatae Radegundae et dixit ei, tu es speciosa gemma, noverim te praetiosam in capite meo* (and wt that they have Christ putting his fingers to his head) *gemmam*.

Out of this we came to the Church of St. Croix, wheir just as we were entring ware coming out 2 women leading a young lass about the Age of 18

who appeared evidently to be distracted or possessed by some Dewill, by hir horrid looks, hir antick gestures, and hir strange gapes: hir they had had in the Church and had caused hir kneell, they praying before the Altar for hir to Ste. Radegonde, whom they beleived had the power to cure hir. The priests knaveries are wery palpable to the world in this point, who usually by conjurations, magicall exorcismes as their holy water, consecrated oill, take upon them to dispossess or cure sick persones, but so far from having any effect, that the Devill rather gets great advantage by it. Having entred the Church, standing and looking earnestly about to al the corners of the church, and particularly to the Altar, which was wery fine, wt as great gravity as at any tyme, a woman of faschion on hir knees (for indeed all that ware in the Church ware on their knees but my selfe) fixing hir eyes upon me and observing that I nether had gone to the font for water, nether kneelled, in a great heat of zeal she told me, *ne venez icy pour prophaner ce saint lieu*. I suddenly replied, *Vous estes bien devotieuse, Madame; mais peut estre Vostre ignorance profane ce saint lieu d'avantage que ma presence*. This being spoken in the audience of severals, and amongs others of a preist, I conceived it would not be my worst to retire, which I did.

That same afternoon I went to Mr. Alex'rs to seik Patrick Hume, wheir I faud them hearing him explaine some paragraphe of the Institutes: wheir Mr. Alex'r and I falling on some controverted points betuixt us and them, I using a great deall of liberty citing frome his oune authors as Bellarmine, etc., I angred him exceedingly. Then Patrick Hume, David, Mr. Grahame and I went to walk: and particularly to the pierre levé or stone erected a litle way from the city. The story or fable whei'of is this: once as Ste. Radegonde was praying the Devil thought to have smoored[106] or crushed her wt a great meikle stone greater than 2 milstones, which God knows whence he brought, but she miraculously supported it wt hir head, as the woman heir carries the courds and whey on their head. Surly she had a gay burden; and never rested till she came to that place wheir its standing even

now. They talk also that she brought the 5 pillars on which its erected till above a mans hight in hir lap wt hir. I mocking at this fable, I fell in inquiry whence it might have come their, but could get no information; only it seimed probable to me that it might have bein found in the river and brought their. On the top of this stone I monted, and metted[107] it thorow the Diametrum and found it 24 foot; then metted it round about and found it about 60 foot. Coming doune and going beneath it we discovered the place wheir hir head had bein (*nugae*).

[106] Smothered.

[107] Measured.

We went and saw a stately convent the Benedictines ware building, the oldest and richest order of France. To them it is that Nostre Dame at Saumur belongs; to them belongs the brave bastiments we saw at Tours, in which city as I was on the Loier I told 16 considerable steeples. We saw the relicts of a old Convent, wheirupon enquiring whow it came to be demolished, he replied it was in Calvines tyme, who studied his Law in Poictiers; and then turning preacher he preached in the same very hall wheir we hear our lessons of Law. His chamber also is to be sein wheir he studied on the river syde.

I cannot forgett a story of Calvin which Mr. Alex'r told us saying it was in their Histories, that Calvin once gladly desiring to work a miracle suborned a fellow to feigne himselfe dead that so he might raise him to life. Gods hand was so visible upon the fellow that when he went to do it he verily died and Calvin could not raise him: this was in Poictiers. And it minded me first that I had read almost the like cited out of Gregorious Turonensis History by Bellarmine in his treatise *de Christo* refuting Arianisine of a Arian bischop who just so suborned one to feinge himselfe blind that he might cure him, but God really strake him blind. Also it

minded me of a certain Comoedian (who was to play before the Duc of Florence) who in his part had to act himselfe as dead for a while. He that he might act himselfe as dead wt the more life and vigeur agitated and stirred or rather oppressed his spirits so that when he sould have risen he was found dead in very truth. As also 3ly of a certain Italian painter who being to draw our Saviour as he was upon the Cross in his greatest torment and agony (he caused a comoedian whose main talent was to represent sorrow to the life), he caused one come and sit doune before him and feigne one of the dolfullest countenances that he could that he might draw Christ of him; but he tuise stucked it, wt which being angred he drew out a knife and stobbed the person to the heart; and out of his countenance as he was wrestling wt the pangs of death he drow Christ on the cross more lively then ever any had done, boasting that he cared not to dy for his murder since he had Christ beholden to him for drawing him so livelylie. I remember also of a passage that Howell in a letter he writes from Geneva hes, that Calvin having bein banished once by a prævalent faction from the city again being restored, he sould proudly and blasphemously have applied to himselfe that saying of David, proper to Christ, the stone which the builders refused the same is become the head of the corner. But granting that all thir to be true, as they are not, they ware but personall escapes, neither make they me to think a white worse of his doctrine. But as to the point of miracles its notoriously knowen that the Church of Rome abuses the world wt false miracles more then any: for besydes these fopperies we have discovered of Ste. Radegonde they have also another. Thus once St. Hilary (who was bischop of Poictiers about the 6 century, and who hes a church that bears his name, erected on the wast syde of the toune a little from the Scotess walk), about a league from the toune (thus reportes *les annales de Aquitaine*), as he was riding on his mule Christ meit him. His beast, as soon as it saw our Saviour, fell doune on the knees of it. As a testimony whei of that it fell doune they show at this day the *impressa* both

its knee and its foot hes made miracoulously in the rock, but this is *fort mal a propos*; since they seem to mak their St. Hilary Balaam; and his mulet Balaam his ass which payed reverence to God before its mastre. This fable minded me of the story we have heir at home, that we can show in Leith Wind craigs the impressa that Wallace made wt his foot when he stood their and shoot over the steeple of Edenburgh. Yet their all these things are beleived as they do the bible.

When we was wtout the city we discovered that it would signify litle if it wanted the convents and religious houses, which ware the only ornaments of the city. This much for the 14 of August, I had not bein so much out a fortnight before put it all together.

Heir I most impart a drollery which happened a little before in Poictiers. Some Flamans had come to the toune and taken up the quarters in a certain Innes.[108] While they ware supping, the servant that attended them chanced to let a griveous and horrid fart. The landlady being in the roome and enquiring give she thought not shame to do so, she franckly replied, *sont Flamans, madame, sont Flamans, ils n'entendent pas*; thinking that because they ware strangers that understood not the language, they understood not also when they hard a fart.

[108] Inn.

O brave consequence, I went one night to the Marché Vieux and saw some puppy playes, as also rats whom they had learned to play tricks on a tow.[109]

[109] Rope.

Just besyde that port that leads to Quatre Picket (de St. Lazare) or Paris is erectcd a monument of stone, something in the fashion of a pyramide. I

enquiring what it meant, they informed me the occasion of it was a man that lived about 3 or 4 years ago in the house just forganst it, who keiping a Innes, and receaving strangers or others, used to cut their throats and butcher them for their money; which trade he drave a considerable tyme undiscovered. At lenth it coming to light as they carried him to Paris to receave condigne punishment, they not watching him weill enough he killed himselfe whence they did execution on his body, and erected that before the door, *ad æternam rei memoriam*. I think they sould have razed his house also, yet their is folk dwelling in it prcsently.

I went also and saw the palais wheir the Advocats used to plead but it had fallen down by meer antiquity about 3 moneths before I came to Poitiers whence the session had translated themselves to the Jacobines, whom I went and saw their. In the falling of the palais it was observable that no harm redounded to any, and that a certain woman wt a child in hir armes chancing to be their on day raising out of a desk wheir she was sitting she was hardly weill gon when a great jest[110] fell (for it fell by degries) and brok the desk to peices.

[110] Joist.

Their hinges bound upon the wall wt iron chaines the relicts of a dead hideous crocodile, which, tho' it be infinitely diminished from what it was (it being some hundred years since it was slain), yet its monstrously great wt a wast throat. This, they say, was found in one of their prisones, which I saw also. On a tyme a number of prisoners being put in for some offences, on the morrow as some came to sie the prisoners not one of them could be found, it having eaten and devored them every one. Not knowing whow to be red of this trubulsom beast no man daring attempt to kill it, they profered one who was condemned to dy for some crime his life give he killed it. Wheir upon he went to the prison wt a weill charged pistoll as it seimingly

being very hungry was advancing furiously to worry him he shoot in at a white spot of its breast wheir its not so weill armed wt scalles as elsewheir and slow it and wan his life.

I enquiring whow that beast might come their it seimed most probable that it was engendred their *ex putri materia*, as the philosophers speaks, tho I could hardly weill believe that the sun could giv life to such a monstrous big creature as it.

We have had occasion to sie severall tymes Madame Biton the tailleurs daughter, that lives forgainst Mr. Daillés, with whom Madame Daillé telles me Mr. Hope was great. Truly a gallant, personable woman to be of such mean extract and of parents wheirof the father is a wery unshappen man; the mother neids yeeld nothing to Jenny Geddes.

I observing that ye sould never sy any of the religious orders be they Jesuits or others on the streets but 2 of them together, I enquired the reason. First it was that the on might watch the other that so none may fly from their convents, which they might easily do if they had the liberty of going out alone. 2dly they do it to evite all scandall and suspicion. They know the thoughts of the common peeple, that they be litle faworable to them, the orders being talkt of as the lecherousest peeple that lives. To exime their thoughts they go tuo and 2; for then if the one be so given he his a restraint laying on him, to wit, another to sie his actions; but usually they are both lounes.[111]

[111] Knaves.

They have a way of conserving great lumps of ice all the summer over heir in low caves: and these to keip their wines cold and fresh from heating when they bring it to their chamber.

To reckon over all the crys of Poictiers (since they are divers according to the diverse seasons of the year) would be difficult. Yet theirs one I cannot forget, a poor fellow that goes thorow the toun wt a barrell of wine on his back; in his on hand a glass full halfe wt win; in his other a pint stoop; over his arm hinges a servit; and thus marched he crieng his delicate wine for 5 souse the pot thats our pint; or 4 souse or cheaper it may be. He lets any man taste it that desires, giving them their loof full.

I did sy one fellow right angry on a tyme: their came about 7 or 8 about one, every one to taste; giving every one of them some, to neir a chopin[112] not one of them bought from him; wheiron he sayd he sould sie better marchands before he gave to so many the nixt tyme.

[112] Half a pint old French, and also old Scots, measure, was equal to about three times the present imperial measure.

Wood also is a passable commodity heir as in all France, wheir they burn no thing but wood, which seimes indeed to be wholsomer for dressing of meat then coall. Every fryday and saturday the peasants brings in multitude of chariots charged wt wood, some of them drawen wt oxen, mo. wt mules, without whilk I think France could not subsist they are so steadable to them. For a chariot weill ladened theyle get 6 or 7 livres, which I remember Mr. Daillé payed.

They have another use for wood in that country also which we know not: they make sabots of them, which the peasants serve themselves wt instead of shoes; in some account they are better then shoes. They wil not draw nor take in water as shoes whiles do, they being made of one intier lump of wood and that whiles meikle enough. Their disadvantage is this none can run wt them, they being loose and not fastened to our feet, yet some weill used wt them can also run in them. They buy them for wery litle money.

These also that cannot aspire to ordinar hats (for since we left Berwick we saw no bonnets as also no plaids) they have straw hats, one of which theyle buy for 6 souse, and get 3 or 4 moneths wearing out of it.

The weather in France heir is large as inconstant as in Scotland, scarcely a week goes over wtout considerable raines.

I cannot forgett the conditions that Madame Daillé in sport offered me if I would wait till hir daughter ware ready, and then take hir to wife, that I sould pay no pension all the tyme I stayed in their house waiting on hir.

On the 15 of August (being wt the Scots the 5 and observed by them in remembrance of Gourie conspiracie) came about to be observed *feste de Nostre Dame*, who hath 4 or 5 fests in the year, as the annuntiation, the conception, hir purification; and this was hir death and assumption day.

I went and heard the Jesuits preach, a very learned fellow, but turbulent, spurred and hotbrained; affecting strange gestures in his delivery mor beseiming a Comoedian then a pulpit man. Truly ever since in seing the Comoedians act I think I sy him. He having signed himselfe, using the words *In nomine patris, filij*, etc., and parfaited all the other ceremonies we mentioned already, he began to preach. The text was out of some part of Esay, thus, *Et sepulcrum ipsius erat gloriosum*. He branched out his following discourse unto 2:—1. the Virgines Death; 2. hir assumption. As to hir death he sayd she neided not have undergon it but give she liked, since death is the wages of sin, *mais Nostre Dame estoit affranchie de toutes sorte de peché, soit originell, soit actuell*. In hir death he fand 3 priviledges she had above all others: first she died most voluntarily, villingly, and gladly; when to the most of men Death's a king of terrors. 2ndly, she died of no sickness, frie of all pain, languor or angoisse. 3dly, hir body after death was not capable of corruption, since its absurd to think that that holy body, which carried the Lord of Glory 9 moneths, layes under the laws of

corruption. For thir privelegdes he cited Jean Damascen and their pope Victor. But it was no wonder she putrified no, for she was not 3 dayes in the grave (as he related to us) when she was assumed in great pomp, soul and body, unto heaven, Christ meiting hir at heavens port and welcoming hir.

He spoke much to establish monstrous merite; laying doune for a principle that she had not only merited heaven, and indeed the first place their, being the princess of heaven; but also had supererogated by hir work for others to make them merit, which works the church had in its treasury to sell at mister.[113] He made heaven also *a vendre* (as it is indeed amongs them), but taking himselfe and finding the expression beastly and mercenarie he began to speir, but whow is it to sell, is it not for your *bonnes oeuvres*, your penances, repentance, etc. This was part of his sermon.

[113] Mister, need.

That Strachan that was regent at Aberdeen and turned papist, I was informed that he was in a society of Jesuits at Naples.

This order ever since it was a order hath bein one of the most pestilent orders that ever was erected, being ever a republick in a republick wheir ever they be; which caused Wenice throw them out of hir, and maugre the pope who armed Spaine against hir for it holds them out unto this day. They contemne and disdain all the rest of the orders in comparison of themselves; they being indeed that great nerve and sinew that holds all the popes asustataes[114] together; whence they get nothing but hatred again from the other religious, who could wt ease generally sy them all hanged, especially the Peres de l'Oratoire, who are usually all Jansenists, so that ye sall seldome find these 2 orders setled in one city, tho they be at Orleans. The Jesuits be the subtilist folk that breathes, which especially appears when under the praetext of visitting they fly to a sick carkcass, especially if it be fat, as ravens does to their prey. Their instead of confirming and

strengthening the poor folk to dy wt the greater alacrity, they besett them wt all the subtile mines imaginable to wring and suck money from them, telling them that they must leive a dozen or 2 of serviets to the poor Cordeliers; as many spoones to the godly Capuchines who are busie praying for your soul, and so something to all the rest; but to us to whom ye are so much beholden a goodly portion, which they repeit wery oft over; but all this tends as one the one hand to demonstrate their inexplebible greediness, so one the other to distraict the poor miser wt thoughts of this world and praejudice or defraudation of his air.

[114] Apparently from [Greek: asustatos], meaning 'ill-compacted forces or elements.'

Some things are very cheap their. We have bought a quarter a 100 of delicat peirs for a souse, which makes just a groat the hunder. Madame Daillé also bought very fat geese whiles for 18 souse, whiles 12, whiles 15, whiles for 20; which generally they blood their, reserving it very carefully and makes a kind of pottages wt it and bread which seimes to them very delicious but not so to me, tho' not out of the principle that the Apostles, Actes 15, discharged the gentils to eat blood or things strangled. That which they call their pottage differ exceedingly from ours, wt which they serve themselves instead of our pottage, as also our broth, neither of which they know. It seems to diffir little from our soups when we make them wt loaves. Surely I fand it sensibly to be nourishing meat; and it could not be otherwise, since it consisted of the substance first of the bread, which wtout doute is wholsomer then ours, since they know not what barme is their, or at least they know not what use we make of it, to make our bread firme, yet their bread is as firme wtout it: next the substance of the flech, which usually they put in of 3 sorts, of lard of mouton, of beef, of each a little morsell; 3dly of herbes for seasoning, whiles keel, whiles cocombaes, whiles leeks, whiles minte or others. In my experience I fand it very

loosing, for before I was weill accoustened wt it, if I chanced to sup any tyme any quantity of the pottage, I was sure of 2 or 3 stools afternoon wt it.

The French air after the sun setting I learned in my oune experience to be much more dangerous then ours in Scotland, for being much more thinner and purer, its consequently more peircing; for even in August their, which is the hottest and warmest moneth, if at night after 8 a cloak I had sitten doune in my linnens and 2 shirtes to read but halfe a hower or a hower (which I have done in Scotland the mides of vinter and not have gotten cold) after the day I was sure to feell I had gotten cold; and that by its ordinary symptomes a peine and throwing in my belly, & 4 or 5 stools; I played this to my selfe tuize or I observed; ever after if I had liked to give my selfe physick I had no more ado but to let my selfe get cold.

They let their children suck long heir, usually 2 years; if weak 2 years and a halfe. Madame Daillé daughter suckt but 6 quatres, they think much to give 40 or 50 livres to nurses for fostering. Madame Daillé gave 15 crounes in cash and some old cloaths and sick things as they to hir that nursed her daughter, a peasants wife whom I saw. The gossips and commers[115] heir give nothing as they do in Scotland, save it may be a gift to the child.

[115] Godmothers, *commères*.

I have called my selfe to mind of a most curious portrait that we saw in Richeliew castle, the description wheirof by reason its so marvelously weill done sall not be amiss tho it comes in heir *postliminio* to insert. On the walls theirfor of one of the chambers we saw is drawen at large the emblem of the deluge or universall floud, in one corner of it I discovered men wt a great deall of art swimming (for the world is drawen all over covered wt waters, the catarracts of the heavens are represented open, the water deschending *guttatim* so lively that til a man recall himselfe and wiew it

narrowly hel make a scrupule to approach the broad[116] for fear of being wett), and that wt a bensill[117] their course being directed to a mountain which they sy at a distance; which is also drawen. Painters skill heir hes bein such, that a man would almost fancy he hears the dine the water makes wt their struggling and striking both hands and feet to gaine that mountaine. Just besydes thies are laying dead folke wt their armes negligently stretched out, the furious wawes tossing them terribly, as a man would think, some of them laying on their back, some of them on their belly, some wheirof nothing is to be sein but their head and their arme raxed up above their head. Amongst those that are laying wt their face up may be observed great diversity of countenances, some wt their mouth wide open and their tongue hinging out, some glooring,[118] some girning,[119] some who had bein fierce and cruell during their life, leiving legible characters in their horrible and barbarous countenances. In another part of the broad is to be sein all sorts of creatures confusedly thorow other, notwithstanding of that naturell antipathy that is betuixt some of them, as the sheip and the wolf, the crocodile and Lizard, etc.; ther may we sy the wawes peepe mel swallowing up wolves and sheip, Lions and buls, and other sorts of beasts. Remove your eyes to another corner, and their yeel sy great tries torn up by the roots, and tost heir and their by the waves; also hie strong wales falling; also rich moveables, as brave cloaths and others, whiles above and whiles beneath; and go a litle wy farder yeel sie brave tower which at every puft of wind give a rock, the water busily undermining its foundation. A litle way from that ye have to admiration, yea, to the moving of pity, draweu women wt their hair all hinging disorderly about their face, wt their barnes in their armes, many a mint[120] to get a clift of a craig to save themselves and the child to, some of them looking wt frightened countenances to sy give the waves be drawing neir them. In a nother ye have a man making a great deall of work to win out, hees drawen hinging by the great tronc of a try. At his back is drawen another that claps him desperatly hard and fast by the foot,

that if he win out he may be drawn out wt him. Its wonderfull to sy whow weill the sundry passions of thir 2, the anger of him who hes a grip of the trunck, and the trembling fear of him who hes his neighbour by the foot are expressed; and what struggling they make both, the one to shake the other loose of his gripes, the other to hold sicker, and this all done so weill that it occasions in the spectateurs as much greife in beholding it as they seim to have who are painted. Finally, the painter hath not forgot to draw the ark it selfe floting on the waters.

[116] Panel.

[117] Strenuous effort.

[118] Staring.

[119] Grinning (like a child crying).

[120] Mint, attempt.

On a night falling in discours wt some 2 or 3 Frenchmen of Magick and things of that nature, I perceaved it was a thing wery frequent in France, tho' yet more frequent in Italy. They told me seweral stories of some that practized sorcery, for the most part preists who are strangely given to this curiosity. They told of one who lived at Chateleraut, who, when he pleased to recreat himselfe, would sit doune and sett his charmes a work, he made severalls, both men and women, go mother naked thorow the toune, some chanting and singing, others at every gutter they came to taking up the goupings[121] of filth and besmeiring themselves wt it. He hath made some also leip on horseback wt their face to the horse taill, and take it in their teeth, and in this posture ride thorow all the toune.

[121] Handfuls.

Ware their not a Comoedian at Orleans who used to bring us billets when their ware any Comoedies to be acted, who offered for a croune to let us sy what my father and mother was doing at that instant, and that in a glasse, I made my selfe as wery angry at him, telling him that I desired not to know it by such means. On that he gott up the laughter, demanding if I thought he had it be ill means; for his oune part he sayd he never saw the Dewill.

Not only is it usuall heir to show what folkes are doing tho ther be 1000 miles distant; but their[122] also that will bring any man or woman to ye if ye like, let them be in the popes Conclave at Rome; but incontrovertably its the Devill himselfe that appeires in this case. The tricks also of robbing the bride groomes of their faculty that they can do nothing to the wives is very ordinar heir; as also that of bewitching gentlewomen in causing them follow them lasciviously and wt sundry indecent gestures; and this they effectuat sometymes by a kind of poudre they have and mix in amongs hir wine; some tymes by getting a litle of hir hair, which they boill wt pestiferous herbs; whilk act when its parfaited the women who aught the hair will come strangely, let hir be the modestest woman in Europe, wheir the thing is doing, and do any thing the persones likes.

[122] their = there are.

Plumes are in wery great abundance heir, and that of many sorts. We have bein offered the quatraine, thats 26 of plumes, wery like that we call the whitecorne, tho' not so big, for 2 deniers or a double, thats for 8 penies the 100; and they sel them cheaper.

Great is the diversity amongs peirs their. Mr. Daillé hath told me that at least theirs 700 several sorts of peirs that grows in France, al distinguasble be the tast. We ourselfes have sien great diversity. Theirs a wery delicious sort of poir they call the *poir de Rosette*, because in eating it ye seime as give ye ware smelling a rose. They have also among the best of the peirs

poir de Monsieur, and *de Madame*. They have the *poir de piss*, the *poir blanchette* (which comes wery neir our safron peer we have at home), and *trompe valet*, a excelent peir, so called because to look to ye would not think it worth anything, whence the valets or servants, who comes to seik good peirs to their masters, unless they be all the better versed, will not readily buy it, whence it cheats them. They distinguish their peires into *poirs de l'esté de l'automne*, and *de l'yver*, amongs whilk theirs some thats not eatable til pais or pasque.

In the gazetts or news books (which every friday we get from the Fullions[123] or Bernardines at their Convent, such correspondence does the orders of the country keip wt thess at Paris), we heard newes passing at home. The place they bring it from they terme it Barwick, on the borders of Scotland. We heard that the 29 of May, our Soverains birth day, was solemly kept by the Magistrates of Edinburgh and the wholle toun. At another tyme we heard of a act of our privy counsill, inhibiting all trafic whatsoever wt any of the places infected wt the plague. In another we heard of a breach some pirates made in on our Northren Iles, setting some houses on fire; on whilk our privy counsell by a act layd on a taxation on the kingdome, to be employed in the war against the Hollanders, ordaining it to be lifted wtin the 5 years coming.

[123] Fullions, Feuillants, 'Nom de religieux réformés de l'ordre de Citeaux, appelés en France feuillants, et en Italie réformés de St. Bernard... Etym., Notre-Dame de Feuillans, devenue en 1573 le chef de la congrégation de la plus étroite observation de Citeaux ... en Latin, Beata Maria fuliensis, fulium dicta a nemore cognomine, aujourd'hui Bastide des Feuillants, Haute Garonne.'— Littré, *Dict.* S.V.

Tho the French are knowen and celebrated throwhout the world for the civility, especially to strangers, yet I thought wonderfull to perceive the inbreed antipathy they carry against the Spaniard. That I have heard it many a tyme, not only from Mr. Daillé, but from persons of more refined judgements then his, yea even from religious persones, that they had not no civility for a Spaniard, that not one of a 1000 of them is welcoome. I pressing whence this might come to passe that they so courteously receaving all sortes of strangers, be they Scots, English, Germans, Hollanders, or Italians, and that they had none of this courtoisie to spare for a Spaniard, they replied that it came to pass from the contrariety of their humeurs; that the French ware franck (whence they would derive the name of their nation), galliard, pleasant, and pliable to all company; the Spaniard quite contrary retired, austere, rigid, proud. And indeed their are something of truth in it; for who knows not the pride of the Castilian: if a Castilian then a Demigod. He thinks himselfe *ex meliore luto natus* then the rest of the world is.

Its a fine drollery to sie a Frenchman conterfit the Castilian as he marches on his streets of Castile wt his castilian bever cockt, his hand in his syde, his march and paw[124] speaking pride it selfe. Who knows not also that mortell feud that the Castilian carries to the Portugueze and the Portugueze reciprocally to them, and whence this I beseich you if not from the conceit they have of themselfe. This minds me of a pretty story I have heard them tell of a Castilian who at Lisbon came into a widows chop to buy something. She was sitting wt her daughter; the lass observing his habit crys to her mother, do not sell him nothing, mother, hees a Castilian, the mother chiding her daughter replied, whow dare you call the honest man a Castilian; on that tenet they hold that a Castilian cannot be a honest man. I leive you to ghesse whether the daughters wipe or the mothers was tartest.

[124] paw = *pas*.

Howell (as I remember) in a letter (its in the first volume, letter 43) he writes from Lyons, he findes the 2 rivers on which that brave city (for its situation yeelding to none in Europe, not to London tho' on lovely Thames) standes on, to wit the Rhosne and the Sosne, to be a pretty embleme of the diversity thats betuixt the humeurs of thess 2 mighty nations (France and Spain), who deservedly may be termed the 2 axletrees or poles on which the Microcosme of Europe turnes. Its theirfor wery much in the concernement of the rest of Europe to hold their 2 poles at a even balance, lest the one chancing at lenth to wieght doune the other there be no resisting of him, and we find ourselves wise behind the hand.

Looking again on the Rhosne, which runs impetuously and wiolently, it mindes him of the French galliardness and lightness, or even inconstancy. Looking again on the Sosne, and finding it glid smoothly and calmly in its channel, its mindes him (he sayes) of the rigid gravity the Spaniard affected. And to speak the truth, this pride and selfe conceetedness is more legible in the Spaniard than in the French, yet if our experience abuse us not, we have discovered a great tincture of it in the French. That its not so palpable amongs them as in the Spaniard we impute to that naturall courtoisie and civility they are given to, that tempers it or hides it a little, being of the mind that if the Spaniard had a litle grain of the French pleasantness, the pride for which we tax them sould not be so apparent.

Yet we discovered a beastly proud principle that we have observed the French from the hiest to the lowest (let him be never so base or so ignorant) to carry about wt them, to wit, that they are born to teach all the rest of the world knowledge and manners. What may be the mater and nutrix of this proud thought is not difficult to ghesse; since wtout doubt its occasioned by the great confluence of strangers of all sorts (excepting only the Italian and Spaniard, who think they have to good breeding at home to come and seik it of the French) who are drawen wt the sweitness of the country, and the

common civility of the inhabitants. Let this we have sayd of the French pass for a definition of him till we be able to give a better.

About the beginning of September at Poictiers, we had the newes of a horrid murder that had bein perpetrated at Paris, on a Judge criminell by tuo desperat rascalls, who did it to revenge themselves of him for a sentence of death he had passed against their brother for some crime he had committed. His wife also, as she came in to rescue hir husband, they pistoled. The assassinats ware taken and broken on the wheell. He left 5 million in money behind him, a terrible summe for a single privat man, speaking much the richness of Paris.

The palais at Poictiers (which with us we call the session) raises the 1 Saturday of September, and sittes doune again at Martimess.

We remember that in our observations at Orleans we marked that the violent beats heir procures terrible thunders and lightnening, and because they are several tymes of bad consequence, the thunder lighting sometymes on the houses, sometymes on the steeples and bells, levelling all to the ground, that they may evite the danger as much as they can they sett all the bells of the city on work gin goon.[125]

[125] Ding dong.

A man may speir at me what does the ringing of the bells to the thunder. Yes wery much; for its known that the thunder is partly occasioned by the thickness, grossness, impuritude, crassitude of the circumambient air wt which the thunder feides itselfe as its matter. Now Im sure if we can dissipate and discusse this thickness of the air which occasiones the thunder, we are wery fair for extinguishing the thunder itselfe according to the Axioma, *sublata causa tollitur effectus*, whilk maxime tho it holds not in thess effect which dependes not on the cause *in esse* and *conservari* but

only in *fieri*: as *filius, pater quidem est eius causa; attamen eo sublato non tollitur filius quia nullo modo dependet filius a patre sive in esse sive in conservari: solum modo ab eo dependet ut est in fieri*. Yet my axiome is good in this present demonstration, since the thunder dependes on this grossenese of the air, not only in its *fieri*, but even in its *esse* and *conservari*. But weill yeell say, let it be so, but what influence has the ringing of the bells to dissipat this grosseness: even wery much: for the sound and noice certainly is not a thing immateriall; ergo it most be corporeall: since theirfor wt the consent of the papists themselves *duo corpora non possunt se penetrare aut esse in eodem loco naturaliter*, its consequentia that the sound of the bells as it passes thorow the circumambient air to come to our ears and to pass thorow all the places wheir it extends its noice makes place for it selfe by making the air yeeld that stands in its way; whence it rarifies and purifies the air and by consequence disipates the crassities of the air, which occasions the thunder.

That the noice thats conveyed to our ears is corporeall and material be it of bels or of canons is beyond controversy, since *sonus* is *obiectum sensûs corpori, ut auditus: at obiectum rei corporae oportet esse corporeum: cum incorporea sub sensibus naturaliter non cadunt*. I adde *naturaliter*, because I know *super naturaliter in beatificâ visione Deus quodammodo cadet sub sensibus ut glorificatus*, according to that of Jobs with thir same wery eyes sall I see my Redeimer: yea not only is *sonus quid materiale*, but further something much more grossely material then the objects of the rest of the senses, as for instance in the discharging of a canon being a distance looking on we would think it gives fire long before it gives the crack, tho in wery truth they be both in the same instant. The reason then whey we sie the fire before we hear the crack is because the *species Visibiles* that carries the fire to our eyes, tho material are exceeding spirituall and subtill and are for that soon conveyed to our sight: when the *Species Audibiles* being more gross takes a pittie tyme to peragate and passe over that distance that is

betuixt us and the canon, or they can rendre them selves to the organ of our hearing.

But let us returne, we are informed that in Italy, wheir thunders are bothe more frequent and more dangerous then heir, they are wery carefull not only to cause ring all their bells, but also to shoot of their greatest cannons and peices of ordonnances and that to the effect mentioned. I am not ignorant but the Papists feignes and attributes a kind of wertue to the ringing of bells for the chassing away of all evill spirits if any place be hanted or frequented wt them. Yet this reason cannot have roome in our case, since ther are few so ignorant of the natural causes of thunder as to impute it to the raging of ill spirits in the air, tho the Mr. of Ogilvy at Orleans, who very wilfully whiles would maintain things he could not maintain, would not hear that a natural cause could be given of the thunder, but would impute it to evill spirits. I do not deny but the Devils wt Gods permission may occasion thunders and other tempests in the air, but what I aime at is this, they never occasion it so, but they make use of natural means; for who is ignorant but the Meteorologists gives and assignes all the 4 causes of it its efficient, its materiall, its formall and its finall.

I cannot forget the effect I have sein the thunder produce in the papists. When they hear a clap coming they all wery religiously signe theyr forfronts and their breast wt the signe of the cross, in the wertue of which they are confident that clap can do them no scaith. Some we have sein run to their beads and their knees and mumble over their prayers, others away to the church and doune before the Altar and blaither anything that comes in their cheek. They have no thunders in the winter.

Discoursing of the commodities of sundry nations transported to France, their ordinar expression is, that they are beholden to Scotland for nothing but its herrings, which they count a wery grosse fish no wayes royall, as

they speak, thats, not for a kings table. As for linnen, cloath and other commodities the kingdome affords, we have litle more of them then serves our oune necessity.

I was 5 moneth in France before I saw a boyled or roasted egge. Their mouton is neither so great nor so good heir as its at home. The reason of which may be the litle roome they leive for pasturage in the most parts of France. They buy a leg heir for 8 souse, whiles 10 souse.

On the 20 of August came about St. Bernard, Abbot of Clarevill,[126] his day, who founded the order of the Foullions[127] or Bernardines, whence we went that afternoon to their Convent and heard one of the order preach his panygyrick, but so constupatly that the auditory seweral tymes had much ado to keip themselves from laughing.

[126] Clairvaux.

[127] See p. 47, note.

On the 24 of the samen ditto was kept the Aposle St. Bartholemewes day: the morrow, 25, St. Lowis, king of France, his day, a great feste, and in that city the festivall day of the marchands (for each calling hes its particular festivall day: as the taylors theirs, the sutors theirs, the websters thers, and so furth). Every trade as their day comes about makes a sort of civil procession thorow all the streets of the toune. Instead of carrieng crosses and crucifixes, according to the custome of the place, they carry, and that on the shoulders of 4 of the principal of the trade, a great farle of bread, seiming to differ nothing from the great bunes we use to bake wt currants all busked wt the fleurs that the season of the year affordes, and give in winter then wt any herbe to be found at the tyme; and this wt a sort of pomp, 4 or 5 drummers going before and as many pipers playing; the body of the trade coming behind. To returne, tho this day was the feste of

the marchands, yet I observed they used not the ceremomy before specified, looking on it as dishonorable and below them.

This day we went to the Jesuits Church and heard one of the learnedest of the Augustinians preach, but tediously. The nixt feste was the 8 of Septembre, *Nativité de nostre Dame*. On which I went and heard our Comoedian the Jesuit preach hir panegyrick and his oune Valedictory Sermon (for they preach 12 moneth about, and he had ended his tower[128]). He would have had us beleiving that she was cleansed from the very womb from that wery sin which all others are born wt, that at the moment of hir conception she receaved a immense degrie of grace infused in her. If he ware to draw the Horoscope of all others that are born he would decipher it thus, thou sal be born to misery, angoiss, trouble and vexation of spirit, which, on they wery first entering into this walley of tears, because thou cannot tell it wt they tongue thou sal signify by thy weiping. But if I ware, sayes he, to cast our charming Ladies Horoscope I would have ascertained then, that she was born for the exaltation of many, that she [was] born to bear the only sone of God, etc.

[128] Tour, turn

The sone he brought in as the embleme of Justice ever minding his father of his bloody death and sufferings, to the effect that he take vengeance for it even on thess that crucifies him afresh. The mother he brought on the stage as the embleme of mercy, crying imperiously, *jure matris*, I inhibite your justice, I explode your rigor, I discharge your severity. Let mercy alone triumph. Surely if this be not blasphemy I know not whats blasphemie. To make Christ only Justice fights diamettrally[129] wt the Aposle John, If any man hath sinned he has a Advocat with the father. Christ the righteous, he sayes, is not Christ minding his father continually of this passion; its true, but whey; to incite God to wrath, sayes he. O wicked inference, horrid to

come out of the mouth of any Christian save only a Jesuites. Does not the Scripture language cut thy throat, O prophane, which teaches us that Christ offereth up to his father his sufferings as a propitiatory sacrifice; and consequently to appease, not to irritate.

[129] Diametrically. The word is indistinctly written.

His inference at length was thus: since the business is thus then, Messieurs, Mesdames, mon cher Auditoire, yeel do weill in all occassion to make your address to the Virgin, to invock hir, yea definitively I assert that if any of you have any lawfull request if yeel but pray 30 dayes together once every day to the Virgin ye sal wtout faill obtain what you desire. On whilk decision I suppose a man love infinitely a woman who is most averse from him, if he follow this rule he sall obtaine hir. But who sies not except thess that are voluntary blind whow rash, inconsiderat, and illgrounded thir decisions are, and principally that of invocking the Virgin, since wtout doubt its a injury to Christ, whom we beleive following the Scripture to be the only one Mediator betwixt God and Man. Also, I find Christ calling us to come to him, but never to his mother or to Peter or Paull.

It will not be a unreasonable drollery whiles to counterfit our Regent, Mr. James,[130] if it be weill tyled, whow when he would have sein any of his scollers playing the Rogue he would take them asyde and fall to to admonish them thus. I think you have forgot ye are *sub ferula*, under the rod, ye most know that Im your Master not only to instruct you but to chastize you, and wt a ton[131] do ye ever think for to make a man, Sir; no, I promise you no. [He killed Kincairnes father by boyling the antimonian cup, which ought only to seep in.][132] *Inter bonos bene agier*. [133] When any plead a prate[134] and all denied it, I know the man, yet *neminem nominabo*, Honest Cicero hes learned me that lesson.

[130] I have not discovered who Mr. James was.

[131] 'Wt a ton' is possibly 'with a tone,' i.e. raising his voice.

[132] Interlined.

[133] *Agier* for *agere*.

[134] Played a trick.

We cannot forgett also a note of a ministers (called Mr. Rob. Vedderburne) preaching related me by Robert Scot which happened besyde them. God will even come over the hil at the back of the kirk their, and cry wt a hy voice, Angel of the church of Maln[moo]nsy, compeir; than Ile answer, Lord, behold thy servant what hes thou to say to him. Then God wil say, Wheir are the souls thou hest won by your ministry heir thir 17 years? He no wal what to answer to this, for, Sirs, I cannot promise God one of your souls: yet Ile say, behold my own Soul and my crooked Bessies (this was his daughter), and wil not this be a sad matter. Yet this was not so ill as Mr. John Elies note of a Minister was, who prayed for the success of the Kings navy both by sea and be land.

The very beggers in France may teach folk thrift. Ye sall find verie few women beggers (except some that are ether not working stockings, or very old and weak) who wants[135] their rock in their bosome, spinning very busily as they walk in the streets.

[135] wants = have not.

The French, notwtstanding all their civility, are horridly and furiously addicted to the cheating of strangers. If they know a man to be a stranger or they cause him not pay the double of what they sell it to others for, theyl rather not sell it at all, which whither it comes from a malicious humour or a greedy I cannot determine, yet I'm sure they play the fooll in it, for tho they think a stranger wil readily give them all they demand, or if he mint to go away that he'el come again; yet they are whiles mistaken. Many instances we could give of it in our oune experience, al whilk we sall bury at this tyme, mentioning only one of Patrick Humes, who the vinter he was at Poictiers, chancing to get the cold, went to buy some sugar candy.

Demanding what they sold the unce of it for, they demanded 18 souse, at last came to 15, would not bat a bottle;[136] wheirupon thinking it over dear he would have none of it, but coming back to Mr. Alex'rs he sent furth his man, directing him to that same wery chop, who brought him in that for 3 souse which they would not give him under 15. That story may pass in the company of one that understandes French, of the daughter who was sitting wt her mother at the fire, wt a great sigh cried, '*O que je foutcrois*. The mother spearing what sayes thou, she replied readily, *O que je souperois*.

[136] Bate a bodle.

On September 12 arrived heir 2 Englishmen from Orleans, who brought us large commendations from Mr. Ogilvie their, who desiring to sy the toune, I took them first up to the steeple of the place, which being both situat on a eminence and also hy of it selfe gave us a clear survey of the whole toune. We discovered a great heap of wacuities filled up wt gardens and wines, and the city seimed to us like a round hill, the top of it and all the sydes being filled wt houses. And to our wiew it seimed not to have many mo houses then what we had discovered at Orleans, for their we thought we saw heir one and their one dispersed. At Orleans we would think they lay all in a heap (lump).[137] From thence, not desiring but that they sould find the Scots as civil and obligding as any, we was at the paines to take them first to the church of Nostre Dame la grande, on the wall of which that regards the place standes the statue of the Empereur Constantine, *a cheval*, wt a sword in his hand. From thence to Ste. Radegondes, wheir we showed them hir *tombeau*; from that to St. Croix, wheir we showed them the *empressa* of Christs foot, of which we spake already; and from that to St. Peters, which we looked all on as a very large church, being 50 paces broad.

[137] Interlined.

In the afternoon we went to the Church of St. Hilaire, wheir at a distance we discovered the Scots walk; so called because when the Englishes were beseiging the toune a Regiment of Scotsmen who ware aiding the French got that syde of the toune to garde and defend, who on some onset behaving themselves gallantly the Captain got that great plot of ground which goes now under that name gifted him by the toune, who after mortified to a nunnery neir hand, who at present are in possession of it. The church we fand to smell every way of antiquity.

Heir we saw first that miraculous stone (of which we also brought away some relicts) which if not touched has no smell, if rubed hard or stricken wt a key or any other thing, casteth a most pestilentious, intollerable smell, which we could not indure. We tried the thing and fand it so. The occasion and cause of this they relate wariously. Some sayes that the stone was a sepulchre stone, and under it was buried a wicked man that had led a ill life, whos body the Dewill came on a tyme and carried away; whence the stone ever stinks in that maner since. Others say that when the Church was a bigging, the Dewill appeared to one of the maisons, in the signe [shape] [138] of a mullet and troubled him; wheirupon the maison complained to St. Hilaire the Bisshop, who watched the nixt day wt the maison, and the Dewill appearing in that shape he caused take him and yoke him in a cart to draw stones to the bigging of the church. They gott him to draw patiently that great stone which we saw and which stinks so, but he got away and would draw no more.

[138] Interlined.

Nixt we saw St. Hilaire's *berceau*, wheirin they report he lay, a great long peice of wood hollowed (for it wil hold a man and I had the curiosité to lay in it a while) halfe filled wt straw that they may lay the softer. To this the blinded papists attributes the vertue of recovering madmen or those that are

besydes themselves to their right wites, if they lay in it 9 dayes and 9 nights wt their handes bound, a priest saying a masse for them once every day. And indeed according to the beleife of this place it hath bein oft verified. The fellow that hes a care of thess that are brought hither told us of a Mademoisselle who was extraordinarily distracted and who was fully recovered by this means. Another of a gentleman who had gone mad for love to a gentlewoman whom he could not obtaine, and who being brought their in that tyme recovered his right wits as weill as ever he had them in his dayes. Its commonly called the *berceau de fols*; so that heir in their flitting they cannot anger or affront one another worse then to cast up that they most be rockt in St. Hilaires cradle, since its none but fools or madmen that are used so.

The greatest man in the province of Poictou is the governour, who in all things representes the king their, save only that he hath not the power to pardon offenders or guilty persones. Tho a man of wast estat, to wit of 300,000 livres a year, yet he keips sick a low saile[139] that he wil not spend the thrid of his rent a year, only a pittty garde or 7 or 8 persons on foot going before his coach; and 4 or 5 lacquais behind; yea he sells vin, which heir is thought no disparadgement to no peir of France, since theirs a certain tym of the year that the King himselfe professes to sell win, and for that effect he causes at the Louwre hing out a bunch of ivy, the symbol of vin to be sold.

[139] Lives so quietly.

The King also playes notably weill on the drum, especially the keetle drumes, thinking it no disparagdement when he was a boy to go thorow Paris whils playing on the drum, whiles sounding the trumpet, that his subjects may sie whow weill hes wersed in all these warlike, brave, martiall

exercises. The invention of the keetle drume we have from the Germans who makes great use of it.

The father of this present King also, Lowis the 13, could exactly frame and make a gun, and much more a pistol, with all the appertenances of it, as also canons wt all other sort of Artillerie; for he was a great engineer.

There are amongs the French nobility some great deall richer then any subject of our Kings; for the greatest subject of the King of Englands is the Duc of Ormond, or the Earle of Northumberland, nether of which tho hath above 30,000 pounds sterling, which make some 300,000 livres in french money, which is ordinar for a peir in France. The last of which, to wit, my Lord Northumberland, by reason of that great power and influence he hath in the north of England, his oune country, the parliament of England of old hath found it not a miss to discharge him the ever going their, and that for the avoiding and eviting of insurrectiones which, if he ware amongs them, he could at his pleasure raise. Surely this restraint neids not be tedious to him since he is confined in a beautiful prison, to wit, London; yea he may go thorow all the world save only Northumberland, he may come to Scotland whilkes benorth Northumberland be sea.[140] It may be it might be telling Scotland that by sick another act they layd a constraint on that house of Huntly, the Cock of the north. If so, the French Jesuits sould not have such raison to boast (as we have heard them), and the papists sould not have so great footing in the north as they have.

[140] I have not traced the authority for this statement.

We most not forgett the drolleries we have had wt our host Mr. Daillé when I would have heard him at the *gardé robe*, to sport my selfe whiles, I would have come up upon him or he had bein weill begun and prayed him to make hast by reason I was exceedingly straitned when they would have bein no such thing, wheiron he would have raisen of the stooll or he had

bein halfe done and up wt his breecks, it may be whiles wt something in them.

In our soups, which we got once every day, and which we have descryved already, such was Madames frugality that the one halfe of it she usually made of whiter bread, and that was turned to my syde of the board, the other halfe or a better part she made of the braner, like our rye loaves, and that was for hir and hir husband.

The bread ordinarily used heir they bake it in the forme of our great cheeses, some of them 12 pence, others 10 souse, others for 8. Thess for 10 souse are as big again as our 6 penie loaves, and some of them as fine.

There comes no vine out of France to forreine country, save that which they brimstone a litle, other wise it could not keip on the sea, but it would spoil. Its true the wine works much of it out againe, yet this makes that wine much more unwholsome and heady then that we drink in the country wheir it growes at hand. We have very strick laws against the adulterating of wines, and I have heard the English confess that they wished they had the like, yet the most do this for keiping of it; yea their hardly wine in any cabaret of Paris that is otherwise.

Hearing a bel of some convent ringing and roning on a tyme in that same very faschion that we beginne our great or last bel to the preaching, I demanding what it meint, they told me it was for some person that was expiring, and that they cailed it *l'agonie*. That the custome was that any who ware at the point of death and neir departing they cause send to any religious house they please, not forgetting money, to ring a Agonie that all that hears, knowing what it means, to wit, that a brother or sister is departing, may help them wt their prayers, since then they may be steadable, which surely seimes to be wery laudable, and it nay be not amiss that it ware in custome wt us. The Church of England hath it, and on the

ringing any people that are weill disposed they assemble themselves in the Church to pray. In France also they ring upon the death of any person to show the hearers, called *le trespas*, that some persone is dead. The same they have in England, wt which we was beguiled that night we lay at Anick, for about 2 howers of the morning the toun bel roning on the death of one Richard Charleton, I taking it to be the 5 howers bel we rose in hast, on wt our cloaths, and so got no more sleip that night.

Their was nothing we could render Mr. Daillé pensive and melancholick so soon wt as to fall in discourse of Mr. Douglas. He hes told me his mind of him severall tymes, that he ever had a evill opinion of him; that he never heard him pray in his tyme; all 16 month he was wt him, he was not 3 or 4 tymes at Quatre Piquet [the church],[141] and when he went it was to mock; that he was a violent, passionate man; that he spak disdainefully of all persones; that he took the place of all the other Scotsmen, that he had no religion, wt a 100 sick like.

[141] Interlined.

Its in wery great use heir for the bridegroomes to give rich gifts to the brides, especially amongs thess of condition; as a purse wt a 100 pistols in it, and this she may dispose on as she pleaseth to put hir selfe bravely in the fashion against hir marriage. We have heard of a conseillers sone in Poictiers who gave in a burse 10000 livres in gold. Yet I am of the mind that he would not have bein content if she had wared all this on hir marriage cloaths and other things concerning it, as on bracelets and rings. The parents also of the parties usually gives the new married folk gifts as rich plenishing, silver work, and sicklike.

In parties appealls heir from a inferior to a superior, if it appear that they ware justly condemned, and that they have wrongously and rashly appealed, they condeime them unto a fine called heir Amende, which the Judge

temperes according to the ability of the persones and nature of the businesse: the fine its converted ether to the use of the poor or the repairing of the palais.

The Jurisdiction of thess they call Consuls in France is to decide controversies arising betuixt marchand and marchand. Their power is such that their sentence is wtout appeall, and they may ordaine him whom they find in the wrong to execute the samen wtin the space of 24 howers, which give they feill to do they may incarcerate them. Thus J. Ogilvie at Orleans.

Even the wery papists heir punisheth greivously the sine of blasphemy and horrid swearing. Mr. Daillé saw him selfe at Bordeaux a procureurs clerk for his incorrigibleness in his horrid swearing after many reproofes get his tongue boored thorow wt a hot iron.

The present bischop of Poictiers is a reasonable, learned man, they say. On a tyme a preist came to gett collation from him, the bischop, according to the custome, demanding of him if he know Latin, if he had learned his Rhetorick, read his philosophy, studied the scooll Divinity and the Canon Law, etc., the preist replied *quau copois*, [142], which in the Dialect of bas Poictou (which differes from that they speak in Gascoigne, from that in Limosin, from that in Bretagne, tho all 4 be but bastard French) signifies *une peu*. The bischop thought it a very doulld [143] answer, and that he bit to be but a ignorant fellow. He begines to try him on some of them, but try him wheir he will he findes him better wersed then himselfe. Thus he dismissed him wt a ample commendation; and severall preists, efter hearing of this, when he demanded if they had studied sick and sick things, they ware sure to reply *cacopois*. He never examined them further, crying, go your wayes, go your wayes, they that answers *cacopois* are weill qualified.

[142] Perhaps *quelque peu*.

[143] Stupid, from doule, a fool.

We have sein sewerall English Books translated in French, as the Practise of Piety, the late kings [Greek: eikon basilikae], Sidneyes Arcadia, wt others.

We have sein the plume whilk they dry and make the plumdamy[144] of.

[144] Dried plum, prune.

The habit of the Carmelites is just opposite to that of the Jacobines,[145] who goe wt a long white robe beneath and a black above. The Carmes wt a black beneath and a white above. The Augustines are all in black, the Fullions all in white.

[145] Jacobins, Dominicans, so called from the church of St. Jacques in

Paris, granted to the order, near which they built their convent.

The convent gave its name to the club of the Jacobins at the French Revolution, which had its quarters there.

Its very rare to sy any of the women religious, they are so kept up, yet on a tyme as I was standing wt some others heir in the mouth of a litle lane their came furth 2 nunnes, in the name of the rest, wt a litle box demanding our charity. Each of us gave them something: the one of them was not a lass of 20 years.

Mr. Daillé loves fisch dearly, and generally, I observe, that amongs 10 Frenchmen their sall be 9 that wil præfer fisch to flech, and thinks the one much more delicat to the pallate then the other. The fisch they make greatest cont of are that they call the sardine, which seimes to be our sandell, and which we saw first at Saumur, and that they call *le solle*, which differs not

from our fluck[146] but seimes to be the same. The French termes it *le perdrix de la mer*, the patridge of the sea, because as the pertridge is the most delicious of birds, so it of fisches. Mr. Daillé and his wife perceaving that we cared not for any sort of fisches, after they would not have fisches once in the moneth.

[146] Flounder.

We cannot forget a story or 2 we have heard of Capuchines. On a tyme as a Capuchin, as he was travelling to a certain village a little about a dayes journey from Poitiers, he rencontrd a gentlemen who was going to the same place, whence they went on thegither. On their way they came to a little brook, over which their was no dry passage, and which would take a man mid leg. The Capuchin could easily overcome this difficulty for, being bare legged, he had no more ado but to truce up his gowen and pass over; the gentleman could not wt such ease, whence the Capucyn offers to carry him over on his back. When he was in the mides of the burn the Capucyn demanded him if he had any mony on him. The man, thinking to gratify the Capucyn, replied that he had as much as would bear both their charges. Wheiron the Capucyn replied, If so, then, Sir, I can carry you no further, for by the institution of our order I can carry no mony, and wt that he did let him fall wt a plasch in the mides of the burn. *Quoeritur*, whither he would have spleeted[147] on the regular obedience of their order if he carried the man having mony on him wholly throw the water.

[147] Split, spleeted on, departed from.

At another tyme a Capucyn travelling all alone fand a pistoll laying on the way. On which arose a conflict betuixt the flesh and the spirit, that same man as a Capuchin and as another man. On the one hand he reasoned that for him to take it up it would be a mortell sine; on the other hand, that to leive it was a folly, since their was nobody their to testify against him.

Yet he left it, and as he was a litle way from it the flesh prevailed, he returned and took it up, but be a miracle it turned to a serpent in his hand and bit him.

Enquiring on a tyme at Madame Daillé and others whow the murders perpetrate by that fellow that lived at the port St. Lazare came to be discovered, I was informed that after he had committed these villanies on marchands and others for the space of 10 years and above, the house began to be hanted wt apparitions and spirits, whence be thought it was tyme for him to quatte it, so that he sould it for litle thing, and retired to the country himselfe. He that had bought the house amongs others reformatiōs he was making on it, he was causing lay a underseller wt stone, whilk while they are digging to do, they find dead bodies, which breeds suspicion of the truthe, wheirupon they apprehend him who, after a fainte deniall, confesses it; and as they are carrieing him to Paris to receave condigne punishment, they not garding him weell, some sayes he put handes in himselfe, others that his complices in the crime, fearing that he might discover them, to prevent it they layd wait for him and made him away by the way, for dead folk speaks none.

On the 22 of Septembre 1665 parted from this for Paris 4 of our society, Mr. Patrick, David and Alex'r Humes, wt Colinton. We 3 that ware left behind hired horses and put them the lenth of Bonnévette, 3 leagues from Poictiers (it was built by admiral Chabot[148] in Francis the firsts time, and he is designed in the story Admirall de Bonnivette). By this we bothe gratified our commorades and stanchd our oune curiosity we had to sie that house. It's its fatality to stand unfinished; by reason of whilk together wt its lack of furniture it infinitly comes short of Richelieu. It may be it may yeeld nothing to it in its bastiments, for its all built of a brave stone, veill cut, which gives a lustre to the exterior. Yet we discovered the building many wayes irregular, as in its chimlies, 4 on the one side and but 3 on the

other. That same irregularity was to found in the vindows. In that which theirs up of it theirs roome to lodge a king and his palace. Al the chambres are dismantled, wtout plenishing save only one in which we fand som wery weill done pictures, as the present Kings wt the Queens, Cardinal Mazarin's (who was a Sicilian, a hatmakers sone) and others. The thing we most noticed heir was a magnifick stair or trumpket most curiously done, and wt a great deall of artifice, wt great steps of cut stone, the lenth of which I measured and fand 20 foot. I saw also a very pretty spatious hall, which made us notice it, and particularly Colinton, who told me that Colinton hous had not a hall that was worth, whence he would take the pattern of that. We fand it thre score 12 foot long, and iust the halfe of it broad, thats to say 36. Above the chimly of the roome are written in a large broad the 10 commandements.

[148] Philippe de Chabot, amiral de Brion. Guillaume Gouffier, amiral da Bonnivet, was another of Francis I's admirals.

Heir we bade adieu to our commorads, they forward to Micbo that night, 2 leagues beyond Bonnevette, to morrow being to dine at Richelieu and lay at Loudun; we back to Poictiers.

Its like that we on their intreaties had gone forward to Richelieu if we had bein weill monted; but seing us all 3 so ill monted it minded us of that profane, debauched beschop Lesly, who the last tyme the bishops ware in Scotland (when Spootswood was Archbischoep) was bischoep of the Isles. He on a tyme riding with the King from Stirveling to Edinburgh he was wery ill monted, so that he did nothing but curse wtin him selfe all the way. A gentleman of the company coming up to him, and seing him wt a wery discontented, ill looking countenance demanded, Whow is it, whow goes it wt you, my Lord? He answered, Was not the Dewill a fooll man, was he not a fooll? The other demanding wheirin, he replied, If he had but sett Job on

the horse I am on, he had cursed God to his face. Let any man read his thoughts from that.

The richness of France is not much to be wondred at, since to lay asyde the great cities wt their trafficks, as Tours in silkes. Bordeaux wt Holland wares of all sorts, Marseilles wt all that the Levant affordes, etc., there is not such a pitty city in France which hath not its propre traffick as Partenay[149] in its stuffes, Châtelleraut in its oil of olives, its plumdamies and other commodities which, by its river of Vienne, it impartes to all places that standes on the Loier.

[149] A town in Poitou.

In France heir they know not that distinction our Civil Law makes betuixt Tutors and Curators, for they call all curators, of which tho they have a distinction, which agrees weill wt the Civil Law, for these that are given to on wtin the age of 14 they call *curateurs au persones et biens*, which are really the Justinianean tutors who are given *principaliter ad tuendam personam pupilli* and *consequenter tantum res*; thes that [are] given to them that are past their 14, but wtin their 25, they call *curateurs du causes*, consequentially to that, *quod curatores certoe rei vel causoe dari possunt*, and wtout the aucturity of thir the minors can do nothing, which tends any wayes to. the deteriorating their estat, as selling, woodsetting or any wayes alienating.

What concerns the consent of parents in the marriage of their children, the French law ordaines that a man wtin the age of 28, a woman wtin 25 shall not have the power of disposing themselves in marriage wtout the consent of their parents. If they be past this age, and their parents wil not yet dispose of them, then and in that case at the instance of the Judge, and his aucturity interveening they may marry tho their parents oppose.

When the friends of a pupil or minor meits to choose him a curator, by the law of France they are responsible to the pupill if ether the party nominat be unfitting, or behave himself fraudulently and do damage, and be found to be not *solvendo*.

At Bourges in Berry theirs no church of the religion, since, notwtstanding its a considerable toun, their are none of the religion their, but one family, consisting of a old woman and hir 2 daughters, both whores; the one of them on hir deathbed turned Catholick when Mr. Grahame was their.

Its a very pleasant place they say, situate on a river just like the Clin heir; they call it the Endre.

Heir taught the renouned Cuiacius,[150] whom they call their yet[151] but a drunken fellow. His daughter was the arrantest whore in Bourges. Its not above 4 or 5 years since she died, whence I coniecture she might be comed to good years or she died.

[150] Jacques Cujas, eminent jurist, 1522-1590.

[151] i.e. 'still speak of there as.'

This university is famous for many others learned men, as Douell,[152] Hotoman,[153] Duarene,[154] Vulteius, etc.

[152] Possibly Douat, author of *Une centaines d'anagrammes*.
Paris, 1647.

[153] Francois Hotman, celebrated jurist, 1524-1590.

[154] Francois Duaren, jurist, 1509-1559.

The posterity of the poor Waldenses are to be seen still in Piedmont, Merindol, and the rest of Savoy, as also of the Albigenses in Carcasson, Beziers and other places of Narbon. They are never 10 years in quietness and ease without some persecution stirred against, whence they are so stripped of all their goods and being that they are necessitate to implore alms of the protestant churches of France. About 12 years ago a contribution was gathered for them, which amounted to near 400,000 livres, which was not ill.

The principal traffick of Geneva is in all goldsmiths work. The best *montres* of France are made there, so that in all places of France they demand Geneva *montres*, and strangers if they come to Geneva they buy usually 3 or 4 to distribute amongs their friends when they are at home.

In the more southern provinces of France to my admiration I found they had and eaten upright^[155] cherries 2 times of the year, end of May and beginning of June, a little after which they are ordinary with ourselves, and also again in Octobre. On a day at the beginning of that month at dinner Mr. Daillé proffered to make me eat of novelties, whereon he demanded me what fruits I had eaten in the beginning of the year. I replied I had eaten asparagus, cherries and strawberries. You shall eat of cherries yet, said he, and with that we got a plate full of parfait cherries, though they had not so natural a taste as the others, by reason of the cold season, and the want of warmth which the others enjoy. They had been but gathered that same day; they are a sort of bigarade;^[156] when the others are ripe they are not yet flourished.

[155] Perhaps standard. Compare 'upright bur,' Jamieson's *Dict.*

[156] Bigarade is a bitter orange. This may mean a bitter cherry.

The most usual names that women are baptized with here be Elizabeth, Radegonde, Susanne, Marguerite and Madeline. The familiar denomination

they give the Elizabeths is babie, thus they call J. Ogilvies daughter at Orleans; that for Marguerite is Gotton, thus they call Madame Daillé and hir litle daughter. Thess of the religion, usually gives ther daughters names out of the bible, as Sarah, Rachel, Leah, etc. They have also a way of deducing women names out of the mens, as from Charles, Charlotte, from Lowis, Lowisse, from Paul, Pauline, from Jean, Jeane. Thir be much more frequent amongs the baser sort then the gentility, just as it is wt the names of Bessie, Barbary, Alison and others wt us.

A camel or Dromedary would be as much gazed on in France for strangers as they would be in Scotland. In Italy they have some, but few, for they are properly Asiatick wares, doing as much service to the Persian, Arabian and others Oriental nations acknowledging the great Tartar chain as the silly, dul asse and the strong, robust mule does to the French. The camel, according to report indeniable, because a tall, hy beast it most couch and lay doune on its forward feet to receave its burden, which if it find to heavy it wil not stir til they ease it of some of it; if it find it portable it recoveres its feet immediatly.

There comes severall Jewes to France, especially as professing physick, in which usually they are profoundly skilled. Mr. Daillé know on that turned protestant at Loudun. Another, a very learned man, who turned Catholik at Montpeliers, who a year after observing a great nombre of people that lived very devoutly and honestly, that ioined not wt the Church of Rome, having informed himself of the protestants beleife, he became of the Religion, publishing a manifesto or Apology wheirin he professes the main thing whey he quites the Catholick religion for is because he can never liberate their tennet wheirby they teach that we most really and carnally eat our God in the Sacrament, from uniustice, absurdity and implication.[157]

[157] Implication perhaps means confusion of ideas.

The Laws of Spaine, as also of Portugal, strikes wery sore against Jewes that will not turne Christians, to wit, to burning them quick, which hath bein practicate sewerall tymes. On the other hand a Jew thats Christian if at Constantinople he is wery fair to be brunt also. Whence may be read Gods heavy judgement following that cursed nation. Yet Holland, that sink of all religions, permits them their synagogues and the publick excercise of their religion. They rigorously observe their sabath, our Saturdy, so that they make ready no meat on that day. If the wind sould blow of their hat they almost judge it a sin and a breach of the sabath to follow it and take it up. Their was a Jew wt us in the 1662 year of God that professed at least to turne Christian, and communicated in the Abby Church.

We may deservedly say, *omnia sunt venalia Gallis*, for what art their not but its to be sold publickly. Not so much as rosted aples ready drest, *chastans*,^[158] *poirs*, rosted geese cut unto its percels, but they are crieng publicklye, and really I looked upon it as a wery good custome, for he that ether cannot or wil not buy a whole goose he'el buy it may be a leg.

[158] Chestnuts.

The prices of their meats waries according to the tymes of the year. The ordinars of some we have already mentioned; for a capon they wil get whiles 20 sous, whiles but 14 or 12.

Theirs a fellow also that goes wt a barrel of vinegar on his back, crieng it thorow the toune; another in that same posture fresch oil, others moustard, others wt a maille^[159] to cleave wood, also poor women wt their asses loadened wt 2 barrels of water crying, *Il y a l'eau fresche*. At Paris its fellows that carryes 2 buckets tied to a ordinar punchion gir,^[160] wtin which they march crieng *de l'eau*, which seimed a litle strange to us at first, we not crying it so at home. Also theirs to be heard women wt a great web of linnen on their shoulder, a el^[161] wand in their hand, crieng their fine

toile. Theirs also poor fellows that goes up and doune wt their hurle barrows in which they carrie their sharpening stone to sharp axes or gullies to any bodie that employes him.

[159] Mell, mallet, beetle.

[160] Hoop.

[161] An el.

Their came a Charlatan or Mountebanck to Poictiers the Septembre we was their, whose foolies we went whiles to sie. The most part of the French Charletanes and Drogists when they come to a toune to gain that he get them themselves[162] a better name, and that they may let the people sie that they are not cheaters as the world termes them, they go to all the Phisitians, Apothecaries and Chiurgions of the toune and proferes to drink any poison that they like to mix him, since he hath a antidote against any poison whatsoever.

[162] The meaning is, with the object of getting for themselves.

A mountebank at Montpeliers having made this overture, the potingers[163] most unnaturally and wickedly made him a poisonable potion stuffed wt sulfre, quick silver, a vicked thing they cal *l'eau forte*, and diverse others burning corrasive ingredients to drink. He being confident in his antidote, he would drink it and apply his antidote in the view of all the people upon the stage. He had not weill drunk it when by the strenth of the ingredients he sunk all most dead upon the scalfold or stage; he suddenly made his recourse to his antidote which he had in his hand; but all would not do, or halfe a hower it bereaved him of his life.

[163] Apothecaries.

Their are also some of them that by litle and litle assueses themselves to the drinking of poison, so that at lenth by a habit they are able to take a considerable draught wt out doing themselves harme. Historians reportes this also to have bein practicate by Mithridates, King of Persia [Parthia]. [164]

[164] Interlined.

Upon the founding of the Jesuits Colledge at la Fleche on made thir 2 very quick lines:

Arcum dola dedit patribus Gallique sagittam,
Quis funem autem quem meruere dabit.[165]

[165] *Dola* is a mistake for *dona*. The pentameter does not scan. It might be emended, *Dic mihi quis funem*.

In many places of Germany their growes very good wines, in some none at all. The Rhenish wine which growes on the renouned Rhein, on which standes so many brave tounes, is weill enough knowen. They sometymes sell their wine by the weight as the livre or pound, etc., which may seime as strange as the cherries 2 tymes a year in France. Thus they ar necessitate to do in the winter, when it freizes so that they most break it wt great mattocks and axes, and sell it in the faschion we have named.

Adultery, especially in the women, is wery vigorously punished in many places of France. In Poictou, as Mr. Daillé informed, they ignominously drag them after the taile of a mule thorow the streits, the hangman convoying them, then they sett them in the most publick part of the toun bound be a stake, wt their hands behind their backs, to be a obiect of mockery ther to all that pleases.

They that commits any pittie roobery or theifte are whipt thorow the toune and stigmatized wt a hote iron marked wt the *flower de lis* on the cheik or the shoulder. If any be taken after in that fault having the mark, theirs no mercy for them under hanging.

Every province almost hath its sundry manner of torturing persones suspected for murder or even great crimes to extort from them a confession of the truth. At Paris the hangman takes a serviet, or whiles a wool cloath (which I remember Cleark in his Martyrologie discovering the Spanish Inquisition also mentioned), which he thrustes doune the throat of him as far as his wery heart, keiping to himselfe a grip of one end of the cloath, then zest wt violence pules furth the cloath al ful of blood, which cannot be but accompanied wt paine. Thus does the *burreau* ay til he confesses. In Poictou the manner is wt bords of timber whilk they fasten as close as possibly can be both to the outsyde and insyde of his leg, then in betuixt the leg and the timber they caw in great wedges[166] from the knee doune to the wery foot, and that both in the outsyde and insyde, which so crusheth the leg that it makes it as thin and as broad as the loafe[167] of a mans hand. The blood ishues furth in great abondance. At Bourdeaux, the capital of Guienne, they have a boat full of oil, sulfre, pitch, resets, and other like combustible things, which they cause him draw on and hold it above a fire til his leg is almost all brunt to the bone, the sinews shrunk, his thigh also al stretched wt the flame.

[166] The torture of the boot was apparently new to Lauder, but from his later MSS., it appears to have been in use in Scotland.

[167] Loof, palm.

On a tyme we went to sie the charlatan at the Marcher Vieux, who took occasion to show the spectators some vipers he had in a box wt scalves[168] in it, as also to refute that tradition delivered by so many, of

the young vipers killing their mother in raving[169] her belly to win furth, and that wt the horrid peine she suffers in the bringing furth her young she dies, which also I have heard Mr. Douglas—preaching out of the last of the Acts about that Viper that in the Ile of Malta (wheir they are a great more dangerous then any wheir else) cleave to Pauls hand—affirme at least as a thing reported by naturalists, the etymon of the Greek word [Greek: hechidnae] seiming to make for this opinion, since it comes [Greek: apo ton echein taen odunaen][170] *a habendo dolorem*. Yet he hath demonstrated the falshood of that opinion: for he showed a black viper also spooted wt yellow about the lenth of a mans armes, about the grossenesse of a great inkhorne wholly shappen like a ell[171] save only its head wt its tongue, which was iust like a fork wt 2 teeth, wheir its poison mainly resydes, that had brought furth 2 young ones that same very day, which he showed us wt some life in them just like 2 blew, long wormes that are wrinkled; and notwtstanding the mother was on life and no apparence of any rupture in hir belly. To let us sie whow litle he cared for it he took hir and wrapt it that she might not reach him wt hir head, and put it in his mouth and held it a litle space wt his lipes; which tho the common people looked on as a great attempt, yet surely it was nothing, since their is no part of the Viper poisonnable save only its head and its guts. As for the flech of it, any man may eat it wtout hazard, for the same very charlatan promised that ere we left the toune, having decapitated and disbowelled it, he sould eat the body of it before all that pleased to look on, which he might easily do. For as litle as he showed himself to care for it, yet he having irritate and angred it, either by his brizing[172] it in his mouth or by his unattentive handling of it (for such is the nature of the Viper that tho its poison be a great deall more subtil, percing and penetrating, and consequently in some account more dangerous then that of the hideous coleuure or serpent, yet it wil not readily sting or bit except they be exasperate, when the others neids no incitations, but wil pershew a man if they sy him), when he was not taking heid, it

snatcht him by the finger, he hastily shakt it of on the stage and his finger fell a bleeding. He was not ordinarily moved at this accident, telling us that it might endanger the losse of his finger. He first scarified the flech that was about the wound, then he caused spread some theriac (one of the rarest contrepoisons, made mainly of the flech of the Viper) on a cloath which he applied to it. About a halfe hower after he looked to it in our presenc, and his finger was also raisen in blay[173] blisters. He said he would blood himselfe above a hower, to the end to reid himselfe of any blood already poisoned and infected, lest by that circulation that the blood makes thorow al the body of a man once of the 24 howers the blood infected sould communicate itselfe to much. Also he sayd that he had rather bein stung in the leg, the thigh, or many other parts of the body then the finger, by reason of the great abondance of nerves their, and the sympathy the rest of the body keips wt them, which renders the cure more difficile.

[168] Shelves.

[169] Riving, tearing.

[170] Mistake for [Greek: hodunaen]. The etymology is fanciful and incorrect.

[171] Eel.

[172] Squeezing.

[173] Livid.

This charlatan seimed to be very weill experimented. He had bein at Rome, which voyage is nothing in France, and thorow the best of France. The stone thats to be found in the head of the hie[174] toad is very

medicinal and of great use their. They call a toad grappeau; a frog grenouille.

[174] i.e. he.

The papists looks very much on the 7 sone for the curing of the cruels; [175] severall of the protestants look on it as superstition. They come out of the fardest nooks of Germany, as also out of Spain itselfe, to the King of France to be cured of this: who touches wt thir wordes, which our King æquivalently uses, tho he gives no peice of Gold as our King does, *c'est le roy qui vous touche, c'est Dieu qui vous guerisse*. He hath a set tyme of the year for the doing of it. The day before he prepares himself by fasting and praying that his touche may be the more effectuell. The French could give me no reason of it but lookt on it as a gift of God.

[175] Cruels, scrofula, king's evil. For the healing powers of the seventh son, compare Chambers's *Book of Days*, vol. i. p. 167; *Notes and Queries*, June 12, 1852.

We can not forget a witty answer of a young English nobleman who was going to travel thorow France and Italie, whom his friends feared exceedingly that he would change his Religion, because he mocked at Religion. They thought that King James admonition to him might do much to keip him constant, wheiron they prayed the King to speak to him. Yes I shall do that, quoth he. When he came to take his leave of the King, King James began to admonish him that he would not change his Religion, for amongs many other inconveniences he would so render himselfe incapable of serving his King and his country, and of bearing any office theirin. He quickly replied, I wonder of your Majesty who is so wise a man that ye sould speak so; for ther is no a man in all France or Italy that wil change wt me tho I would give him a 100,000 livres aboot.[176] The King was wery weill satisfied wt this, telling his freinds that he was not feared he would

change, but that he saw he would bring back all the Religion he carried
afield wt him.

[176] To boot.

At the Marcher Vieux beyond our expectation we saw one of the fellows
eat the Viper head and all. The master striped it as a man would do an elle,
and clasped it sicker wtin a inch of its neck. The fellow took the head of it
in his mouth and zest[177] in a instant bit it of its neck and over his throat
wt it, rubing his throat griveously for fear that it stake their. He had great
difficulty of getting it over, and wt the time it had bein in his mouth his
head swalled as big as 2 heads. The master immediatly took a glasse halfe
full of wine, in which he wrang the blood and bowells of the headlesse body
of the Viper and caused him drink it also, breaking the glasse in which he
drank it to peices on the stage, causing sweip all wery diligently away that it
might do no harme. Immediatly on the fellows drinking of it he had ready a
cup of contrepoison, which he caused him drink, then giving him a great
weighty cloak about his shoulders he sent him to keip him selfe warme
before a great fire. The reason of which was to contrepoise the cold nature
of this poison as of all that poison thats to be found in living creatures,
which killeth us by extinguishing our natural radical heat, which being
chockt and consumed the soul can no more execute its offices in the body
but most depart.

[177] Just.

In the more Meridional provinces of France, as Provence, Languedoc,
etc., they have besydes the other ordinar Serpents also Scorpions, which,
according as we may sie them painted, are just like a litle lobster, or rather
the French *rivier Escrivises*. They carry their sting in their taile as the Viper
does in its mouth. Tho it be more dangerous then any, yet it carries about wt
it contrepoison, for one stung wt it hath no more ado, but to take that same

that stung him, or any other if he can light on it, and bruise out its substance on the place wheir he is stung, and theirs no hazard. The potingers also extracts a oile which hath the same virtue.

Its not amisse to point as it ware wt the finger at that drollery of the priest who preaching upon the gifts that the 3 wise men gave to Christ, alleadged the first gave *d'or, myrrthe*, the 2d *argent*. He could never find, tho he repeated it 20 tymes over, what the 3d gave wt the rest of its circumstances. As also of the soger that made good cheir to his Landlord; and of Grillet the Deviner who notwtstanding of his ignorance yet fortune favorized.

The Frenchwomen thought strange to hear that our women theyle keip the house a moneth after they are lighter, when they come abroad on 8 dayes, and they are very weak that keeps it a fortnight.

Be the Lawes of France a slave, let him be a Turk, slave to a Venitien or Spaniard, etc. (such enemies they pretend themselves to be to servitude, tho their be legible enough marks of it amongs them as in their *gens de main mort*,[178] etc.), no sooner sets he his foot on French ground but *ipso facto* he is frie. Yet al strangers are not in the same condition their, nether brook they the same priveledges, for some they call Regnicolls,[179] others Aubiens[180] (*suivans les loix du Royaume*, bastards). The principal difference they make betuixt them is this, that if a Regnicoll such as the Scots are, chance to dy in France they have the power of making a testament and disposing of their goods as they please which they have their, whither they be moveable or immoveable. If they die not leiving a testament yet its no less secure, since their friends to the 10 degrie may take possession of them. Its not so wt the Aubiens who have no such right, but dieng, the King is their heir, unless it may be they be Aubiens naturalized, who then begin to have the priveledges of the others and the very natives.

[178] Serfs under the feudal law, whose power of disposing of their property by will was restricted.

[179] A legal term meaning native or naturalised citizens.

[180] *Aubains*. Foreigners, whose succession fell to the Crown (*droit d'aubaine*).

The Laws of France [this is the rigor][181] denies children begotten in Adultery or incest aliments, which tho harsh, condemning the innocent for the guilty, yet they think it may serve to deterre the parents from sick illicit commixtions.

[181] Interlined.

The Laws of France, as of the most of Europe (tho not practicate wt us), in thess case wheirin a man gets a woman wt child, ordains that ether he marry hir or that he pay hir tocher good, which is very rigorously execute in France.

We can not forget a Anagram that one hes found in Cornelius Jansenius, to wit, *Calvini sensus in ore*.

At Rome the Jews have a street assigned to them to live in a part. In France, especially in Montpeliers, wheir theirs seweralls, they dare not wear hats of that couleur that others wear, as black or gray, but ether rid or green or others, that all may know them from Christians.

The King of France amongs other titles he assumes, he calls himselfe Abbot of St. Hilaire, to wit of that church that bears the name in Poictiers, whence its amongs the ænigma'es of France that the Abbot of St. Hilaire hath the right of laying with the Queen of France the 1 night of the marriage. Wheirupon when this king married the Infanta of Spaine, some of

the French nobility told hir that the Abbot of St. Hilaire had the right of lying wt the Queen of France the first night, she replied that no Abbot sould lay wt hir but her prince. They pressing that the laws of France ware such, she answered she would have that law repealed. They telling hir the matter she said the Abbot sould be welcome.

The most part of Them that sweips the chimelies in France we discovered to be litle boyes that come out of Savoy wt a long trie over the shoulders, crying shrilly thorow the cityes, *je vengeray vos cheminées haut en bas*. Its strange of thir litle stirrows,[182] let us or the Frenchmen menace them as we like we can never get them to say, *Vive le Roy de France*, but instead of it, ay *Vive la Reine de Sauoye*.

[182] Lads, fellows.

We was not a little amazed to sy them on dy making ready amongs other things to our diet upright poddock stools, which they call *potirons* or *champignons*. They'le raise in a night. They grow in humid, moisty places as also wt us. They frie them in a pan wt butter, vinegar, salt, and spice. They eated of it greedily vondering that I eated not so heartily of them as they did; a man seimes iust to be eating of tender collops in eating them. But my praeiudice hindred me.

To know the way of making their sups is not uunecessar since our curiosity may cause us make of them at home. Of this we spoke something already. Further he that hes made ready boiled flech, he hath no more ado but to take the broth or sodden water wt his flech and pour it above his cut doune loaves, which we proved to be very nourishing. If a man would make a good soup wtout flech, he would cut me doune some onions wt a lump of butter ether fresh or salt, which he sall frie in a pan, then pour in some vinaigre, then vater, then salt and spice, and let al boil together, then pour it on your sup, and I promise you a good sup.

We cannot forget what good company we have had some winter nights at the fire syde, my host in the one noock, Madame in the other, and I in the mides, in the navel of the fire. He was of Chattelerault, she of Partenay: they would fallen to and miscalled one anothers country, reckning over al that might be said against the place wheir the other was born and what might be sayd for their oune. Whiles we had very great bickering wt good sport. They made me iudge to decide according to the relevancy of what I fand ether alledge. I usually held for Madame as the weaker syde.

The most part of the French sauces they make wt vergus.[183] For geese they use no more but salt and water.

[183] Verjuice.

This consequence may be whiles used: Sy ye this, yes. Then ye are not blind: hear you that; R, yes. Then ye are not deaf.

We saw a horse ruber wt a blew bonnet in Poictiers almost in the fashion of our Scotese ones; another we saw not, from our leiving of Berwick, til our returne to it againe.

To be fully informed of the history of the brave General [Mareschal] [184] Birron,[185] whom they had such difficulty to get headed; as of the possessed Convent of Religious vomen called *les diablesses de Loudun*; as of the burning of the preist as sorcerer and his arraigning his iudges before the tribunal of the Almighty to answer him wtin a few dayes, and all that sat upon his Azize their dying mad wtin som litle tyme; it wil not be amisse to informe ourselfe of them from the History of France.

[184] Interlined.

[185] Ch. de Gontant, Duc de Biron, Marshal of France, born 1562, died 1602. A favourite of Henry IV, but executed for treason against him.

The French, tho the civilest of people, yet be seweral experiences we may find them the most barbarous. Vitnes besyde him who dwellt at Porte St. Lazare, another who brunt his mother because she would not let him ly wt hir, and was brunt quick himselfe at the place in Poictiers some 5 years ago.

The French Law is that if a women be 7 years wtout hearing news of hir husband that she may marrie againe.

We have marked the German language to have many words common wt our oune, as bread, drink, land, *Goet* for our God; *rauber*; feeds,[186] *inimiticiæ*; march, *limites*; ficht; flecht; *heer*, sir; our man, *homo*; *weib* for wife.

[186] Feeds, *fehde*, feuds.

We have eated puddings heir also that we call sauses, which they make most usualy of suine.

We cannot passe over in silence the observation the naturalists hath of the Sow, that it hath its noble parts disposed in the same very sort they are found in a man, which may furnish us very great matter of humility, as also lead us to the consideration and sight of our bassesse, that in the disposall of our noble parts we differ nothing from that beast which we recknon amongs the filthiest. They make great use of it in France heir. In travelling we rencontred very great heards.

Tuo boyes studieing the grammar in the Jesuits Colledge at Poictiers, disputing before the regent on their Lesson, the one demanded, *Mater cuius*

generis est: the other, knowing that the mother of the proposer had a very ill name of a whore, replied wittily, *distinguo; da distinctionem* then; replied, *si intelligas de meâ est faeminini; si de tua, est communis* (in the same sort does Rosse tel it).

The occasion of the founding that order of the Charterous in France is very observable. About the tyme of the wars in the Low Contries there was a man at Paris that led one of the strictest, godliest and most blameless lives that could be, so that he was in great reputation for his holinesse. He dies, his corps are carried to some church neir hand wheir a preist was to preach his funeral sermon the nixt day. A great concourse of people who know him all weill are gathered to heire, amongs other, lead by meer curiosity, comes a Soger (Bruno) who had served in the Low Country wars against the Spaniard and had led a very dissolute, prophane, godless life. The preist in his sermon begins to extol the person deceased and amongs other expressions he had that, that undoubtedly he was in paradis at the present. Upon this the dead man lifted himselfe up in his coffin and cried wt a loud voice, *justo dei iudicio citatus sum*: the people, the preist and all were so terrified that they ran all out of the kirk, yet considering that he was a godly man and that it would be a sin to leive his corps unburied they met the nixt day. They were not weill meet, when he cried again, *iusto dei indicio indicatus sum*; when they came again the 3d tyme, at which he cried, *justo dei iudicio condemnatus sum*. This seemed very strange to all, yet it produced no such effects in any as in our Soger, who was present all the tymes: it occasioned enexpressible disquietment of spirit, and he fell a reasoning, If such a man who was knowen to be of so blameless a conversation, who was so observant of all his duties to God be damned, hath not obtained mercy, oh what will word of[187] the who hath lead so vicious a life, thinks thou that thou will be able to reach the height that that man wan to, no. At last considering that company and the tongue were great occasions to sin he resolves to institute an order who should have converse wt

none and whom all discourse should be prohibited save onlie when they meet one another, thir 2 words *Memento Mori*. For this effect he fel in scrutiny of a place wheir they might be friest from company, and pitched upon a rocky, desolate, unhabited place not far from Grenoble (about 3 leagues), wheir they founded their first Convent, which bears the name of Chartrouse, and is to be sein at this day. Notwtstanding that their first institution bears that they stay far from the converse of men, yet (which also may be observed in the primitive Monachisme) they are creeping into the most frequented cities. Vitness their spacious Convent, neir halfe a mile about, at Paris.

[187] What will become of thee. Compare German, *werden, geworden*.

These of the Religion at Poictiers from St. Michel to Paise[188] they have no preaching the Sabath afternoone.

[188] Pasch, Easter.

Its not leasum for a man or woman of the Religion to marry wt a Papist; which if they do, they most come and make a publick confession of the fault and of the scandal they have given by such a marriage before the whole church. Experience hes learned them to use it wery sparingly and meekly, for when they would have put it in execution on som they have lost them, they choosing rather to turne papists then do it. We are not so strick in this point as they are; for wt us *licet sed non expedit cum non omne quod liceat honestum sit*.

Out of the same fear of loosing them they use wery sparingly the dart of excommunication except against such as lives al the more scandoulously. The protestants in speaking of their Religion before papists they dare not terme it otherwise then *pretendue Reformée*.

We have eaten panches[189] heir, which we finding drest in a different sort from ours but better, we informed ourselfe of it thus: they keip them not intier as we do, but cuts them into peices as big as a man wil take in his mouth at once, then puts them in a frying pan wt a considerable lump of butter, having fryed them a good space, they put in vineger, a litle salt and some spice; this is all.

[189] Tripe.

Their goosing irons they heat them not in the fire as we do; but hath a pretty device. They make the body of the iron a great deall thicker then ours, which is boss,[190] and which opens at the hand, which boss they fil wt charcoall, which heats the bottom of the iron, which besydes that its very cleanly, they can not burn themselves so readily, since the hands not hot.

[190] Hollow.

They dry not out their linnens before the fire as we do: they have a broad thing iust like a babret[191] on which we bak the cakes, only its of brass very clear, its stands on 4 right hight feet. They take a choffer whiles of brass oftner lame,[192] filled wt charcoall, which they sett beneath the thing, on which they dry out their cloaths wery neitly.

[191] Babret or bawbret or baikbred, kneading trough.

[192] Earthenware.

We think fit to subioine heir a riddle or 2. Your father got a child; your mother bore the same child and it was nether brother nor sister to you: yourselfe. A man married a woman which was so his wife, his daughter and his sister. A man got his mother wt child of a lasse, which by that means

was both his sister and his daughter, whom he afterwards not knowing married.

France thinkes it a good policy to height[193] the gold and silver of stranger nations, by that thinking to draw the money of al other nations to themselves. This gives occasion to that book we have sein called *Declaration du Roy et nouveau reglement sur le faict des Monnoyes tant de France que estrangeres, donné par Lowis 13, an 1636*. This book at least hath 500 several peices gold and silver currant in France. It specifies what each of them vieghs and what the King ordaines them to passe for. First he showes us a great nombre of French peices of gold wt their shapes what they carry on both sydes: then the gold of Navarre that passes: then the Spanish and of Flanders, as the ducat and pistoles: then of Portugal, as St. Estienne: then the English Rosenoble passing for 10 livres 10 souse: the noble Henry of England for 9 liv. 10 souse: English Angelot for 7 livres: the Scotcs and English Jacobuses, which we call 14 pound peices, as also the Holland Ridres for 13 liv: that Scots peice thats wt 2 swords thorow other, crouned the whol is 13, the halfe one 6 liv. 10 souse (it hath, *salus populi est suprema lex*): the new Jacobus, which we cal the 20 shiling sterling peice, 12 fra: then Flandres gold. The Scotcs croune of gold, which hath on the one syde_ Maria D.G. Regina Scotorum_, passes for 4 livres 5 souse. [194] Then he hath the Popes money, which hath Peter and Paul on the one syde and the Keyes, the mitre and 3 flies on the other, some of it coined at Avignon, some at Rome. Then the gold of Bologne, Milan, Venise, Florence, Parma, Avoye, Dombes, Orange, Besançon, Ferrare, Lucque, Sienne, Genes, Savoye, Geneve, wt that about the syde, *lux oritur post tenebras*: Lorraine, Liege, Spinola, Mets, Frise, Gueldres, Hongry, L'empyre, Salbourg, Prusse, Provinces Unies wt this, *concordiâ res parvae crescunt*, Ferrare and then of Turquie, which is the best gold of them al, its so fine it wil ply like wax: the armes wtin consistes of a number of caracters iust like the Hebrew. Thus for the Gold. As to mony it hath al the several

realles of the Spaniard, as of al the Dolles or Dollers of the Empire wt the silver of al their neighbouring nations. Our shiling[195] is ordained to passe for 11 souse.

[193] Enhance the price of.

[194] For a comparison of these values, see Introduction, p. xliii.

[195] Here the shilling sterling.

Goropius Becanus in hes *Origines Antwerpianae* would wery gladly have the world beleive that the Cimbrick or Low Dutch is the first language of the world, that which was spoken in Paradise; finally that the Hebrew is but a compond ishue of it because the Hebrew seimes to borrow some phrases and words of it when in the interim[196] it borrows of none. This he layes doune for a fondement and as in confesso, which we stiffly and on good ground denieng, al his arguments wil be found to split on the sophisme *petitionis principii*.

[196] When in fact. So again p. 85.

The ground upon which the Phrygians vendicats their langage for the anciennest is not worth refuting, to wit that these 2 Children that Psammeticus King of Egypt caused expose so that they never hard the woice of man: the first thing ever they cried was *bec*, which in the Phrygian language, as also in old Low Dutch (so that we have to do wt Goropius heir also, who thinks this to make mutch to his cause) signifies bread, is not worth refuting, since they might ether light on that word by chance, or they had learned it from the baying of the sheip wt whom they had conversed.

To abstract from the Antiquitie of tongues, the most eloquent language at present is the French, which gets such acceptance every wheir and relishes

so weill in eaches pallat that its almost universal. This it owes to its *beaux esprits*, who hath reformed it in such a fashion that it miskeens the garbe it had 50 or 60 years ago, witnesse *l'Histoire du Serre (francion)*, [197] Montaign'es Essayes and du Barta'es Weeks, [198] who wt others have written marvelously weill in the language of their tyme, but at present is found no ways smooth nor agriable. We have sein the works of Du Bartas, which, tho in langage at present ancient, is marvelously weill exprest, large better than his translator Joseph Sylvester hath done. Among his works their was one which I fancied exceidingly, *La Lepanthe de Jacques 6, Roy d'Ecosse*, which he tornes in French, containing a narration of that bloody wictory the Christians gained over the Turk, Octobre 1571, the year before the massacre at Paris, on the Lepanto, which Howel in his History of Venise describes at large. He speaks wt infinite respect of our King, calling him among other stiles *Phoenix Ecossois*.

[197] *Francion* interlined. *Histoire Comique de Francion*, 1623-67. Sorel mentioned again p. 104. For de Serre, see same page. I thought at first that here Serre might be Sieur, but it is distinctly written, therefore perhaps *Francion* is interlined by mistake. The reference is to an early writer, De Serres died in 1598. Sorel's *Francion* was published in 1623.

[198] G. de Saluste, sieur du Bartas, 1544-1590, religious poet. His *Divine Weeks* were translated by Joshua Sylvester.

To returne to our French language, not wtout ground do we estimate it the Elegantest tongue. We have bein whiles amazed to sy [hear] [199] whow copiously and richly the poor peasants in their meiting on another would expresse themselves and compliment, their wery language bearing them to it; so that a man might have sein more civility in their expressions (as to their gesture its usually not wery seimly) then may be fund inthe first

compliments on a rencontre betuixt 2 Scotcs Gentlemen tolerably weil breed. Further in these that be ordinar gentlewomen only, theirs more breeding to be sein then in some of our Contesses in Scotland. For their frinesse[200] ennemy to a retired sullen nature they are commended be all; none wt whom a person may move easily and sooner make his acquaintance then wt them, and yet as they say wery difficult to board; the Englishwomen being plat contrary. They wil dance wt him, theyle laugh and sport wt him, and use al innocent freedome imaginable, and this rather wt strangers then their oune....[201]

[199] Interlined.

[200] Freeness.

[201] Four lines erased in MS.

This much precisely for the French mony (only its not to be forgotten that no goldsmith dare melt any propre French mony under the pain of hanging), their langage, and their women: of the men we touched something already in a comparison of them wt the Spaniard. I have caused Madame Daillé some vinter nights sit doune and tell me tales, which I fand of the same very stuffe wt our oune, beginning wt that usually *Il y avoit un Roy et une Reine*, etc., only instead of our red dracons and giants they have lougharous or war-woophs.[202] She told me on a tyme the tale or conte of daupht Jock wt his *sotteries*, iust as we have it in Scotland. We have laughten no litle at some.

[202] Loups-garou or were-wolves,

We saw the greatest aple we ever saw, which we had the curiosity to measure, to measure about and fand it 18 large inches. The gourds are monstrous great heir: we have sein them greater then any cannon bullet ever we saw. We have eaten cormes[203] heir, which is a very poor fruit, tho the

peasants makes a drink of it they call cormet. In Octobre is the tyme of their roots, as Riphets, tho they eat of them al summer throw, neips and passeneips.[204]

[203] Sorb apples.

[204] Parsnips.

Let us mark the reason whey the Pope permits bordel houses at Rome, and then let us sie who can liberat it from clashing immediatly wt the Aposles rule, Romans 3, v. 8. O. sayes the Pope, the toleration of stues in this place is the occasion of wery much good, and cuts short the occasion of wery mutch evil, for if men, especially the Italian, who, besydes his natural genius to Venery, is poussed by the heat of the country had not vomen at their command to stanch them, its to be feared that they would betake themselves to Sodomy (for which stands the Apology of the Archbischof of Casa at this day), Adultery, and sick like illicit commixtions, since even notwtstanding of this licence we grant to hinder them from the other, (for *ex duabus malis minus est eligendum*), we sie some stil perpetrating the other. O brave, but since we sould not do evil that good sould come theirof, either let us say this praetext to be false and vicket, or the Aposles rule to be erroneous. Nixt if ye do it on so good a account, whence comes it that the whores most buy their licence by a 100,000 livres a year they pay to your exchequer, whey have they not simply their liberty since its a act, as ye say, of so good consequence?

The ancient inhabitants of Rome at that tyme when it became of Pagan Christian seimes to me much viser then our reformers under Knox when we past from Papisme to Protestantisme. They did not demolish the Heathen Idol temples, as we furiously did Christian, but converted them to Christian temples, amongs others witness the stately temple dedicat to the goddess Fortune, much respected by the Romans, at present a church. Yea the

Italians boasts that they have cheated, robbed the Devil in converting that hous which was consecrat for his service unto the service of the true God. But all that heirs of our act laughts at it as madness.

Theirs a Scots Colledge at Rome.

I find that conclusion the Duke of Burgundy tried on a peasant, whom he fand in a deip sleip in the fields as he returned from the hunting on a tyme, wery good. On a tyme we fel a discoursing of those that are given to riseng in their sleip and do things, whiles more exactly then give they ware waking. I cannot forget on drollery. 2 gentlemen fell to lodge to gither at one innes, the one began to plead for a bed by himselfe, since the other would find him a wery ill bedfellow, for he was so much given to hunting, that in the night he used to rise and cry up and doune the chambre hobois, hobois, as on his dog; the other thought Il'e sy if I can put you from that, wheiron he feigned he was iust of that temper in rising thorow his sleip, and that he was so much given to his horses that he thought he was dressing and speaking to them. Since it was so[205] they lay both together; about midnight the one rises in his sleip begines to cry on his doges; the other had brought a good whip to the bed wt him, makes himselfe to rise as throw his sleip, fals to and whipes the other throw the house like a companion,[206] whiles crying, Up, brouny; whiles, Sie the iade it wil no stir. The other wakened son enough, crying for mercy, for he was not a horse; the other, after he had whipt him soundly, made himselfe to waken, wheiron the other fel a railing on him; the other excused himselfe wery fairly, since he thought he was whiping his horses. In the interim the other never rose to cry on his doges again.

[205] Interlined.

[206] Low fellow.

France in such abundance produces win, that several years if ye'el bring 2 punchions to the field as great as ye like, live them the on and they'le let you carry as many graps wt you as the other wil hold.

They have in France the *chat sauuage*; the otter, which is excellent furring; the Regnard, the Wolfe. In the mountaines of Dauphiné theirs both *ours* and *sangliers*, bear and boor.

Their doges are generally not so good as ours. Yet their a toune in Bretagne which is garded by its dogs, which all the day ower they have chaned, under night they loose, who compasses the toune al the night ower, so that if either horse or man approach the city, they are in hazard to be torn in peices.

The wolfes are so destructive to the sheip heir that if a man kill a wolfe and take its head and its taille and carry it thorow the country willages and little borrowes, the peasants as a reward will give him som egges, some cheese, some milk, some wooll, according as they have it. They have also many stratagemes to take the wolfe. Amongst others this: they dig a very dip pit, wheir they know a wolfe hantes; they cover it with faill,[207] fastens a goose some very quick, which by its crying attracks the wolfe who coming to prey on the goose, zest[208] plumpes he in their, and they fell him their on the morning.

[207] Turf.

[208] Just.

We have sein that witty satyre that Howel has about the end of his Venitian History in French. The French Ministers of the Religion are exceedingly given to publish their sermons, in that like to the English. Vitnesse Daille'es sermons; Jean Sauvage, Ministre at Bergerac, betuixt

Limosin (wheir they eat so much bread when they can get it) and Perigord, dedicated to Mr. de la Force, living at present their, Mareschal de France, father of Mareschal Turaines lady: wt diverses others we have sein. We have sein a catechisme of Mr. Drelincourt which we fancied exceedingly.

The halfe of France wt its revenues belongs to the Ecclesiasticks, yea, the bueatifullest and the goodliest places. To confine our selves wtin Poictiers, the rents of whosse convents, men and women together, wil make above six 100 thousand livers a years, besydes what the bischop hath, to wit, 80,000 livres a year. The Benedictines, a wery rich order as we have marked, have 30,000 livres in rent; the Feuillans[209] 20,000; besydes what the Jacobins, Cordeliers, Minims, thess de la Charité, Capucyns, Augustins, the Chanoines of Ste. Croix, St. Radegonde, St. Peter, the cathedral of Poictiers, Notre Dame la grande, St. Hilaires, wt other men and al the women religious, have, being put together wil make good my proposition.

[209 1] See p. 47, *note.

We had almost forgot the Jesuits, who, above 50 years ago, entred Poictiers wt their staffes in their hand, not a 100 livres amongs them all, since have wt their crafty dealings so augmented their Convent that they have 40,000 livres standing rent. Whow they come be this is not uneasy to dewine, we toucht it a litle already. If any fat carcasse be on his deathbed, they are sure to be their, undermine him wt all the slights imaginable, wring donations in their faveurs from them, of which we know and have heard seweral exemples: vitness the Abby at Bourdeaux, whom they undermined, and he subtilly getting a grip of his testaments tore it and so revocked his will. Also that testament so agitate by the Jesuits and the sone of the deceased who was debauched before the Duke of Parme, the Jesuits relaying on thesse words that the fathers Jesuits sould be his heirs, providing that they gave his sone *ce qu'ils voudront*, what they would: the

Duk turning them against the Jesuits exponed them, that what they would have themselves that that sould be given to his sone.

Diverse others we have heard. The lawes of France wil hardly permit the father to disinherit his sone, unless he can prove him guilty of some hy ingratITUDE and disobedience against him, or that he hath attempted something against the life of his father; that he is debauched he cannot.

The custome among the great ones of the most part of the world is that they cause any other of quality that comes to sy them be conveyed thorow their stables to sy their horses, as also causeth them sy their doges, their haucks, ther gardens. Particularly in Spaine the custome is such, that they take special heed what horse or what dog ye praise most, and if ye change[210] to say, O their is a brave horse, the horse wil be as soon at your lodging in a gift as your selfe wil be.

[210] Chance.

We happened to discourse on night of fools and madmen, of their several sortes, of the occasions, as love, study, vin, hypocondriack, melancholly, etc. They told me of one at Marseilles who beleifed himselfe to be the greatest King of the world, that all the shipes of the harbour, together wt their waires, ware his; of another who really beleifeth himselfe to be made of glasse, cryed horridly if any but approach him for fear they sould break him. His friends, at the advice of some Doctor, took a great sand glasse and brook it on tyme on his head as he was raging in that fit: seeing the peices of glasse falling doune at his feet he cryed more hideously then ever, that he was broken to peices, that his head was broken. After he had calmed a litle they desyred his to consider that the glasse was broken, but that he was not broken; and consequently that he was not glasse. On this remonstrance he came to himselfe, and confessed he was not glasse. The same was practicat on a nother who beleived himselfe to be lame.

We cannot forgett a story that happened at the bedlam at Paris. 2 gentlemen out of curiosity coming to sie the madmen, the Keeper of the Hospital be reason of some businesse he had could not go alongs wt them, whence he ordains one of the fools that was besyde to go alongs wt them, and show them al the madmen wt the occasions and nature of their madnese. The fool carried them thorow them all, showing that their was on mad for love, their another wt to much study, a third besottedly fool wt drunkness, a 4th Hypocondriack, and so wt all the rest marvelous pertinently. At last as they ware going out he sayd: Gentlemen, I beleife ye wondred at the folly of many ye have sein; but theirs a fool (pointing at him) whom ye'el admire more then them all, that poor fellow beleifes him selfe to be the beloved Aposle St. John, but to let you sie that he is not St. John, and whow false his beleife is, I that am St. Piter (for he chiefly held himselfe to be St. Peter) who keips the gates of heaven never open the door to let him in yet. The gentlemen thought wery strange to find him so deiply fooll when they reflected whow pertinently he had discoursed to them before and not discovered the least folly. They ware informed that he was once a doctor in the colledge of Sorbonne, and that to much study had reduced him to that. It would appear he hes studied to profoundly Peters primacy above the rest of the Aposles.

The Protestant Churches throw Poictou keip a solemne fast 28 of Octobre, wt the Papists St. Simons day. The occasion was to deprecate Gods wrath which he showed he had conceived by reason he threatned them in sewerall places wt Scarcity of his word and removing of his candlestick, since sewerall temples ware throwen doune, as that at Partenay, etc. For that effect they sent 4 of the Religion, the eminentest amongs them in the Province to the King wt a supplication. We had 3 preachings. We eated no flech that day for fear of giving occasion to the Papists to mock: we suped on a soup, fried egges, roosted chaistains, and apples wt peirs.

Sewerall schollers have made paction wt the Dewil, under the Proviso he would render them wery learned, which hath bein discovered. One at Tholouse gave his promise to the Dewil, which having confessed, they resolve to procede iudicially against him. Since the Dewil loves not iustic, they send a messenger to the place wheir they made the pact to cite him to compeir and answer. He not compairing they declaire him contumacious; and as they procede to condemn him as guilty, behold a horrid bruit about the hous and the obligation the lad had given him droops of the rigging[211] amongs the mids of the auditors. We fand the story called *funeste resemblance* not il of the scholler in Lipswick University, who having killed on of his companions was put to flie, wheiron after a long peregrinatione he came to Coloigne, wheir to his misfortune was a young man whom he resembled so neir that theirs no man but he would take on for the other. This young man had ravished just at that same tyme a gentlewoman of great condition: now the Lawes of Germany, as also of France, permits to pershue a *Ravisseiur*, tho the women consent, if her parents contradict, criminelly for his life. On this our scholler Proclus is slain in the streets for him; together with what followes.

[211] Rooftree.

Thorow all Languedoc and Provence the olive tries is as common as the walnuts in Poictou: oranges thorow much of France and in sewerall places China oranges. Lentils, the seeds rise and mile[212] growes abundantly towards Saumer: the Papists finds them wery delicate in caresme or Lent. Its wonderful to sie what some few degries laying neerer the sun fertilizes a country.

[212] Mil, millet.

France is a country that produceth abundantly all that the heart of man can desire, only they are obliged to fetch their spices (tho they furnish

other countries wt saffran which growes in sewerall places of Poictou, costes 15 livres the pound at the cheapest) from Arabia, their sugar from America and the Barbado Islands: yet wtout ether of the tuo they could live wery weill.

A man may live 10 years in France or he sy a French man drink their oun

Kings health. Amongs on another they make not a boast to call him[213] *bougre, coquin, frippon*, etc. I have sein them in mockery drink to the King of Frances coachhorses health.

[213] *i. e.* think nothing of calling him.

The plumdamy, heir prunecuite,[214] they dry so in a furnace.

[214] Prune, dried plum.

About the end of Octobre the peasants brings in their fruits to Poictiers to sel, especially their Apples, and that in loadened chariots. The beggar wifes and stirrows[215] ware sure to be their, piking them furth in neiwfulles[216] on all sydes. I hav sein the peasents and them fall be ears thegither, the lads wt great apples would have given him sick a slap on the face that the cowll[217] would have bein almost like to greet; yet wt his rung[218] he would have given them a sicker neck herring[219] over the shoulders. I am sure that the halfe of them was stollen from many of them or they got them sold.

[215] Lads, boys.

[216] Handfuls.

[217] Fellow. See Jamieson's *Dict*, s.v. 'Coulie.'

[218] Staff.

[219] 'A smart wipe.' I have not traced the expression 'neck herring.'

When we have had occasion to tel the Frenchman what our Adwocats would get at a consultation, 10,20 crounes, whiles they could not but look on it as a abuse, and think that our Justice was wery badly regulate and constitute. Thorow France a Adwocat dare take no more than a *quartescus*[220] for a consultation, but for that he multiplies them; for a psisitians advice as much. Surely if it be enquired whose ablest to do it, France by 20 degries might be more prodigal this way then we are; but their are wiser. Theris above 200 Adwocats at Poictiers. Of these that gets not employment they say, he never lost a cause, whey, because he never plaid one. Also, that theirs not good intelligence betuixt the Jugde and him, whey, because they do not speak together.

[220] Quart d'ecu, a silver coin, quarter of an écu. See Introduction, p. xlii. The cardecue was a common coin in Scotland.

As to the privilege of primogeniture in France its thus, that the eldest carries away 2 parts of thrie: as, for instance, the father is a man of 15,000 livres a year, the eldest hath 10,000, the other 5000 goes amongs the cadets.

Al the Capital tounes of provinces of France are frie from Taille.[221]

[221] A tax on persons not noble or ecclesiastic or exempted.

The wood cannot be but wholesomer to dresse meat wt then our coall: also they impute the oftner contagions that happens in Brittain to the smook of our coall, which grossens and thickens et,[222] by consequence infectes the air, their wood smooking wery little.

[222] For 'it.'

The French cryes out against the wanity of our King who most be served by his subjects on their knees, since that the knees sould be kept to God alone; as also their King more absolute then [he] tho not served so. Yea some have bein so impudent as to impute (count)[223] the murder of our late King (which 1000 tymes hath bein casten up to me) as a iust iudgement of God on them for their pride. I cannot forget whow satyrically they have told this, saying that the people of great Britain keip their Kings at their beck, at their pleasure not only to bereave them of their croune but also of their life. I endewored to show them that they understood not things aright, that the same had bein practicat in France on Henry the 4t: the cases are not indeed alike, since our King was brought to a Schaffold, the other slain be a Assasin, Ravelliak, and regretted. To make the case iump the better, I remitted them to ther History to sie wt what publick consent Henry 3d was slain be Clement the Jacobine, yet heir their was no iudiciall procedure as against our King. Whence I had recourse to Chilperick, whom the people, tho legittime heir, first deposed then cowed him, and thrust him in a Monastery surrogating Pepin his brother in his roome. This wexed them, they could never answer this sufficiently.

[223] Interlined.

Sewerall tymes in France persones have suffered because they had discovered some plot or conspiracy against the King or estat and could not prove it. The Law is the same wt us, tho it seimes to carry injustice. On all hands I am in danger: if I do not reveale it I am aequally guilty of the treason as the actors are; if I rewealle it, I am immediatly made prisoner, tortured to show all I know of it, put to prove what I say, in which if I failly I lose my life. What can a man do when he have no proofes? He most tho' reveall it and consequently lose his life; since after the truth sal appear and he sal be held be all to have died gloriously as a weill wisher to his country.

Its was strange of Cardinal Richelieu who know[224] all things that past thorow France as if he had bein present, and 2 of the most intimate sould not have spoken ill of him at Poictiers but he sould have knowen it or 4 dayes at Paris. Some imputed it to a familiar spirit he had, others to his spies he had every wheir. He was *toute en toute* in France in his tyme.

[224] Lauder's way of spelling knew. Compare p. 98, slow for slew.

The French mock at our sweit sauses and sugared sallades. Their salt is a great deall better and more sawory then ours is. That which we parfait be the fire, which cannot but in some measure consume the strenth of its savorinesse, the sun denieng us it, they parfait be the sun. In Bearn or Navarre they make it be the fire as we do; but they make more cont of that which comes from the Rochel, which the Hollanders, Dans, and others carries in abondance then of their. On the place wheir they make it its sold for a sous marky[225] la livre, which costs at Poictiers 20 sous. In 2 heurs tyme the sun will converte a great ditch full of sea water unto upright salt: that they showle out, fills it again, and so in 3 moneth, May, Juin, July, they make more salt then the fire maks in 2 years in Scotland: and wt lesse cost and lesse pain. That our salt is whitter, its the effect of the fire, since they could render theirs as white but it sould lose so werie much of its savory. Their is a ile neir to that of St Christople which hath montaines of Salt. The sea casts in the water on the dry land and the sun convertes it immediatly, which beats their so violently that no corn can grow; it rises but its brunt or it come to the head. The sugar growes marvelously weill in it.

[225] *Sou marqué*. Copper coin worth fifteen deniers. That was the value of the *sou parisis*. The *sou tournois* was worth twelve deniers.

The day before great fests, as *les Roys*[226] *Toussaints*, etc., their fellows that wt white surplices and a pigful[227] of holy water wt a spung in it goes

thorow al the Catholick houses be-sprinkling the persons as also the house, and so sanctifieng them that the Dewil dare not enter their; passing by the Protestants houses as infected; or rather, as the Angel who smote the first born of the Egyptians past the Israelits. At *Toussaints* al are in ther best cloaths.

[226] Epiphany.

[227] Jarful.

Of the fal of our first parents its enquired what might have happened in the case of the women alone sould have fallen, the man keiping his integrity: wheither the children would have bein culpable wt the mother, or innocent wt the father. 2'do if any children had bein born before the fal they sould have bein exempt from the curse or not. 3'o if our parents fell the same day they ware created. 4to who would be Cains wife, ether his mother or a sister.

Upon what the Scripture teaches us, that for the 40 years the Israelites ware in the wilderness their shoes nor their garments waxed not old, it may be enquired what they did for cloaths to their childeren that ware born in the wilderness, also theirs one that was 10 years old, another 20, at their coming furth out of Egypt, they had cloathes and shoes meit for them at that age, it may be demanded whow the same cloaths gained[228] them when they came to be 30 or 40 year old. It seimes to be said that the cloaths waxt wide as they grew.

[228] Fitted.

It may be demanded also, whither it was really a miracle in passing the rid sea or give it was only at a low ebbe, since Moses know weill enough

both the sea and the desert, having feid his father-in-laws flocks their about long tyme.

I demand, if our first parents had kept their state of innocence whither they would have procreat their children in that same faschion that man and woman does now. It seems that they sould have copulated carnally, since theirs no other raison assignable whey God sould have made distinction of sex, since these sould have bein in wain: *at Deus et Natura nihil faciunt frustra*. On the other hand I dare not say they sould have copulate carnally when I consider the brutality and filthinesse of the act which does no wayes agree wt the perfection wheirin they ware created. On the supposition that they had kept their innocence and begotten children, I demand whither the children at their coming furth of the bellie sould have had the vigueur that Adam had when he was created; or whither they bit to be born litle that could nether speak nor go for the first 6 quarters of a year as at present. This it seimes absurd to think, since that would have argued wery much imperfection in the man, which I will be wery loath to think him capable of as he was in that state: the other syde seimes as absurd, since its inconceivable to think whow Ewe could have born a strong, robuste man of Adams strenth at the age of 30 years in hir womb.

I demand also whither Adam after he had lived many hundred years on earth sould have died, gone to heaven and left the earth to his posterity, and so after a long tyme his posterity to theirs. Necessity seimes to say that it sould have bein so, since that if the fathers had not so made way to their sons, or some ages the world sould not hold them all, for I suppose all that hes lived in the world since Adam ware on the world at present, wt them that are living on it even now, I am inclinable to think that we would be put to seik some other new world besyde Americk to hold them. To think on the other hand that he sould have died is as absurd, since its confessed that the trie of Life was given him as a sacrament and signe he sould not lay under

the strock of death, for as death comes from that contrariety and discord of the elements of whilk our bodies are composed, so the fruit of this trie, at least typically, had the wertue of maintaining the contrary elements in a parfait concord and by consequence of vindicating a man from Death.

I demand in what season of the year the world was created. I find a great rable of the Scolasticks, as testifies Lerees[229] in his physical *disputa. de mundo*, teaching that it was in the spring tyme; and that the sun began his course in the first degree of Aries; that it is from this that the Astrologians begins their calculations, at Aries as the first signe of the Zodiack; that it was at this tyme that Christ suffered, restauring the world at that same season wheirin it fell. But who sies not the emptinesse of their reasons. Theirs another rank who think it was created in the Automne, since that Moses mentioned rip apples, which in the spring tyme are only virtually in their cause. Others wt greater reason condemne al thir autheurs as temerare and rash, since that Spring in our Hemispbere is Automne in the other.

[229] Lery or Leri, Jean de, was a traveller and Protestant divine, but I do not find trace of such a work as this.

About the Bi-location of bodies, I would demand the Popelings, in the case wheirin a army is made up of one man replicate in 1000 places, whither he shall have the strenth of one man or 1000: if one be wounded or slain, if all the rest shal be wounded or slain: also whither he can be hot at Paris and cold at Edin'r, headed at Paris, hanged at Edin'r, dy at Paris, live in good health at Edin'r, wt infinite other alleaged by Lerees and others.

When he was at Poictiers a Gentleman accused of sewerall murders and imprisoned escaped in womens cloaths about the gloaming, whom we saw passe thorow the street, giveng al ground of suspicion by the terror and amazement he was in; letting a scarf fal in on part, his napkin in another, his

goun taille fell doune in a thrid. Yet none seized on him. At the port of the toune he had a horse waiting for him on which he escaped.

A litle after that a Mareschal, or ferrier, or Smith felled on of his boyes at the Scotess Walk because he demanded money of him, escaped to Lusignan, where he was taken.

Just about the same tyme on a stormy, vindy night a rich Candlemakers (which office is not so dishonorable heir as wt us, their daughters wil be going in their satins) booth was broken up, 40 pistols, which he had receaved in payment just the day before, and which he had left in a box of the table, stollen. Persones wil do weill then to keip quiet any mony they have as weill as they can: according the tenor of my fathers letter.

On the day after *Toussaint* is a feste til noon called *les Trespassez*[230]. The papists prayes for their dead ancestres, over their graves mumbling so many paters and so many ave'es.

[230] *Trépassés*, All Souls.

They have a apple in France called *pomme de Calvile*, its all rid thorow to the wery heart, *pomme blanche*.

In case of fire in a toune the neirest bel, or the bel of that paroiche where it is, rings.

In Octobre heir, tho reasonably sharp, they have upright[231] Summer weather, its so fair.

[231] Equivalent to 'downright.'

Our peirs that growes at home are all out as delicious, vitness the carnock, as any we have eaten in France, tho they grow their in greater

abondance. As to the Apples we most not conteste wt them, since beside many brave sorts they have the pipin, which I conceive most be that they call Reynett, brought unto France from Italy by Queen Blanche, mother of St. Louis: it was first fund in Africk. The *pomme Minion* is better then any of ours: our Marican seimes to be a degenerat sort of it.

The silver hat-strings are much in use at present: they sell them by the weight. The tabby doublets wt the silk [called wats][232] furring wtin are also in faschion: wery warm in winter, cost 20 franks. Men and women from the least to the greatest, yea not the wery keel wifes and fruit wifes, but they have manchon muffes. A man cannot get a good one under a pistol: some of a meiner size are sold for 6 or 4 francks. Our best furrings comes out of Musco'e. Chamois gloves and linnens mad of goats skines, which are found better in Poictou then in any other province of France, are not in so great cont[233] wt them as wt us; yet they find them wondrously warm; some thinkes them strenthning and corroborative of a feeble hand. We have sein som buy them to lay swallings of their handes. Perruvicks, besydes they are most faschious, they are destructive both to the body, since they are wery unwholsome, engendring humeurs; as also to the purse, they being extravagantly dear thorow all France, especially at Paris, wher its a wery mean one a man will get for 4 pistols; and a man can have no fewer then 2 at a tyme, on to change another.

[232] Interlined. Wats, *ouates*.

[233] Estimation.

We have spoken wt some Catolicks that have bein at Geneve. The disciplin is very strick their yet. A Catholick if a craftsman they suffer him to excerce his trade 3 moneth: they'le let him stay no longer. If a man swear their, he'el be layd in prison, lay their 24 howers wtout meat or drink. A man cannot speak wt a woman on the Street wtout giving scandal. The Sabath is

keipt as we do, nothing to be sold their on it, as thorow France its the greatest market day of the week, the peasants bringing in al they have to sell in abundance. Its the resort of al the banished Germans, Italians and other strangers that would enjoy the excercise of their Religion freely and purely.

In shaving a man, its impossible for a Frenchman to cut a man; they have such a net way of baging the flech: also it would do a man good to be washen wt their water, whiles rose water, whiles smelling of musck: tho their fingers stinkes whiles, the French dighting their staille[234] wt their fingers, thinking it prodigality to do it wt paper: yett ther Kings of old did so, to teach their people frugality: hence it is that the Frenchman wil not eat til he wash: wil not eat wt ye til ye wash: for my oun part I would not eat wt a Frenchman til he wash.

[234] Foundation, breech.

Fresch egges are wery dear wairs in France. At Paris they are 5 pence a peice, at Poitiers a shiling a dozen. They fry their egges differently from us: they break them first in a plate: in the meantym they fry a considerable lump of butter, then pours in the egges salting and spicing them. Their hens are not so fertile as ours.

Our speaking of egges mindes me of Christophorus Colomba Lusitanian, a experienced skiper, first discowrer of the new world, tho he had gotten some encouragements and conclusions about it from on Vespucius Americus Florentin, from whom it gets its denomination of America. Colomba on a tyme walking on the harbory of Lisbon, a toune knowen for the emporium of the east, such a boystrous wind blow to him iust of the sea that he could not get his feet holden; on this he began to reason that the wind could not come of the Sea, but that of necessity their bit to[235] be land beyond that sea, tho unknown, of whilk[236] that wind bit to[235] blow, for the vapors or exhalations drawn of the sea are not so grosse as

thess that montes of the land: and be consequence cannot produce such boystrous vindes. This his opinion he imparted to sewerall: at lenth it came to Ferdinando'es ears, who at the persuasions of Isabella his queen, a woman of greater spirit and more action then hir husband, equippes Columba a fleet, wt which after he had born out many stormes he gained his point, returning wt some few of his shipes that ware left him loadened wt the gold of the country.

[235] Must.

[236] i.e. though unknown, off which.

The King accepted him wery kindly, as he had reason, but his courtiers out of that envious nature of detracting from the merites of others, thinking that theirs no way of gaining themselves credit unless they backhit at others, each most passe their sewerall werdict on his attempt, al concluding that it was nothing, that any man might have done it. The honest, silly man hears them at this tyme patiently, when they have al done he calles for a egge: desires them al to try if the could make it stand on the end of it: they, not knowing his designe, try it all: it goes round about al the table, not one of them can make it stand so. Then he takes the egge, brakes the bottome of it, and so it standes upright, they being al most ashamed, else further he addes, As now after I have let you sie whow to do it, ye think nothing to make a egge stand upright: tho none of you could do it before: sikelike after I have found you the gate to the new world ye think nothing of it tho ye could not have done it yourselves. They thought themselves wery far out.

Horrid and unchristian was the outrages the Spaniards committed on the poor natives. They slow them like beasts. Further they carried over whole shipeful of mastives which they hunted the naked Indians with; and I know not how many millions ware torn this way.

The sogers ware so beastly that they could not refrain from laying and abusing the Indian women, which gave them the *verole picot* or French pox, surely the just iudgement of god, wt a iudgement not knowen to former ages, punishing men wt shame in this world. The Spaniards brought it from America to Naples, infected some Napolitan women wt it, whence called *Morbus Napolitanus*; thir women gave it to some French sogers who brought it unto France, whence called wt us French pox, now its become universall. Philip of Spaine who died August 1665 was owergoon wt it, they say.

The Indians calles the Spaniards Veracochié, which in their language signifies scume of the sea. Out of contempt and because they assaulted them first from the sea, they curse the sea always that vomited out sick monstres. Some chances to tel them of heaven and hell: wheiron they have demanded wheir the Spaniards would go to: they hearing that they would go to heaven, they sayed they would not go their then, for the Spaniards ware to bloody and cruell to stay wt.

To informe our selves fully of the singularites of America and other things it will be fitting for us to buy *Pancerollas*[237] *Vetera deperdita* and his *Nova reperta*, as also Howels[238] Letters, Osburnes[239] advices to his sone, etc.

[237] Panceroli, Guido, 1523-1599, Italian jurist. The work referred to is *Kerum memorabilium jam olim deperditarum at contra recens atque ingeniose inventarum*. Hamburg, 1599.

[238] Howell, James, 1594-1666, Historiographer Royal to Charles II., published several series of *Familiar Letters*.

[239] Osborne, Francis, 1589-1659, author. *The Advice to a Son* was written for his son when at Oxford.

Its a custome in Pictou that if a gentlewomen would have hir galland passe his gates[240] or any other to a other they have no more ado but to set the wood on one of the ends of it in the chemly and they wil not readily stay.

[240] Go away.

In France the father of the bride, if on life, accompany'es his daughter to the church; the worthiest of the company leading hir home, as wt us: yet at Saumur the bridegrome leds home his oune spouse.

In France they observe that they have usually great rains about Martimess, which we saw werified. When a great rain hath fallen we have sein al sortes of peaple, prentises wt others, wt racks and shovles cume furth to cleange the gutters and make the passage clear that it may not damme before their doores; for the streets are but narrow at Poictiers and none of the neitest. Orleans hath wery neit streets, amongs others on that goes from the end of toune to the other.

A woman laying in child birth they call *commair*.

Our curds and whey (which they make not so oft as we) they call *caill botte*. [241] Milk is a great delicat in France. I never hard it cried up and doune the streits, as its wt us, tho they have many cries we have not.

[241] *Caillebotte*, curds,

They report of their sorciers and sorciares victches that they have their assembles and dances wt the Dewill, especially the evening of *Marde gras*. They look on the *corbique* or raven as a bad prognostick of death; the pie tells that some strangers's to come.

The Jesuites whipes their scollers wery cruelly, yea they whipt on to death at Poictiers: yet the father could obtaine nothing against them. The greatest affront that can be done to a woman is to cut the tayle of hir goune from hir, or even to cast ink in her face, since that a lovely face is the principal thing that commends a woman, hence as the greatest reproach a man can be upraided wt is *bougre* or *j'en foute*; so the greatest of their railings against a woman is to say, *vous avez eu la robe coupé au queue*. It hath bein practicat on some.

A man would take good heed that he never desire a woman a drink in company, for the Frenchwomen take it in very il part, and some hath gotten on the cheak for it.

They think a man does them honour in making them go before him; so that a Frenchman wil never readily steep in before any woman of faschion, tho it be just contraire in our country.

The 11 of November is St. Martins day, a very merry day in France. They passe it in eating, drinking and singing excesivelie. Every one tastes his new wine that day, and in tasting it takes to much; their be wery few but they are full. The Suisses and Alemmands (who drink like fisches, as we know in Mr. le Baron and his creatures at Orleans, each man each night could not sleip wt out his broll[242] or pot, which the Frenches their *L'abbé Flacour* and *Brittoil* mockt at) findes only 3 good festes in France, Mr. St. Martin, [243] Mr. les trois Rois, and Mr. marde gras, because al drinkes bitch full thess dayes.

[242] I have not found this word elsewhere.

[243] It was customary to speak of saints as Monsieur St. Martin, Mme. Ste. Catherine, etc. Lauder extends the usage (whether correctly or not) to Mardi Gras.

On the morrow after opened the Palais, which sits neir 10 moneth together, whither we went to sie the fashion. First their massers have not silver masses as ours have, only litle battons, yea the massers to the parliament at Paris have no more. Next none most bring nether swords nor spurs wtin any of the bars: the reason whey swords have bein discharged is because that judges and conseillers have bein several tymes assassinate on the bench be desperate persons poussed forward be revenge; whence a man bringing on wtin the bar wil be made prisoner: yet we had ours the first day.

The judges being sit doune on the bench, the Kings Advocat began a harangue, reading it of his papers, wery elegantly extolling the lily or *fleur de lis* above al other flowers, and then France and its Kings above all other nations, alleging that the whitnese and brightnese of the lily denotated the purity and integrity of justice thats don in France. He ending, the president in his scarlat robes (for they war al so that day wt their 4 nooked black bonnets lined wt scarlet) began a very weill conceived harangue in the commendation of justice and vertu. That being done they gave their oath wt the Advocats and procureurs or Agents (for they swear anew every sitting doune of the Palais, when we give but one oath for all wt us and that at the entry vnto to the office); the judges that they sal passe no sentence contraire to ther conscience, but that they sal judge *2dum allegata et probata*; the Advocats that they shal never patronize a false cause; and if any cause they have taken in hand appeir after to them false, that they sall immediatly forsake it: that they shal plead the causes of the widow and orpheling, etc.

The Praesidial of Poitou at Poitiers is the greatest of France: yea it consistes of mo conseillers or judges (to wit, about 30 wt 2 Kings Advocats, 2 Kings procureurs), is of greater extent then several parliaments: their be not so many membres in the parliament of Grenoble, which is for Dauphiné, etc. The parliament of Dijon for Burguogne hath not so great extent.

The song they sing at St. Martins is thus:

'Pour celebrer la St. Martins,
Il nous fault tous chanter et boire
Celuy quy a converty L'eau au Vin
Pour luy que ne doibt on point faire
A[244] le bon vein, bon vein, bon vein,
Chasse de la melancolie
Je te boire[245] Jusque a la lie.'

[244] Probably for Ah!

[245] For *boirai*.

My host after his drinking of his glasse of wine, usually lifting up his eyes to heaven in admiration, shakt his head (as we remember Charles his nurse did at the seck),[246] crying, oh but win is a good thing (tho poor man I never saw him drunk), protesting that he would not live in our country because he could not drink ordinarily win so cheap.

[246] Sack.

Its a little strange to see what alteration a sad accident may procure in a man: befor that scandal he fel under by his wife wt Mr. Douglas, to wit, in the tyme of Mr. Hope and my cousin Mr. Elies (as he and his wife confesses), he was one of gailliardest, merriest fellows that one could find amongs 100, ever since that, tho' he reteans something of his former gailliardness, taking it by fits, yet he is not like the man he was, as Madame hath told me. I seeing him mo jealous then a dog of his wife because she loved so weill to play at the carts and wandring from hir house to hir commorads, likt better their houses then hir ounge. Oh, but she was blith when he went to the country upon any affair, she minding him of his affairs

at Partenay or elsewheir to have him away; and in the interim from the morning to 12 howers at even, even whiles at midnight, she would not have bein wtin a hower.

There ware only 5 or 6 of the women of the Religion that ware players at carts (as Mr. Dailly reproached sewerall tymes his wife, that she bit be on of them) all thir, when he was goon, come branking[247] ay to hir house, collationing together. The first 3 moneth I was their she used all the persuasions she could to draw me to be on of their society, or at least to bear hir halfe in the gaine and the losse (whiles she would loss 2 crounes, tho she made hir husband beleife she wan), but I would do none of them (remembering my fathers expresse to beware of play, especially at carts and wt sick creatures), alleadging always that I knew nothing of the play. They offered to learn me, for they came sewerall tymes a purpose to draw me on, but I sayd I had other thing ado. I am exceedingly weill satisfied at this present I did not engage. She hath told me ay, O Mr. Hope have played wt us: I replied Mr. Hope might do what he pleased. Return Mr Dailly when he please he could never find his wife wtin: some tymes he would have come home at 12 howers wheir she expected not: when she would come home and find him their, oh whow coldly would she welcome him and the least thing would that day put her out of hir patience, for she had ether in the afternoon trusted to come again to them, or trusted them to come to hir.

[247] Prancing, tripping.

Thus shortly out of many things, Henry the 4't was a most galliard, pleasant, and merry prince: his queens Marguerit (as we show else wheir) was thought to play by him. On a tyme as he was making himselfe merry dancing a ballat wt some of his nobility, each being obliged to make a extemporary sonnet as it cam about to him to dance, the our-word[248] being, *un cucou mene un autre*, it fel the Marquis of Aubigni (who was of

Scots progeny, his goodsire was Robert Stuart Mareschal of France under François the first; it was this Aubigni who told Henry when he was wounded by the Jesuists scoller in the mouth, God, sire, hath suffered you to be stoobed in the mouth, etc.) to dance wt the King in his hand and make his couplets, which I fand right quick:

[248] Ourword, overword, refrain, like ourcome and ourturn.

'Si toutes les femmes vouloyent les hommes cuco seroyent; les Roys comme les autres, un cuco mene un autre,'

Henry confessed he had win at him in his sonnet.

Follows some enigmes found in a Romance penned by Beroaldus,[249] named *le voyage des princes fortunez*, wtout the explication, whence Mr Daillé set me on work to resolve them: resolved sewerall betuixt us.

[249] Beroalde de Verville, François, 1558-1612, philosopher, mathematician, and author of lighter works. *The Voyage* was published in 1610. Paris.

Un pere a douze fils qui lui naissent sans femme,
Ces douze aussi sans femme engendrent des enfants;
Quand un meurt l'autre naist et tous vivent sans ame.
Noires les filles sont, et les males sont blancs.

(The Year.)

Un corp qui n'a point d'ame a une ame mouuante,
N'ayant point de raison il rend raison des temps;
Bien quil n'ait pas de vie une vie agissante
Sans vie se fait vivre marchant sur ses dents.

(A cloack.)

Their follows that of a coffin that none care for, then,

Voulant aller au ciel, si je suis empeschée,
Les ieuz des assistans en larmes couleront;
Si pleurent sans regret ie ne suis pas faschée
Car quaud j'iray au ciel leur larmes cesseront.

(Its rick.)[250]

[250] Reek, smoke.

Le vivant de moy vive sa nurriture amasse
Je recoy les vivans haut et bas se suivans
Lorsque ie suis tué sur les vivans je passe,
Et ie porte les vifs par dessus les vivans.

(A oak wt its fruit feiding swine,
then cut and made in a ship
cairyen men over fisches.)

Bienque ie sois petit i'ay une soeur geante
Qui me rends de grands coups qu'encore je lui rends;
Nous faisons ceste guerre entre nous bien seante.
Car c'est pour la beauté de nos propre parens.

(The hammer and smiths studie.)

Je n'ay sang, os, ny chair, nerfe, muscles ni artere,
Bien que i'en sois produit et n'en tien rien du toute
Propre a bien et a mal je fais effect contraire.
Sans voix parlant apres qu'on ne a trunche la bout.

(A pen.)

Non male, non femelle, ains tout oeill en substance
Sans cesser il produit des enfans differens.
De la mort des ses fils ses fills[251] ont naissance
Et d'icelles mourant d'autres fills sont naisant.

[251] For *filles*.

(The Sun wt the day and night.)

Selon mon naturel ie m'escoule legere.
Mais par fois mon voisin m'estraint de ses liens.
Adonque on me void la mere de ma mere
Et puis fille de ma fille en apres ie deviens.

(Ice reduced to water.)

Ma soeur est comme moy de grande bouche fournis.
Elle l'a contre bas et moy deuer les cieux
L'ayde aux conservateurs d'appetit et de vie—
Et ma soeur (as I friend to the sick, so she) aux coeur devotieux.

(A bel and the Apothecaries mortar.)

D'une estoffe solide a point on me fait faire
Pour servir au endroits ou loge la soucy.
Mon maistre me cognoit lui estre necessaire,
Car ie lui garde tout, il me tien chere ausi.

(A key.)

Elle a le poill dedans et dehors est sa graisse
Et si peut elle ainsi au jour failly praevoir
Mesme en plein nuict les autres elle adresse
Faisant voir a plusieurs ce quelle ne peut voir.

(A candle.)

On cognoist au oiseau qui n'a point de plumage
Qui donne a ses petits de son teton le laict.
When it sies we sie not; when we sy it sies not.

(A batt.)

Ouvert de l'un des bouts une queue on me donne
Afin qu'avec le bec je la traine par tout,
Puis conduite au labeur que ma Dame ordonne
Je laisse a chasque pas de ma queue le bout.

(A neidle.)

Trois ames en un corps distinguées d'essence
Ensemble subsistoyent not knowing they ware so many,
Deux enfin ont pris l'air, puis de mesme apparence
En trois corps distinguez chacum les a peu voir.

(A woman wt tuines.)

We saw a book, originally written in Latin by a Spaniard,[252] translated in French, entituled, Histoire du grand royaume de la Chine situe aux Indes Orientales, contenant la situation, Antiquité, fertilité, Religion, ceremonies, sacrifices, Rois, Magistrats Moeurs, us,[253] Loix, et autres choses memorables du dit Royaume, etc., containing many things wery remarkable and weill worth the reading. showing how its bounded on al hands, having

the Tartars for its neirest neibhours, whom it describes whow it was discovered first by the Portugais, and the Spaniards at Mexico in Americk.

[252] Gonzalez de Mendoza.

[253] Usages.

To the wondrous fertility of the country, much of it laying to the same climat wt Italy, the Inhabitants addes great industry: no vagabonds nor idle persons being suffered amongs them but punished vigorously. They have no cloath. The meanest of the natives are cloathed in silk: its so rife their that its to be had almost for nothing.

France also hath some silk wormes wtin it selfe; but besydes the peins they most be at to feid them wt fresch mulberry leaves, they have no great abundance of them, whence they draw the most of their silk from Italy wheir its in great abundance; as Florence, litle republic of Lucques, Messin, as also from Grenade. Oranges of Chine are knowen for the best of the world. Cannel[254] (which growes not in France) is in its excellency their.

[254] Cinamon.

In selling and buying all things solid they weight them, even their mony, which hath no stamp, as in selling selks and other sick things, wheirin ther cannot be so meikle knavery as in metting them by elles.

Great abundance of silk caddez[255] cotton produced by a trie (not growing in france, but just as the tries distilles the pick)[256] as of musk, wt the manner whow they make it.

[255] A kind of cloth.

[256] Pitch.

The realme is found some 1800 leagues in longitude; 3000 in circumference. Its divided unto 15 great Provinces, each plenished wt wast cities, som of them taking 2 dayes to compasse them.

Their follows a description of the natural disposition, traits of face, sorts of cloaths wt the excercises the men and women are addicted to. They are al Pagans, worshiping plurality of gods, seweral things in their religion symbolizing wt the Christian, which may be imputed to some seeds of the Gospel the Aposle Thomas sowed their in going to the Indians, wheir he was martyred.

Divers good laws they have; one discharging expressly and prohibiting al natives of going out wtout the Royaume, for fear of bringing in strange customes, descharging any strangers to enter wtout express licence. The rights of succession of children to parents are almost the same as wt us. By infallible records to their admiration they fand that both the art of artillery, invented as was thought in Germany, and printing, invented, as is beleived, by Jean de Guttenberg, Allemand, not 200 years ago, ware amongs them, and of al older standing. Infinite other things we remit to be sought in the *Histoir*.

We are informed that a lardship of 5000 livres rent wil sell in France for a 100,000 livres; and by consequence a place of 15,000 livres a year at a 100,000 crounes;^[257] the prix being ay 20 years rents. It may wary in many places of France. Location-conduction^[258] of lands, called their ferming, are wery usuall in France; yea, the most part of Gentlemens houses rises wt that, having bein first fermier or goodmen^[259] (as we calle them) of the place. The ordinar tyme of the take is 5 or 7 year, not on of a 100, and yea being wiser then we wt our 19 and doubled 19 year takes.^[260] In the contract they have many fin clauses by whilk the fermier is bound to meliorat the ground in all points as by planting of hedges and fruit tries,

substituting by ingraftments young ones in the room of old ones decayed; finally he is tyed to do all things comme un bon pere de famille feroit.

[257] The crown is hero taken at 3 livres, or 5s. sterling (taking the livre at 1s. 8d. sterling).

[258] *Locatio conductio*, the Roman contract of letting and hiring.

[259] According to Jamieson's *Dict.* goodman meant (1) a proprietor or laird, (2) then a *small* proprietor, (3) latterly, a farmer.

[260] Tacks, leases.

We have already exemplified the hatred thats betuixt the Castillan und Portugaize, we'el only tel another. A Spaniard Bischof was once preaching on that, Let brotherly love continue, he say'd the French are our brother, the Italian our brother, Allemand, Scotese, English, etc., our brether; yea, I durst almost say that the Portugaiz is our brother almost also.

Many other stories I could report heir, as that of the poor man who fand himselfe marvelously filled wt the smell of meat in a cooks choop happened at Paris, and how the cook was payed by the gingling the mony, related by Cleark in his Exemples: that of the gentleman runing a race and giving the last to the Dewil, and the Dewils depriving the last of his shaddow; tho I can not conceive how the Dewil can hinder a body to cast a shaddow unless he perpetually interpose himself betuixt that man and the sun: that of the English to be married to a Scotsman, whom William Broun was admonishing of hir duty, that the man was the head of the woman, she quickly replieing that he bit to be her head, she bit to be the hat on his head above him, William sayd, that he would take his hat then and fling it amongs his feet: that of the tooth drawer and the lavement out of the

History of Francion:[261] that of him who playing at the bowls in John Tomsons greine wt a English Captaine, casting out together, wrong his nose so sore til it bled againe; being pershued by the Englishman for the wrong done, and put to his answers, being demanded of the fact, he replied he had only wipt his nose a litle straiter than he used to do his oune: that of King James and the collier, ye sould obey a man in his oune house: that apparition Henry the 4t saw as he was hunting in his pare at Fontainbleau, crying, *Amendez vous*: also that daughter of Brossier that feigned the Demoniacke so weill wt its circumstancies, to be found in Du Serres[262] History of Henry the 4t.: that of the Scotsman at Paris who wan so much be a slight promising the people to let them sy a horse wt its taille wheir its head sould be: that of on Martin Merry, who on a tyme pressing to win in to sie the King, the great Tresorier of England was at the door, who seing him so pert demanded him whither he would go; he replied, he would sie the King; the Thersorer told him he could not sie the King; then, he replied, I know what I'll do then; the thresorer thinking he was bravado'ing him, demanded him what can ye do, Sir; he answered, I'll go back the way I came then, My Lord; he finding the answer wery good, he immediatly went and told the King what had passed, who commanded Martin to be brought in and fel to and talked wt him. Also the story of the Baron de la Crasse, place, place, etc. Also the comoedy intituled Les Visionnaires. Also the reply of a excellent painter who had children wery deformed, on demanding whow it came that he drow sick exquisite portraits and had such il made children, ye neid not wonder at that, sayd he, since I make my portraits in the day and my children in the night.

[261] See p. 82, note.

[262] Jean de Serres, 1540-1598, author of works on the history of France and theology.

A man may get his portrait drawn in France, especially at Orleans, for a Pistoll. J. Ogilvy's hall is all hung about with portrait's of Gentlemen, all Scots, save only one Englishman (whom Lottis[263] alleged to have the manliest face of all the company; we on the contrary, that he had the sheipest), one woman called Richeson, whom my L. Rutherford[264] was in great conceit of; John's own portrait is twice their, his eldest son as a little boy, his daughters, My Lord [Bards],[265] Newbyths,[266] My Lord Cinhoules[267] brother, with whom J. Ogilvie came to France as page; Sir Robert Flecher of Salton, who died the winter before I came to France; David Ramsay, a brother of the Provosts,[268] so like him that I took it for the Provosts at first. Mr. Hayes was the last that was drawn, who parted from J.'s house to make the tour of France the March before I arrived, with divers other pictures. At Mr. Douls house we remarked the same in his sale; [269] only they were all Englishmen, save on Sword whose father was Provost of Aberdeen, and who when King Charles the 1st was at Newcastle caught him on his shoulder and impudently told him, he had spent our meikle.

[263] Query, l'hostesse, l'hôtesse, Mme Ogilvy.

[264] Probably Andrew Rutherford, first lord, a lieutenant-general in the French service, created Lord Rutherford, 1661. Governor of Dunkirk, Earl of Teviot, 1663, governor of Tangier, where he was killed, 1664. His patent as Lord Rutherford entitled him to bequeath the peerage to whom he pleased, and he left it to his kinsman Sir Thomas Rutherford of Hunthill, served heir 1665, died 1668.

[265] Interlined.

[266] Sir John Baird, advocate, 1647, lord of Session (title Newbyth) 1667, superseded 1681, restored 1689, died 1698, aged seventy- seven.

[267] Kinnoul's.

[268] Sir Andrew Ramsay, afterwards a lord of Session (title Abbotshall). Lauder married his daughter.

[269] *Salle*, hall.

We most not forget the Capucin, who, gazing on a stage play, had his prick stowed[270] from him instead of his purse. Also the good sport we have made wt Spiny when we presented him the rose filled wt snuffe, dewil! willain! ye most be hooled,[271] ye most, etc. I'm sorry for your case, etc. Also that we made wt Dowy when on night in our Basseler[272] year at night after the examination we put out the candles, I skein[273] brist him til he farted; then he brought Mr. Hew on us, he crieng, Douglas, Doug.; Lauder L., my hat amang you. Russel lay like a mart[274] in the midst of the stair; wt many other sports.

[270] Stown, stolen.

[271] Husked, probably gelded.

[272] Bachelor.

[273] Possibly J. Skein (Skene); brist = squeezed.

[274] Carcass of an ox or cow killed about Martinmas for winter provision.

The Laws of France permits, or at least forgives, a man to slay his wife if he take hir in the wery act of adultery; but if he slay hir after a litle interwall, as if he give hir lieve to pray a space, he is punished as a murderer, since its to be praesumed that that iust fury which the willanous act of his wife pouses him to, and which excuses his fact (since according to

Solomon even wery Jalousie is the fury of a man) is layd in that interwal, so that he cannot be excused from murder. Both hath bein practicat seweral tymes in France.

The punishment of women that beats their good men in Poictiers is that they are monted on a asse wt their face to the taile, in this posture conveyed ignominiously thorow all the toun: the hangman accompanieng them.

We most not forget the sport K. James made wt his fool who to chasse away the axes[275] had flied[276] him, and whow the poor fellow was found dead.

[275] Ague.

[276] Frightened.

The K. of France drawes more then a 100 million a year as revenues out of France besydes extraordinary taxations.

Theirs a wery observable difference betuixt on thats drunk wt win and on drunk wt beir, the win perpetually causes to stagger and fall forward; the beir and alle[277] backward.

[277] Ale.

A women drowen[278] is carried wt the water on her belly, a man on his back.

[278] Drowned.

Their ware 4 peasants in a French village on a tyme discoursing about the King. They sayd it was a brave thing to be a King. If I ware King (said the

first) I would rest wt ease all the day on that hy stack wt my vombe up to the sun: the 2nd, if I ware King I would eat my sup every day swimming wt bacon: the 3d, I would feid my swine *a cheval*: the 4t, Alas, ye have left me nothing to choose; ye have chosen all the best things.

Francois the 1t was a King that loved exceedingly to discourse and hear the minds of al ranks of people, as even our James. For that effect he seweral tymes disguised himselfe and all alone gon to discours wt common people. On a tyme he fand a poor man digging a ditch: he demanded what he wan every day by his peins. 5 pence at most, quoth he. What family have ye? I have my wife, 4 bairns and my old mother whom I nourish; but, further, I most divide my 5 pence into 3 parts every day: by on part I pay my debt, another I lean, the thrid, nourishes us. Whow can that be, can 10 turners[279] maintain you a whole day? Sir, 10 I give to my old mother every day as payment of what she bestowed on me when I was young; 10 I lean[280] to my children, that when I am old and cannot work they may pay me again; the other 10 is betuixt my wife and me. The King proponed this to the courtiers to resolve him, etc.

[279] Turner, a copper coin equal to two pennies Scots or one bodle. Thus the 5 English pence, which the man got, are equal to 5 sous or 5 shillings Scots, and so to 60 deniers or 60 pennies Scots, or 30 turners.

[280] Lend.

In France a man wil do weill to take heid what women he medles wt; for if he get a woman of degre below himself wt child he most ether mary hir or tocher hir: if his aequal, ether marry hir or be hanged (which few chooses): if she be far above his condition (especially if a valet engrosse his masters daughter or sister not married) he is hanged wtout al process *brevi*

manu; the maid is thrust unto a convent to lead repentance their for hir lifetyme, since she hath prostrat hir honor so basely.

While I was at Poictiers a young fellow got a wanton cocquette, a cream keiper, wt child. For fear he sould be put to marry hir he quietly went and enrolled himselfe amongs the sogers whom the King was levieng at Poictiers. She gets notice of it, causes clap him fast and lay him prisoner. The Captain came to seik back his soger, since he was under the protection of the King, but he could not praevaile: they replied, if he war their for debt they would villingly release him, but since he was criminal they could not.

A soger may make his testament *quolibet modo* in France: he may write it on the sand, the dust as his paper, his sword he may make his pen and his blood his ink, according to Justin. T. Institut.[281] *de Testam. Militis*.

[281] Justinian, *Inst.*, 2. II.

Seweral tymes they have bein 3 moneth wtout a drop of rain in France, in which cases they make a great deall of Processions to obtain rain, tho they never do anything.

Some winters it freezes so hard wt us (as Mr. James [P. Ramsay][282] is Author, to wit, that winter after the visitation in 1646 when the Colledge was translated to Lighgow),[283] that in a basin of water after ye have lift your hand out of the water ere ye dip it again it was al covered wt a thin striphen[284] ice, and the 3d, 4t, etc. tymes.

[282] Interlined. It appears to be a correction. Patrick Ramsay was 'laureated' in 1646.

[283] The plague in Edinburgh, 1645-6, obliged the University to remove to Linlithgow for a few months.—Waldie's *History of*

Linlithgow.

[284] Striffan, film.

On the 17 of November opened the Law University at Poitiers, at present the most famous and renowned in France, usually consisting of above two 100 scholars, some coming to it from Navarre in the very skirts of Spain, several from Tholouse, Bordeaux, Angiers, Orleans, Paris, Rouan, yea from Berry it selfe, tho formerly Bourges was more renowned—their's almost nothing to be had their now—and tho in all these places their be Universities.

On its opening Mr. Umeau, our Alex's Antagonist, and who that year explained of the D.,[285] belonging *ad nuptias*, made a harangue of wery neit Latin, which is the property of this University. His text was out of the 4't book of the C.T.[286] 5 *de condictio Indeb. l., penultima*, whence he took occasion to discourse of the Discord amongs the Jurise.[287] raising 2 *quest. 1'o, utrum recentiores sunt proferendi antiquioribus: 2'do, utrum juniores natu maioribus*, wheir he ran out on the advantage of youth: *Quot video Juvenes candidatos tot mihi videor videre aequissimos Servios, sublimissimos Papinianos gravissimos Ulpianos, et disertissimos Cicerones: quod plura*[288] *stellae indubio*[289] *sunt jae magnitudines in Sphaerâ nostra Literariâ.*

[285] Digest.

[286] Code, title.

[287] Jurisconsults.

[288] Query, *plures*.

[289] Query, *sindubio*.

The Rector of the University was their, the Mair, the Eschewines, the President of the Palais, the University of the Physicians, wt a great heap of al orders, especially Jesuits.

We might easily discover that basenese we are so subiect to in detracting from what al others do'es but ourselves in that groundless censur of many things in this harangue which our Alex'r had wt another of his partizans.

Mr. Filleau (very like Edward Edgar) gives a paratitle on the title *pro socio*: he is on of the merriest carles that can be, but assuredly the learnest man in that part of France, for the Law. *Pro socio, pro socio*, quoth he, whats that to say *pro socio*, Trib.[290] speaks false Latin or non-sense, always wt sick familiar expressions.

[290] Tribonian.

Mr. Roy, whoss father was Doctor before him, explained that year T.C. [291] *de rescindenda vendit*. Mr. Gaultier, who left Angiers and came to be a Doctor their, explained the title of the canon L.,[292] *de simoniâ et ne quid pro spiritualibus exigatur*.

[291] Title of the Code.

[292] Lex.

For Mr. Alex'r its some 17 years since he came to France; he had nothing imaginable. Seing he could make no fortune unless he turned his coat, he turned Papist; and tho he had passed his course of Philosophy at Aberden, yet he began his grammar wt the Jesuits; then studied his philosophy, then married his wife (who was a bookbinders wife in the toune and had bein a women of very il report), 50 year old and mor, only for hir gear, and she took him because he was bony.[293] Studied hard the Law (Pacius,[294] as

he told me, giving him the 1 insight) and about some 5 year ago having given his trials was choosen *instituteur*,. He is nothing wtout his books, and if ye chap him on that he hath not latley meditate on, he is very confused. He is not wery much thought of by the French, he affectats to rigirous a gravity like a Spaniards, for which seweral (as my host) cannot indure him. Also his pensioners are not the best treated. We have sein P. and D. Humes seweral tymes breakfast: they had nothing but a litle crust of bread betuixt them both, and not a mutching botle of win for my.[295] I never almost breakfasted but I had the whole loave at my discretion, as much win as I please, a litle basquet ful of the season fruites, as cherries, pears, grapes: in winter wt apples. Also by Ps confession he drinks of another win, better than that his pensionars drinks of. Also if their be on dish better then another its set doune before him: he chooses and then his pensionars when its iust contrare wt me.

[293] Bonnie.

[294] Pacius, Julius, 1550-1635, jurist.

[295] Me.

He began his lessons 23 of November. A Frenchman casting up the Rubrics of the D.,[296] he fand *de edendo*. He showed himselfe wery offended whey Tribo. had forgot, T.[297] *de Bibendo* also.

[296] Digest.

[297] Titulus.

We most not forget to buy Gellius and Quintilians Declamations at Paris.

A Coachman was felled dead dressing his horses; 5 masons ware slain at the

Carmelits by the falling of a wal on them.

Mr. Alex'r in salaire hath only 600 livres, the other 4 each a 1000, also seweral obventions and casualities divided amongs them, of which he gets no scare, as when any buyes the Doctorat. He is a hasty capped body. Once one of his servants brook a lossen,[298] he went mad, and amongs other expressions he had this: these maraudes[299] their break more to me in a moment then I can win in tuo moneth. They have no discourse at table. He cars not for his wife. That night the *oubliour*[300] was their and she would not send another plat[301] he threatned to cast hir and hir family over the window.

[298] Pane of glass.

[299] Rascals.

[300] *Oublieur*, pronounced *oublieu*, pastrycook's man, who came round in the evening selling small round cakes, *oublies*.

[301] Plate.

We on night fel to telling of notes of preachings, as of the Englisman preaching on that, In came Tobit, and much controverted whither they called it baty, light feit or watch;[302] and of the minister that sayd, Christ, honest man, liked not war, sayd to Peter; and of on preaching on that, And Abram gave up the ghost, sayd that it was wery debated if it was for want of breath or not, that he durst not determin it. Of a Preist preaching on the miracle wt whilk Christ feed a multitude wt 5 loaves, it was not so great a miracle, quoth he, as ye trow, for every on of the loaves was as meikle as this Kirk: a baxter being at the pulpit fit[303] started up and demanded wheir they got a oven to bake them in, and a pole to put them in and take them out. Ye are to curious, quoth the preist, go and bake your oun bread

and medle not wt Christs, they had other ovens in the days then they have now and other poles to, and do ye not think but Christ could have lent them a pole. Also on who praying for the King our dread souveraine Charles by the grace [of God] King of S[cots], etc., supream governour, instead of under the[304] and they sone Christ, sayd over the. Also of another who praying for the Illustrious Duke of York, sayd the Lusty Duk. Also whow a hostesse at Camphire served Mr. R. Macquaire, being their to dine, wt a great deall of other company, he was desired to seik a blissing, he began so long winded grace that the meat was all spilt and cold ere he had done. The wife was wood[305] angry. The nixt day comes, the meat was no sooner put to the fire but she comes to Mr. R. and bids him say the grace. Whats your haste Margerit, is the meat ready yet? No, Sir, but its layd to the fire, and ere ye have ended your grace, it wil be ready. We most not forget the Swisse, who coming in a cabaret at Poictiers demanding for win, drank for his oune hand 15 pints, calling for a reckning they gave him up 16 pints. He told they ware cheating him of a pint, for he know weill the measure of his womb, that it held no more but 15 pints, wheirupon he would pay no more but for 15. Also of the Preist who bringing our Saviour in the Sacrament to a young galliard very sick, sayd, behold, Sir, Christ is come to visit you. The sick party replied, I sie very weil that Christ is their by the carrier of him, for as he was knowen at his entry unto Jerusalem by his asse that carried him, so do I know him at present.

[302] The meaning is whether Tobit's dog was to be called a comman cur (baty), or a greyhound, or a watch-dog. The dog does not appear in the English version of the Apocrypha, but in the Vulgate.—Tob. vi. I. Profectus est autem Tobias et canis sequutus est eum, et mansit ... juxta fluvium Tiberis.—xi. 9. Tunc praecucurrit canis ... et quasi nuncius adveniens, blandimento suae caudae gaudebat.

[303] Foot.

[304] Thee.

[305] Mad.

Wonderful was the temperance and moderation of the ancient Romans, yea greater then whats to be found amongs Christians even now. They know[306] no more but on diet a day, and that sober enough. At the first tyme that some Greeks came to Rome, and the Romans saw them, according to the custome of their country, eat thrise a day, they condemned them for the greatest gluttons that could be.

[306 1] Knew, as on p. 91.

That story of the General (Fabritius) Roman is weill knowen: who at his ennemies brought a wast sum of mony to bribe his fidelity to the commonwealth, they fand him busy stooving a pot of herbes to his supper, wheiron he answered them, that a man as he, that could be content wt sick a disch, could not readily be temted wt all their gold. Also of him who being choosen Dictator they fetched him from the plough to his dignity, sick was their industry.

For a long tyme amongs the Romans old age was held such a ignominious thing that they could not get the scurviest coalsteeler in Rome that would act the person of a old man, not so much as in Comoedy.

For 500 years, and above, after the building of Rome, it [divorce][307] was not knowen for a man to put away his wife. The first was one Spcius[308] Carvilius, who under the praetext of sterility divorced from his wife.

[307] Interlined.

[308] Spurius.

We most buy that infamous book of Miltones against the late King,[309] wt Claudius Salmasius answer.[310] Surely it shal stand as long as the world stands for a everstanding memorandum of his impudence and ignorance: its nothing but a faggot of iniury (calomnies), theirs not on right principle either moral or politick to be found in it al; its penned by a pedant, a scoolmaster, on who deserved at the cheapest to be torn in peices by 4 horses. Neither in our judgement, tho he deserves not to be refuted, hath Salmasius done so weill to the cause.

[309] *Iconoclastes*, 1649.

[310] *Defensio Regia*, by Claude de Saumaise, 1588-1653.

A Parisian Advocat cited some civil Laws of whilk he was not sure: his Antagonist retorting that their ware not sick a Law nether in the C nor D,[311] he replied, if it be not their yet it sould be their tho.

[311] Code nor Digest.

About the 12th of December 1665 at Poictiers ware programmes affixed thorow the toune intimating that the Physitians Colledge would sit doune shortly, and that their Doyen Deacon, on Renatus Cothereau, a wery learned man in his lessons, *Podagram hominum terrorem artuum que flagellum medicinali bettio acriter prosequeretur*; hence it hath[312] this exclamation, *accurrite*[313] *itaque cives festinate arthici*.

[312] Meaning, probably, 'then follows.'

[313] For *accurrite*.

The same Renatus had a harangue at the beginning wherin he descryved very pedantically the lamentable effects it produces on the body of man: amongs his salutations, I observed this, *Themidis nostra Argonauta sacratissime, fidelissime, æquissime*. They get no auditors to their lessons, whence its only but for faschions sake that they begin their colledge, of which they have nothing but the name.

We have observed heir in France that on their shortest day, the 22 of December, the sun sets not but a hower, almost, after its set to us, to wit at 4 acloack, and that they have light a quarter almost after 5. Also looking to their Almanacks I fand that it rose on the shortest day at 7 acloack and some minuts, when it rises not to us but after 8, so that they have in winter at Juile[314] a hower at morn, as much at even, of sun more then we have. Their 2 howers we gain of them in the summer, for at our longest day we have a hower sooner the morning the sun then they have; we have it at 3 howers, they have it not til 4 wt some minuts. At even also we have a hower of sun after that he get to them on our longest day, for by their Almanacks he sets on that day in France, or at least at Poictiers, at 7 acloack wt some minuts, wt us not til after 8.

[314] Yule.

Their is a very considerable difference betuixt the French summers and the Scots: to wit, in their heat; but surely we could remark none in their winters. Its true we had no considerable cold before Juile, Noël (tho their fel a drift of snow about the end of Octobre, French account), yet we fand it sickerly when it came, so that I do not remember that I felt it colder in Scotland then it was for a space together. Its true it leasts not so long heir as it does wt us.

Juile is a great feste in France. The Papists are very devote on it, yea so religious that they go all to Church at midnight to hear Masse, for a preist

hath that day power to say thry masses consecutife, when at another tyme he can say no more but on at a tyne. I went after dinner and hard the cordelier at St. Pierre. The rest of our Scotsmen ware so curious as to go hear Midnight Masses. As for me I had no skil of it it was so cold; and surely I did not repent it considering the affront that they got, that they ware forced to render their swords at the command of the Intendant who the night before was come to toun from the Grand Jour[315] that was then in Auuergne. This he caused do following the mode of Paris, wheir no man is suffered to carry a sword that night, both by reason of many quarrels begun that night, as also of sewerals that take occasion to decide former quarrels on that night. Surely they had no satisfaction in that Mass.

[315] High Commission sent down by the king to the provinces as a final Court of Appeal.

During the tyme I was heir I fel in discourse wt the Jesuites, going once to sy our countryman Pere Broune, who was wery kind to us al, and came and saw me after.

About the tyme was that poor smith, of whom we made mention before, execute, who was the first we ever did sie in France. Tho he had receaved his sentence at Poictiers, yet that could serve til he was taken to Paris (for the Capital tounes of France are not royal boroughs as our are, having the power of heading and hanging wtin themselves), wheir he was condemned to be broken on the wheel, to be *rouée*, tho according to the custome of France he know not that he was sentenced til about 2 howers before he was broken, for by concealing it up til then they keip them from taking wiolent courses to prevent their death which they would take if they know of it, as killing themselves, or means to ecscape, tho otherwise it be very il for their souls, they having so short tyme to prepare themselves for death. They made this poor fellow beleive that he was only condemned to the galleyes, at

which he laught, telling that it appeared they knew not he was a smith, so that he could easily file his chaines and run away. About 12 a'clock on that day he was to be executed he was conveyed to the Palais to hear his sentence, where it was read to him on his knees, the hangman *bourreau* at his back with a tow in his hand. The sentence being read he puts the tow about his neck with these words, *le Roy vous salue, mon amy*, to show him that it is the King that causes him to die. His sentence is read to him again at the foot of the Palais, as give ye should say at the coming of the Parlement close, or Ladies Steeps;[316] and then a third time on the scaffold.

[316] Steps close to St. Giles's Church. See Wilson, *Memorials of Edinburgh*, 1891, vol. i. p. 260.

There were more than 10,000 spectators at the Marcher Vieux. In the middle of it there was a little *eschautaut*[317] erected, on which were nailed 2 iests after the form of a St. Andrews cross, upon which the poor fellow was bound on his back, with his 2 arms and his 2 thighs and legs on the 4 nooks of the cross, having been stripped naked to his shirt. After he had prayed a little and the 2 carmes[318] that assisted him, the *bourreau* made himself ready to execute the sentence, which was that he should get 2 strokes quick and the rest after he was strangled.

[317] *Echafaud*, scaffold.

[318] Carmelites.

At Paris in breaking great robbers, for the better example they do not strangle them at all; but after they have broken all their bones to pieces almost, they leave them to die on the rack.

To return to our poor miserable, the *bourreau* with a great baton of iron began at the arms and brook them with two strokes, then his knees, then a

strook on every thigh, then 2 on the belly, and as many on the stomach; and after all thir, yea after the 20 strook, he was not fully dead. The tow[319] brak twice that was ordained to strangle him. In sying what this cattif suffered made us conclud that it was a cruel death to be broken in that sort.

[319] Rope.

We cannot forget how coldrif the French women seimed to be in the winter. The marchands wifes and thorow all the shops every one have their lame choffer[320] ful of rid charcoal wt their hands in among the mids of it almost. The beggar wifes going up and doune the streits had them also.

* * * * * [321]

[320] Earthenware chafing dish.

[321] Twenty-two lines erased in MS.

We cannot forget the shift that the poor folk which have no bowets[322] (which generally are not so good as ours) take when they go out under night, as I have sein them when I have bein going or coming from Mr. Alex'rs, and it would have bein so dark that I could not sy my finger before me. It is they take a peice wood thats brunt only at one end, and goes thorow the toune waging[323] it from one syde to the other, it casting a litle light before him. It would almost fly[324] a man in a dark night to sie it at a distance, and always approaching him, til he keen what it is.

[322] Lanterns.

[323] Wagging.

[324] Frighten.

We cannot but insert a not of a Northren Ministers preaching. His text was about Piter's threefold denial of Christ, and that wt oaths. Beloved, its very much controverted amongs the learned what ware the oaths that Piter swoore, yet the most part condeschends that they ware thir: the 1, God confound me, if I keen such a man; the 2, Devil ding me in testons;[325] the third, by Gods wounds, I do not keen him. Mungo Murray of the life gard was in the kirk, and resolving to make sport came to the Minister after the kirk was scailed, telling him that he agreed wt him about the 1 [first] 2 oaths that they ware so, but he could not be of his mind about the thrird, by Gods wounds, for Christ had not yet received any wounds, so that he could not swear by Gods wounds. The Minister began, Sir, I am very glad that ye take the freedom to propon your doubts, for its a signe of attention. As to your difficulty, ye would know that a man when he is sorest prest he wil swear sorest, so that Peter keipt the greatest oath last; also ye would know that it was a Profetical oath, as give he sould have sayd, by the wounds that Christ is to receive.

[325] Teston or testoon, a small silver coin. The last in Scotland were coined by Mary in 1561, value 5s. Scots.

In the Hylands their was a minister that was to give the Communion to his Parish wheir it had not bein given 6 or 7 years before. For that effect they sent to Monross[326] to buy the win, which being come, he and his elders bit to tast it for fear of poisoning their honest parishioners. Er ever they wist of themselves they fand it so good that they licked it out every drap, and was forced to give the communion in good rid aile.

[326] Montrose.

We most not forget the story of the English Capitaine, who thinking to flie his Hostesse, he was so frighted himselfe, his man wtout his direction

having bought a great oxes hyde and covered himselfe wt it, that looping over the stair for hast he brake on of his legs.

Wheir 2 layes in a chamber together, their are many wayes to flie on another. We might take a litle cord or a strong threed when the other is sleiping, bind it to his covering or bed cloaths, then going to our oun bed wt a end of the string in our hand, making ourselfes to be sleiping, draw the string to us, and the cloaths wil follow, and he wil be very ready to think that its a spirit. Also ty a string to 2, 3 chair feet, and so draw them up and doune the house. He that knows nothing of it wil impute it to a ghest.

Any tymes I was angry at the Frenchmen, if so be I was familiar wt them, I fell to and abuse them in Scots, as logerhead, ye are a sheip, etc. Their was no way I could anger them worse then to speak in Scots to them.

The consuetuds and rights of nations about hunting and halking throughout the most part of the Christian world are wondrously degenerated from the right of nature and nations and the Civil Law following the footsteps of both. According to thir, all men have æqually the liberty of chassing of wild beasts, no sort of folk being excepted, and that not only in their oun land but also in any others, since vild beasts, wheir ever they be they are always wild beasts, apparteneing to none; for if that the wild beast is on my ground sould make that it be estimd myne, then leiving my ground it leives of to be myn, and by entring unto my neibhours it begins to be his, and so it might change a 100 masters in one day, which is absurd. We might as weill say that the piot that bigs[327] on my try is myne.

[327] Magpie that builds.

This liberty is exceedingly impaired by the consuetudes at present, so that nether can we hunt all beasts, the King having excepted dears, harts, etc., so that its not lawful for any to chasse or kil under the pein of a fine 500

francks, except only the King and some few others, great peirs, who have their permission from the King.

Nether is it permitted for all indifferently to hunt, clergymen are decharged it, Peasants also. Its confessed also by al that Kings may discharge their subjects the pastime and pleasure of hunting, especially thess who holds their lands in fief immediatly of the King, which he called fiefs royalles, whom he may hinder to hunt in their oun ground, ower which they have ful power otherwise to sel it, woodset it, gift it, or do wt it what I please: the same power have the inferior seigneurs. Lords in giving lands to vassals, men who have bein serviceable to them in many occasions whom they cannot recompence in mony, they give them a tennement of land, they usualy retain the right of hunting in these lands only to themselves.

Halking in France is a excercise not permitted to any under a gentleman.

We have sein its not permitted to al to hunt; also its not permitted to hunt al beasts; also its not permitted now to hunt indifferently in al places. The Kings keips their parks filled wt wild beasts, wheir its not leasum for any to hunt but themselves, as Fontainbleau and St. James Park. The nobility have also the same right of keiping sick parks; as witnese upon the rode bothe of England and France we meit wt noblemens incloseurs wheir would [be] 2 or 300 dears.

Yea, in France its not lawful to shoot wt the gun in another mans ground; so that if a man take another guning in his ground, he usualy takes the gun from him and breaks over his shoulders. If he can hinder a man to shoot in his ground, much more may be hinder him to hunt, since the on is more praeiudicial to him then the others; for its done wt greater noice, also does more damage to the cornes or wines.

What might be the reasons that have moved the Princes to hem in so narrow bounds the rights of Hunting by the right of nature and civil Law so patant to all are to be found in Vesembec,[328] paratitlo *de acquir[endo rerum dominio.*], For fear that the whole race of beasts sould soon or sin[329] be totally extirpated wt the multitude of hunters, if al ware permitted to hunt. 2do, Least to many (as we sie at present) being to much taken wt the plaisir of the sport sould forget their businesses of consequence. As to that obiection, that hunting being from the right of natur, which is unchangable, it cannot be prohibited by any civil Law, I say hunting is not from the rights of nature commanding but permitting.

[328] Matthew Wesenbec, Dutch jurist, 1531-1586.

[329] Sooner or later.

Its a custome in France that when a young woman unmarried is condemned to dy for some offence (unlesse the fault be al the grivevuser) that if the hangman be unmarried he may sick hir in marriage and get hir hir life that way: that their hes bein seweral that have refused it and choosen rather to die. This hes great resemblance wt that custome in England that a man being sentenced to dy, if a common whore demand him in marriage she wil get him; it being a charitable work to recal a whore from hir loose and prophan life by making hir marry. Yet surely both the on custome and the other is but a corruptel and a mocking at Justice.

The accent the French gives the Latin is so different from ours that sometymes we would not have understood some of them (for the most part I understood them weil enought), nor some of them us. Ether we or they most be right, but I dout not to affirm but that the accent they give it, straining it to the pronuntiation of their oun language, is not natural, but a vicious accent, and that we have the natural. My reason is, because if their be any wayes to know what was the Accent the ancient Romans pronounced the

Latin wt it is the Accent that the Italians gives it and their oun language, which is a degenerated Latin, who be the Romans posterity; but so be they give it the same very accent that we do: the French ware never able to answer me this.

As to ther pronuntiation of the Greek I could never keip myselfe from laughing when they had occasion to read Greek or any Greek sentence, even their Doctors of Law: vitnesse le Berche at Orleans whom I attended 2 moneths, that Greek that occurs in the 2 T. 1 book of the instituts,[330] [Greek: ton nomon hoi], he pronounced it [Greek: hi; men agraphoi], pronounced it [Greek: hagraphi; hoi, i; men engraphoi, phi]: as we observed also in Mr. Filleau at Poictiers, [Greek: dunamenon] esti, he pronounced the 2 last syllabes damned long. [Car [Greek: son kaphson] urens.][331] We could give infinite mo instances wheir they prononce it undoubtedly wrong.

[330] Justinian, *Inst.* i. 2: [Greek: ton nhomon ohi men heggraphoi, ohi oe hagraphoi].

[331] Interlined. The meaning apparently is that the French pronounced [Greek: kahnson], a New Testament and Septuagint word for burning heat, as if it were written [Greek: kaphson].

They do not name their points in writing as we do, that which we cal comma (following the Greek) they cal it alwayes *Virgula*; our colon, *duo puncta*; semicolon, *punctum cum virgula*. When we say *nova Linea* they say *a capite*, wt sundry others like that.

A woman witness is receaved in France in any causes whither civil or criminal: only wt this difference that for one man their most be 2 women, id est, wheir 2 men being ocular witnesses of a murder wil condemne a man, their most be 4 women, under which their witnes is not admitted.

They have their penny bridles[332] in France as well as we in Scotland. When a servant woman marries, her master brings with him folk to their wedding as he can get, who cast in into the plat according to their pleasure. They will be ready enough to promise on back the half of his again with the dessein so to engage the rest to give more.

[332] See *Scotland and the Protectorate*, C.H. Firth (S.H.S.), vol. xxxi. p. 410, note.

About the beginning of February 1666 came Comoedians to Poitiers. I went and saw them severall tymes. The first was called Odip, who resolved the Sphinx his enigma: was so unfortunat to slay his father by ignorance, marry his mother, and to conclude all to put out his owne eyes: the fellow acted his griefe exceeding livelylie. The farce was *le Mariage du rien*. A fool fellow in a schoolmasters habit with a ugly nose, which I was angry at, a scoop hat, comes on the stage with his daughter, who proposes to him that she apprehended furiously that she might dye a maid and never taste of the pleasure in marriage. In comes a poet to suit him, falls out in the commendation of Poesy; his father shoots him away, saying that all the Poets were fools. In comes a painter who praising his art, whom also he puts away, saying that the painter were poor drunken fellows. After came a Musician, who fell to sing: he called him a cheater. Then came in an Astronomer, whom he put away because he could not tell whether he would give him his daughter or not. Then came in a Captain, a floop[333] like fellow with his sword about him, making a very fool reverence, who rodомontades a space, telling that he had made the Devils tremble; that he was that Achilles in Homer, that Eneas in Virgil, that Ajax in Ovid, and that all that historians wrote of brave men was only of him. At last came in one that called himself nothing, that would assume no title to himselfe. Not finding anything to object against him he accepted of him.

[333] Floop or flup, awkward.

In the comoedy when the King stood very scrupulously on his word, his sister fel to to convince him that it was a shame to a King to be slave of his word, which was the great maxim of Cardinal Mazarini, as I was informed. Having sent to consult the oracle of Delphos, and it not deigning to answer him, in a rage he cried furth, *flectere si superos nequeo*, etc.

When a person dies in France they are very careful to mark in what posture after their death their feet are in; for if they be unæqually laying, on of them drawn up, they strongly beleive that by that the dead calls his or hir neirest friend let it be wife, father, or brother, on of which wil dy shortly after.

Its the faschion of the grandees when they die that they are exposed for 3 days after in a chamber hung all in doole[334] in their bed, also of dool, in the bests cloaths which they wor when they ware in life, so that al may come to sy them in that space. Their is holy water in the roome. The Dutchesse of Montamor, whiles I was at Poictiers, was thus exposed.

[334] Mourning.

The bairnes of France have the excercise of the tap, the pery,[335] the cleking,[336] and (instead of our gouf, which they know not) they have shinyes.

[335] Peg top.

[336] Clekin or Clackan, a small wooden bat in shape like a racquet.

In France they have apples without any seeds in them; also great Pavies[337] (which is the best sort of Peach) wtout any stone, which they informed me the curious does thus: they graft a peach in a old stock, the

bow the end of the imp[338] and causes it to enter in a other rift made in the stock, leaves it like a halfe moon or bow til they think it hes taken, and then cut it in 2. That halfe imp that was grafted first wt the head upmost bears peaches according course of nature wt stones in them, the other, which growes as give ye would say backwardlies bears wtout any stones. This has bein practicat. They'le impe[339] any tyme of the year in France.

[337] Sorte de pêche, dont la chair est ferme, et qui ne quitte pas le noyau.—Litttré, *Dict.*

[338] Shoot.

[339] Graft.

About the mids of February was receaved a new fencing master, whom we saw give his trials: the Mair made a assaut against him first, then the fencing masters, then some schollers.

A litle after was the Queen mothers panegyrick or *funebre oraison* made at St. Pierre in a prodigious confluence of peeple of al ranks; the Intendant, the President and the Conseillers, the Mair, the Eschiwines,[340] and the Maison de Ville assisting; also many of the religious orders. The Cordelier who preached the Advent before and the caresme after made the harangue. He deduced hir glory and commendation, lo, from that she was Anne of Austria, which is the province in which standes Vienne, the Metropolis of Germany; that she was Philip the 3d of Spaines daughter; next that she was Queen or wife to Lowis the Just, 13 of that name in France; 3dly, that she was mother to Lewis the 14't, so hopeful a Prince, after she had bein 23 years barren. Whence he took occasion to show that tho virginity and coelebat was wery commendable, yet that it was no wayes so in the succession to crounes. He had also heir a senselese gasconad which nobody approved of, that St. Gregoire sould say that as far as Kings are exalted

above other men, that in so far the Kings of France ware above al other Kings. In the 4th place he fand a large elogium to hir in that she falling widdow she becam Regent of hir sone and the Realme during his minority. Hir last and principal commendation was that she was a Princesse most devot and religious.

[340] *Echevins*, municipal magistrates.

We was at comoedy, the farce of which was called *Le cocus imaginaire*. Their ware some honest women craking[341] togither on a tyme, they came among other things to speak of Eve and hir transgression: on of them cries furth very gravely, oh, that I was not their, I wish I had given hir a 12 penie loaf on the condition she had not eaten the apples.

[341] Chatting.

Wery rich stuff has bein heard at the examens in Scotland, some ignorant folks wt their answers being wery pleasant and merry. Mr. J. Smith, Minister of the Colledge Kirk, examining a bonnet maker, of whilk theirs a great number in his parish, he speared at him what was effectual calling; the fellow, clawing his head, replied, the feekleest[342] calling I keen, Sir, is my oun. Kid, minister of the Abby Kirk, spearing at one of my Lord Catheneses servant women what was the Lords Supper. She, thinking that he had speared what was for my Lords Supper, answered, Sir, or I came out I set on the pot and My Ledy hes sent pies to the owen. Mr. Robert Blair, examining a wery ignorant body, speared at hir, wheirof was ye made, Magie; the folk neir hand rounded and harked in to hir, of the rib of man. Of the rib of man, Sir. Weil said, Magy, quoth Mr. Rob, I'm very blaith to sie that ye answer better then ye did the last examen. Who made man then? The people round about whispered to hir, God. God, Sir. Whirof made he him then, Magy? The people cried to hir then, of dust and clay: which she mistaking or not hearing weil, instead of saying of dust and clay, she said,

of curds and whey, Sir. I leive to ghesse whither them that ware their laught or not. Mr. Robert himselfe, tho a very grave man, could not refrain from smiling.

[342] Feckless, feeble.

In baptizing about the bairnes names ther hes bein mistakes both on the Ministers hand and the holder ups. Mr. James Vood was baptizing a man at St. Andrews, and instead that he sould have baptized James, he called it John. The father, a litle bumbaized at this, after the barne is baptized and that he hes given it back to the midwife, he stands up and looks the Minister as griveously in the face and sayes, Sir, what sal I do wt 2 Johns, we have a John at home else, Sir? Whow would ye called then, Robin?
quo' the Minister. James, Sir. James be the name of it then.

Mr. Forbes told me that in the hylands once a mans wife was lighter of a lasse, the goodman was wery sick so that he could not go to church to present his ounie barne, wheiron he desires one of his freinds or gossips to go and hold it up for him. He bit to have a Scriptural name for his daughter, at last he agreed upon Rebecca. The man thought he sould remember weil enough of it. Just as he is holding up the child he forgets the name. The Minister speares, whow call ye it. Sir, they call it, they cal it, they call it, shame fall it, ay hir ounie selfe hes forgotten it. Yet I remember that its a name very lik tobacco. Many did laught wery heartylie at this, only some present remembered of the name, that it was Rebecca.

Having stayed at Poictiers til the 14 of April French accompte: some 20 dayes before that I was beginning to make many acquaintances at Poictiers, to go in and drink wt them, as wt De Gruché, Ingrande La Figonne, both Advocats sones, and of the Religion, Mr. de Gay, Borseau, Cotibby, etc.

* * * * * [343]

[343] Twenty-seven lines erased in MS.

I was beginning to fall wery idle, so that if I had stayed longer in Poictiers, I had alwayes engaged myselfe in more company, and so done the lesse good, whence I have a sort of satisfaction that I came away.

On the day of my departing I took my leive of Mr. Boutiet, Mlle. Alex'r, and Mlle. Strachan, Mlle. Chabate and hir mother wt some others, then went to the Chapeau d'or, wheir we dined, Mr. Alex'r, the Doctor, Sandy, Mr. De la Porte, Mr. Montozon (for Gorein was not in toune), and I. After having taken my leive of Madame Daillé (himselpe being at Partenay), I took horse before the buith door and came to the Daufin in the fauxbourgs, wheir I leapt of. The most part of the Hugonots going to their Temple, their I took my leive of Sandy'es wife, Madame Peager, and divers others. I took up to drink wt me Mr. de la Porte, De Gruché, De Gey, De Gaule, Barantons brother, etc.

* * * * * [344]

[344] Twenty-two lines erased in MS.

On my vakening on the morning, I fand my head sore with the win I had drunk. For as sick as I was, on I got the morning wt the rest, and came and dined at Portpile,[345] a litle toune standing 5 leagues (for the leagues are long their in comparison of them about Paris) from Chattellerauld, on the Creuse, which runes also by Blanc in Berry.

[345] Le Port de Pilles, Blaeuw's Atlas.

Having ioined their wt the Messenger of Bordeaux, who had about 7 Gascons wt him, and the Messenger of Angoulesme, who had above 12, we

was a body above 24. We took al horseback, and having rode the river, tho wery deip, because the bridge was broken, I fell in wt the Gascons, and was the rarest stuffe wt them that could be.[346].... Also a gentleman of Sainctonge ioined wt us, who was coming to Paris.

[346] Eight lines erased in MS.

We came this night to Faux, a litle village standing upon the Lindre, about 7 leagues from Portpile, wher I played one of the Gascons a pret[347] in the boat; wheir also I saw a reservoir of fisches. Heir I was wery sick, so that I suped none, as I had not dined, my Poictiers rant incapacitating me. Yea, I was distempered al the way after, so that I cost not wery dear to my Messenger for my diet.

[347] Trick.

Nixt morning be 4 howers, having taken horse and riden the water, I came to Amboise. My heart began to lift in me for Joy when I came to places I had sein before, for I being wery sick, I fancied now I was almost at the end of my journy. Amboise is 5 leagues from Faux. We dined at the Cheval rouge, in the fauxbourgs, this syde of the Loire. I went and saw the Chasteau, having taken a French Gentleman of Quercy (of which Cahors is the Capital toune, and Dordogne the cheife river), and another of Thosose[348] wt me, whose brother, a boy not above 20 years, had already been at the wars against the Mores of Barbary, and had bein taken prisoner, and was ransoned by his father for 300 crounes, and was coming in to Paris to get some employment in the army: such stirring spirits are the French. The Castle I fand werie strong. I saw their arsenal, wheirs layes the canon of the fort, the greatest of them carrieng only 10 pound ball. Their best peices ware transported during the seige of the Rochel; they have never bein brought back yet. Theirs in the entry King Dagobert and his Queens statues, wt 2 great sheep done *à l'antique*.

[348] Probably for Tholose, Toulouse.

The most considerable thing we saw was the Harts hornes, hung up in the corner of a chapelle, of a monstrous bignesse, if they be natural. It was taken some many 100 years ago in a forest of Lorraine towards Allemagne, wt a collet,[349] about whilk the flesch was so growen that it covered it, bearing that it belonged to Cæsar. It bit to be wery old when it was taken. Also we saw some rib bons of it monstrouslie great. Also, I saw the chamber wheir Mr. Fouquet[350] was detained prisoner when the King brought him from Nantes.

[349] Collar.

[350] Nicolas Fouquet, 1615-1680, finance minister of Louis XIV., fell out of favour, and was arrested at Nantes, 1661.

From Amboise we came to Blois 10 short leagues, wheir I went straight to the Castle (my remarks of which are elsewheir) to sie these verses of Faustus above the 1 gate of the castle, which are as followeth:

Hic ubi natus erat dextro Ludovicus Olympo
Sumpsit honorata regiâ[351] sceptra manu,
Foelix quæ tanti fulsit lux nuntia regis,
Gallia non alio principe digna fuit.

1498.

[351] Regiâ for regia. At best the line does not scan.

Next morning we came to St. Laurens, a pretty litle toune, wheir we dined. In the afternoone we passed by Clery, a litle village 4 leagues from Orleans, wheir I subscribed my name in the great book of all passengers

(wher I did read several Scots names, as Liddell, Douglas, etc.). I payed a collation, which cost me a croune.

At Orleans we quartered at the Charrue, in the fauxbourgs towards Paris. As soon as I was arrived I went to J. Ogilvies, wher I fand Madame, Mademoiselle hir daughter, hir 2 sones, Mr. le Baron, and another Allemand. They ware wery kind to me, caused me stay and sup wt them. They began and told me the depart of my Lord Ogilwie from their house very discontent, denieng J. Ogilvie, who was then in Germany for Mr. le Barons busines, to have bein given him as his Governor by my L[ord] his father. They would wery fain had me subscribing a paper (for they brought a notaire wtout my knowledg), wherin I sould have attested that I had heard from him that he was his gouverneur, which they could not all obtain of me,... They pressed me so sore, making remonstrances, that I would obligd them infinitly by subscryving it, also that I could incurre no dommage by it, that I was put to feigne that I had made a solemme oath not to subscryve anything while I was in France, which stoopt their mouths.

I went wt Mr le Baron D'Angleberne and Christophle, le Barons valet, after supper to the lodging, whither my Lord was retired, which was at the back of the Church Ste. Croix, wher I plead[352] the dissembler. Just at the port of the toune I meet James Hunter, who had bein at my quarters to sie me.

[352] Played.

Being on horseback, tomorrow being a Sundy, ere 3 howers of the morning we dined at Thoury, a little toune 10 leagues from Orleans; came at night wt foul weather to Estampes, a ruinous toune, their no being so meikle as a whole house standing in al the fauxbourgs, and that since the late troubles raised by Mr le Prince,[353] who defended the toune against the King. Their is one long street in the toune. We lay at the trois Rois. We went

to the Cordeliers Convent to sie that Barbet[354] rought[355] water dog that taks the Escrevisses,[356] but we could not sie it.

[353] In 1652 the Prince of Condé's troops held Etampes against Turenne, Louis XIV.'s general.

[354] A kind of dog with long curly hair.

[355] Rought, rough: as he spells laugh, laught.

[356] *Ecrévisses*, crayfish.

Nixt day, having past by a Hermitage, wheir 2 hermites dwells, and seiks almes of al that passes, we came and dined at Linas, besydes Montlery, 9 leagues from Estampes,...

At 5 oclock the afternoon we entred Paris by the fauxbourgs St. Jacques, wheir we passed by the Val de Grace, builded by Queen mother of France, lately dead, wheir hir heart is keeped; by the colledge of Clermont and the Sorbonne. We quit our horses in the rue St Jacques, neir the Grande Cerf. We was not weill of our horses when we was oppressed wt a generation of Hostlers, taverners, and others that lodges folk, some intreating us to come wt him, some wt him, all promising us good entertainment and accommodation. I went wt on Mr. Houlle, a barber, who had bein in England, because he was neir hand, and would stay but that night. Theyr was a French Gentleman of Lions and a Spaniard, one of the Queens Attendants: this was my company. That night they told me of the death of Madame de Touraine, and of the execution of Mr. del Camp, 2 dayes before my coming, a Maister of a Academy, and that for false mony, for whilk he had bein pardoned once before.

Nixt day, whilk was the 20 Aprill 1666, French accompt, I came to Mr Kinlochs, wheir I am informed that the most part of our countrymen are already goon for England, and that Thirlestan, Gorenberry, and Sandilands (whom I saw and gave on his desire my new testament) was to go the day after. Their I was first acquaint wt Mr. Forbes[357] (Cullodin) and Archibald Hay (Bara's brother). I changed my quarters that same day and came to Kinlochs.

[357] Probably Duncan Forbes, 1644-1704, M.P. for Nairn, succeeded his father about 1688, father of President Forbes.

Within a day or 2 I was acquaint wt our Scots Captains, Captain Caddel, C.

Rutherfurd wt a tree leg—his oun was dong from him at the Seige of Graveling—and Captain Scot, also on C. White.

I saw the fruit they call grenades[358] at Paris. To look to before its cut most like a citron: being cut at the top its all ful of litle grains as like rezer[359] berries in the coulour and bigness, yea almost in the tast, as can be. It was a pretty sight to sy how prettily the grains ware ranked wtin the skin.

[358] Pomegranates.

[359] Rezer, rizzer, red currant.

Mr. Kinloch on night coming from a burial of a Hugonet Medecin at Charenton saw a blind man of the Kings vingt (as they call them, tho they be 15 score) play at the Maille[360] to admiration, wheir upon Mr. Grahme took occasion to tel severall very wonderful things he know of blind men: amongs others, of one that could play weill to the gooffe, of another that, take doune 2 watches, mix their works as much as ye like in a hat or any

other thing, and gave them him, he saw put them up as iust every one wt their oune vorks as any cknock maker shal do. Its common that they know any sort of silver by a more parfait touche then ordinar, which God is pleased to impart unto them in recompence of the want of sight.

[360] See p. 20, note 2.

In the renowned toune of Forfar, one who had many kyn having caused milk them at his door, left the tub wheirin he had milked them by neglect at his door. By comes a neighbours cow, whow being damned thirsty, comes the by way to the tub and takes a wery hearty draught. In the mean tyme comes he that ought the milk, and seing the damage that was done him, to the Toune counsel he goes and makes a very greevous complaint, demandes that he that owes the cow that had drunk his milk pay him it. The counsel was exceedingly troubled wt this demand, never in their remembrance having had the like case thorough their fingers. After much debat on both sydes, a sutor[361] stands up and showes that he had light upon a medium to take up the difference. He askes whither it was a standing drink or not that the cow took when she drank out the milk. They replying whow could she take it but standing, he replyed that it was a most sure thing in that country, knowen to them all, that none ever payed for a standing drink. They following this decision assolzied and cleared cow wt its owner from paying ought, as having taken only a standing drink.

[361] Cobbler.

Its marked of the Aurelians[362] that they cannot drink standing, but that tho they have never so litle to drink, they most sit doune. Henry the 4't, as he was a very mery man, being at Orleans at a tyme, and my Lord maire and his Eschevins being come to sie him, he would try the truth of this. He first causes remove all the chaires and stools out of the roome, so that nothing was left that a man could sit doune on: then caused bring in win,

and drinks to my L. mairs good health, then ordains him to pledge him, who begins to look about him for a seat; no, nay seat for him, wheir on he began to suspect the King had done it a purpose, he resolves to give his Majesty sport. He causes on of his Aldermen to sit doune on his knees and his hand, so that he may drink of his drink to the King on his back sitting, which he did, and at which the King did laught no litle.

[362] People of Orleans.

In the tyme of our late stirs one of the name of Gordon, called black Adam,[363] had broken in on a willage in some part of the north, and had made such a pillage that he had left nothing that was in the least worth the carrieng away. One of the women of the willage bewailling her lose wt her neighbours, demanded whow they called that wicked man that that had them the scaith. They call him Adam, quoth another, I know no more. Adam, quoth she. Adam began the world and I think he sal end it to.

[363] Edom o' Gordon.

The Irishes hes a damned respect for St. Phatrick, of whom they say, that if Christ had no bein Christ, St. Phatrick would have bein Christ, as he ware the most worthy person after Christ.

In the first part of the Romance termed *Almahide* or *l'esclave Reyne*, penned by the renouned Scudery,[364] dedicated to Mademoiselle, the Kings sister, are brought in the toun of Grenade in a uproar by reason of 2 mighty factions, the Abencerrages, of whilk Abindarrays is the head; and the Zegris, whose head is Mohavide, betuixt whilk 2 the whole toun is divided. It comes to a cruel fight in the spatious place of Viwaramble, notwtstanding what the Mufti wt the Alcoran in his hand could say to dissuade them, who is descryved wt all the rest of the religious orders.

[364] George de Scudéri, 1601-1667.

Amongst the Abencerrages was eminently conspicuous the *bell esclave* on the head of Moray Zel, the father of Sultane Queenes party, for fear of whom the queen suffers no small greife. At last by the mediation of the King they are brought to peace; only Mohavide subornes a Alfaguy to accuse criminelly the sclave for being found wt armes in his handes against the law of the Alcoran: whos harangue is answered and refuted by Moray Zell. The King, after deip deliberation and a magnanimous harangue of the sclave, himselfe assolyies him. This reased a curiosity in Roderick de Navarre, a great Spaniard, prisoner of the Mores at that tyme, having sein the valeur of the sclave, to know what he might be: whence one Ferdnand, a old slave of the Sultane queen, begines him his story thus:

In the beginning of the reigne of Muleyhassel, whose sone reigneth at present, the greatest courtier at the court of Grenade was Morayzell; and tho their ware many brave Dames, yet none could captivate his heart, so that long tyme he was called le bel insensible. On a tyme on of his friends called Almadam came and invited him to a feigned fight of canes he was to make in the sight of his M'ris Semahis, to which at lenth yeelding, he beates him, and wines the heart of Semahis, and begines to find his oune touched. Finaly, after a combat for hir betuixt him and Almadan, in which he overthrowes Almadan, they are solennly married. About the course of a year after the beautiful Semahis gave a matchlesse daughter, which they called Almahide, and who at present is *Sultane reyne*, to the valliant Morayzel, who caused a learned Arabian cast hir Horoscope, who dressing hir figure, gave the strange answer, that the stars told him that she sould be fort sage et fort amoureuse, quelle sera en mesme temps femme et fille, Vierge et mariée, esclave et Reyne, femme d'un esclave et d'un Roy, heureuse et malheureuse, Mahometane et Chrestienne, innocente et coupable, et enfin plus estrange exposée an danger d'estre brulée toute vive. De plus quelle

mourra plus contente qu'elle n'aura vescu, et que parmy les debris d'un Throne et le bouleversement d'un Royaume, son amour et son innocence la consoleront elle mesme de la perte d'une courrone que la fortune lui osterea.

This gave no smal astonishment to Moray Zel, who to evite them the better resolves to send his daughter far from Grenade, to Algiers in Africk, that if it comes to pass it may light far from Grenade. This he puts in execution, shipping in the infant at Tarriffe under the tuition of seweral slaves, but especialy of Fernand de Solis. Them we leive on the sea a while to tell another rancontre.

About 3 years before the birth of Almahide, Inez d'Arragon bore a son to hir Lord dom Pedro de Leon, due de Medine Sidonia, in Andalously, in Spaine. The child's Horoscope the father caused to be casten by one of Toledo, who desired him to have a watchful eye of his sone til he pass 20, otherwise he may be made slave. To obey this the better Dom Pedro thought it not amisse to remove his sone from the court and city and send him to a plaisant country house called the Fountaines, wher we leive the young Ponce de Leon, and returnes to our Almahide on the sea.

The Ship is sett upon by pirats corsaires, and they are taken al slaves and carried to the ile of Dorigni. Heir they stayed a long tyme, and Almahide growes to some years, and hir beauty growes wondrously wt her, which the pirats seing they resolve to carry hir to Constantinople to sell hir to them that plenishes the Turks seraglio. Whiles they are on their way they are casten away, none saved but Fernand and the litle Almahide, tho Fernand know not of it; for some shephards finding hir in a sound[365] on the shore, they carried hir to the Fountaines iust at hand (for their lot was such to be casten away their), and sold hir to the Duc and Dutchesse. Dom Fernand, finding that he was in his oune country, and knowing that the Ducks house, who was his old freind, was neir he went to visit him, wher

to his amazement he fand the litle Almahide, who came runing to him and velcomed him. Heir the Duc choses Fernand to be his sones gouueneur, and appointes the beautiful Almahide to stay their to bear his sone company.

[365] Swoon.

All this while Morayzel could gett no newes of his daughter, which was no small greife to him. In the interim the fierce and fair Semahis, his Lady, wt hir charmes conqueres so many souls to hir beck that being ambitious she brought Grenade in hazard.

After this is intervoven a lang but pretty description of the house called Fontaines. Love begins incessantly to grow betuixt them. The only obstacle was she was still mahometane, which the sclaves had infused in hir. Yet on a tyme young Ponce mocking merrily at the fopperies of the Alcoran she tournes Christian. On this their love takes new strenthe: on a tyme he impartes it to hir; from whom at lenth he getts a promise of hir fidelity to him. After she turned Christian she got the name of Aminte. Theirs sownen in a pretty dispute that happened, what might be the prettiest of flowers, and its generally by Aminte also concluded on the Tulip.

Their fame cannot be long confined at the Fontaines, but its at the Court of Sewill already; which drawes many galland persons to come sy them, and amongs others Dom Alvare, who proved to Ponce de Leon a Rivall, who expressing his affection to the fair Grenadine both in verses and lettres it occasioned bad intelligence betuixt him and Ponce, so that it comes to a combat, wheirin Ponce carries away the victory. And it was like to have occasioned more mischeif had not Fernand, Ponce his governor, writen to the Duc to fetch away Aminte, who was the occasion of their striv, which the Duc obeyes, sending a coach for hir to carry hir to Sewil, who having renewed hir promise of fidelity to Ponce leives him their a very sorry man. Thus ends the first Book.

* * * * * [366]

[366] Half a page blank. There follows here an essay in French or notes of a lecture on the study of law, a juvenile performance. Though inserted in the MS. book it is not part of the Journal. It has been printed here as it stands.

Il y a deuz methodes pour estudier le droit, ou par la voye du text ou par celle des quæstions: certes le chemin du text est le plus asserre, plus solide et moins trompeur. Pour le text comme guides vous vous attacherez a Vinnèus, ou vous trouwerez cela qu'il est de la scholastick: a Sucidiwen non parallélé quant est de la pratique. A la glosse ou Accurse si vous souhaitez les cas et les especes des loix: si vous ne tirez pas toute la satisfaction possible quant est de la text de ceux-cy, feuilletez Bartol, Cuiace et Azon dans son Summa, de qui autrefois l'on disoit, Qui non habet Azonem vendat pallium. Si vous voudrez chicaner ou jusque an moindres points epluscher une loix dans la text vous trouverez vostre conte dans Antonius Faber.

Ayant leu les Institutes avec ses aydes, vous vous tournerez aux Paratitlairs. Sur la quelle matiere personne n'entrera en parrallemelle avec Peresius in C. Vesenbecius ne laisse pas faire assez bïcn la dessus: vous pourrez aussi regardez Corvinus. Calvin dans ses Paratitles n'a fait qu'une honteuse recueil de cela que les autres avoient dit la dessus devant lui, comme de Cuiace, Vesenbec, etc. Entre les Docteur Francois les parratitles de Maranus, Antecesseur de Tholose, sont en haute estime, mais puisque nos sentiments nous sont libres, nous ne voyons pas trop de raison. Vous n'oublierez pas les Paratitles de Tulden wrayment grand homme: comme ceux de Zoesig et sur les Digests, et sur le droit canon. Cette Methode apprendre le droit par le text a receu ses meilleurs et plus brillantes lumiers des Francois. Seulement vous prendrez icy garde d'une faute de qui je les accus presque tous, pourtant fort insupportable et bien digne de la fowette:

c'est que ils avancent des choses en controverse comme s'ils estoient hors du controverses et autant de Principes, et par ainsi pitieusement abusent la ieunesse. Afin de vous detromper vous passerez dans l'autre chemin, qui est celui des Quæstions, lequel si vous pourrez marier heureusement a l'autre, de cette union vous peut redonder dans son temps une entiere connoissance du droit. Dans ce chemin-cy wous ne manquez pas des hommes sçavants pour vos præcepteurs. Ici s'offrent Fachinæi controversiæ, Vasquii controversiæ Illustres: item son traité De successionibus tam ex testamento quam ab intestato. Item Pacij centuriæ: qui outre son commentaire ad Institutiones a aussi escrit ad librum 4tum c. lequel oeuvre de Pacius emporte sur tous ses autres. Vous y trowwerez Merenda. Vous chercherez pour Bronchorstii Quæstiones, qui a aussi escrit ad T.D. De Regulis Juris. Vous ne manquerez pas d'acheter les disputationes selecta Treutheri ou ses Theses, avec Hunnius (qui a aussi escrit 4 livres variarum resolutionum) in 3 tomes le dessus, et Bachovius cet grand esprit, de qui Vineus derobe le meilleur de cela qu'il a. Mais sur toute n'oubliez pas le 4 Tomes de Harpreclitus sur les 4 livres des Institutes, qui vous donnera une lumiere merveilleuse dans toutes les quæstions; et ou il defail le lui-mesme, il vous n'envoye aux meilleurs auteurs qui a escrit sur cette matiere. A la mesme fin vous demanderez pour Mastertius, ou particulièrement pour son sedes illustrium materiarum Juvis civilis, ou il vous monstre tous les meilleurs Auteurs de la connoissance qui explique une telle ou une telle loix Voyez Nicolaus de Passeribus De Reconciliationibus Legum.

While I was at Campheire, towards the end of July 1667, I had occasion to sie the book writ by our banished ministers at Rotterdam and other places, and particularly by Mr. Macquaire[367] put ut in the years 1665, intituled 'An Apologetical Relation of the particular sufferings of the faithful ministers and professors of the Church of Scotland since August 1660, wherein severall questions useful for the tyme are discussed. The Kings praerogative over parliament and people soberly inquired into; the

lawfulness of defensive war cleared; the supreme Magistrate's powers in Church matters examined, Mr. Stellingfleet's notion of the divine right of the forms of government considered; the author of the Seasonable Case answered: other particulars, such as the hearing of the curates, the appearing before the high commission court., etc., canvassed, together with the rise, raigne, and ruine of the former Praelats in Scotland, being a breiff accompt from History of the Government of the Church of Scotland from the beginning, and of the many troubles which Praelats have created to his first and last, for satisfaction of Strangers and encouragement of present sufferers by a well wisher to the good old cause. Then follows some places of Scripture, as Jeremias 50, ver. 34, Micah 7, ver. 9-10, Isay 51, ver. 22-23.

[367] Robert Macquaire wrote a postscript to the *Apologetical Relation*, etc., which was the work of J. Brown. A reprint in the *Presbyterian's Armoury*, vol. iii. (1843), is in the British Museum.

In this book they traduce Spotswood, Archbishop of St. Andrews, endeavoring to make him ridiculous, and empanelling him of falsehood in many places of his History, using to refute him the authority of Buchanan, a auctor more suspected than himselfe.

In their 4 section they prove the Marquis of Argyle most unjuſtly to have been put to death the 27 of May 1661. The ground of his sentence they say in the 78 page to have been that he was and had been an enemy to the King and his interests theſe 23 years or more bypaſt, which in effect (ſay they) is as much as give ye would ſay he had been an active friend for the intereſt of Chriſt, making Gods intereſt and the Kings intereſt point blanc contrary, ſo that a friend to the one could not be but an enemy to the other.

The thing that more particularly the Parliament adhered to was his compliance with the English and ſitting in their Parliaments. But that this was not treaſon, and conſequently not capable to take his life, they labor to

prove by sundry particulars, first that the Lawyers themselves (who best of any should know what treason is) complied, yea swore fidelity, to that government. They instance to his odium Sir John Fletcher, then Kings Advocate. 2dly, He was not guilty of compliance alon. Many members of Parliament sitting their to judge him war *conscii criminis*. 3dly, If compliance was treasonable and capable enough to put him to death, whey ware they so anxious to find out other grounds against him wheiron they might walk? 4ly, Whey was never on save this nobleman not so much as empanelled for this fault, much lesse put to death? Whow came it to passe that William Purves, who by complying had almost occasioned ruine to many noblemen, boroughs, and gentlemen, was absolved by a act of Parliament? Then their was never act of Parliament, nether any municipal Law, condemning necessesary compliance for life and liberty wt a conqueror, and for the good of the country conquered, as treasonable. Their was never a practick or *praejudicium* in Scotland for it since it was a Kingdome. Bruce did never so much as quaestion his nobility that in Balliols tyme had complied wt Edward of England. Nixt the Royalists say conquaest is a just title to a croune. So Baleus[368] in his *Sacro-sancta Regum Maiestas*, cap. 17; but so be Cromwell conquered our country, ergo, he was our lawful governour and had just title to our croune. If so, whow could compliance and passive obedience to such a on be treason? In this he triumphs so, that he addes, let al the Royalists answer to this wtout contradicting themselves if they can. No definition out of the civil Law can be brought of treason which wil comprehend necessary compliance; ergo, its no treasonable. Finally, we sie compliance to be the practise of all conquered nations, yet upon the alteration of government no body condemned for it.

[368] John Bale, Bishop of Ossory, died 1563.

In the end they appeal to al governours of states, Lawyers, casuists, politicians, canonists, and Quod-libetists, yea to Royalists themselves, whither or no when a nation is broken in 3 or 4 battells, so that they can do no more, but are oblidge to take laws from the conqueror, wil it be treason to comply wt the ennemy for life and liberty, and when he is chosen by the country to go and sit in the conquerors judicatories (which priveledge *ex gratiâ* he grants them), to sie the affairs of the Kingdom regulate, and sie to what wil be best for the good of the country. They persuade themselves that all wil say this is no treason. Then subsume they, but such was Argiles compliance; ergo, for treasonable compliance he could not be put to death because not guilty of it.

Then ye have a vindication of Mr. James Guthry,[369] execute 1 of June 1661, from the crimes layd to his charge wheirupon his sentence was founded. They say the crime was that some 10 years before, being challenged by the King for somthing spok over the pulpit, he declined his cognizance as a incompetent judge in ecclesiastical spiritual matters, which declinatur be a act of Parliament, anno 1584, are discharged under the pain of hy treason; but this they contend was afterwards abrogated, so that they conclud him to have died a martyr for the truth against Erastian abomination.

[369] Covenanting minister (? 1612-1661).

In the 6 section ye have the zeal of that minister, who upon the Parliaments casting of the Covenant, pulling out a six pence, took instruments in the hands of the people and protested against all courses or acts in preiudice of the Covenant, for which he was banished. None of the banisht ministers could ever obtain a extrait of their sentence, which is a thing no judicatory ever refused. Nixt, because they could not banish them further then from Scotland, they forged a bond to which they compelled the

ministers to subscribe, wheirin they promised not to be found wtin any of his maiesties dominions under the pain of death; which they call cruel and unreasonable.

Voetius they commend and cite often. Sharpe they call a betrayer of his bretheren, and a most unnatural sone of his mother church. Then the reasons whence they refuse to go to the prælats courts are rendred; whey they refuse collation and presentation of them, which they exclaime against as popish, foisting in its steed the peaples frie election.

In France they know not moor foul. They have 2 sorts of excellent partridges. That we call the Lampre elle, wt us esteemed almost poison, wt them called la Lamprey, is a great delicacy. They are wery big.

Follows some riddles.

* * * * * [370]

[370] Eight lines are omitted, containing four riddles with *double entendres* which are grossly indecent without being witty.

Sequitur Ænigmaticum quoddam epitaphium Bononia studiorum ante multa sæcula marmoreo lapidi insculptum: Ælia Lælia crispis, nec vir nec mulier, nec androgyna nec puella, nec juvenis nec anus, nec meretrix nec pudica, sed omnia; sublata neque fame nec ferro nec veneno sed omnibus; nec cælo nec aquis nec terra sed ubiqe iacet. Lucius Agatho Priscus nec maritus nec amator nec necessarius neque moerens, neque gaudens neque flens hanc neque molem nec pyramidem nec sepulchrum sed omnia, scit et nescit quid qui posuerit, hoc est, sepulchrum intus cadaver non habens, hoc est, cadaver sepulchrum extra non habens sed cadaver idem est et sepulchrum sibi.

Bacon has write Apothegmes new and old, a litle book.

A English curate said their was 3 things that annoyed man, and they began all wt a double w, win, women, and tobacco, but whow does tobacco begin wt a w, wil ye say: tobacco is nothing but a weed, which word begins wt a w.

Another having read his text, sayd he had 3 things to tell them, the first thing he know and they know it not, and this was that under his gown he had a pair of ragged breitches; the 2d thing they know and he know it not, and this was, whither they would give him new ones or no; the thrird thing nether of us knows, and that is the true meaning of thir words: and thus out of the pulpit he went.

Repasse Dom Alvare, repasse bien cxactement en ta memoire tous ces que tes yeux t'out fait voir de beau depuis que la suit de l'age les a rendus capables de faire une juste discernement des belles et de laides choses, et apres cette soigneuse recherche ne seras tu pas obliger de prononcer en faveur D'Aminte, et d'auoüer ingenuement quelle est sans contredit la plus aimable et la plus accomplie personne que Nature ait jamais fait. Quelle grace n'a tu pas remarquée au ton de sa voix comme en ses paroles et ses beaux yeux; n'out ils pas beaucoup plus parlé que sa belle bouche? O qu'ils sont eloquens ces beaux yeux! qu'ils sont doux! qu'il sont pourtant imperieux, qu'ils ont de charmes et de Maiesté! qu'ils ont de charmes et de Maieste? qu'ils ont de feu! qu'ils ont de lumiere! et que leur eclat est brillant et dangereux!

Vous dites tants de choses agreables que vous me fait venir l'eau a la bouche. Dissimulez aussi bien que vous voulez la mesche est deia eventée.

Il n'y a gueres de fumée sans feu, iamais escritoire ne fut bonne espee, il vaut mieux tard que iamais. Il ne faut pas lire beaucoup, c'est a dire, il faut

faire choiz des Auteurs et se les rendre familier. L'Histoire a bon droit est appelle le tesmoin des temps, le flambeau de la verité, la vie de la memoire, et la maistresse de la vie. L'occasion fait le Larron; for finding a thing in the way it temptes him to steall, it seing so faire a occasion. Pain coupé n'a point de maistre, whence a man seing bread cut, whei of no man is as yet in possession, he may freely take hold of it as belonging to none or having no master. Chacune est fol de sa marotte: the crow thinks hir oune bird fairest. Chaque pais chaque coustume. Toutes choses ont leur season, qui premier nait premier paiste. The eldest feids first, insinuating the priveledges of primogeniture, which are great in France as also with us.

Il faut prendre gard (saye the frenchman) d'une qui pro quo d'une Apotiquaire (as when in mistake he takes one pig[371] for another, or out of ignorance gives a binding thing for a laxative) d'une et caetera d'un Notaire (by which is taxed the knaveries of that calling), d'une dewant une femme, d'une derriere une mule, et d'un Moin de tout costes: thats to say, diligently. Of the man that undertakes the voyag to Rome, because of the great corruptions their, of which few can keip themselves frie, the Frenchman sayes: Jamais bon cheval ni meschant homme ne s'amendist pour aller a Rome. When they would taxe on for being much given to lying, they say, Il est un menteur comme un arracheur de dents; for the tooth-drawers wil promise that they sall not so much as touch them almost, that they sal find no peine, when in the interim the peine wil be very sensible. Of one much given to study, they say, Il estudie tant que les rats scauroient manger ses oreilles. Who can approach such a glorious sun wtout being dazeled.

[371] Earthenware vessel.

The French are generally wery timorous on Sea, whereon he sayes, Je n'aime pas passer la ou le cheure[372] ne scauroit fermer ses pieds, hold its feet. The frenchman sayes that he hath heard qu'une grande riviere et un

grand seigneur sont mauvais voisins. Vous serez bien venu comme une singe, mais point comme une renard. Chou pour chou, craft for craft. Patience abusé se tourne en fureur. Laughter compelled and bitter, as the Latins calles it, Risus sardonius, so the French sayes; Le ris d'hosteliers qui ne passe point le noeud de la gorge, because that hoasts and others of sick like stuffe laught ordainarly to please their ghests wt out any true affection to laught. The occasion of the Latin, Risus sardonius, as Erasmus explaines, is because of a Herbe called in Latin, Apium Risus, in French, Herbe de Sardagne, because it growes in great abondance in Sardinia, which no sooner eaten but it looseth and disiointeth al the nerves, so that the mouth falls wide open iust as give they ware laughting; yea in this posture they die. Thus the commentator on Du Bartas weeks, que dit un peuple dit un fol, who sayes a multitude sayes a fool. C'est tousiours plus mal-aisé de faire mal que bien, its easier to do a thing the right way then the wrong, as in opening a door. Il n'y a marchand qui gaigne tousjours. *Nemo ubique potest foelici*, [373] etc., its a good roost that drapes aye. [374] Of him that out of scarcity tauntes his neihbour wt the same scorne wt which he scorned him, the Frenchman sayes, il ne vaut rien pour prendre la bal a la seconde enleuement, at the 2d stot. He is a man of a 1000 crounes a year, l'un important l'autre, on way or other; its used also in drinking healths. Of a modest, learned young man, *cui contigit ante diem virtus*, they say, qu'il demente son menton, he belyes his chin. If one would know another weill he most try him and sus et sous la peau trinque [land] [375] hachis hach, old French words used by Du Bartas. If ye demand him for a thing he hath eaten, he'el tel you, il est passé par la ville d'Angoulesme. Of a man that hath not spirit, they say, il est ni chair ni poisson; l'on moque de cela a la cour. Entre nous autres Gentils-hommes il n'y a point de bourgeois, as give ye would say, among 10 whites their is not a black.

[372] Chèvre, goat.

[373] For *felici*.

[374] Ferguson's *Scottish Proverbs*, p. 21: It's a good goose that draps ay.

[375] Interlined.

They put a gentleman and burgoise as opposites; he cannot be a gentleman if a burgoise; but he may become on and then he ceaseth to be a burgoise. I urged whither or no a gentlemans sone by becoming a burgoise was not stil gentleman; they sayd not, for by becoming bourgoise (he is called Roturier) he seimes to renounce his right of gentleman. Throw Germany they are thought so incompatible, that if a man can deduce himselfe, tho never so far fetcht, from gentlemen, he, tho he have no means and be like to starve, he wil not turne marchand or any other trade.

Une harangue de Gascoigne is on courte et mauvaise, tho they have not the tongue and cannot manage it weil, yet they have ever manadged the sword weill, being brave sogers, and consequently horrid Rodomontades and boasters. Du Bartas tho was a Gascoin.

They call a brothers sone in France neveu; our son's sone petit fils. A barren woman in France they call very disdainfully une mulet: thus they termed Marguerit, King of Spaines daughter, Emperor Charles the 5 neice, Henry the 4^{ts} queen, for a tyme, who cucolded him.

We most never forget the 2 catalogues which served Pighoog[376] of so great use, on of all the fathers, the other of all the Haeresies; also the dron[377] and false Latin we fand in the Corpus Glossatum, Domine tanta, etc.; as also our rowing at the boat, Pighogs ...[378] and Pitors falling on his back, his perruvick coming of; also our sports that night we studied the

stars wt Mr. James, his griveous hat, and James of a low stature and William Ker had almost lost his hat, wt many others to be recalled to memory.

[376] A nickname for somebody, perhaps a tutor or schoolmaster.

[377] Have not found this word.

[378] Three or four words erased.

If we be demanded at any tyme to sing a song we may begin...[379] we would look to the company. If they be speaking of any song, we may say we have heard it song sweetly wt 3, 2 of them harkening and the 3d not opening his mouth. If we fall to be demanded to tell a story we may begin ...[380] that of him that called himselfe ...[381] If they be talking of wonders, we may say that their was a stone at Poictiers, which at every twelve howers it hard whirled about thrice. Also when together wt any commorads and fall to in merrinesse to dance, at any pas in mockery we may say it was worth a 100 crouns.

[379] Nearly a line erased.

[380] Three or four words erased.

[381] Two words erased.

They have 3 proverbs in France: 1, save a thief from the gallowes and he'el be the readiest man to help you to it; 2, never commit your secrets to a woman, as to your wife; and 3d, a man sould not bourd[382] wt his masters.

[382] Jest familiarly.

One example sal verify all 3. In the tyme of Charles the great their was on that had a great wogue of learning and wisdome, to which man the King

concredited his sone the Prince. One of the Princes attendants was taken in a roobery and condemned to the gibbet: the Prince and his master begged his life, and so saved him. To try the 2d byword, the master took his pupill the Prince to the Soan to bath, having bathed, he put him wtin a mil wt strait orders not to stir from that til he called for him. He comes home to his wife wt a feigned heady countenance, telling her wt a great deal of protestations for secrecy, that as he was causing the young Prince for his healths sake bath, he was perished. Tomorrow he pickt a litle quarrel wt his wife, before some company: she being angry wt him cost up the secret to him, so that it was immediatly conveyed to the Kings ears, who in a fury ordained that he sould be broken on the wheel. The usual executioners could not be found; yea, no other body that would supply his place, so generally was the man revered be all. The King enraged, offers 50 pistols to him that wil do the turne. None yet presents themselves save only the theif he had saved from the gallows. The childs gowernour having tried all that he desired, demanded licence to go bring the Prince safe, which he did to the admiration, wonder and gladness of all.

He fand it was not good to play wt his superiors, as also he did who once taking of Charles the 9 beard in France took the boldnesse to sie that the Kings throat was in his reverence, was hanged immediatly, the King saying that his throat sould never be in his reverence againe. Also that nobleman who getting the King wtin that great cage that's to be sein at Chinon yet, in sporting said that he had the King at his reverence; its true, quoth the King, but let me out. He was no sooner out but he caused him be shut up in the cage, and suffered him to dy their for hunger wtout mercy. The story of K. James his fool may werify this same truth.

The French sayes, *il n'est pas tant la qualité que la quantité de quelque chose qui fait mal*. Is it possible that the sun hath halfed his privilegde wt you; that as he communicated heatte to the inferior bodies wtout enjoying

any in his oune sphaere, so also can you ...[383] not heats but dazeles and mortally wounds all that approach you wtout being in the least touched yourselfe; no, pardon me, if I cannot beleive it.

[383] Word erased.

If I be spaired what sort of folks the French are, we may reply they are folk wt noses on their faces, and that like St. Paul never speaks but they open their mouth. Rapier and Miton[384] are French words.

[384] *Mitten*. The French word has also other meanings.

They have many othes in France. Jesus, Maria, and Nostre Dame are lawful oaths used by the Churchmen themselves. Jarne[385] Diable is also lawful, as the Cordelier sayd in his preaching, Jarne Mahomet most also be lawful. They have a nombre of horrid ones, as ventre Dieu, teste Dieu, mort Dieu, ou mort blew Jarne Dieu; cap de bious, a Gascoin oath, and verté chou, a great oath assuredly.

[385] Corruption of *je renie*.

Qui a bon voisin a bon mastin, he is as steadable to him as a good mastive. Charité bien reiglée commence a soy mesme. To the same purpose, le peau est nous plus cher que la chemise. Le chat aime le poisson bien, mais elle n'aime pas de mouiller ses pates. Ce qui vien de la fluste s'en retourne au son du tambour, Il woon soon spent; goods lightly gotten lightly slipes away. When ye would say that he knows not weil sick a man, vous n'avez iamais mangé un minot[386] de sel avec lui. Dite moy quelle companie vous avez frequenté, et ie vous diray vos moeurs.

[386] A measure containing half a mine, equal to thirty-nine litres.

A northern minister preaching on that, Esau sold to his brother Jacob his birthright for a morsel of pottage: base man that he was, quoth he, the belligod loune, sel his birth-right for a cog of pottage, what would he have done if it had bein a better dish.

They alleadge that a Frenchman sould have sayd, that if our Saviour had a brother, the greatest honor he could put upon him would be to make him King of France.

Anthoine le Bourbon, 1 protestant of the Kings of Navarre, having got a Capycin and a Minister together, he would have them dispute before him. The Minister began on the point of the crosse. Theirs a tree, sayd he, of the one halfe of it ye make a crosse which ye vorship, of the other halfe ye make a gallows to hang up a theif on. Whey carry ye respect for that peice ye make a crosse of, and no for that ye make the gibet of, since they are both of on matter? The Capycin seimed to be wery much pusled wt this. After a little pause he demands the Minister if he was married. Yes, that I am, what of it? quoth the M. Whow comes it to passe then, quoth the Capycin, that ye kisse your wifs mouth and not hir arse, whey have ye more respect for hir mouth then hir arse, since they are both of on mater? The Minister thought himselfe out; yea, King Anthony thought shame of him.

Their was a minister of Fyfe of the name of Bruce that had a great gade[387] of ending promiscuosly his sermons, as, for example, he was telling on a tyme how the Beaver, being purshued hotly by the hunters, used to bit of his stones, the silly fellow, forgetting what he had to sy more, added, to which end, good God, bring us, as if he had sayd to bit of our stoons. He closed in that same sort once whow Judas hanged himselfe. Once as he was exhorting the people to beware of the Devil, who was a roaring and ramping lyon, etc., he added, to whom wt the father and the holy ghost be all honnor and glory for now and ever, amen.

[387] Probably for 'gait,' way.

One being asked whence came the antipathy that we find betuixt some beasts, as the dog and the hare, the Lizard (Ichneumon) and the crocodile, the sheip and the wolfe, and he replied that it began wt the flood of Noah

when they ware all in Ark together, that then the hare stol the dogs shoe from him, and that theirfor the dog ever when he sies him since runs efter him to get his shoe again.

The Mythologists gives 2 reasons whey they[388] bloody bat flies under night, and compairs not on the day: the first is because of his defections from the birds when they ware in war wt the beasts; the 2d because beginning to marchandise he played banque route, whence he dare never be sein in the day for fear that his creditors take him wt caption.

[388] Perhaps 'the.' The 'y' is indistinct, as if it was intended to be erased.

This minds me of on at Edenborough, who being drouned in debt durst never pipe[389] out in the day light, but always under night. On a tyme coming by the fleschstocks of the Landmarket, a cleak[390] claughts a grip of his cloak, and holds him. He immediatly apprehending that it was some sergent or messenger that was arresting him, he cryes back as pittyfully, at whose instance, Sir; at whose, etc.

[389] Peep.

[390] Hook.

A Minister of Bamf (as Mr. Mowat when I was at dinner once their reported it), being to give the communion, he had caused buy as much win as would serve for his parishioners. Whil the cup is going about, it falls to be ful on a strong, sturdy cloun that used not to drink win oft, and who was wery thristy; he gets the cup to his head; he never rested tel he had whistled it over. On of the Elders, seing what he had done, in a great anger cryes out, even the devil go doune wt it, for that might have geined[391] a dozen.

[391] Gein or gane, sufficed for.

Its reported of Gustavus Adolphus that he was used to say, that for ennemies he had to do wt a fool (which was Valstein, Duc of Fritland, one of the Imperialists generals, a cruell man and a foolish man, he thought to make himself Emperor; wheirupon at the Emperors instigation he was slain by our countrymen Leslie and Gordon: Butler would not do it), wt a soger (which was Pappenheim, a brave souldier, slain in that same battell of Lutzen that Gustavus was slain in), and a preist; which was Tilly who never wanted his chappelets of his arme, never missed a Messe, and boasted he never know a women.

Many a brave Scotsman served in thesse wars of Germany (we most remember what he did to that tyran the Duc of Cleves), amongst others on Colonel Edmond,[392] a baxters sone of Stirleving.

[392] Colonel Sir William Edmond. See *Scots Brigade in Holland* (S.H.S.), vol. i. p. 577, where it appears that his father was a baker in Edinburgh. Colonel Edmond died in 1606.

The Bischof of Munster, a merry man, wil cry whiles, *donnez moy trois grande verres de vin*, then, *c'est a la santé des mes trois Charles et Charles Seconds: Charles 2d D'Angleterre, Charles 2d D'Espagne, et Charles 2d [sic] de Suede*: this is wery remarkable.

Philip, the 2d, Charles the Emperors son, had also a Charles, Prince of Spain, whom most barbarously he caused strangle, as Peter Mathieu reports it, tho Strada would dissemble it.

We had several marks of the Spanish gravity in this Prince. When the news was told him of the great victory of Lepanto, woon over the Turks by his natural brother, Dom John of Austria (the way whow they made D. Jean

know his quality is worth the knowing), generalissimo of the Christian forces, he would not appear to be moved wt the least joy, al he sayd was, *Dom Juan a beaucoup hazardé*. When the news was told him of the dissipation of his invincible Armado, commanded by the Duc of Medine Sidonia, he would not seim to be troubled wt it, all he sayd was, *j'ay envoyé une flote pour combattre des hommes non pas les vagues et les vents*.

They reporte of the Queen of Suede when she was in France that she was wery curious to sie all the [brave][393] great men of the court, and amongs others to sy Mr. le Prince[394] who hes no great mine[395] to look to. On a tyme entering unto the roome wheir she was, some told her it was Mons'r le Prince. She, having contemplated him disdainfully, cryes out, *Esque la le prince de qui l'on parle tant*: he gied[396] his hat a litle, and payed hir wery weil back in her oune coin, *es que la la Reyne qui faict tant parler d'elle*.

[393] Interlined.

[394] Condé.

[395] Mein.

[396] Turned, cocked.

The young Daufin of France, tho not yet 5 years old, gives great hopes of proving a brave man. As the King was removing from St. Germaines to go to Fontainebleau, and they had taken doune the plenishing to carry and put up their, as the Daufin is coming thorough the roomes he begins to misse their hingers,[397] he spears what was come to them; they told him they ware carried to F'bleau. Hes not F'bleau, quoth he, furniture for it selfe of its oune; they replying no, *cela est vilain, cela est honteux, dit-il*. His answer was told to the King: he did laught and say, *il a raison, il a raison*.

[397] Hangings, tapestry.

They prove that a woman hes not a soul out of that of the 22 of Genesis, And all the souls of Abrahams house ware circumcised, but so be its certain the women ware not circumcised; ergo, they have not souls.

Mr. Thomas Courty, preaching on that, be ye followers of Christ, sayd their was 4 sort of followers of Christ, the first was them that did not follow him at all, the 2 them that ran before him, the 3d sort of followers was them that went cheeky for chow wt him, the 4 was them that ware indeed behind him, but so far that they never could gett their eye on him.

King James gave one of his daughters to the Count Palatin of the Rhin, Frederic, who was afterward chosen King of Bohemia in 1619, the States having declaired the nomination of the Archiduc Ferdinand afterwards Emperor nulle. This election was the occasion of thesse bloody wars that troubled poor Germany from 19 to 48 wherin the peace of Munster was concluded. The Elector sent to King James desyring his assistance, who refused it (against his interest), wt this answer, I gave my daughter to the Palatin on the Rhin, not to the King of Bohemia. The Elector hearing this replied, a man that marries the King of Englands daughter whey may not he be King of Bohemia.

A Frenchman told me that he beleived when the devil tempted our Saviour to worship him by showing him al the Kingdomes of the earth and the glory of the samen, that the devil did put his meikle thomb upon Scotland to hide it from our Saviour for fear that having seen it sick a montanous, barren, scurvey country, he sould have conceived a disgoust at all the rest.[398]

[398] Montereul tells the same story. See his *Correspondence* (S.H.S.), vol. ii. p. 513.

[What follows is written at the end of book, and written the reverse way to the rest of the MS., the two writings meeting on the same page.]

From Monsieur Kinloch, I have received first 100 livres at Paris; a bil for 150 at Orleans, another for 42; as also a third for 100 payed me by one Mr. Boyetet, marchand their. At Poitiers I have drawn on Francis for a 100 livres, of which I have received payment heir from Mr. Augier, marchand. I drow again for 200, out of which I have payed Mr. Alex'r 155 francks, whence their rests me about 46. In February 1666 I drow for 300f., out of which I payed 180 francks to my hoast; I lent 3 pistols to Mr. Alexandre, a escu to Mr. Grahme.

* * * * *

Claudes answer to the perpetuité of the faith 45_f_, [399] Du Meulins Bouelier 30_f_, Hallicarnasseus 10 f., Hypocrates 5_f_. les Remarques du Droict Francois une escus, Fornery Selectionum llibri duo 6_f_, les bouffoneries des Guicciardin les lois usitees dans les cours des France de Buguion [400] acheptées dans le cemetiere des SSts Innocents. L'istoire universelle de Turcelin en 3 tomes 3_ll_, Le Parfaict Capitaine 20_f_, les oeuvres de Rabelais en deux tomes 1_l_.

[399] f stands for sou; l for livre.

[400] Buguion, for Bourguignon.

* * * * *

In my voyage of Flanders I changed 2 Jacobuses and a carolus, amonting to some 30_ll_. To my hoste of Anvers, when I was going to Gand for 2 dayes and a night 6_11_. 5_f_, to the cocher for Gand 48_f_, for my diner by the way 9_f_. At Gand for going up on the belfroy 9_f_, to my hoste at

the Cerf 4_ll_. 8_f_., for my place in the waggon coming back 42_f_., for diner wt that Suisse of Zurick 24_f_., to my hoste of Antwerp for a night 26_f_., for my place in the coach for Mardick 3_ll_. for my diner on the way 12_f_., for my supper 14_f_., to the master of the bark for Rotterdam 30_f_., for entry 6_f_., at the ...[401] house 7_ll_. for washing 12_f_.

[401] A word here is illegible. The last part of it seems to be kerers.

In Gold I have at present, 21 December 1665, 8 14 pound peices, 14 Caroluses, 10 of whilk I got from my father before my parting from Scotland, the other 4 remaines of 8 I exchanged wt Mony at London, besydes thir I have 3 other peices, which seime to be 10 schiling peices, wt 2 other lesser ones. I have a ring wt a 4 mark peice and a ii schilling peice. On of the 14 Caroluses is in 2 10 shiling sterling peices. I have but 13 Caroluses now. I changed on of them coming wt the messenger from Poictiers. In my voyage thorow Flanders for Holland, I spent 2 Jacobuses, so that I have no mo but 6 and a Carolus, so that I have no mo but 12; the Carolus at 10_ll_. 10_f_., the one Jacobus at Gand at 11_ll_. 10_f_., the other at Antwerp at 13_ll_.[402]

[402] Half a page blank in MS.

A breife account of my expenses from my taking horse at Edenborough, 20 of March til this present 11 of May 1665, according to the Scots account, and also after.

First before my parture I got from my Father in Gold 10 Caroluses, or 20 shiling peices, 8 Jacobuses,[403] or 14 pound peices, wt 2 5 shil. peices, and as many 10. In money[404] I got first 50 shilings, then 60 halfe crounes, thats 30 crounes; and last I had my horse price, for which I got 5 pound and a croune to lift at London. Of my gold I spende none til I was in France, whence their remained only the silver mentioned to spend. Of

this our journey to London spent 50 shilings, including also the 5 shilings I payed ut for the baggadage horse at Durham. At London of the silver resting, to wit, the 31 crounes and 5 pound sterl. I payed 9 pound of silver for 8 caroluses, whence they had 7 groats[405] of gain for every peice. This consumed the 30 crounes, a pound sterling and 2 crounes out of the horses price; so that for defraying my charges from my first arrival at London, on Saturday, April 1, til monday com 8 dayes, April 10, compleit 10 dayes, I had only the remaining mony wt in 4 pounds. Of which 20 shilings by that halfe day of posting to Dover was exhausted, comprehending also our expense for our meat, and in paying the postilion, for betuixt Gravesend and Rochester burn we payed halfe a croune; from it to Seaton, 14 miles (the former stage being but 7), 4 shillings; from it to Canterbury, 16 miles, 5 shillings; from Canterbury to Dover, 16 miles, 5 shillings: their was 17 of the 20 shil. At Dover, as dues we payed 4 shillings to that knave Tours; our supper at one Buchans was halfe a croune; our fraught throw the channell was a croune, and to the boat that landed us a shiling.

[403] See Introduction, p. xliii.

[404] i.e. smaller coin than gold; Fr. monnaie. The half-crown, 30s. Scots, 2s. 6d. sterling, was coined by James VI.

[405] Groat (English), value 4d. No groat Scots had been struck since 1527, value 18d. Scots, or ijd.

We landed at Calice on the Saturday morning, and stayed their til the Monday afternoone, spending much mony; so that from my arrival to London and my joining wit the messenger for Paris I spent 3 pound 10 shillings. Thus is all my silver, so that now I have my recourse to my gold, out of which I pay the messenger 40 livres to carry me to Paris, giving him 3 Caroluses, which according to the French rate roade 41 livres, 10 souse, whence 1 got 30 souse againe.[406] At Paris I changed [on]e carolus to pay

Mr. Strachan and Mr. Hamilton, who on the rode in France had payed for me, as in the drink money, and in paying the messenger halfe a croune.

[406] There seems to be a mistake here. Three Caroluses (20-shilling pieces) would be worth at their nominal value only 36 livres. But in France they did not fetch so much in exchange. If they were worth each 10_{ll}. 10s., as the one he exchanged in Flanders (see p. 148), 30 livres to the messenger instead of 40 would make the calculation right.

Thir ware all my expenses till I was answered of mony be Francis Kinloch, so that I find all my expenses betuixt Edinborough and Paris, wheir I arrived the 14 of April, to amount to 10 pound sterling give I count the peice I changed at Paris, to 9 only give I exclud it.

All this being spent, on my demand F. advanced me 30 livres, 14 of which was spent on these books I bought at Paris, wheirof I have set doune the cataloge; 50 souse for a pair of halfe stockings; for a stamp, a comb, for helping[407] my whip and my pantons[408] I payed 10 souse; for a pair of gloves 18 souse; for vashing my cloaths 15 souse; a croune and a halfe among Mr. Kinloch's servants: theirs ane account of 23 livres out the 30. For the 7 other I can give no particular account, only it might be spent when I went in wt commorads, as when we went to drinke Limonade and Tissin, etc. At my parting from Francis I got 70 livres, which wt the former 30 makes a 100 livres. Of thir 70, 16 I payed to the messenger for Orleans, 4 livres baiting a groat for the carriage of my valize and box, which weighted 39 pound weight, and for each pound I payed 2 souse. About a livre I spent in drinkmony by the way; another I gave to the messenger. Heir of my 70 livres are 22 gone.

[407] Mending.

[408] Slippers.

Thus I won to Orleans. The fellow that carries my valize to Mr. Ogilvies gets 10 souse; at a breakfast wt Patrick Portues I was 30 souse. For books from my coming to Orleans til this present day, 11 of May, according to the Scots account, I have payed 8 livres; for seing a comedy 10 souse; for to helpe my hand in writting a croune; for dancing a croune in hand, the other at the moneths end; for to learn me the language I gave 2 crounes. To the maister of the law Im to give 11 livres 8 souse; for a supper wheir Mr. Ogilvy payed out for us 3 livres. This being all ramasht[409] together it comes to 62 livres, so that of the 70 only 8 are left. Out of thes 8 I payed 4 livres 10 souse for a pair of clesps, whence rests only 3 livres 10 souse. I pay 24 souse for one vashing of my linnens, and 20 souse at a four hours wt James Hunter. Thus ye have ane account of all 100 livres I got from F. Kinloch til 26 souse. Ut of the mony mentioned I payed also 3 livres 5 souse for a pair of shoes.

[409] Ramashed, ramassé.

About a moneth after I had bein in Orleans Francis sent me a bill for a hundred and 50 livres on on Boyetet, marchand their. Out of whilk I immediatly payed Mr. Ogilvy for the moneths pension bypast 55 livres; for to teach me the language for the moneth to come 6 livres; for 2 washings of my linnens 40 souse, so that out of my 150 livres are 63 gone, whence remains 87 only.

Francis, at Mr. Ogilvyes order, payed at Paris 42 livres. which Mr. Ogilvy was to refund to me: this sal pass as part of payment in the 2d moneths pension. Out of the 87 remaining I have to pay Mr. Le Berche a pistoll; Mr. Schovo 6 livres, whence their are only 70. For a pair of stockings 5 livres; for a wast belt 2 livres; for mending my silk stockings 25 souse, for washing my linnings 17 souse; so that now their remains only 60. Thir 60

livres put wt that 46 livres Francis payed at Paris, and was to be refounded to me, makes 96 livres, which Madam Ogilvyes extravagant compt for my 2d moneth, and my 6 dayes above (being) pension wholly exhausted, for first I payed 85 livres, and then for the drink that I had that night I took my leave of the gentlemen their a pistoll most shamelessly.

This put me to write for a bil of another 100 livres, of whilk I received payment, paying out of it againe 30 souse to him that carried me from Orleans to Blois; to my host at Blois I payed 5 livres 10 souse, paying, to wit, for the victualls I took in wt me for the following day; to the fellow that carried from Blois to Saumur, 2 dayes journey, a croune; at Tours I was 36 souse; at Saumur, wheir I was 2 dayes, I was 7 livres 10 souse; to the fellow whose horse I had, and who bore my charges from Saumurs to Poictiers, 17 livres; to him who took us throw Richelieu Castle 20 souse; to the messenger that brought my box a croune; to Madam Garnier for the 8 dayes I was wt hir a pistoll, to hir maid 15 souse; for a pair of linnen socks 18 souse. Thir be all my considerable expenses til this present day, July last: all which ramassed wil amount to 53 livres, but in some places I most have heightened, for give so then I sould have only 47 of my 100 resting, when I have about 50 at present. Out of thir 50 I have payed 12 francks for a Corpus Juris; 4 francks for a Vesenbecius; 20 souse for a litle institutes, which ramassed makes 17 livres, whence their only remaines me 33: out of thir for a supper wt Mr. Alexander and all the rest of our compatriots above 18 livres; whence at this present August 5 rests with me about 14 livers 10 souse. Out of thir I have payed 18 souse for the lean[410] of Romances from Mr. Courtois, as Celie and the sundry parts of Almahide, penned by Scuderie; 50 souse for a pair of showes; 25 souse for our dinner one Sabath communion wt Colinton and Peter Hoome in the fauxbourgs; 8 souse for cutting my head; 5 souse on a pair of carts; about 10 souse on paper and ink; for washing 30 souse; so at this present first of September I have not full 7 livres. I have payed 40 souse or 2 livres for a pair of gallozes;[411] 5

souse for a quartron of peches; 5 souse to Charlotte, whence I have little more then 4 livres; 30 souse at a collation.

[410] Loan.

[411] Braces.

When I was reduced to thir 3 livres, then I was answered of my bill I drow on Francis Kinloch for a 100 livres. Out of which I payed 15 livres for 2 halfe shirtes, but because we had 3 livres of old mony we shall call it only 12; 2 livres for 2 gravates; 60 livres to Mr. Daillié, whence I have about 25 livres. Out of thir 25 I have payed 3 livres to Mr. Rue, wt whom I began to dance, September 10, 1665; 20 souse at the tennis; 5 or 6 for lettres ports; 20 souse for a horse hire; 6 or 7 souse I was put to dispurse that day; 3 livres for washing my linnings; 8 souse sundry wayes; 5 souse on a quartron[412] of dragées[413] or sweityes, which are 20 sos. the livre; 3 souse on a peice stuffe, 2 sousemarkies[414] to Lowise;[415] 5 souse for ports; 8 souse to the Barber; 10 souse for a bottle of win to my C.;[416] 4 francks lost at carts; 34 souse at a collation after supper, when we wan all the fellows oubliés,[417] and made him sing the song; a escus to Mr. Rue; a escus for dressing my cloaths; une escus for wasching; [8 frank 5 souse for my supper the night of St. André; 10 souse wt Mad'm and others at the Croix de Fer]. [418] Thus is al that rested me of thesse 200 francks, the first mony I drow at Poictiers gone.

[412] Quarteron, quarter of a livre (pound).

[413] Sugar almonds.

[414] *Sous marqué*. See p. 92, note 1.

[415] *Probably* a maidservant at M. Daillé's.

[416] 'My C.' has baffled me.

[417] See p. 114, note 6. The meaning here is obscure. I can only conjecture that the party made a wager of some kind with the pastrycook's man for his cakes. See p. 114, Note 6.

[418] Erased in MS., but legible.

Then beginning of Novembre I drow 200 livers. Out of which I payed Mr. Alex're 155_ll_, whence there rests wt me 46 francks, of which I have payed 8 francks 5 souse for my part of that supper we had the night of St. André; 12 souse wt Mr. D. and others at the Croix de Fer; 8 souse to the Barbier; 12 souse for a pair of gloves; 21 francks to Mr. Daillie; 15 souse on Romances; 15 souse to Garniers man; une escus on the 1 day of the new year as hansel, les estraines to Rue, Biron, and Violet for their musick; 27 souse in collation to my countrymen that same day; 4 sousmarkies the Sabath I communicated at Quarter Picquet, being the 3 of January 1666; 52 sous markies on Nöels.

When I had about 40 souse, I borrowed a Pistol from R. Scot, After I payed a croune[419] for the port of my cloack from Paris; 12 souse for win that night that Grame payed us his Royaute wt Frontignan and Enschovo'es. My oun Royauté cost me 30 souse on a good fat bresil cook and 8 on wine; 15 souse on a iockleg,[420] my Scots on being stolen from me; 5 souse on a inkhorn, my Scots on breaking wt a fall; 8 souse to the Barbcr. About the mids of January 1666, for a pair of shoes, which ware the 4 pair I had made since my leiving of Scotland, March before, a croune; to Mr. Rue a croune; to Madame Marie for my last washing 30 souse; at a collation 30 souse.

[419] See Introduction, p. xliii.

[420] Folding-knife. Etym., Jacques de Liege, cutler.

About this tyme I receaved 3 crounes in lain[421] from Alex'r Home that same night that Mr. Mompommery was headed; 6 souse on a bottle of wine; 7 souse at another tyme; 15 souse at the comoedy; 3 souse for my chair; 18 souse at another comoedy; une escus to Mr. Rue the 20 of February; 20 souse at a comoedy, called Les Intrigues des Carosses a Cinq Sols, the farce was La Femme Ruse ou Industriouse; 15 souse for mending my sword.

[421] Loan.

About the end of February I was payed of a bil of 300_ll_. I had drawn. Out of which I payed first a 130f. to my host; then lent 3 pistols, halfe a Pistol and 2 crounes to Mr. Alexander; out of it a croune to Grahme; 30 souse for a peice concerning Monting a Cheval, presented me by the Author of the samen; 10s. for mending stockings; a croune at a desjeuner wt Georges Sinclar and other 2 countrymen, coming from Bordeaux going for Paris; 30 souse to Mr. Rue; 20s. at a collation; a croune for La Perpetuité de la Foy; 30 souse on a collation in the fauxbourgs wt Mr. Bourseau; 30 souse lost at the fair on China oranges and cordecidron; 20 souse for le Capychin Escossois;[422] 30s. to Rue; 34 souse at a collation wt him; 40s. at another wt De Gruches and Ingrande; 40s. for une Voyage de France. That which remained of these 300_ll_. went away partly on my hoast, partly on my adieus, which stood me wery dear, and partly in paying the messenger for Paris (I payed 50_ll_.).

[422] Father Archangel Leslie.

It suffices to know that on my arriving to Paris I was wery light of mony, whence I borrowed from Mr. Kinloch some 20 crounes, of which I bestowed some 13_ll_. on books, thus, on some comoedies about 20 souse, on Scarrons Virgil travestis 20s., on Pacij Centuria[423] 30s., on Robertus

rerum Judicatarum[424] 30s., on the Voyage de la Terre Sainte[425] 30s., on Laertius[426] 8s., on a new testament 50s., on Du Moulins Bouckler[427] 30s., on Mr. Claudes Answer[428] 45s., whence their remains me about 47_ll_. Out of which I first payed neir 4_ll_. for a pair of shoes; 20s. that day I communicated at Charenton to the boatmen, the poor, and my seat; on day wt Mr. Forbes it cost me in a cabaret a croune, and Scot kept up a escu dor, which was 5_ll_. 11 souse.[429] The day after at the bowlls I lost 4_ll_.; then I payed for Limonade 3_ll_. 20s.; then after 4_ll_. 10s. which I lost at bowlls; for a point de Flandres 15_ll_. Whence of the 60_ll_. their remains me only 6, to which add 5 I receaved from the Messenger of Poictiers, and I have just a pistoll this 5 of May 1666, of which I lent a croune to Mr. Grahme; then payed 50s. for a collation wt Kinloch, Mowat, and D. Hewes; also 50s. for a part of a collation; I payed 6 francks wt my L. Ogilvy at a collation; 30s. at another tyme wt J. Ogilvy; 20 souse on a Hallicarnasseus[430] and a Hippocrates; and that out of 38 livres I receaved from F. Kinloch the 10 of May, so that this day 16th I have now 30 francks. On Les Remarques du droit Francois a croune. That day I went to Ruell a pistol; on my journey to Fountainbleau 2 crounes of gold. On the Parfaict Capitaine and the universal history, in 3 tomes, 4_ll_.

[423] Pacius, Julius, [Greek: ENANTIOPHANON], *seu legum conciliatarum Centuriae VII.* (1605). Ed. alt. 1610.

[424] Robertus, Annaeus, *R.J.*, Lib. iv. 1599; new ed., 1645.

[425] Doubdan, Jean, *Voyage*, etc., 1666.

[426] Diogenes Laertius.

[427] Molinaeus, Petrus, *Bouclier de la Foi*, 1619. Engl. tr. 1624.

[428] Claude, Jean, *Réponse à la Perpétuité de la Foi*, 1665.

[429] *Ecu d'or*. See Introduction, p. xliii.

[430] Dionysius of Halicarnassus.

On the 10 of June I received 20 crounes. Out of which I payed first 4_ll_. for Rablais in 2 tomes; 40s. at collation wt that Frenchman of the Kings Gard; 30s. the day after wt the Captains; 30s. wt J. Ogilvie; 6_ll_. for Mornacius observations;[431] 3_ll_. for Guiccardins[432] History, in 2 volumes; 40s. for Gomesii Commentarius in Regulas Cancellariæ and Le Martyre de la Reyne d'Escosse;[433] 20s. for Bellon[434] Resolutiones Antinomiarum and Molinoei Sommaire des rentes, usures, etc.; Molineus in Consuetudines Parisienses 50s.; Connani Commentarius in Jus Civile 40s.; Mantica de coniectur: ult. voluntatum[435] 60s.; Hottomanus[436] in Instit 30s.; Molinoei consilia 40s.; Menochius de Interdictis 40s.; Valerius Maximus 10s.; L'histoire du Concile de Trente 5_ll_.; Gellius[437] 10s.; Cepolla[438] de Servitutibus 50s.; les Memoires et le voyage du Duc du Rohan 40s.; Profession de foy catholique 12s.; Le Monde D'Avity,[439] in 5 Tomes, 8 crounes; Aubignées History[440] 4_ll_.; Pierre Mathieu his history, in 2 tomes, 3_ll_.; Du Plessis Memoires, in 2 volumes, 3_ll_. At a breakfast wt Mr. Fullerton 3_ll_.; at a collation wt Mr. Ogilvy 3_ll_.; 2 crounes given to the box of the Scots Talzors at Paris; 30s. given to sy the gallery of the Luxembourg; 40s. at a collation wt Mr. Hume and Grame; a croune on our diner that day that Mr. Geismar went to Charenton wt us; 4_ll_. for Munsteri Cosmographia; Thucydides 40s.; Desseins de Mr. de Laval 30s.; in collation wt that Gascon of the Kings garde (called St. Martin); Machiavellus 10s.; Justini Historia 5s.; Histoire du Seicle de fer 20s.; Les oeuvres de du Vair 40s.; Le Sage resolu, in 2 tomes, 40s.; Cardanus de Subtilitate 60s.; Histoire de Portugal 20s.; Tacitus 20s.; Remarques politiques from Henry Hamilton for a compend of Philosophy of Marandé[441].

[431] 1 Mornacius, Ant., *Obs. on Codex*. (1654), *on Digest* (1654).

[432] Guicciardini, Francesco, *Historia di Italia*.

[433] Blackwood, Adam, *Le Martyre*, etc.

[434] Bellonus, Joannes, *Antinomiarum Juris Dissolutiones*.
Lugduni, 1551.

[435] Mantica, Fr., *De Conjecturis*, etc., 1580.

[436] Hottomannus, Fr., *Commentarius*, in iv. lib.; *Inst.*, 1567.

[437] Aulus Gellius, *Noctes Atticae*.

[438] Cepola or Caepolla, Barth, *Tract, de Serv.*

[439] Avity, Pierre d', *Les estats, empires, etc., du monde*.

[440] Aubigné, Th. A., *L'histoire universelle*.

[441] Marandé, Léonard de. *Abrégé curieux el familier de toute
la philosophie*, 1648 and 1686.

On the 14 of July 1666 I packt up al my books in a box to send them for Dieppe, and to the end they might not be visited any wheir else, I caused them be carried to the Douanne of Paris, which is the controoller of all others, and by which if things be once visited none in France dare efter offer to visite them. Their it stood me a croune or 3_ll_ to cause remballe it; 10 souse to cause plomb it wt the King of Frances armes; 30s. for a passeport. They lightly looked over the uppermost books. Then I caused it be carried to the Chassemary of Dieeppe.

I gave the porte faix 20s.; 15s. for a Italian grammer; 5s. for Mureti orationes; 12s. to the Secretary of Sts. Innocents; 40s. for Sleidan; 30s. for Fabri rationalium Tomus jus;[442] for 4 volumes of de Thoues History 40s.; for Aschames lettres 10s.; for Le cose meravigliose della cita de Roma 8s.; for Pierii Hieroglyphica 50s.; for Harangues out of al the Classicks authors 50s.; to Schovo for a moneths dancing ii. ll.; 3_ll_. 10s. for a pair of shoes; 3_ll_. for sundry washings.

[442] Primus.

About the 28 of July I receaved some 56_ll_. in 10 golden crounes.[443] Out of which I have payed for Lucians Dialogues, le Tresor de St. Denis, Bodinus de specibus Rerum publicarum, Essex's instructions for a Traveller; 24s. for Oudins Italian Grammer; 5_ll_. for Index expurgatorius; 10s. for exames des esprits in 2 volumes; 30s. for Brerevood of sundry religions; 20s. for a Enchiridion Physicae reitutae for Mr. Fullerton; 20s. for a book of fortifications, not the Jesuit Fornevers; 3_ll_. for 6 carts, 70 for 3_ll_. 10s. I had payed for 4 volumes of Thou 40s.; heir again for other 4 I pay 60s.; for Scuderies discours de Rois 15s.; Itinerarium Hollandicum 15s.; 4_ll_. on a collation to Captaine Rutherford, etc.; 16s. for my breakfast wt Mr. Samuel Fullerton coming from the bastile; a white croune and a croune of gold...[444] 30s. for washing; 14s. at collation wt that Englishman Mr. Waren, his addresse in London was Towards Street, at Mr. Carbonells; 20s. lost playing under the hats; for Mr. Morus his poeme a croune; for a new testament a croune; for the State of France and of Germany, in 4 volumes 5_ll_.; to Mr. Fullerton for his Botero[445] a golden croune; for a purse at the faire of St. Laurens 20s., and that out of 10 crounes borrowed from Mr. Kinloch, 12 of August; 2 crounes given in drink monie; 8s. on fancies for the children; 21s. on a collation wt William Paterson; 7_ll_. for a trunck valise.

[443] This gives the value of the *écu d'or* at 5_ll_. 10s. See Introduction, p. xliii.

[444] A few words erased.

[445] Bolero, Giovanni, author of several treatises of political philosophy and history towards the close of the sixteenth century, some translated into English.

Then to do my voyage a 100_ll_.; 38 given for my place in the coach to bruxells; for my diner at Louure 25s.; supper at Senlis 16s.; diner at Pons 16s.; supper at Conwilly 24s.; diner at Marche le peau 10s.; supper at Peronne 18s.; supper at Cambray 28s.; diner at Valenciennes 24s.; super at Kivray 20s.; diner at Mons 24s.; super at Bremen 24s.; diner at Hall 24s.; to the cocher 24s.; to our escort 7_ll_.

At Bruxelles, for taking of my beard 9s.; for seing the Palais 40s.; for 6 dayes to my hostesse 10_ll_.; for my horse to Enguien 3_ll_.; for my diet their 3_ll_.; for washing, also for mending my shoes, 30s.; for my place in the bark of Anvers 20s.; for carrieng my things ther 12s.; for the removing them from bark to bark 18s.; for my diner their 33s.; for seing the citadelle of Anvers, wt some other smaller things, 18s. Thus goes the 100_ll_.

II

NOTES OF JOURNEYS IN LONDON, OXFORD, AND SCOTLAND, 1667-1672 AND OTHER PAPERS

(1)

NOTES OF JOURNEYS IN ENGLAND AND SCOTLAND, 1667-1670.

A CONTINUATION OF SOME TRAVELLS. Sie 2 volumes in 4'to relating to the same subject *alibi*.

The peace[446] was proclaimed at Camphire[447] the 3 of September, stylo novo, 1667, as also at Flusing: at Middleburg not til the 5, because their market day: their feu's de joy ware on the 7.

[446] The Peace of Breda between Charles II. and the United Provinces was signed on 31st July, but the ratifications were not exchanged for some weeks.

[447] Campvere, now Vere, a town in the island of Walcheren. Tervere (Der Vere) is the same place.

I left Tervere the 5't, came to Flessingue; wheir we lay by reason of contrary winds til the 12, on which morning it was at south south east. Our skiper, a honest fellow, was called Tunis Van Eck. Coming out without the head,[448] whither by the wind or negligence of the marinels I know not, we dasht upon it which strake a lake in our ship wery neir my arme long.

All ware wery afraided of drouning; only being neir the toune, a carpenter, a most lusty fellow, came and stoopt it wery weill; wheirupon we followed the rest and overtook them ere night, at which tyme the wind turned contrary upon us to south west, so that the 15 day at night being Thursday we was come but a litle abone Gravesend; wheirupon I advised Mr. Chiesly that we should hive of[449] the first boat should come aboard of us to carry us that night to London, which we did, and arrived ther tho late. Lay at the Black Bull in Bischopgate Street. Nixt day took a chamber in New Street neir Covent Garden at halfe a croune the week. Went to the Court, wher afterwards I fand Mr. Sandilands, Mr. Wallace, Mr. Lauder, C. Rutherfurd and a brother of his, Mr. John Chrichton, who was then with my Lord Drummond, Mr. Claude, etc., Henry Hamilton, who was win in to the Kings garde, P. Wans, Mr. Metellan, Mr. Don, Mr. Kirkwood, Mr. Ker my Lord Yesters man, D. Burnet, Mr. Johnston, etc.; kissed my Lord Lauderdale, Yesters, and the Provests hands; saw Sir William Thomsone, Collonel Bortwick, etc. Mr. Smith who was Mr. Simpsones man came over from Holland.

[448] Headland, or point.

[449] Off, so spelt usually by Lauder.

Having stayed a fournight in New Street I came to my aunts,[450] M'ris Inglishes, house, wheir having stayed some 8 dayes, I took place in the coach for Oxford the last of September, being a Monday, at Snowhil neir Hoburne. Payed 10 shillings. Oxford is 47 miles from London. Saw Tyburne, under which layes the body of Cromwel, Ireton, and some others; saw that post to which they rode that would have any who ware hanged. I saw also the Chancellors house,[451] Dunkirke or Portugall, directly against S't James, a very magnificent building with a great park adjacent.

[450] I have found no particulars about this lady.

[451] Clarendon House, built by Lord Chancellor Hyde, was on the north side of Piccadilly, facing St. James's Palace. It was called by the populace Dunkirk, suggesting that Clarendon had got money from the Dutch for the sale of Dunkirk, and Tangier, the dowry of the Portuguese princess, Catherine of Braganza, for his share in her marriage to the king, which was barren. See *Pepys's Diary*, 14 June 1667. A gibbet was set up before the gate 'and these three words written, three sights to be seen: Dunkirke, Tangier, and a barren Queen.'

Nixt we came to Oxbridge,[452] a toune 15 miles from London, wheir was their fair of rattles and other toyes for children. Their was also a market of horse and of cattell, for the most part come out of Wales. 7 miles further is Beconsfields, a village wheir we lay all night at King Charles his head. The host is a Scotsman called Hume; was made prisoner at Worcester. We was their but[453] that merchands wife that was going to sie hir child at Abinton (wheir is a braue market cross), M'r Lo, professor of Musick in Oxford, and I; the other 3 women ware at the Swan. Supper and breakfast stood me 4 shillings.

[452] Now Uxbridge.

[453] 'We was there but,' *i.e.* There were at our inn only.

Nixt morning being the 1 of October we came to East Wickam,[454] a very pretty toune; then to West Wickam, being 5 miles; then to Stockam Church, 3 long miles; heir we walked doune a steep hil; then came to Whately;[455] nixt to Oxford, the whole journey 25 miles. I lodged at the Miter, a wery civill house. Calling at Exeter Colledge for Mr. Ackland, to whom I had a letter from Mr. Sprage at Leide,[456] I found he was gone unto his oune country of Devonshire.

[454] Now High Wycombe.

[455] Now Wheatley.

[456] Leyden.

Nixt morning I went and visited the booksellers shops. At last lighted upon on[457] almost forgainst Oriel Colledge at the back of Christs Church ['called him Mr. Daves'[458]], who had a most rich and weill furnished shop worth all the rest. Their I found the Heroe of Lorenzo and Arrianus, also Tyraeus *de apparitioni*. [459] *et demoniacis*. He had lately sold a Lesly.

[457] One, as usual.

[458] Interlined.

[459] Contracted for *appartionibus*.

After diner came Mr. Lo to me with a young gentleman who stayed at his house. He took me first thorough Lincolne, Exeter, and Jesus Colledges, then to their publick schooles, a magnificent building, wheir for all the arts and sciences their is a scool.

[Illustration]

Heir also is that library so famous, and undoubtedly the greatest of the World, the Vatican excepted, and that but of late since the augmentation it got by that of Heidleberg. The forme of it is the rarest thing heir be the incredible multitude of manuscripts never printed which they have gathered together with a world of paines and expence, and gifted to the University. As their is their the gift of Archbischoep Laud consisting of a multitude (vid. 2400) of manuscripts in all languages, as weill Eastern as Western. Their be all Sir Kenelme Digbies books, together with Seldens, about which their

were a controversy in law. In his last will he gifted his books to the University, where it was demanded whether Cambridge or Oxford was meant. Oxford carried it first because he was an alumnus of this University; next, because sundry times in his life time he had told some friends that he would leave them to Oxford. All the lower are chained; none can have the permission to read till he hath given an oath to the Bibliothecarius that first he shall be faithful to the Universitie; next, that he shall restore what books he receives and that intier not torn. The papists gave occasion to this who under the prætext of reading maliciously tore out any thing that they judged nervously to conclude against themselves: otherwise its disadvantageous to strangers who come but for a short time and have the curiosity to see a book. They have a Catalogue, not, as others, *ordine alphabetico*, but according to the order they were gifted in: if it was money left then there be the names of the books bought therewith. There are the maniest Theologicall books of all other, a great many in both law, *Corpus Glossatum*,—*Tractatus Tractatum Venetiis* 1584, *Vasquius* 2 tomes, etc.

Of[460] one of the ends of the Library goes up a pair of stairs unto a very fair and spacious gallery whither the students retire to refresh themselves with walking after reading.

[460] Off, as usual.

The walls are all hung with pictures of the most famous men both of their own country and abroad, as well moderne as ancient. Mr. Digby is drawn like an old philosopher. The roof is all painted along with the armes of the University, where most artificially and couched up[461] in sundry fashions the name of him who built the gallery, Thomas Bodley. I saw a great many pretty medals whereof they had 2 presses full. There be also J. Cæsars portrait brought from Rome by a gentleman.

[461] Couched up, disposed, laid on (like embroidery). See Murray's *New English Dict.*, s.v.

A litle below the Library is the Anatomy house, not altogether so weill furnished as that of Leiden: sundry anatomies of men, women, children, and embryoes. On man hes a great musket shot just in his breast, yet he did not dy of it but afterwards was hanged; a mans skin tanned sewed on straw, seimes like a naked man; the taille of an Indian cow, its white, wery long, at least in a dozen of sundry peices; the skines of some hideous serpents and crocodils brought from America and Nilus; a mans scull with 4 litle hornes in its front, they ware within the skin while he was alive; another cranium all covered over with fog which they told me was of great use in medicine; sea horses or sharpes[462] skins; a Indian kings croune made of a great sort of straw, deckt all with curious feathers to us (some being naturally red, some grein, etc.) tho not to them—they despise gold because they have it in abundance; a ring intier put in thorow a 4 nooked peice of wood, and we cannot tell whow; a stone as big as my hand, folded, taken out of a mans bladder, another lesse taken out of ones kidneyes. We saw that the crocodile moved only his upper jaw.

[462] Sharpe, so written, query sharks.

From this we went to a house wheir we drank aromatik, then to New Colledge, a great building. In the tyme of the plague the king lodged in the on syde and forrein ambassadors on the other. They wer the French for gifting them a poringer worth 5 pound; but it was just at the tyme his Master declared war against England so that he went away in a fougue[463]. Went up to their hall, a pretty roome. Above the chimly is the Bischop that founded it; under him stands other 2 that ware each of this foundation, afterwards Bischops; and each of them built a Colledge, n, Marlan[464] and Lincolne. Saw the Chappel, the richest of Oxford; brave

orgues,[465] excellent pictures, one of the resurrection, done by Angelo the Italian, just above the altar.

[463] Rage. The sentence is obscure. Apparently the French ambassador

intended to present the college where he was entertained with a piece of plate, when a rupture between the sovereigns occurred.

[464] Merton, distinctly Marlan in MS. He had written it by the ear.

Apparently it was pronounced Marton. Merton was founded before New College.

[465] Organs. Just back from France, Lauder uses the French words *fougue* and *orgue*.

From this we went to Christs Church, the greatest and richest Colledge of them all, founded by Henry the 8't, or rather Cardinal Wolsie, who had wast designes had they not bein chookt. Their belonged to this Colledge by his gift lands thorough all England so that the students ['fellows'] [466] were as good as Lairds. The King took this from them and gave them pensions for it. Heir I went in to the Chappel with Mr. Lo, who is their organist, and hard their evening prayers, not unlike the Popish: saw the Bischop of Oxford and Vice Chancellor (for Hyde is Chancellor) of the University.

[466] Interlined.

By the means of that young student Mr. Lo recommended to me saw their Library, considerable for a private one. They have all the Counsels in 6 brave gilded tomes. They have a flint stone wery big in the one syde wheirof ye sie your face but it magnifies; a great stone congealed of water, another of wood.

From that he led me to their kitchin; wheir ware 3 spits full of meat roasting (sometymes they have 7 when the Colledge is full). Then he took me up to the dining hall, a large roome with a great many tables all covered with clean napry. Heir we stayed a while; then the butler did come, from whom he got a flaggon of beir, some bread, apple tarts and fleck pies,[467] with which he entertained me wery courteously. Then came in a great many students, some calling for on thing and some for another. Their are a 102 students in this Colledge besydes Canons and others.

[467] Suet puddings.—Murray's *New English Dict.*

At the back of Christs Colledge is Oriel Colledge. Its a great building built by King Edward the 2'd, even when Ballioll was built. Above the inner gate stands King Charles the I. on horseback; then towards the broad street is the University Colledge, the oldest of all thesse in Oxford, founded by Alfred, a Saxon King, and long efterwards repaired, or rather erected (for the first buildings be like to fall about ones ears), by Percy of Northumberland. Over forgainst it is All Souls, wheir is a pretty chappell with a rare picture of the resurrection.

From that to Queans Colledge, built long ago by on of their queans. Whiles they ware a laying the foundation they found a great horne (they know not weill of what beast), which since they have enchassed in silver and propine to strangers to drink out of. Their chappell is remarkable for its windows; in them ye have represented all the actions of our Saviour from his birth to his aschension.

I saw Brazennose Colledge and Marlan[468] Colledge, also Balliols Colledge, which is not so pittiful and contemptible as many would have it. Before the utter gate is a pretty pallisade of tries. Within the building is tolerable; in their dining roome be battered[469] up Theses Moral, political, and out of all the others sciences. Nixt to it be Trinity Colledge. It hath 2

courtes: the inner is a new building. Not far from this are they building the stately Theater of cut stone for their Comoedyes.

[468] See p. 171, note 3.

[469] Pasted.

Nixt day I went to the Physick Garden not far from Marlan Colledge. The gardener (a German by nation) gave me their printed Catalogue of all the hearbs, which may be about some 7000 in all. I have also some verses he gave me made on thesse 2 fellows thats keips centry, as it were, just as ye come in at the garden door; their menacing face is of timber; all the rest with their speir is artificially cut out of bush. They have also swans and such lik curiously cut out of the phileria. I saw the sensitive plant; it shrinked at my touching it, tho it was then excessively cold. Saw the tobacco: of the leives dryed they make it as good as that they bring from Spain, Virginia, Martinigo or elsewheir, if they had enough of it, and the entertaining of it ware not to costly; hence the Parliament discharges the planting of it. Saw African Marigolds, the true Aloes trie; all the wals cloathed with wery big clusters; tall cypruses, Indian figs, etc. The students can enter when they please.

On the Thursday 3 of October at night went and took my leive of Mr. Lo. Nixt morning having payed my host 5 shillings in all (which made me admir the cheapnesse of the place, fire only being dear since the Kings army was their, who cutted all its woods about) about 10 a cloak bad adieu to Oxford watered with the lovely Thames tho wery litle their; it receives at that place the Isis whence Thamesis.

In the coach was D. Willis his cheif man, a pretty physitician himselfe, going in to his Master, whom the Quean had caused come to London; a apothecary who also sold all kinds of garden seeds, and for that effect had

bein at Oxford, P. Nicoll had oftne traffiqued with him; a goldsmith's son in the Strand and his sister, and an old crabbed gentlewoman, tho she seemed to be of quality.

When we walked up the hill at Stockam Church he showed me a number of pretty hearbs growing by the hedges syde. He confessed to me that tho they had a verie glorious utsyde, yet if we would consider the forme of their teaching and studieing it was werie defective comparatively to the oversea Universities. Their publick lessons are not much worth: if a student who is immatriculat in some on Colledge or other be desirous to be informed in any science, let it be Philosophie, Medicine or another, then he most apply himselfe to some fellow of that Colledge, who teaches him for a salarie; otherwise a student neids never make use of a master but if he please. Theologie is the only thing that flourishes their.

Came back the same way to London the 5 of October, being Saturday. Nixt day came Haddow[470] and Bonnymoon to toun. Many a tyme hes he and I wisited Litle Brittain. We went throw Bedlam (I was in it and saw thosse poor peaple), then to Moore fields, wheir is a new street wheirin dwells thosse that ware burnt out in the fire. They pay wery dear for their ground and it is but to stand til they rebuild their houses again in the city. Then throw Long lane wheir is their fripperie; besydes it their is a hospitall for sick persons; then Smithfield East and West. I had almost forgot Aldergate Street, on of the nicest now in London, ye shall ever find mercats their; then we go thorow the Moon taverne. To the west of Smithfield is Snowhill, wheir the coach for Oxford is; then ye come to Hoburn bridge, a very filthy place, the street is large and long. In it is St. Andrews church wheir I went and heard Mr. Stellingfleet; the coach for York is at the Black swan their; above it ye come in to Lincolnes Innes Fields, a brave place weill built round about, much like the Place Royall at Paris. Heir lodged my Lord Middleton, heir is the Dukes playhouse, wheir we saw Tom Sydserses

Spanish Comedie Tarugo'es Wiles, or the Coffee House,[471] acted. In the pit they payed 30 p., in our place 18s. He could not forget himself: was very satyricall sneering at the Greshamers for their late invention of the transfusion of blood, as also at our covenant, making the witch of Geneva to wy[472] it and La Sainte Ligue de France together.

[470] Sir George Gordon of Haddo, 1637-1720 (see *infra*, p. 177), afterward Chancellor and Earl of Aberdeen, now returning from studying law abroad. Advocate, 1668, Lord of Session, 1680, President, 1681, Chancellor, 1682.

[471] Printed in 1668. T.S. was the son of the Bishop of Galloway. He became conductor or proprietor of a theatre in the Canongate, Edinburgh, and published the *Caledonian Mercury*, the first Scottish newspaper.

[472] Weigh.

After some way ye come to Covent Garden, all which will quickly fall in to my Lord of Bedford by wertue of an assedation which quicklie is to expire, having let of old the ground on the condition they should build upon it and they brooking the ususfruit for such a space of tyme it should finally returne to him; and this they tell me to be a ordinary contract at London; [473] then New Street, Suffolk Street, Charron Crosse, St. Martins Lane. In its Church preaches D. Hardins, a pretty man. Heir is York house, the New Exchange, etc., then the Strand and Savoye, Temple bar within and without the Gate, wher are all their Innes of Court, their lawyers and many booksellers. Then ye come to Ludgate hil; then to St. Pauls; then to Cheapsyde Crosse; then in to Broad Street at the back of the Exchange now: their is also Litle St. Helens and Great St. Helens, Leadinghal; also Aldgate, wtin the gate or wtout it; which is either wtin the bars or wtout them called White Chappell; out which way we went to Hackney, a village some 2

miles of London wheir M'ris Inglish hir son Edward lives; saw Bedlan Green by the way and the beggars house. Neir Algate goes of the Minorites leading to Tower-hil and the Tower, then down to the Hermitage. The Custome house is in Mark Lane.

[473] An early notice of building leases.

London is in Midlesex; Southwark thats above the Bridge is in Surrey, thats under it is in Kent.

Having stayed til the 28 of October (about which very tyme my mother was safely delivered of Walter), Hadow and I took our places in the coach for York. Their was a squire in Westmorland with his lady and hir sister returning home to his oune country, also a Attorneys wife who dwelt in the Bischopruck of Durham in the Coach with us. Had large discourses of the idlenes and vitiousnese of the citizens wives at London being wery cocknies. We will not forget what contest we had with some of them at the taking of our places.

Having left London, came first to Hygate, 4 miles, my Lord Lauderdales house, a village adjoining on the croup of a hill; then to Barnet, 10 miles from London; then to Hatfield wheir we dined, 17 miles, wheir we saw Hatfield house with brave parcks, all belonging to my Lord of Salisburie. A litle of this is the greatest hy way in England leading to S't Albanes. Came at night to Stesinwich,[474] 20 miles of London.

[474] Stevenage.

Nixt day, being Tuesday, and 29 came to Baldoc 5 miles; Begleswith[475] 10 miles; dined their at the Croun, wery bad entertainment; afternoon to Bugden,[476] 10 miles further, sad way. That night arrived their my Lord Rothes, my Lord Arley,[477] Sir J. Strachan,

and others going to London. Its some 3 or 4 miles from Huntingdon; the country is all couered with willows like to Holland.

[475] Biggleswade.

[476] Now Buckden.

[477] Arley, probably Airlie.

Nixt day Vednesday, 30, baited at a willage called Walsford,[478] 17 miles of wery bad way. Came at night to Stamford 5 miles further; within a mile of the toune we saw on each hand a brave stately house belonging to my Lord of Exeter, in one of them lived the Duc of Buckinghame. It stands on a river: whats besouth the bridge is in Northamptonshire, benorth in Lincolne. Its held amongs the greatest tounes of England after London. Norwich is the 2'd, it hath 50 churches in it: Bristol is a great toune to.

[478] Watlingsford (Blaeuw), now Wansford.

Nixt day, Thursday, 31, leiving Postwitham[479] and Grantham on our right hand, we entred unto the most pleasant valley of Bever, the best ground for corn and pasturage thats in all England: saw its castle at a distance, seimed to be most artificially fortified; it stands in Leister, Nottinghame, and Lincolneshires. Dined at Loughbirlington,[480] 18 miles: a long rabble of a toune indeed. Afternoon came to Newark upon Trent; had fowll weather with haille. Its in Nottinghame: its commonly called the line of England, dividing it into 2 halfes south and north (all that live benorth it are called North country men) by its river of Trent, which embraces the sea at Hull; yet the halfes are not æqual. We saw the Kings Castle their, tho demolisht in the last Civill wars.

[479] Postwitham, so written. North Witham and South Witham are near the route.

[480] Longbennington.

Nixt day, Fryday, 1 of November, left Toxford[481] on the Clay on our left hand, entred unto Sheerwood Forest, wheir Robin Hood of old hanted. Was of a incredible extent; now theirs no wood in it; but most excellent hunting: it was good way. Baited at Barnby in the Moore, 17 miles of Newwark. As we was heir J. Graham my Lord Middletons man overtook us going post. After diner past Scrouby and Batry and[482] came late at night to Doncaster, 10 miles further.

[481] Tuxford.

[482] Scrooby and Bawtry.

The 6't day, being Saturday and the 2'd of November, it was a brave clinking frost in the morning; we clawed it away past Robin Hoods well; baited at Ferry bridges, arrived at York safely: lay wheir our coach stayed. Devoted the nixt being Sabath for viewing of the toune; saw that so much talked of minstrell, and truely not undeservedly, for it is a most stupendious, magnificent Church as I had sein. Duc Hamilton was come their then.

Nixt day, being Monday and 4 of November, having bid adieu to our coach companie and Mr. Thomas Paterson who had come doune all the way with us, Sir George and I took post for Barrowbridges,[483] 10 miles. Arrived about 11 howers, dined on apple tarts and sider: on immediatly for Northallerton, 12 miles; arrived ere halfe 3; my horse almost jaded: was very unresolved whither to go any further or not; yet on for Darneton[484] (wheir the good spurs are made). We are all weill monted with a good guide: we are not 3 miles of[485] the toune when it falls pit dark; a most

boystrous night both for wind and rain, and for the comble of our misery 10 of the worst way on all the rode; yet out we most it. He led us not the ordinar way but throw the enclosures, breaking doune the hedges for a passage wheir their was none. Many a 100 ditch and hedge did we leap, which was strange to sie had we not bein on horses that ware accustomed with it, yea some ware so horrible broad that we forced to leap of and lead over our horses. We was forced to ride close on on another, otherwise we should have losed on another. When we was within 2 miles of Darnton we came to a great river called Tees, in Latin by Cambden Tesis, which divides Yorkshire from the Bischopricks of Durham (for from the time we came to Barnby in the Moore til this place we ware ever in Yorkshire, which is the greatest in England); heir we lighted and hollowed on the boatman on the other syde to come and boat us and our horses over. If he had not bein their we had bein obliged to ride 2 miles ere we had come to a bridge: over we win, and at last reaches Darnton, both wet, weary, and hungrie.

[483] Boroughbridge.

[484] Darlington.

[485] Off, as usual.

Nixt day, Tuesday and 5 of November, on by tymes for Durham, 14 miles. My saddle proved so unmeit for the horse back that it turned perpetually with me. At last changed horses with the postillon. Came to Ferryhill, 4 miles to the south of Durham, askes for Isabell Haswal their, is most kindlie received; comes to Durham be ten a cloak, on of the most strong tounes, and that naturally, we saw in all England; then for Newcastle, 10 miles. Our postillon Need of Durham the greatest pimp of England. Neer Newcastle saw thesse pits of coall that carries its name. Then to Morpeth, 10 miles; which wearied us so sore that we resolved to post no more, but to hire horses home the Kelso way; wheirupon the postmaster furnished us

horses to carry us to Ulars,[486] 22 miles; but ere we had reached Whittinghame throw that most sad and wearisome moore and those griveous rocks and craigs called Rumsyde Moore we ware so spent that we was able to go no further; sent back our horses and stayed their all night.

[486] Wooler.

Nixt day, being Thursday 7 November, got horses from that miserable village to carry us the other 8 miles to Ulars [Wooler[487]]. After we was once up the braes we meet with wery good way.[488] At Ulars had much difficulty to find horses for Kelso, 12 miles further. At lenth we found, which brought us thither about the evening; crossed the Tuede in boate just forgainst the toune, which beyond compare hes the pleasantest situation of ever any toune I yet saw in Scotland. Their stands the relicks of a magnifick Abbassie that hes bein their. Lodged at Charles Pots; fand a sensible decay of service by that a man hes in England. Having provided horses to carry us to Edinburgh, 28 miles, we parted nixt morning Fryday 8 November.

[487] Interlined.

[488] i.e. the road was good.

Saw hard by Kelso thesse 2 most pleasant houses that belong to my Lord Roxborough, the Flowers[489] and the Friers. Throw muiresh, barren ground we came in sight of Lauder, 10 miles of Kelso, on the west bray, face of the Lيدر Water. Over forgainst it stands a pretty house belonging to my Lord Lauderdale: 4 mile further of excellent way all amongs the mids of hills stands Ginglekirk[490] wheir we dined; then forward our Sautry[491] hils of whilk we discovered Edinborough. Passing throw Fallean[492] came to the Furd within 6 mile of Edinborrough, yet we called first at New Cranston, Sir J. Fletchers house; but himselfe was in the north marrieing the Lady Elsie; his sone James and his daughter ware at Ormaston. James as

soon as he heard we was their came to the foord to us, stayed with us all night; took us up to Cranston with him; wheir was receaved most magnifickly by him and his sister.

[489] Now Floors.

[490] Now Channelkirk, still locally pronounced Shinglekirk.

[491] Soutra.

[492] Now Fala.

Parted that day, being Saturday and 9 of November 1667, for Edinborough, whither by Dalkeith I arrived safelie about 4 a Cloak in the afternoon amongs my friends, from whom I had bein absent some 2 years and 8 moneths.

DEO GRATIAS.

Accompte of my expence at London from September 6 to the 9 of November
1667.

In money from Freiston received 36 lb. 14 s. from Lindsay by a bill, 19 lb., in all 55 lb. 15 s. sterling.

For a 4 nights diet and chamber maille in New Street 0 17 0, for a suite of cloaths, 4 yards and 1/2 at 16 s. 3 yards sargeat, 4 s. and 6. so much taby. the garniture about the sleives, in garters, shoe strings, etc., 1 lb. 16 s. the making, 14 s. with the other appartenances, in all it stood me some 9 pound 10 s.

For 2 laced bands, 3 0 0
For a laced gravate, 0 12 0
For 4 pair of holland sleives at 8 s the peice, 1 12 0
For 4 pair of laced cuffes to them, 1 1 0
For silk stockings, 0 12 6
For worsted ones, 0 6 0
For Jesmine gloves, 0 2 6
For a fusting wascoat, 0 5 0
For 2 whole shirtes, 0 12 0
For 2 pair drawers, 0 9 0
For 3 pair shoes, 0 3 0
For a cloathbag, 0 8 0
My Oxford woyage and back, 1 0 0
My expence that week, 0 10 0
For books bought their, my catalogue
amounts to, 8 9 0
Given to Mris Inglish and hir maid, 5 0 0
For my place to York, 2 5 0
For my expence thither, 0 11 0
For 6 stages post, 1 10 0
For hired horses from Morpeth to this, 1 0 0
For my expense from York home, whither I
came Saturday 9 November, 0 8 0
Lent to Mr Thomas Paterson, 1 15 0
Summa of all is, 42 9 0
Brought home 7 lb. 10 s.
Repayed by Mr. T. Paterson 1 lb. 15 s.
which in all makes 9 lb. 5.

PETITION OF MR. JOHN LAUDER.

Unto the Right Honourable the Lord President and remanent Lords of Counsel and Session the humble petition of Mr. John Lauder sheweth, That wheir your petitioner having applied himselfe to the study of the Civil law both at home and abroad, and being resolved to emprove the samen and to exerce it as Advocat, May it theirfor please your Lordships to remit your petitioner to the Dean of Faculty and Advocats for his tryall in the ordinar way in order to the office of ane advocat. And your Lordships favourable returne heirto.

21 January 1668. The Lords having considered this bill and desyre their of remits the petitioner to the Dean of Faculty and Advocats to the effect they may take triall of his knowledge of the Civill law and make report to the haill Lords their anent.

JOHN GILMOUR, I.P.D.

Remits the supplicant to the private examiners to take tryall of his qualifications and to report.

ROBERT SINCLAIR.

27 January 1668. The private examiners having taken tryall of the supplicants qualifications of the Civill law finds him sufficiently qualified theirin and remits him to his further tryall.

**ROBERT DICKSON, GEOR. NICOLSONE. PAT. HOOME, RODER. MACKEINZIE.
JAMES DAES.**

Edemborough, 28 January 1668. Assignes to the supplicant for the subiect of his publick examination. Tit. D. *de collatione bonorum*.

ROBERT SINCLAIR.

Edemborough, 15 February 1668. The body of Advocats being met and having heard the supplicant sustain his tryal before them upon the befor-assigned title, did unanimously approve him theirin and recommend him for his lesson to the Lords favour.

GEORGE MACKENZIE, in absence of D. of F.

22 February 1668. The Lords having considered the Report above written assignes to the petitioner the day of June nixt (which indeed was the 5h) to finish his tryall in order to the office of a ordinire advocate, and recommends the petitioner to the Dean of faculty for to have ane Law assigned to him to that effect.

JOHN GILMOUR, I.P.D.

Edemborough, 1668. Assignes to the supplicant for the subject of his publick lesson. *l. diffamari C. de Ingenuis Manumissis*.

ROBERT SINCLAIRE.

I was admitted advocat on the 5 of June 1668.

* * * * * [493]

[493] A page scored out.

In August 1668 I went home with my sister for Glasco. Went by the White house, the Coudbridge, Corstorphin, held up to the right hand, saw Gogar on the left, Ingleston, Boghall, Norvells house. Came to Kirkliston, 6 miles from Edemburgh. Neir it on this syde of the Water is Carlaury; a mile further is the Castle of Nidry; both it and Kirkliston toune belongs to my Lord Vinton, and Newliston on the left hand[494] then came to Lithcow,

Limnuchum[495] 12 miles from Edinburgh. Baited at on Chrightones forgainst the Palace, which hes bein werie magnificent, is now for the most part ruinous. Under it stands the Loch, in the midle whei of is a litle island with tries. In the midst of the court is a most artificiall font of most excellent water. Their is ane in the toune: their ... [496] wes neir the palace. They are a building a tolbuith all of aislaer work.

[494] On margin [Vinsbrugh, Duntarvy, Wrae, Monteith],

[495] Limnuchum, the Latin name. Arthur Johnston, in his *Carmen de Limnucho*, quoted at length by Sir Robert Sibbald, 'Nobile Limnuchum est Patio de marmore templum,' etc.-Treatises, Linlithgow, p. 16.

[496] About two words obliterated.

A mile from this on our left hand we saw Kettelston Stewart, then wheir the famous city of Camelon stood built by Cruthne Camelon first King of the Picts—330 years before Christ—alongs the river of Carron whither the sea also came up, so that yet to this day digging deip they find tackles and anchors and other appartences of ships. Its thought that when the sea gained in Holland and the Netherlands it retired heir; so that now its not within 3 miles of this place now. Vespasian in the reigne of our Caratacus, 35 years after Christ, took it and sackt it. At last finally ransackt and ruined by Kenneth the 2d in the year of Christ 834. Neir to this place stands Dunipace with the 2 artificiall monts before the gate called Dunnipacis. Heir also is that old building called by some Arthurs Oven, and relicts of the great Wall of Adrian. But of all this consult Buchanan, lib 10, pag. 16, 17, 18.

Within a mile of Falkirk stands Calendar, the residence of the Earles of Callendar, a place full of pleasure. We lay at Falkirk 6 miles beyond

Linligligow. Nixt day on for Kilsith, 9 miles funder. Saw Cumbernauld and that great mosse wheir that fatall battell of Kilsith[497] was fought, 6000 slayn on the place. Past by the Water of Bony wheir John Scots mother lives. Bayted at Kilsith, saw the old place which was burned by the Englishs, and the new place, then other 9 miles to Glascow. Passed by Calder and a Water of the samen name. Saw Mucdock[498] at a distance, my Lord Montrosse his residence.

[497] Montrose defeated the Covenanters under Baillie at Kilsyth in 1645.

[498] Now Mugdock.

Being arrived at Glasco we lighted at my sisters[499] in the Trone gate: then saw Old Colin at his house in the Bridge gate; then saw their Merchants Hall with its garden in the same street; then the 2 Hutchesones brether ther hospitall in the Tronegate. The eldest brother was a Wrytter. Then saw their bridge over Clyde, of which a man hes a most fair prospect both up the river and doune the river of all the trough of Clyde.

[499] Mr. Laing mentions that one of Lauder's stepsisters was married to Campbell of Blythwood.

Nixt day heard sermon in the Trone church: fornoon, Mr. Robert Stirling; afternoon, Mr. Milne. After sermon went to their Bromeylew, wheir is their key for their boat, and a spring of most rare water.

Nixt day saw their tolbuith, Gallowgate, Saltmarket, Colledge with the priveledges of the University of Bononia; their great church, on under another,[500] with the castle, the bischops residence with the Bischops hospitall and the tradesmen their hospitall, both at the head of the toune,

which comes running down from a eminence towards the river, supposing the river to be the edge of this book, in this fashion.

[500] The crypt.

[Illustration]

We went after for the Ranfield, 5 short miles from Glasco, on the south side of the river. Saw on the way Govan, Renfrew, burgh royal. On the other syde ware Parket,[501] Scotts-toune Stewart lately married to Roysaithes daughter, and the Barnes. Ranfield stands most pleasantly with abundance of planting betuixt the Clyde and the Greiff[502] or Carst,[503] that comes from Pasley.

[501] Now Partick.

[502] Now Gryfe.

[503] Now Cart.

Went up to Pasley by the Knock: its 2 mile from the Ranfield, a most pleasant place with a pretty litle toune. In former tymes it belonged to my Lord Abercorn. Now my Lord Cochrane hath it, who sold to the toune for 4000 merks the right he had of the election of their Magistrates, which he sore repents now, for since the toune cares not for him. It hes bein a most magnificent Abbaye, much of it ruined now. Ye enter into the court by a great pend[504] most curiously built. The wals of the yard may almost passe for a miracle because of their curious workmanship and extent. The yards are no wayes kept in order. My Lord hes enclosed a wast peice of ground for a park.

[504] Arched passage.

Nixt morning we went for Dumbarton, having crossed the river 5 long miles from the Ranfield and 10 from Glasco. Saw on the way Rowlan on our right hand, Bischopton, Brisbane, Erskin belonging to Hamilton of Orbiston, both on the other syde of the river. Came throught Kirkpatrick, which is the great mercat toune of the Hyland kyne; saw Castle Pottage; then by Dunglas a ruined castle standing on a litle rock in the Clyde belonging to Sir John Colquhon of Luz[505]; then by the craig called Dunbuc came to Dumbarton toune, whair meet with Walter Watsone, provest of Dumbritton. Stayed at his brothers: went over to the rock, a most impregnable place as any part of the world can show. Was so fortunat that Major George Grant was not their. The gunner went alongs with us and shewed us the cannons, some Scotis peices, some English, some French, some Flemish, one braze[506] of 34 pound bal taken up out of that ship of the invincible armado which was cast away on the north of Scotland in the 88. Their was 2 also iron peices carrieing 32 pound ball, a peice casten in King James the 4't his tyme, carried with him to Floudoun, and taken then and kept ay to Charles the I., his tyme. They call them demy canons, some of one lb, some of 8, some of 14 lb ball, etc. They have excellent springs of water in many places of the rock: their ammunition house is almost on the top of it. Of it we saw my Lord Glencairnes house of residence, also Newark, and under it the bay whair Glasco is building their Port Glasco. Neir to Dumbarton stands Fulwood belonging to the Sempills. The Levin comes in to the Clyde heir. The provest heir related to me that merrie passage betuixt Thomas Calderwood and him. Its a most debauched hole. Came back that night to the Ranfield.

[505] Now Luss.

[506] Brass.

Nixt day came to Glasco. That night our horses were arrested and pressed because of the rumor that ther was a randevouz to be at Loudon hill. Saw old Robert Cambell and young Robert with their wives, James Cambel, John Bell with his wyfe, Barbara Cambel, Colin Maclucas, Daniel Broun, Collonel Meiren, Sergeant Lauder. Went out and saw Blayswoode,[507] Woodsyde and Montbodo its house wheir stayes my fathers old landlady. Saw his quarry, his corne milnes, and his wack[508] milnes. If that of Monbodo wer once irredimeably his he will have above 50 chalders of wictuall lying their all together. On the south of the bridge stands the Gorbells wheir is the castle of the Gorbels: in it dwels at present Sir James Turner.

[507] Now Blythswood.

[508] For wauk.

We took horse at the Gallogate to go for Hamiltoun 8 miles from Glasgow; saw Wackingshaw, Kelving Water, the Castle of Bothwell, ruinous, belonging to the Marquis of Douglas on the Clyde. Over on the other syde stands the Craig of Blantyre, my Lord Blantyres residence: he has another house called Cardonald near Renfrew. Then ye come to Bothuel toune, on halfe belonging to the Marquis and the other to the Duc of Hamilton; then ye come to Bothuel bridge—six pennies of custome a horseman payes; then a mile from it stands Hamilton, first the nether toune, then the upper. Many of the gentlemen of Cliddesdail was their that day at the Duc, as Silvertounhil, Hages, Master of Carmichaell, Hamilton, Torrance, Stewart Hills, Castlemilk, Rouchsoles, my Lord Lee which[509] standes within 2 mile of Lanerk. Lanark is 8 from Hamilton. Went and saw the yards:[510] great abundance of as good wines,[511] peaches, apricoats, figs, walnuts, chaistins,[512] philberts, etc., in it as in any part of France; excellent bon Crestien pears, brave palissades of firs, sundry fisch ponds.

The wals are built of brick, which conduces much to the ripening of the fruits: their be 20 ackers of land within the yeardes. Their's a fair bouling graine before the Palace gate. Then went to the wood, which is of a wast bounds; much wood of it is felled: their be many great oakes in it yet: rode thorough the lenth of it, it is thought to be 5 miles about. Saw great droves of heart and hinde with the young roes and faunes in companies of 100 and 60 together.

[509] Which, *i.e.* Lee. Sir James Lockhart Lord Lee's house.

[510] Yards, enclosed gardens, orchards.

[511] Vines.

[512] Chestnuts. Fr., *Châtains*.

Nixt day on for Edenburgh, 24 miles from Hamilton. Rode crost the Clyde at a furd about 5 miles from Hamilton, came in to the muire way for Glasco: wery ill way. Came to the Kirk of the Shots; then to Neidle eye wheir ye go of to Bathcat; then to Swynish Abbey[513]; then to Blaickburne belonging to the Laird of Binny, 12 miles from Edenburgh. Baited their, then came to Long Levinstone a mile furder; then to the pile of Levinstone Murray: the house [Toures][514] was destroyed by the English. Saw on our right hand Calder, my Lord Torphichens residence; then entered unto that moor, Drumshorling Moore; then came to Amont Water: rode within a bow shot of Clifton hall and within halfe a mile of Eleiston; then to Gogar stone and Gogar toune; then to Corstorphin, and so home, being the 15 of August 1668....[515]

[513] Now Swineabbey.

[514] Interlined.

[515] Nearly half a page blank.

One day in a promenade with Mr. James Pilans past by Wright houses, Greenhill, Mr. (Doctor) Levinstons, then a litle house belonging to Doctor Stevinsone; then Merchiston; then to the Barrowmoore whier Begs famous house is; then to the Brig-house which belonged to Braid,[516] was given of by the Farlys in an assithment, liferented even now by the Ladie Braid, payes her 200 merks a year; then up towards Greenbank to the Buckstone, whier is the merches of Braid with Mortinhall and Comistone; saw its merches with the new Maynes of Colinton belonging to Mr. Harie Hay with Craiglockart, the Pleughlands, and the Craighouse (now Sir Andro Dicks, of old a part of the Barronie of Braid); then saw whier the English armie lay, also Swanston and Pentland. Then came alongs all the face or brow of the bray of the Wester hill, which is the meith between Braid and Mortonhall, till we came to Over libberton, Mr. William Little. Conquised by this mans goodsire, William Little, provest of Edenburgh, befor K. Ja. went in to England: a fyn man and stout: as appeared, 1°, that his taking a man out of the Laird of Innerleith his house at Innerleith, having set sentries at all the doors, and because they refused to open, tir[517] a hole in the hous top and fetch him out and laid him in the tolbuith for ryving a bond of borrowed money fra a burges of the toun; which proceidur the Secreit Counsell then, tho summar, allowed of. 2°, thair having bein long debats betuen the toun and the Logans of Restalrig for the passage throw Restalrig's lands to Leith (the way wheirto then was just by the tower), and Restalrig having aither refused to let them pas throw his lands or else would have them to acknowledge him, Prov: Little being with K. Ja. at Stirling made a griveous complaint of their insolency; wheirupon he said he cared not tho the highest stone of Restalrig ware as lach as the lachest. Wheirupon the prov: Will ye bid me doe it, Sir? Wheirupon the K. Doe it if ye like. Immediatly wtout telling the K. or anie else comes he post to Edenburgh and causes cast doune the tour that same night. The K. tyme of supping coming the K. calls

for his prov: of Edenburgh: no body could tell. At last some tells that he suddenly was goon to Edenb: this moved the K. I'll wad, sayd he againe, its to cast down Restalrig Castle. Go with all the speid ye can and forbid it. Are anie could come their it was done. K. Ja: used to call the Huntly the 1 noble man of his kingdome and the provest of Edenb the 2d.

[516] Dick of Braid.

[517] Strip off part of the roof, and so make a hole.

To returne. From Over liberton saw the byway to St. Catharines Well, a quarter of a mile from Liberton, Leswaid, and Drodden;[518] then came to Libberton Kirk; then came neir to Libberton burne, and turned up to Blackfurd, wher we saw Braids merches with Libberton moore, now arable ground, bought lately by the President.[519] Also wt Grange[520] saw *Sacellum Sancti Marlorati* Semirogues Chappell.[521] That burne that runes throw the Brighthouse goes by Blackfurd to the Calsay[522] and Powburne, then to Dudiston Loch, out of which it runes again by West Dudiston milnes and is the Thiget burne.[523] Braides burne againe runes by Libbertone toun to Peppermilne, fra that straight to Nidrie by Brunstone and its milnes to the sea, a mile west of Musleburgh: the Magdalen[524] bridge layes over it their.

[518] Anciently Dredde, now Dryden.

[519] Sir John Gilmour.

[520] Dick of Grange. See Appendix I., p. 239, note.

[521] The two names seem to denote the same chapel. St. Roque's Chapel was on the Boroughmuir, half-a-mile west of Grange House. See Bishop Forbes's *Kalendar of Scottish Saints* s.v., Semirookie:

'Aug. 16, 1327. Under this corruption we find the popular designation of a chapel dedicated to St. Roque, just outside the east gate of Dundee.' The other name, distinctly written, looks like a corruption of St. Mary of Loretto. Besides the more celebrated shrine at Musselburgh, there is a tradition of a Loretto chapel near the Lady's Wynd. Possibly Lauder confused it with St. Roque's Chapel.

[522] Causeway, highroad.

[523] So sometimes spelt, more often Figgate or Fegot. The course of the two streams is incorrectly described.

[524] So called from a chapel to St. Mary Magdalen.

That nunnerie the walls wheirof are standing at the Cheyns[525] was destined most by[526] burgesses daughters, as also that whilk was in the Colledge Yaird called *Monasterium Sanctae Mariae in Campis*.

[525] Cheyns, now Sciennes, convent of St. Catherine of Sienna.

[526] Destined by, meaning 'destined for,' hence, 'occupied by.'

Cheyne holds of the toun: they ware Robisons that possest it of old; Grange by the Cants; Craigmillar, Prestons, Edmestons, of that Ilk, now Reth,[527] first of that name being Chancellor Seaton his servand and carried the purse before him; Shirefhal, Giffards, then bought by the Earl of Morton, Lord Dalkeith, now it belongs to the Balcleuch; Preistfield (never kirk lands, tho the name would seime to say so), Hamilton, Tam of the Cougates[528] father; before them in the Chopmans; as also in the Cants.

[527] In 1671 the second son of Wauchope of Niddrie married the daughter and heiress of Raith of Edmonston.

[528] Thomas Hamilton, first Earl of Haddington, favourite of James VI., who so styled him.

Went on the 20 of September 1668 to Musselburgh to see the Mid Lothian Militia, being a regiment 10 companies (*id est*, Lauderdales Collonel, Sir Jo. Nicolson of Polton Lieutenant Collonel, Gogars Major, Mortanhalls, Deans, Halzeards, Calderhalls, Sir Mark Kars[529] of Cockpens, etc.), muster in a rendezvous in the Links. Saw in going Stainehill, a sweet place, the Dobies, were burgesses, now Mr. William Sharps, keeper of the Kings Signet, about a mile on the west of Musselburgh Water and bridge and Musselburgh on the east.

[529] Apparently a son of the Earl of Lothian, afterwards a general of the army.

On the way to the south stands Innerask[530] with its kirk. Hard at the town stands Pinkie, built about the year 1612 by Alexander Seton, Earl of Dunferling, Lord High Chancellor of Scotland. His lady was Maitland, a daughter of the then Lord Thirlstan (who had been King James his Secretary and Chancellor), now Earls of Lauderdale: his name and hers are in many places of the house. This Earl of Dunferline that stays at London is his son, he has so mortgaged his Estate that my Lord Tweeddale for security of cautionry for him has taken possession of Pinkie, Fyvie, Dunferline, with whatsoever other thing rests of his estate and is like to buy it. It is a most magnificent, stately building [it has but 20 chalders victual belonging to it]: [531] much cost has been wasted thereupon. There is a brave building of a well in the court, fine shade of trees that fetches you into it, excellent large galleries and dining rooms. He has been mighty conceited in pretty mottoes and sayings, whereof the walls and roofs of all the rooms are filled, stuffed

with good moralitie, tho somethat pedantick. See Spotiswood of him in *Anno* 1622, page 543. A most sweet garden, the knot much larger than that at Hamilton and in better order. The rest of the yeard nether so great nor in so good order nor so well planted with such varietie as is in Hamilton yeards. The knot heir will be 200 foot square, a mighty long grein walk. Saw figs at a verie great perfection. Above the utter gait as ye enter in to the place their is an inscription in golden letters telling the founder their of, and assuring them that shall ever attempt to destroy that fabrick by sword, fyre, demolishment, or other wayes that the wery stones and beams ut of the wall shall exclaime against them as destitute of all humanity and common courtesie. 18 plots in the garden, with a summer houses and sundry pondes.

[530] Now Inveresk.

[531] Interlined.

Saw of[532] the linkes wher Pinky field was fought on the hill neir Fawsyde. Heard whow the Laird of Carberrie then not desiring the battell should be to neir his house had so much influence on the Scots armie as to cause them leive the advantadge they had of the high ground and draw doune to the champagne countrey, which was a partiall cause of their rout, as also that the Englishes had their ships just at the links, who with their shots of the sea did our forces a great deall of hurt.

[532] *i.e.* off, meaning 'from.'

Saw Walafield belonging to the Paipes. East it on the sea syde the Salt pans. Above them within the land Tranent; then Prestonpans, wher was B. Jossies house; then Dauphintoun, once Archibald Wilkies; then Fawsyde, Ramsayes, on a hill head; then a mile beyond it Elphinston, the Clerk Registers;[533] then Carberrie, Blaires, they ware Rigs.

[533] Sir Archibald Primrose.

In the coming home saw Whithill, Easter Dudinstone, belonging to Sir Thomas Thomsone. He that first acquired it was an Advocat in Queen Maries tyme, who having bein much on hir party and afraid to be forfault, disponed his whole estate over to a 2d brother of his, out of whosse hands he nor his posterity (who are living this day in Rowen) could never pick it, so that this Laird of it is the grandchild of that 2d brother.[534] Its 60 chalder of wictuallat beir and wheat ever accompted the finest thing about Edenburgh. Its of great circumference.

[534] I am informed by Mr. William Baird, author of *Annals of Duddingston and Portobello*, that this story is not authentic.

Saw Brunstone and Nidrie. Came throw Restalrig toune, wheir stands an old chappel, the buriall place of the Lo: of Balmerinoch: also of old the parish church of South Leith, so that the minister of South Leith even now is parson at this kirk, at least denominat so.

Inchekeith might weill now be called Inche Scott, since Scottistarvet bought it, who had great designes to have made a good fischer toune theirupon.

A litle after we went to Halton[535] (the young La:[536] being at London). Went out by Gorgie Milnes, belonging to one Broune; then by Saughton hall; then by Belsmilne to Stanipmilne, Elies, up above which stands Reidhall, Brands, and Colinton, with Craiglockhart, wheirin the President, S.J. Gilmor, hes intres tho it belong to Colinton; then to Saughton belonging to Mr. David Watson. On our left hand was Langhermistoune, the portioners of it Mr. Robert Deans the Advocat and Alexander Beaton the Wryter. On our left hand Reidheues who are Tailfours, the last of them married a daughter of Corstorphin, Foster, for this Lo:[537] is Lieutenant

General Bailzies sone, and got it by marrieng the heritrix. Then came forward to Upper Gogar belonging to on Douglas, who was a chamberlan for the Earle of Morton. Kincaid of Wariston hes some intrest in it. Past Gogar Water, that comes from Halton by Dalmahoy and Adestoun, and comes down to Gogar place. On our left hand saw Riccarton Craig, Curriehill, Skene of old now Winrahames; Wariston, Johnstons; Killeith, [538] Scot of Limphoys, and nearest of all thesse Adeston,[539] bought by a Laird of Halton, who married on Bellenden of Broughton, to be a provision to hir children (for she was the Lairds 2d wife), wheiron he sold Cringelty neir Hayston in Tueddal (which belonged of old to the Laird of Halton), and theirwith purchessed Adelstoun and gave it to Sir Lues Lauder, who was the sone procreat betuixt him and that ladie of the house of Bruchton. Sir Lues married a daughter of Sir Archibald Achesons, who was Secretarie of Scotland, whom I have sein, and who bore him 2 sones, one evan now a preacher, married in England, the other in the Kings troupe, with some daughters: on of them knowen to have bein to familiar with Sir William Fleming. Adelstoun now is sold to Sir John Gibson. Then saw Dalmahoy house with its toune at some distance on the croup of the hill.

[535] Now Hatton.

[536] Charles Maitland, afterward Lord Halton, and third Earl of Lauderdale, on whom and his children the estate was settled on his marriage to Elizabeth, daughter of Richard Lauder of Hatton.

[537] *i.e.* the present laird of Corstorphine.

[538] Now Kinleith.

[539] Now Alderston.

On our right hand stands Ratho (that belonged to Duncan, who being the Kings talzeor conquered Bonytoun), now Mr. Alexander Foules; then Ratho toune, the halfe of it belonging to Halton, the other halfe to Ratho place; then Ratho kirk, the parish of many of the gentlemen of this country; then Rathobyres, the on halfe wheirol pertaines to James Fleming; then Northtoun,[540] a willage or meling[541] belonging to the Laird of Halton; then came to Halton. Their beside the old Laird,[542] the lady[543] Richard,[544] Jo.,[545] Charles and their sister Isabell[546] was Jean Areskin, Balgonies daughter, Elphiston, a daughter of Calderhals, and Mr. William Sims eldest daughter.

[540] Now Norton.

[541] Maling, Mailing (from 'mail,' rent) either has the ordinary meaning 'farm,' or perhaps a group of cottars' houses, 'maillers' or 'meallers,' who were allowed to build on waste land, and hired themselves out as labourers.—Jamieson, *Dict.*, s.v.

[542] Richard Lauder, last of Hatton.

[543] Richard Lauder's daughter, wife of Charles Maitland.

[544] Fourth earl.

[545] Fifth earl.

[546] Afterwards married to Lord Elphinston.

Halton, as I saw their, carries the griffin bearing a sword, on the point wheirol is a Moors head. The occasion they tell me is that one of the Lairds went with a brother of Robert the Bruce to the Holyland and slew many of the Sarazens their, wheiron he added that to his coat. The motto is, Strike alike. Metellans[547] hes a lion with a star.

[547] Maitlands.

Learned of the old Laird that the Lairds of Calder ware knights of the order of St John of Jerusalem, after knights of the Rhodes, now of Malta, and that by vertue theirow they ware superiors of all the Temple lands (which in Edenburgh may be discerned yet by having Croces on them), as weill in burgh as in landward throwghout Scotland. Heard him speak of that Bond of Assurance betuixt the toune of Edenburgh and the Laird of Halton, the like wheirow few in Scotland hes of the toune of Edenburgh.

This Laird hes bought in a place called the Spittle (*proprie* the Hospitall), just over on the other syde of the water, which never appertained to the Laird of Halton of before. All the ground about it the Laird is taking just now in to be a park.

In one of the chambers hings King Charles the 2d, King Henry le Grand of France, fetcht home by the old Laird; the old Earle of Lauderdale with his ladie, the Lady Reidhouse, now Lady Smeton Richison, the old Laird Mr. Richard, with some others.

This Laird hes made a verie regular addition to the old dungeon tower. The garden that lies to the west of the dungeon would have bein better placed to the southe of the house wheir the bouling greine is, tho I confesse that by reason of the precipice of the bray hard at hand it would have bein to narrow. Hes its ponds.

Came back the same way we went.

Nixt day went for Eleiston, 7 miles from Edenburgh (Halton is 6). Went by Corstorphin, Gogar toune and Stone; saw Gogar place, then Ingleston, Eistfeild, belonging to James Gray, merchand, then Halzeards, Skein, then

Newliston, Auldliston, toune of Kirkliston, Castle of Nidrie, Barucan, my Lord Balmerinochs, Barnebougall, the Clerk Registers,[548] of old the Moubrayes, Dundas of that Ilk, Leine,[549] Youngs, Craigiehall, bought from my Lord Kingstone by Mr. Jo. Ferolme, 50 chalder of wictuall for a 100,000 merk, who seiking up some monies from some noblemen to pay it with occasioned the making the Act of debtor and creditor; then Kilpont, the Earle of Airths, Mr. Archibald Campbell hes 40,000 merks on it; then Kirkhill, Stewarts, conquered by Sir Lues Stewart the advocat; his daughter (a very good woman) is Ladie Glencairne; then Uphall Kirk, which is Kirkhills parish kirk; then Binnie and Binnie Craigs with Wester Binnie, which belongeth to Mr. Alexander Dicksone, professor in Hebrew. Crosed the Water of Amont at Cliftonhall. Beyond Binnie Craigs stands Dechmond, Hamiltons.

[548] Sir Archibald Primrose, 1616-1679; Clerk Register, 1660; Justice-General, 1676. (See *infra*, p. 225.) His son Archibald was the first Earl of Rosebery, cr. 1703.

[549] Leny.

Came to Eleiston,[550] over against it stands Bonytoun, Scots, the Laird of Halton Mr. Richards ladie was of that family; also Clifton toune, consisting of many mechanicks, especially wobsters, etc. Stands in Linthgowshire 5 mile from it:[551] stands most hy and windie in the edge of Drumshorling Moor.

[550] Now Illieston.

[551] *i. e.* apparently Linlithgow.

Inquiring, if because of its name Eleiston it ever belonged to the Eleis's of before. Answered, that no: also that the true name of it is not Eleiston but Hyliston. Belonged to the Earles of Monteith, and was a part of their barronie of Kilpont. Its some 300 acker of land paying about 6 firlots the acker; hes held at on rentall thesse 100 years. The gentlemen that last had it ware Hamiltons, ever Catholicks. K. James, because he had no house to bait at when he came to hunt in the moor, gave on of them 20,000 merks to build that house, wheirto he added 4 himselfe.[552] Its stronglic built as it had neid, being built in so windy a part. We first enter in to a hall. On our right hand as we enter is a kitchin and a sellar, both wouted.[553] On the left a fair chamber. Then ye go upstairs and ye have a fine high hall, and of everie end a chamber hung both with arras hangings. Then in the 3'd storie ye have a chamber and a larg loft. On the top of a turret again above ther is a litle chamber wheir their preist stayed when the Hamiltons had it, who had divers secret passages to convey himselfe away if pershued. Their was Marion Sandilands, Hilderstons daughter, with Margaret Scot his 2'd wyfe; item Sir John Scot of Scotstarvets picture. In the timber of the most part of the windows is cut out the name of the gentleman that had it, with the year of God when it was built, 1613, 1614. Mr. Jo. Eleis hes put up his name and his ladies on the gate.

[552] *i. e.* the proprietor added 4000 merks.

[553] Vaulted, *voutés*.

Jo. Bonar hes bought a place just on the other syde of the loch of Lithgow forgainst the palace, called Bonytoun, which he hes changed and called Bonarton. Reidop, which belonged to on Drummond a Lord of the Sessionis, neir Lithgow, my Lord Lithgow hes bought it: its but a small thing. Yea manie of the Lords of Sessions purchess's at that tyme ware but

small, divars of them no 12 chalder of wictuall. Neir to Binnie I saw Riccarton, Drummond.

Came home the same way that we went afield.[554]

[554] The passage which follows, enclosed within brackets, is scored out.

[Illustration: JANET RAMSAY. (*First Wife of Lord Fountainhall.*)]

[I was married 21 January 1669 in the Trone Church at 6 a cloack at night, being Thursday, by Mr. John Patersone. On the 3d of December 1669 was my sone John born about on afternoone, and was baptized on the Sondag theirafter, being the 5th of December, in the Grayfriers, by Mr. David Stirling.

On the 8 day of Aprill 1671, being about halfe are hower past tuo in the morning, being on Friday night and Saturdsdayes moring,[555] was my wife delivered of a daughter, who was baptized on the 23 of April, being Sunday, in the by kirk by Mr. James Lundie, and called Jannet.

[555] Sic.

On the 15 of September 1672, about halfe are hower past 5 in the morning, being Sundayes night or Mondayes morning, was my wife delivered of a daughter, who was baptized on the 30 or last day of September, being Monday, at 5 acloak in the afternoon, in the Tolbooth Church, by Mr. William Gairnes, and was called Isobell.

See thir marked alibi.]

About the 25 of Aprile 1669 I went over to Fyfe with my father in law. Landed at Kinghorne, wher is an old castle ruinous, once belonging to the

Lord of Glammes, who had also a considerable intres within that toune, but hes non now save the presentation of the minister (who is called Mr. Gilbert Lyon) onlie. Walked from that to the Links on our foot by the sea syde: saw Seafieid Castle midway who ware Moutray to their names. The French in Queen Maries dayes made use of it for a strenth. Then came to Innerteill links, wheir be conies. Then to the Linktoun, divided by the West burne fra Innerteill lands, wheir dwell neir 300 families, most of them mechanicks, above 20 sutors masters, 37 wobsters, as many tailzeours: its set out to them by ruides, each ruid payes a shilling of few duetie. Saw the Westmilne house, the goodmen wheirof ware Boswels. The milne bes the toune of Kirkcaldie thirled to it: payes some 16 chalders of wictuall. Halfe a mile from this is Abbotshall church lands, tuise confirmed by the Popes: they ware Scots, cadets of the Laird of Balveirie. Payed a considerable few duety to the Abbots of Dumferling, which is now payed to the King. He[556] bes lately got in the Scarres and Montholie, 16 chalders of wictuall. Theirs a garden, bouling grein, tarraswalk, fruite yard, wild orchard and a most spacious park, with a meadow and a loch, wheir are a great number of picks, manie wild ducks big theirin. Neir it lyes the Raith, my Lord Melvills. Balveirie is his also, and Bogie, Bogs Eye, on the eye of a boog, Veimes. [557] Touch, Thomsone, his father was a Writer to the Signet, some 10 chalders of wictuall; Bannochie belongs to Boogie: on Ayton hes a wodset on it.

[556] His father-in-law, Abbotshall.

[557] *i.e.* Bogie belonged to a family of Wemyss.

Saw Grange, a wery sweit place: was Tresaurer of Scotland in Quein Maries dayes, and Cunyghameheid was his depute, and his sone again was governour of Edenburgh Castle and was hanged. Slew a 100 Frenchmen once at Masse. Much planting about it. Is but 28 chalders of wictuall.

Saw Innerteill. It layes low, belonged to on Erskein, was a Lord of the Session, had a daughter onlie, who married the Laird of Tarbet, then Colinton. Malcolm of Babedie hes bought it (its 36 chalders of good wictuall): gave for it 40,000 lb., and bids[558] hir liferent.

[558] *i.e.* bides.

Saw Pittedy, stands on the croup of a hill pleasantly but by; ware Boswueells. David Dewars father was tennent heir above 30 years. Its 25 chalders of wictuall.

Kirkaldie is the best merchant toune in Fyfe: it had before the Englishes came in 80 sail of ships belonging to it, now it will not have 30. Then is Revensbeuch, its my Lord Sinclairs; then the Pathhead or Pittintillun, belonging to on Watsone in Bruntilland; then the Dysert, wheir are manie saltpans; the Weimes; Easter Weimes, Easter Buckhaven, Anstruther, Craill, Fyfenes, St. Androis, the Elie, belonging to Ardrosse.

Went to Balgonie to sie the Chancelar,[559] which is not his, but the Earle of Levine his children, belonged to the Sibbalds who ware great men and of much power. Within halfe a mile to it stands Balfour, Beatons to their name, a cadet of Lundy, married the heretrix of Balgonie in *anno* 1606, and tho he changed not his name yet he took the place of his elder brother Lundie.

[559] Earl of Rothes.

Saw by the way Kinglassie, Ayton, Leslie, wheir a most magnificent house is a building: it is neir the Lowmonds, and Falkland, and Lochlevin, in the castle wheirof was Queen Marie kept. About halfe a mile from it is Markins,[560] wheir Mr. John Ramsay is minister, who is my goodfathers

cousin german. Neir it stands Brunton, most pleasantly: it belongs to one Law. Their is much moorish ground in our way.

[560] Now Markinch.

Their was thrie thries[561] (as they called them) in Fyfe, Balveiry Scot, Ardrosse Scot, Dischingtoun of late, but Scot, and Balgonie Sibbald: Balmuto, Bosuel, Weimes of that Ilk, and Rossyth Stuart: then Lundie of that Ilk, Durie of that Ilk, and Colerine, Barclay or else Craighall, Kinninmont.

[561] This seems only to mean that the three trios of lairds hunted, not in couples, but in threes.

On the 5 of May we came over from Bruntiland.

Skein in his de V. Signi:[562] *in verbo* Clan Macduff, tells whow on William Ramsay was Earle of Fife in King David the 2'ds dayes.

[562] *Verborum significatione*.

Saw in the way to Bruntilland the sands King Alexander the 3'd brak his neck on.

* * * * *

Mr. Joseph Mede,[563] in one of his letters to Doctor Tuisse,[564] speaking anent the manner whow the great continent of America and its circumjacent ilands may probably be supposed to have bein peopled, thinks that the greatest part of that country (especially Mexico and Peru, who ware found the only civilized people amongs them, having both a State and a Church government established among them) was planted by great colonies sent out of the barborous northern nations laying upon the north frozen sea,

videlicet, the Tartars and others,[565] who entred America by the Straits of Auvan, and that the most of them hes gone thether since our Saviours coming in the flesh. After which the devil, finding his kingdom ever more and more to decay through the spreading of Christianity upon the face of the wholle earth, which before he keipt inchained in black heathinsme, and being much afflicted with the great din and noyse of the gospell which was come to the utmost ends of the then knowen world, so that he was affraid to lose all his footing hear, he by his oracles and responses encouraged thesse Barbarians (in this Gods ape[566] who called Abram to the land of promise) to desert their native countrie and promised them better habitations in another part (which he might soon do) wheir he might be out of the dread of the gospell and might securly triumph over them as his bond slaves.

[563] Mede, Joseph, B.D., 1586-1638.

[564] Twisse, Wm., D.D., 1575-1646.

[565] On the margin: 'Purchas in his Pilgrimage in Mexico reports this storie also.'

[566] *i.e.* imitator.

The ground of this conjecture is from some records found in the city of Mexico of their kingdome and its foundation, bearing that their ancestors about 400 years ago onlie (who then dwelt far north) ware called out of that countrie by their God which they called Witzill Putzill, in effect, the Devil, to go to a far country (this was to Mexico), far more fruitfull and pleasant than their ounes, which he should show them, and wheirof he did give them marks and that he should go before them. And that accordingly they sett on for the journey, and that their god went before them in ane ark, and that they had many stations and marches, and that they ware 40 years by the way, and that at last they came to the promised land, and that they know it by the

marks their god had given them of it. All this in manifest imitation of God his bringing the children of Israel out of Egypt.

Its reported that the State of Scotland looking ut for a suitable match for James the 2d, then King, sent over to the Duc of Gelderland (who had 3 daughters) some of the nobility and some bischops for the clergy to demand any of the 3 they should judge most sutable for the King. The Duc was content on of the Bischops [it was the Bishop of Rosse][567]—should sie them and feill them all 3 naked to discern theirby which of them was strongest and wholesomest like. His report was in favors of the youngest: his reason was, *Est enim bene crurata culata cunnata aptaque ad procreandos nobis generosos principes*. [568]

[567] Interlined.

[568] The Bishop of Dunkeld (not Ross) was one of three commissioners sent to choose a bride for the king, first to the Court of France. Mary of Gueldres was an only daughter-Tytler, *Hist.* iii. 209. The story is probably apocryphal. But in Russia, when the Tsars were married, the inspection of the candidates was an established custom and ceremony for two centuries after the marriage of James II.

A French gentleman being inamoured with a damoiselle of Lyons, going in to Italie to travell she gets notice that he had tane huge conceit of a Venetian, and that he was about to marrie hir. She writs a letter in a large sheit wheirin was nothing written but Lamasabachthani, withall a false diamond. He receaving it know not what to make of it, went to a jeweller to try the stone, who discovered it to be false tho it had ane excellent luster. After many tossing thoughts he fell upon the knack of it, videlicet, that it was a heiroglyphick diamant faux, and that it behoved to be read thus, Tell, false lover, why hast thou forsaken me.

* * * * * [569]

[569] There is here omitted an unpleasant story of a Duc de Montpensier of a former age, who in ignorance married a lady to whom he was doubly related by the closest ties of consanguinity. The same story will be found in Nouvelle 30 of Queen Margaret of Navarre (the scene being laid in Avignon), and in Horace Walpole's play *The Mysterious Mother*. Also an anecdote about the terms of the *tenendas* clause of a charter said to be in the Tower of London, which is given in English, and is too gross to print.

For farder demonstrations of the truth of that conspiracy of Gouries (which some cal's in doubt), besydes what is in Spotswood, Mr. William Walker told that he heard oft from Mr. Andrew Ramsay that the said Earle being travelling in Italie had a response thus, *Dominus de Gourie erit Rex*. After which he took a strong fancie he would be King, wheiras it was to be reid, *Rex erit*, etc. In pershuit whei'rof being in on of the Universities of Germanie and to leive his armes their, in his coat he caused put the Kings armes, videlicet, the Lyon, with a hand and a dager pointing at the Lyons breist, and so gifted them. And when he was returning he wrot to all his freinds and dependents to meit him at Muslebrugh, which they did to the number of 300 horse or their abouts, with which he came to Edenburgh; and that he might be the more tane notice of, he caused take his lodging in the Landmarket,[570] and came up al the streit with this train, and tho the King was in the Abbey yet he passed by without taking notice of him. He was likewayes a great receipter and protector of all the discontented factious persones of that tyme.

[570] Now Lawnmarket.

They say their are blood yet to be sein on the wall of the house in St. Johnston, wher he and his brothers ware slain, which cannot be washen

away. Sir John Ramsay being then the Kings page killed him (he was a sone of the Laird of Wyliecleuchs in the Merse), and for his valeur and good service was made Earle of Huldernessee and got a great part of the lordship of Dumbar, which was then of the Kings annexed patrimonie, but on this accompt in anno 1600 ware dissolved by the Parliament. Thesse lands Mr. W. Kellie afterwards acquired.

In September 1670 I waited upon my father to the Merse to sie the Laird of Idingtoun.[571] Lighted at St. Germans, so called from are old chappell dedicat to that saint of old standing their. From that went to Hadingtoun, saw in the way Elvingston, weill planted, but standing in Gladsmoore: item, Nunland, Adderstone, and Laurenceland, belonging to Doctor Hendersone. Above Hadingtoun lyes Clerkingtoun, Cockburne, Colstoun, Broun, who talk much of their antiquity and pear[572] they preserve, Yester, and Leidingtoun: 3 miles of stands the Registers house, Chesters, wheirin Mr. Patrick Gillespie now dwells. To the eist of Hadington stands the Abbay, Newmilnes, Stevinsone, and Hermistone, all most pleasant places and weill planted; as also Morhame and Hailles, past the Almous[573] house within a mile of Dumbar. Saw on our right hand Spot and the Bourhouscs, ware Happers now Muire; saw also Fuirstoun belonging to Andrew Whyte, once keiper of the Tolbuith; then saw Innerwick toun and church standing at a good distance from the house. Saw Neutonlies, Eistbarnes, Thornetounloch, Scatteraw, Douglas, and Colbrandspath: past thesse steip braes called the Pies. Saw Butterdean toun and house acquired by Mr. William Hay, the Clerk, who also bought Aberlady, now belonging to Sir Androw Fletcher: then saw Rentoun lying in a wild moir: item, Blacarstoun of on our right hand also in a wild seat, yet seimed to be reasonably weill busked with planting: item, Blaickburne in the moir: then Fosterland: then Bouncle, Preston, and Lintlands, belonging to the Marquise of Douglas and presently the Lady Stranavers jointer, worth 10,000 merks by year: then Billie, Renton to his name, and then Billie, Myre; then Edencraw, then came to

Idington, 36 miles from Edenbrugh, ware Idingtons to their name, hes no evidents of it but since the year 1490. In this same condition are the most of the gentlemen of the Merse who ly most obnoxious to Englands invasions.

[571] Sir John Lauder senior's third wife was a daughter of Ramsay of Idington.

[572] The Coalston pear was presented by the Warlock of Gifford to his daughter, who married Broun of Coalston, telling her that as long as it was preserved fortune would not desert the family.

[573] Alms.

Saw the Maines, a roome lying betuixt Chirnesyde tour and Idington: ware Homes. On Patrick Mow, sone to the last Laird of Mow, married the heritrix of it, and so hes the land. They tell whow the Earle of Roxburgh was the cause of the ruine of the said Laird of Mow. Mow being on a tyme with some Englishmen took on a match for running upon a dog of my Lord Roxburghs head[574] against their dogs, wheiron addressing himselfe to my Lord, he would not quite his dog unless Mow would give him a bond to pay him 8000 merks incase he restored him not back the dog haill and sound: which Mow, thinking their ware no hazard in it, did. The day being come my Lords dog wins the race; but as soon as it was done my Lord had a man ther readie to shoot it: who accordingly did so, and fled. Then my Lord seiking the soume in the bond, and he unwilling to pay it, was at wast charges in defending, and at last succumbed, and so morgaged his estate to Adam Bell, who after got it. His ladie was a daughter of West Nisbets, with whom the young man Patrick was brought up.

[574] Upon the head of a dog of Lord Roxburgh's, *i.e.* backing the dog.

Saw Chirnesyde toune standing a mile of Idingtoun, belonging to sundry petty heritors, some of them of halfe mark lands. My Lord Mordington is superior as also patron of the Kirk: on Lanty is minister their. It will be more then halfe a mile long. At the end of it neir to Whitater stands the Nynewells (corruptly called the Nyneholes), from 9 springs of water besyde it, wheirol on in the fountain is verie great: are Homes to their name. Saw Blanerne, belonging now to Douglas of Lumbsdean. Saw Eist Nisbet, ware Chirnesydes, now belongs to the Earle of Levins daughter: item, Blacader, ware Blacadars (of which name Tullialen is yet), are now Homes who ware a cadet of Manderstones. At a greater distance saw Manderston, Aytoun, Wedderburne, Polwart, Reidbraes, a house of Polwerts, Crumstaine, Sandy Spottiswoods; West Nisbet, a most sweit place, ware Nisbets to their name. Saw Huttonhall, ware Homes to their name, now belongs to Hilton, which was a part of Suintons lands. Saw the toune of Hutton belonging to sundry portioners. Saw Paxtoun and Edrington, a part of Basses[575] lands, and given away to a brother, now belongs to my Lord Mordington. Saw Foulden, the Bastile, Nunlands, Ramsay—his grandsire was parson of Foulden. Saw Mordington and Nather Mordington. Saw the bound road[576] within my Lords park. Saw on the English syde of Tuede Ourde the Birkes wheir King Charles army ly, Norame Castle and Furde; the ladie wheirol inviegled King James the 4t when he went in to Flouden: they have bein leud women ever since. Ker of Itall got it by marieng the heritrix. Went to Bervick, wheir they are building ane Exchange. In the way is Halidoun Hill, wheir on of the Douglasses was slain; Lammerton, in the Chappell wherof was King James the 3d married on King Hendrie the 7th of Englands daughter. Their is a great salmond fisching on Tueid: for the freedome but of one boat on it they pay 100 lb. ster: per annum. We was at a kettle[577] on the water syde. My Lord Mordington had all the Magdalene field, but he could not get it peaceably possessed for thesse of Berwick, so that he sold it to Watsone. Holy Iland is 7 miles from Berwick. My Lords father Sir James

Douglas was a sone of the Marquis of Douglas: he married the only daughter of the Lord Oliphant. Idington is 5 miles further in the Merse then Renton.

[575] Lauder of the Bass.

[576] Probably a road forming the boundary between the liberties of Berwick and the county.

[577] 'A social party on Tweedside, common during the salmon fishing season.'—Ogilvie's *Imp. Dict.*

Returned that same way almost and came to Auldhamstocks, 9 miles from Idington. Saw Auldcambus, then came to Eistbarnes; then for Linton bridges; within 2 mile of it saw the land of Nyne ware. Saw Gourlaybank; came and lay at Wauchton, who ware Moubrayes, and a 2d sone of my Lord Hailles marieing them they became Hepburnes. Quinkerstaines is a peice of old land of theirs. They got also Lufnes by marieng the heritrix theirow Riccartoun. But my Lord Hailes rose by 3 forfaulters: of the Earle of March, Dumbar, of the Creichton, and of Bothuell, Ramsay, the Laird of Balmayne.[578] Gorgie milne besyde Edenburgh did belong to Balmayne, but by a gift of nonentrie Otterbune of Reidhall, who was at that tyme Clerk Register, he got it.

[578] As to Ramsay of Balmain being created Earl of Bothwell by James III., see p. 205.

Saw nixt day Furd, Whitkirk, Craig, Hepburn, Balgone, Semple, Leuchie, Merjoribanks, Sydserfe, Achesone, Cassilton, Tomtallon, both the Marquis of Douglasses, and the Basse, 2 mile within the sea, about a short mile in circumference. Saw the May, belongs to Barnes Cunyghame. Saw Fentontour, ware Haliburtons and Wisconts, then purchased by the Earle of Gourie, now my Lord Advocats:[579] saw the Heuch-Home.

[579] Sir John Nisbet.

Nixt day went for Hadington: saw Ethelstanefield.[580] In Hadington saw my Lord Lawderdales buriall place, werie magnifiek. The Lord Yesters got Zester by mariage of the only child of my Lord Giffart. He had Beltan by marieng with a Cunyghame.

[580] Probably Athelstaneford.

In the coming to Edenbrugh saw Eister and Wester Adenstens, that is also their name; then Tranent, and neir it Windiegoule; then Elphinstone; then on the cost syde Cockenie, Seaton, Preston, Prestongrange, the Pans, Landnidrie:[581] up on the brae are Wallyfield, Dauphinton, Carberrie and Fausyde.

[581] Now Longniddry.

Master Thomas Scot of Abbotshall in King James the 5th tyme was Justice Clerk. Vide Hopes Collections, page 12, in principio.

The Lairds of Glenbervie are not the oldest Douglasses as some say, but a cadet of Angus married the heritrix theirow, they being then Melvils verie old in that name, and the powerfulllest in all the Mearnes. They ware heritable shireffs their, and on of them being a great oppressor of the wholle country, manie complaints were made of him to the King. The King once answering that he cared not tho' they supped him in broth, they presently went and took him to a hill syde which they yet show, put on a kete and boiled him their, and each of them took a soop out of it. It was in 1417.[582]

[582] This story is told more fully by Sir W. Scott in a note to Leyden's ballad 'Lord Soulis,' *Border Minstrelsy*, vol. ii. p. 350, ed. 1802. Albany was Regent in 1417.

They tell that amongs the manie Universities that are at Lovain their is one which of old was institute for poor scollars who had nought wheiron to maintaine themselves, but that their diet was verie sober, nothing but bread and very small bread. At a tyme on of the students in it having a great stomack, in a rage sayd to his other fellows, If I ware Pope of Rome I would make the students of this Colledge to fare better then they do. He came to be Pope, and endowed that Colledge with great revenues, so that its the richest now in all Lovain.

Of all the histories we have on record of magicians and sorcerers that seimes to me most strange which is reported of Ascletarion by Suetonius, [583] in *Vita Domitiani*, in pagina 82.

[583] *Duodecim Caesares*, Domitian c. 15. The soothsayer's power of divination was tested by asking what his own fate would be. He said he would very soon be devoured by dogs. Domitian desiring to confute such uncanny powers of prediction ordered him to be killed and securely buried. The funeral pyre was knocked down by a storm, and dogs devoured the half-burnt remains.

That Touch which George Tomsone hes wes acquired by his father from the Melvines, who are designed Lairds of Dyserts, who again acquired it in 1472 from on Touch, so then they have bein of that Ilk.

Fingask, now McGill, ware Dundasses of before.

(2)

NOTES OF JOURNEYS IN SCOTLAND, 1671-72. [584]

Having past over to Fyffe about the latter end of August 1671, I went to Leslie. Saw by the way Finglassie and Kinglassy and Caskieberry, bought by a Gennan who came heir about 60 or 70 years ago, and professed medicine: was called Shoneir. His grandchild sold it to the chancellor, who hes also bought the barrony of Cluny, sometyme belonging to Crichton of St. Leonards. Saw Touch, neir Markinch. Saw Balbirny, sometyme Sir Alex'r Clerks, now it pertaines to a tailzeour called Balfour. Saw Balquharge belonging to Bogie's unkle: then going for Couper, saw[585] Ramsayes forther,[586] now Pitcairnes by a marriage with the heritrix. Saw the hy way to Falkland, neir which stands Corston, whosse name is Ramsay: a sone wheirof was sir John Ramsay in K. James the 3ds dayes, and created by him Earle of Bothwell. He sent to the grammer scool of Edr. for a gentleman's sone to wait upon him, and who could writ weill. 2 ware brought him to choise one, wheirof Jo. Ramsay was the one; the other wrot better, yet the king made choise of John as having more the mean of a gentleman then the other, and made him his cubicular. He gave him the lands of Taringzean in Air, and Karkanders in Galloway, Gorgie and Gorgymilne in Louthian, and Balmayne in the Mernis. Without licence from him none could wear a sword within 2 miles of the K.'s palace. He made him also captain of his guards, vide Buchanan, pag. 444 and 450. Anent his being Earle of Bothwel Buchanan causes some doubt, because in K. Ja. the 3ds dayes, at pag. 452, he mentions Adam Hepburne, Earle of Bothwell; but I think he is in a mistake, for Drummond is formally contrare. The time of his death is controverted: some say he was killed at Stirling field with K. Ja. the 3'd, others (amongst whom is Mr. Androw Ramsay in his poems) at Flouden with Ja. the 4't. Whoever on Ja. the 3'ds death the title of honor

conferred upon him was retracted; but he was not legally forfault nather in Parliament nor in a Justice court, so that the familie of Balmayne might the more easily be restored againe to that honor. He was the first in Scotland that ever got a patent of nobility. Buchanan throw the wholle tract of his history makes it his work to speak ill of all thosse who ware the king's favorites for the tyme. He sets doune all their vices in folio, but conceals the vertue by which it most be presumed they rose, and by which they did keip themselves on foot. The tyme was their ware 22 landed gentlemen of the name of Ramsay in Fyffe. Some say Corston was a cadet of Dalhousie and some of Auchterhouse, of which family I have heard it contended the famous Alex'r Ramsay in King David's tyme (Buchanan, page 309) was, and not of Dalhousie; as also the Ramsay that was with Wallace. Of Dalhousie Ramsay, sy page 314. Skein, in the word Clan-McDuff, tells of W'm Ramsay E. of Fyffe, in K. Davids time. Its thought Auchterhouse is elder then Dalhousie; but that the most floorishing family is most ready to arrogat to it selfe as being the oldest house. Sir Jo. Ramsay that killed Gowry was a sone of Wiliecleuches in the Mers, and got Estbarnes, and was made E. of Huldernes. He was first made vicount of Hadingtoun.

[584] MS. K.

[585] It may be that the name of the property is omitted by mistake.

[586] 'Formerly.'

We saw also Rossie ...[587] and its loch, which seemes to be very large; saw Ramorney, Heriot; saw Scotstarvet, formerly Inglistarvet, on the croup of a hill; besyde it is the Struther. Then came to Couper by that way wheir the race is run; then came to Scotsraig—a part of it holds of the See of St. Androis and some of the E. of Mar—my Lord St. Androis big house, 6 miles from Couper and 4 from St. Androis, and a mile from the north ferry. It belonged, as also the Kirkton within a mile theirof, to George Lord

Ramsay, father to this E. of Dalhousie, and was sold by him to S.[588] J. Buchanan, and Abbotshall conquestit[589] in lieu theirow. On the windows of the house of Scotsraig are the initiall letters of Sir Jo. Buchanan and Dame Margaret Hartsyde. Arthur Erskin got it from them, whosse creditors sold it to the Bischop, and got but 8 pence for their pounds of what was owing them.

[587] Two words torn off.

[588] Sir.

[589] 'Acquired.'

In the returning home to the Linkton, we saw 2 miles from the Craig Brackmont and Brackmont milne; then Forret, then Moonzie, as also Kinneuchar:[590] item, Dairsie, of old Leirmonts, now Morisones, with Bischop Spotswoods chappell he can see build their.[591] On the same water stand Kemnock[592] (theirs another in Fyffe called Cummock, who is Morton to his name), ware Sheveses, the successors of Wm. Sheves, archbischof of St. Androis, who outed Grahame, Kennedie's successor, and ingratiated himselfe with the nobility because of his skill in Astrology; they are now Mcgills; Rumgaye, also Migill; and Blebo, now Beaton. Saw Craigball, of old Kinninmonts, now Hopes, as also Cires. Came at last to Kennoway, belonging to the Laird of Balfour, and holden by him waird of the chancelor Rothes: its 12 miles fra Scotsraig. Then came to Dysert moor, wher we saw the coal pits burning, which will ever burne so long as it hes any waste, but will die when it comes to the maine coall for want of air. In Dysert toun, hard by the church, which is a very old one, is a great cave which they call the Hermitage, and I imagine the tounes hes bein called Desertum from it, yea, the most of the houses of the toun holds of it, and the parson of Dysert is designed rector rectoriae de Dysert. Then came to Revensraig (alias Ruthvensraig, of which name they seem to have bein of

old), the lord Sinclars dwelling, and so to the Links, which is 6 miles from Kennoway, and so 18 from the Bischops house. Scotsraig was no old heritage to the lord Ramsay, but was acquired lately from Dury of that ilk by him. Balmayne had once Gorgie and Gorgiemilne, but Otterburne of Reidhall, by a gift of non-entry, evicted it from them. See of the E. of Bothwell and house of Balmaine largely alibi.

[590] So pronounced, now Kilconquhar.

[591] This seems obscure, though distinctly written. It may mean, 'ye can see built there.'

[592] Now Kemback.

The Bells wrongs themselves in wearing bells in their armes, for certainly ther name is from France, in which language it signifies fair and bueatifull, hence it was the surname of one of their Kings, vid. Philip le Bell, yea, in the old Latine Bellum was that same with *pulchrum*; and war was called *bellum*, *ironice*, *quasi minime bellum*, *id est*, *minime pulcrum*.

My Lord Twedale's predecessors have acquired all their fortune by marriages, so that all the original writs he hes in hes charter kist are only contracts of marriage. He was a cadet of Erroll, and the 1 heritrix he married with was one Macfud, and by her he got his land in Twedall; then he married one of the aires portioners of the Lord Frazer, and got some lands in the north with hir; then got Yester and many other lands with the only daughter of the Lord Giffart (tho my Lord Lauderdale sayes he can find by no record wheir ever he was a Lord). He got also Beltane by marieng the heritrix theirof, called Cunyghame. And now in this age he hes as much expectation to raise that way as ever. By his Lady he hes a claime to the estate of Baccleuch, failzeing of aires of this present Dutches hir body, tho the King hes somewhat inverted the straight succession heir. By

his eldest sone he hes ane eye to my Lord Lauderdale's estate, providing he play his game weill, and is in hopes of getting the estate of Erroll entailed upon his 2'd sone.

In the beginning of August, having gone to eist Louthian, saw Langnidrie; then a mile from it Reidhouse, the one was a Lord of the session and Tom of the Cowgate's brother; then Ballincreiff, belonging to my Lord Elibank; then Congilton, and on the brae above Ethalstanefoord, Byres, from which my Lord Hadingtone's eldest sone takes his title.

My Lord Madertie's stile is truly Mater Dei, from some cloyster so named in the tyme of poperie: he should be induced to take some other denomination, this seeming to[593] blasphemous like.

[593] too.

* * * * *

On the 17 of October 1672 having had occasion to go to Auldcambus with the provest, we went the first night to Waughton. Saw by the way Preston, Prestongrange, Seaton, St. Germans, Langnidrie, then Ballincreiff, then Reidhouse, then Dreme, and above it Byres, then Congilton, and above it Athelstanefoord and Westfortoun, and on the other hand Sydeserfe. The next day we parted for the Merse: saw Furd, Tunyghame, Westbarnes, Lochend, Broxmouthe, Broxburne, Newtonlies, Eistbarnes, Spot, Fuirston, Bourhouses, Innerweik toun, kirk and place, Scarteraw, Thorntoun loch, Dunglas, Cockburnes path, then past the said path and came to Aulcambus path, corruptly called the pies. The provost hes a barrony their 4 miles long, and in the narrowest place at the leist a mile broad, which if it lay neir Edenborough, we was counting would afford neir 100,000 mks. of rent per annum. He hes a great peice of Coldinghame moir in property, and he hes it all in commonty. His neibhours be Colbrandspeth, Renton, Butterdean, and

the Laird of Lumsdean, now Douglas. The Lo. Renton dealt to have had the gift of the wholle moir from the king, and said it was only 2 rig lenth of land. I imagine the first possessors of that place ware Rentons to ther name, then they ware Forrester, then Craw, whom the Home cheated out of it by marieng the Ladie. In the right of the Fosters he laid claime to the foster-corne to be payed to him by all the vassals and fewars of the abbacy, now the Lordship of Coldinghame, as being come in place of thesse who had a gift frae the prior and convent of Coldinghame to be forrester to all the woods and shaws growing within the lands holden of the said abbacy, to preserve and hayne the same; and for his paynes was to have a threiv of straw of each husband-land yeirly with some other dueties, and the Justice Clerk thought to have gotten the fewars decerned for more then 100 years that it was owing, but the Los. restricted him to 39 years preceeding his summons, finding all the years above prescryved. And for the dueties due to him on that accompt furth of the barrony of Auldcammas he got the property of a rume lying in the barrony called Fosterland, and when Waughton cutted his wood of Penmansheills, which is also a part of the barrony, Renton alledged that the boughs and bark of the tries within the Lo.ship was his by forsaid gift, and the heritor had nothing but the stock of the tries. They agried the matter betwen them. Tho he be most exact in lifting his fies, yet he does nothing that's incumbent to the office of forrester.

On Sunday we went to Coldinghame Kirk, 4 miles from the smith's house at Haychester. The kirk hes bein a great fabrick. Its said to have bein built by K. Edgar, *anno* 1098. Their was their a great abbacy. We saw the promontory so much taken notice of by the seamen called St. Abbes head (Sta. Ebba); over forgt[594] it layes Coldinghame Law, Home to his name. Saw the milne about which my Lord Home (who is the Lo. of erection now) and Renton are contending. Saw at 2 miles distance Haymouth,[595] and above it Gunsgrain, then Ayton, all standing on the water of Ei. Saw West

Reston, Home, Eist Reston, Craw, and Henchheid, Craw; of which name their was a nest in this place, but the Earle of Dumbar almost extinguished them, and now his owne memory is extinct and gone: let men then beware of oppression. Coldinghame stands pleasant, and verifies the byword that the kirkmen choised ever the warmest nests. Mr. Andro Ballantyne, brother to the sometyme Lo. Newhall, is heir minister. Auldcambus is in Cockburnspath parish. It hes a ruinous chappell standing in it dedicat to Ste. Helene, who was mother to Constantine the great, and found out the holy croce at Golgotha. Thrie mile from Auldcambus stands Monynet, and 3 miles from it againe stands Gammelisheills in Lammermuire. Blaikerston stands likewayes their about, as also Thorniedykes, now Broun, of old French. After some dayes stay at Auldcambus we came to Dumbar. Nixt day out of Dumbar we came to Northbervick by Belhaven, Tinyngame, Auldham, Scougall, Tomtallon, Cassilton. From Northberwick we went to Archerfield (so called because of the excellent links their fit for shooting at Rovers), my Lo. Advocat's[596] dwelling. Saw by the way Dirleton, with its castle, ruined by the English becaus it held out. Then from that came to Saltcoats, Leidingtone, to their name; then to Lufnes, of old Biccarton; then Waughtons, now Durhame; then to Abirlady toune and place, once Mr. Wm. Scot's, now Sir Androw Fletcher's. Theirs a great bay heir. Then saw Gosford, then Cockeny, the Pans, Wester Pans, whier Jo. Jousie hes his house.

[594] For 'forgainst,' 'opposite.

[595] Now Eyemouth.

[596] Sir John Nisbet of Dirleton.

Naper is a french name and runs in it n'a pair, he hath not a peer. The Giffards of Shirefhall, they say, ware of old Shirefs of Louthian, and from that their house got its denomination. Tho some alledge their was in old

tymes a Lord Giffard, and that it ended with ane heritrix married in the house of Yester: yet my Lord Duke of Lauderdale sayes he hes bein at very much pains to find if it was so, and he could never find any thing to instruct it.

* * * * *

The Wrichtshouses near Edenburgh, they say, was denominat from this, that in King James the 2ds dayes the ground about all being a forrest (lochia sylva is derived from lochs, *insidioe*, in the Greek, *quia insidiantibus capta est sylva*. Wossius[597] partit. orator, p. 328), and wheirin their was many robbries and murders committed. K. Ja. gave order to cut it doune. The Wrichts that ware appointed for this work had their huts and lodges whither they resorted for their dyet and on other accompts put up in the very individuall place wheir the house and place of the Wrightshouses is now situat, and so gave that denomination to the ground thereafter.

[597] Vossius, Gerard. Johannes, Dutch philologist, 1577-1649, author of *De Quatuor Artibus Popularibus*, etc.

(3)

CHANGES AND ALTERATIONS AND REMARKABLE EMERGENTS OF AND IN THE SESSION 1668-1676.[598]

[598] MS. H.

On the 5 of June 1668 was I admitted Advocat. At this tyme died my Lord Carden, and Gosfurd succeeded.

In the November thereafter died Mr. Robert Burnet, Advocat.

In May 1669 died Mr. Laurence Oliphant, Advocat.

In July 1669 died William Lylle, Advocat.

In August died William Douglas of Kirknes, who the session before had given in his trialls in order to his admission to be a Advocat.

In September 1669 died Mr. Alexander Osuald, Advocat.

On the 15 day of September 1669 was I chosen conjunct assessor with Sir George Lockart to the good toun. Its at large booked on the 13 of May 1670.

On the 9nd of October also 1669 ware we chosen for assessors to the wholle borrows in their Convention.

On the last of October 1669 died Mr. Laurence Scot of Bevely, one of the Clerks of Session, and that same night Alexander Monroe, Comisar of Stirling, was provided theirto.

On the 25 of March 1670 died the Lord Kinglassie, to whosse place was provyded the Laird of Haltoun.

In April 1670 died John Scot, Keiper of the Minut book, and his place was continued with his sone Francis.

In May 1670 died John Kello, on of the under clerks, to whom succeeded (after Robert Hamilton had officiat as under clerk the Summer session that

followed, and Mr. Thomas Hay the following sessions till January 1673) James Hamilton, wryter.

On the 5 of July 1670 Mr. Thomas Nicolsone, Advocat, died frenetick.

In *anno* 1668 Sir James Keith, Laird of Caddome, having threatned Mr. David Falconer, Advocat, ane ill turne, and being complained upon, and in his vindication reflecting upon my Lord Halkerton, he was committed to the tolbuith and fined.

That same year, Mr. David Thoires having miscaried in a supplication given in by him to the Lords in behalfe of a client against Doctor Hay, bearing they were minded to satisfy the Doctors unsatiable covetousnesse to the oppression of the widow and the fatherles, he was sent to prison, fyned, and craved them humbly pardon.

In *anno* 1670, Mr. Alexander Spotswood, plaiding in the Orimonall Court for Wedderburne, and Mr. Patrick Home, being his antagonist and growing hot, called Alexander a knave, who replied, I can sooner prove you and your father knaves, who theirupon was imprisoned; but at last, upon intercession of freinds, was set at libertie. The Justice Clerk[599] was verie inexorable in the particular.

[599] Lord Renton.

In June 1670, Douglas of Kelheid, younger, affronted Hew Wallace, Writer to the Signet, in his oun house; which the Faculty, apprehending themselves concerned in, at last caused Kelheid, in presence of them all, crave Hew and all the Faculty pardon for his offence, and confesse they did him a great courtesie in accepting that for satisfaction.

On the end of January 1671, Sir John Gilmour, by reason of his infirmity, having dimitted his place of being President, but strongly having recommended Gosfoord to be his successor, it was offered to Sir John Nisbet, King's Advocat (whosse place if he had embraced it was thought Sir Robert Sinclair would have got), who faintly refusing, thinking theirby to have bein more woed, he was taken at his word, and our Jock of bread Scotland[600] would take none of their advices, but would take a way of his oune, and so did make choise of my Lord Stair, who was looking litle for it, and who truely came in betuixt tuo, and was so unacceptable to the former President that its thought he would not have dimitted had he dreamed the guise should have gone so; and the pitching on him was truely *in odium tertii* to keip of Sir Robert Sinclar, whosse journey to Scotland under the pretence of coming to sie his new married ladie suffered strange constructions at Court, and Lauderdale conjectured it was only to give my Lord Tueddale notice of some things that was then doing to his prejudice; and its beleived he would not have bein the coy duck to the rest of the Advocats for their obtempering to the Act of Regulations[601] had he forsein that they would have hudibrased[602] him in the manner they did; hence we said give us all assurance to be Kings Advocat and we shall take it with the first; and the Lords, when he was plaiding before them in a particular, entreated him to come within the bar and put on his hat, since it was but to make him Advocat with 2 or 3 days antidade. He took also with it,[603] and did not deny it when he was posed on it.

[600] Jock of bread (broad) Scotland, Lauderdale.

[601] The Advocates objected to an article fixing their fees in the Regulations for the Court of Session, drawn up by a Commission and ratified by the king. Sinclair, Dean of Faculty, expecting preferment, instead of championing the bar, was the first to swear to

the Regulations. The Advocates withdrew from practice for two months, and never forgave the Dean. See p. 222.

[602] A participle coined on the same principle as the modern 'boycotted.' The point of the comparison with the hero of Butler's satire is not obvious. It seems to mean simply 'made a fool of.'

[603] Took with it, *i. e.* acknowledged it. The expression is still common in the north-east of Scotland.

In the beginning of May this year died Mr. James Wemes, Advocat, brother to the Laird of Lathoker.

On the 28 of June 1671 was Sir Thomas Wallace received an Ordinar Lord in the place vacand throw the promotion of my Lord Stair to be President.

On the 13 of July 1671 died Sir John Home of Renton, Justice Clerk. He was indeid advanced by Lauderdale, and for his sake componed the more easily with Sir Robert Murray;[604] yet Lauderdale his kindnes relented much on this occasion. In *anno* 1664, being minded to bring in my Lord Tueddale to be Chancelor, St. Androis entrefaired. Glasgow, thinking he should have a hand in it as weill as his brother the Primate, he enters in termes with my Lord Renton. Its commoned[605] that Sir Alex'r may marry the Archbisshop's daughter, who was afterward Ladie Elphinstone, and that he at London may propose Renton to be Chancelor. My Lord Lauderdale was hudgely dissatisfied with that, yet having calmed, he told him Renton had not the fortune able to bear out the rank of a Chancelor. Burnet replied, Renton had a better fortune then ever Chancelor Hay[606] had. Lauderdale could never be pleased with him therafter for offering to aspire so hy. He was also at another disadvantage, my Lord Hume offered to compromit the difference betuen them to my Lord Lauderdale. Renton shifted it. He was a

most peremptor man to his inferiors or æqualls, but a slavish fearer of any whom he supposed to be great at Court, on whom he most obsequiously fauned.

[604] Murray was his predecessor. Apparently there was a bargain for his retirement.

[605] Agreed.

[606] Sir George Hay of Nethercliff, Lord of Session, Chancellor, 1622-1635, Lord Kinnoul.

In the end of July, vid. the 27 day theirow, Mr. Alexander Suinton, one of the under clerks of Session, dimitted his place, and was admitted an advocat *per saltum* upon a bill. Adam Chrystie, reader of the Minut Book, succeded instantly in his place of clerk. That same day died Mr. Archibald Campbell, Advocat, sone to the Shireff of Argile.

About the last of July 1671 came Collonell Lockhart from London, and brought doune a patent with him in favors of his father Lee to be Justice Clerk in place of Renton: he being an old man, and not supposed he can enjoy it long, its talked it is for the behoof of some on or other of his children, but especially the Collonells selfe. This was our Donna Olimpias[607] doing.

[607] Duchess of Lauderdale.

On the 14 day of August 1671 died Sir John Gilmor, late President, in his house of Craigmiller, and was buried the 24 day theirow in Liberton Kirk.

In the beginning of September died my Lord Bellenden, sometime Thesaurer depute at London.

On the 1 of October 1671 died Alexander,[608] Lord Halkerton, at his oun house, of the age of 77. He entered to his place in Session by simony, or rather *committendo crimen ambitus*, for he payed to my Lord Balmanno 7000 merks (a great soume at that tyme when their salaries ware small), to dimit in his favors, and by my Lord Traquaires moyen, then Threasurer whosse creature he was, he got the dimission to be accepted by his Majesty. This was about the 1643. I shall not say of him, as was said of Pope Hildebrand *alias* Gregory the 7th, *Intravit ut vulpes, regnavit ut Leo, mortuus est ut canis*. Only this I shall say, wheir places of justice are bought, whow can it be otherwayes but justice will be sold. The family is said to be pretty old, and both their name and stile to be taken from the charge they had at the tyme our Kings of Scotland resided in the Mernes, whosse falconers they ware, and their village was hence called the Haukerstoune. They say my Lord Arbuthnet was at that tyme King's porter, and that he hes a peice of land yet designed Porterstoune; and that some other their was landresse, and so had a village called Waschingtoune.

[608] Falconer.

On the 15 of October 1671 died Mr. William Douglas, Advocat, or rather the poet, since in that he most excelled.

In the end of the preceiding summer Session Adam Cunyghame, sone in law to James Wallace, Maisser, was received conjunctly to the office of maisserie with the said James, conforme to ane gift of the said place to them both conjunctly and to the longest liver of them tua.

Arthur Forbes, having some clame upon the estate of Salton, and pershuing the Laird of Philorth, now Lord Salton, he was very rigorously and partially handled by my Lord Newbayth,[609] who heard the cause. It being againe enrolled in the beginning of November, and my Lord Newbayth falling to be ordinar in the Utter house, Arthur, out of a just

resentiment of the past wrong and fear of his future carriage, come to my Lords chamber and boasted (as my Lord Newbayth sayes) in thir words, If you call that action of Philorth against me I vow to God I'le sie the best blood in your body. Newbayth having complained, and Arthur being theiron incarcerat and examined, denied he spoke any such words, and declared he only said, My Lord, if you continue to do me wrong (as you have done already, as appears because the Lords redrest me) I'le have the sentiment of the haill 14 Lords on it; and if that be denied, I'le complain to the King. After he had lyen some 4 or 5 dayes in prison he was set at freedome, having first acknowledged a wrong and craved my Lord Newbayth pardon in presence of the haill Lords and Advocats on the 10 of November. Before he did it the President had a short discourse whow the gentlemans carriage had bein modest thitherto, and my Lord Newbayth was earnest intercessor for him, and theirfor they resolved not to make him the first exemple; but they assured all, of whatsoever rank or quality they be, that they will not tolerat any to expostulat with them or to give them hard or sharp words in their oun chambers or any wheir, and that they will not suffer their authority, which they hold of his Majesty, and to whom they are answerable if they malverse, to be convelled,[610] but what sanctions their are already to that purpose they will endeavor to sie them peremptorly keipt and execute. Vide Act 68, Parliament 1537; Act 104, Parliament 1540; Act 173, Parliament 1593; Act 4, Parliament 1600; and this is consonant to the Common law by which the killing of one of the Kings great consistory is declared treason, and if so then the menacing of them must be a haynous crime. Vide L. 5, C. Ad 1. Juliam Majestatis: item Clarum[611] par. læsæ Maj. num. 5, item Perezium[612] ad T. c. de L. 3, Majest. num. 3.

[609] Sir John Baird of Newbyth, still pronounced Newbayth.

[610] Torn to pieces.

[611] Clarus, Ant. Sylv., *Commentarius ad Leges*, etc. Paris, 1603.

[612] Perez, Antonio, Spanish Jurist, 1583-1678.

On the 17 of November 1671, Mr. William Bailzie, Advocat, gave in a complaint on J. Watson of Lammyletham for having abused him, and called him a base rascall and threatening to draw on him. My Lord Newbayth being appointed to examine the witnesses, and having reported the Lords, called him and Mr. William in alone, rebuked him, and commanded him to cary him selfe more soberly in tyme coming.

On the 23 of November 1671, Sir Androw Ramsay of Abbotshall, Lord Provost of Edinburgh for the 10't year altogither, was received ane ordinar Lord of the Session upon his Majestys letter to that effect, in the place vaicand throw the deceas of Alexander Lord Halkerton, who possest that place of before.

I find in the records of Sederunt about the year 1553 and afterward on Sir William Hamilton[613] of Sanquhar Hamilton a Lord and provest of Edinburgh both at once. I find also that Chancelor Seyton[614] for some years that he was President Fyvie and some years that he was Chancelor (for he was 10 years altogither provest) was also Provost of Edinburgh; but that was at a tyme when the Senators of the Colledge of Justice grasped at the haille power of the toune upon their delinquency and uproar of the 17 of December 1596, for he entred at that tyme when the toune was at their feet, and when they had the approbation and reprobation of the toune their yearly election, but whow soon the toune begane to recover strenth and the memory of that foull slip waxed old they hoised him out; and for fear of the like inconveniency, and to bolt the door theirafter, they procured ane Act of Parliament *in Anno* 1609 (Vid. the 8't Act), declaring that no man shall in tyme coming be capable of provestrie or magistracy but merchants and actuall traffiquers duelling within burgh. Its true Sir John Hay (who was at

first toun Clerk of Edinburgh) when he was Clerk Register and a Lord of the Session, he was made Provost of Edinburgh, but it was not put upon him out of any favor, but was done by Traquaire, then Tresaurer, of designe to break him: so that none of thesse instances quadrat with our case; heir a merchant, one who entred *cum bona gratia*, and who hes maintained himselfe by his oune parts and moyen in that office by the space of 10 years altogether, on who toped with the Colledge of Justice for the precedency and carried it from them, and who feared not to make open war with the greatest of them; he as the only single instance is made a Lord of the Session.[615]

[613] Lord of Session (Sanquhar), 1546-61; Provost, 1554.

[614] Alexander Seton, Extraordinary Lord of Session, 1586, Ordinary, 1588, President, 1593, Chancellor, 1605-22, under the successive titles of Prior of Pluscardine, Lord Urquhart, Lord Fyvie, and Earl of Dunfermline.

[615] See Appendix III.

On the 14 of December 1671, Richard Maitland of Pitreichy was received ane ordinar Lord in the place vaicand throw the advancement of my Lord Lee to be Justice Clerk upon his Majesties letters to that purpose.

On the 5 of January 1672 died Sir John Scougall of Whytkirk, and was buried in the Grayfriars on the 7 day of January thereafter in great pomp, his goun being carried before the herse.

On the 4 of March 1672 was Mr. Robert Preston of that Ilk installed in his place in obedience to his Majesties letter direct to the Lords to that effect.

On the 16 of February 1672 died John Ramsay, keiper of the Register of Hornings and Inhibitions, and on George Robertsonsone was admitted in his place by my Lord Register.

About the end of March, this same year, died Mr. Alexander Hamilton, Justice Clerk Depute, to whosse place on Mr. Robert Martin was received by my Lord Lee. (*Vide infra.*)

About the 14 of May 1672 died Charles, Earle of Dumfermeling, Lord Privy Seall, and ane extraordinar Lord.

Its reported that Mr. Martin hes payed saltly for his place, vid. 500 pound English money to the Justice Clerk, 500 merks Scots to Mr. William Cheisley as agenter, and 1000 merks to the widow.

About the 20 of May this yeir died Mr. John Morray, advocat.

Upon the 27 of June 1672, Sir Robert Sinclair fell unto a lamentable pramunire in this manner. Some merchants in Glasgow being quarrelled by the manadgers of the Royall Fisching for exporting herrings, that being their priviledge, their is a bill drawn up for them by Sir Robert, and given in to the Lords of Secret Counsell, wheirin, among other things, he had this expression, that the petitioners ware frie natives, members of a royall borrow, whosse priviledges ought not lightly to be reversed, else malcontents would thairon take occasion of grudge, and of sowing fears and jealousies betuixt his Majestie and his people. At the hearing of which my Lord Commissioner,[616] guessing the author, began to baule and foame, and scrued up the cryme to such a height as that it deserved emprisonment, deprivation, and a most severe reprimande. At last the Counsell agried in a more moderat censure, that he should with close doors (tho my Lord Commissioner would have had it publick) acknowledge his offence upon

his knees before the wholle Lords, and recant and disclame the forsaid expression as seditious and not becoming a subject: And theiron, as its said, ane act was made, that no petition should be presented heirafter but subscryved ather by the party or the Advocat.

[616] Lauderdale.

Theirs no expression so innocent wheirupon malice will not fasten its teeth; and truly their hes bein many expressions by far harsher then this escaped the pens of advocats, and which hes never bein noticed. And yet I think its *justo Dei judicio* casten in Sir Roberts lap for his so dishonourable complying, yea, betraying the priviledges of the Advocats, and breaking the bond of unity amongs them, and embracing first that brat of the Regulations. The excuse that he made for so over shoting him selfe was most dull and pittifull, vid. that they had come to him just after he had dined, and he had drawen it then, and so was hasted.

On the 24 July 1672, in the Parliament, Sir Colin Campbell was reproved for disorderly tabling of the Summer Session:[617] the circumstances see *alibi*. So the Commissioner seimed in a manner set to afront the Advocats.

[617] The proposal to abolish the Summer Session of the Court and add a month to the winter was made by the Commissioner in his speech, and argued before him in the Exchequer Chamber, where he decided against it. The account of the matter given by Mackenzie (*Memoirs*, 222 *sqq.*) is curious and interesting. In favour of the change it was argued that 'before men could settle at home after the Winter Session, they were called again to the Summer Session, so that their projects and designs were interrupted and ruined, and the months of June and July, which were the only pleasant months, and the only months wherein gardens and land could be improved, were spent in the most unwholsome and unpleasant town of Scotland

[Edinburgh].¹ Sir C. Campbell tried to revive the question in plain Parliament, but the Commissioner vetoed it.

In November 1672 died Mr. Andrew Beaton, Advocat, and brother to the Laird of Balfour.

On the 2d of November 1672, my Lord Newbayth being challenged for passing a Suspension of a Decreite Absolvitor given by the Admirall, he denied it was his subscription, and at last his servant, Jeremiah Spence, acknowledged he had forged the same, for which he got a guiny[618] for procuring, as the parties thought, his Masters subscription therto; wheirupon, being imprisoned, the Lords, on the 6 of November, having called for him to their presence, they did declare him infamous and uncapable of any charge or imployment about the Session, and seing he had judicially confest it, they remitted him to the Kings officers for his further triall. Its thought this was not the first of many forgeries he hes committed, so that his master lay under very much obloquy and reproach, which hes bein greatly occasioned throw his default, only it cannot be denied that my Lord gave to much ear to the mans recommendations, yea gave very grosse insinuations of his contentment and favor when his man got money, so that it was confidently affirmed that his man and he shared the profit that accrued from the Saterdayes roll, the syde bar, etc., amongs them; and it is now judged the liklier because my Lord concernes himselfe exceidingly to bring his man of only with a sweip of a tods taill, wheiras in generosity he should be his main prosecuter.

[618] Guinea. See Introduction, Money.

In the beginning of November 1672 died William, Earle of Dalhousie, being a very old man, wheiron my Lord Halton, Thresurer Depute, was made Shireff principall of Edenboroughshire during his lifytyme in place of

the said Earle; And Mr. Alexander Suinton, advocat, was made his depute and Mr. Laurence Charteris.

About the same tyme, Mr. John Stewart of Kettleston, on of the Admirall deutes, died, and Walter Pringle, Advocat, by the mediation of Sir Charles Bickerstaffe, the other depute, succeded in his place, [and in November 1674, Mr. Patrick Lyon was nominat in place of W. Pringle, deprived].^[619]

^[619] Interlined.

In the same moneth of November the Earle of Atholl was made Lord Privy Seall in place of the Earle of Dumfermeling, who died in the May before.

[As also the Earle of Kincardin was made Justice Generall upon the dimission of the Earle of Atholl. This held not.]^[620]

^[620] The two lines in brackets are scored through. See p. 225.

In England, the great seall at the same tyme was taken from Sir Orlando Bridgeman, and the Earle of Shaftesbury, formerly Lord Ashley Couper, is made Hy Chancelor of England. Sir John Duncombe is made under treasurer, in place of Ashley Couper. The Lord Clifford, lately but Sir Thomas Clifford, is exalted to be great Treasaurer of England. [He is the 1st ^[621] Thesaurer since the death of the Earle of Southhampton],^[622] and the Commissioners for the Threasurie are suppressed, and its expected that they, as the *primum mobile*, will draw us as ane inferior orbe rolling within theirs after them. The Lord Mainart, brother in law to the Duck of Lauderdale, is made thesaurer of the Kings house. Sir Robert Howard, commonly called Sir Positive, is made Secretary to the Treasurer. The Duck of Monmouth is made Lord Cheiff Justice of all the forrests in England benorth the Trent. My Lord Lauderdale hes undoubtedly had a great hand in

this extraordinary revolution; for they are on the caballe with him, and are all his confident privado'es. The old nobility cannot but repute them selves slighted when they sie thesse great offices of State conferred upon [muschroomes][623] upstarts. But this is a part of the absolute power of kings to raise men from the dunghill and make them their ounne companions.

[621] i.e. first.

[622] Interlined.

[623] Interlined.

In the beginning of December 1672 died Mr. George Norvell, advocate, one of the greatest formalists that was in all the tolbuith. His place as agent for the Colledge and toune of Edinburgh was by Act of the Toune Counsell conferred upon Mr. Robert Lauder, portioner of Belhaven, some few days after.

At the same tyme died Mr. Thomas Buck, advocat.

On the 14 of December 1672 the Faculty made choice of Sir G. Lockhart for their Dean, Sir Robert Sinclair having of some tyme before shoven a willingnes to demit in regard he discovered many of the faculty displeased at him for his faint surrender and breaking the unity of the Faculty in the matter of the Regulations and for sundry other particulars.

On the 2'd of January 1673 died Mr. John Andersone, advocat.

About the beginning of January 1673 James Hamilton was received ane under clerk in place of Jo. Kello, who died (*ut supra notatum*) in May 1670.

On the 14 of January 1673 the Earle of Atholl was received ane extraordinar Lord on the Session in place of the Earle of Dumfermeling,

who died (*ut supra dixi*) in May 1672.

In May 1673 died Mr. John Muirhead, advocat.

In June 1673 I was named by the Lords to be on of the advocats for the poor the yeir enshueing, but upon the mediation of my Lord Abbotshall I was excused.

On the 19 of July 1673 Forbes of Tolquhon was fined by the Lords in 40 lib. Scots for opprobrious speeches to Mr. David Thoirs, advocat, and calling him a knave.

On the 5 of Januar 1674 I was appointed on of the privat examiners of such as offered to enter advocats for that year.

On the 10 of Januar 1674 died Mr. Robert Dicksone, advocat.

In the beginning of this year 1674 died Mr. William Wallace, advocat, and on of the Shiref Deputes of Edenbrugh shire.

In the beginning of March 1674 died Sir James Lockhart of Lee, Justice Clerk.

On the 4 of June 1674 Mr. Thomas Murray of Glendoick, advocat, was admitted and receaved, in obedience to the Kings letters, a Lord of the Session, in place of Lee deceissed, as he was ane ordinary Lord, for they say Sir William Lockart the Collonell had his place by way of survivance and reversion of Justice Clerk.

On the same 4 of June Mr. David Balfour of Forret or Glentarkie was, upon the Kings letter, receaved ane ordinar Lord in the place vaikand by the dimission of Sir Androw Ramsay of Abbotshall.

On the 5'th of June 1674 died Sir James Ramsay of Whythill, advocat, and
Mr. James Hamilton, advocat, sone to the Bischop of Galloway.

On the 2'd of June 1674 I was nominat on of the advocats for the poor for the year enshueing.

About the 10 of June 1674 the Earle of Argile was admitted and receaved ane extraordinar Lord of the Session upon the Kings letter, in place of the Earle of Tuedale, turned out, as also the said Earle of Argyle got Tuedales place as one of the Commissioners of the Tresaury.

And my Lord of Atholl at this same tyme got that place of the Thesaury which was lying vaikand thesse severall years by the deceas of Sir Robert Moray.

On the 4 of June 1674, in obedience to a new comission for the Secret Councell, sent doune by the King, the Councell was of new modelled, 6 of the former members put out, viz. the Earle of Queinsberry, Earle of Roxbrugh, Earle of ——[632], Earle of Tuedale, the Lord Yester, and Generall Major Drummond, and 6 new Councelors assumed in their place, viz. the Earle of Mar, Earle of Kinghorne, ——[624], Lord Rosse, my Lord Colinton, and my Lord Craigie.

[624] Blank in MS.

On the 3 of July 1674 the Lords of Session deprived about 49 advocats who partly adhæred to Sir G. Lockhart and Sir J. Cunyghame, who were declared uncapable, conforme to the Kings letter on the 24 of June preceeding, and partly refused to officiat under the tyes and obligations contained in his Majesties letter anent appeals, and the Lords of Session their sentences, that none charge them of injustice.

On the 7 of July 1674 died Mr. James Rosse, advocat.

In October 1674 died Sir Robert Preston of that Ilk, on of the Lords of Session.

And in the middle of November 1674 James Foulls, Advocat, younger of Colinton, by the name of Lord Reidfuird, was admitted and received a Lord in his place, in obedience to his Majesties letter, and was the first who was tried in the new manner prescribed by his Majesty in July last.

In June 1675 died Collonell Sir William Lockhart of Lee at Paris, where he lay ambassador for his Majesty of Great Brittain, and so the Justice Clerkship waiked, which was immediatly bestowed and conferred on my Lord Craigie, but his gift bears *ad bene placitum* only.

In his place as on of the criminall lords succeeded my Lord Glendoick.

And at the same tyme my Lord Newbayth, by a letter from his Majesty, being eased and dispossessed of his place in the Criminall Court, the same was given to my Lord Forret, so that his entrie both heir and on the Session is not so cleanly.

The Earle of Atholl having at his being chosen Privy Seall obliged himselfe to dimit the office of Justice Generall when his Majesty saw cause to dispose of it, now in June 1675 the Earle of Murray is created Justice Generall.

In July 1675 died Mr. Robert Winrahame, advocat.

On the 5 of August 1675 Sir Androw Ramsay, Lord Abbotshall, was, upon his Majesties letter, readmitted and sworne upon the Privy Councell,

which and his other offices he had dimitted to my Lord Commissioner under trust on the 1 of December 1673.

In the end of September 1675 died Mr. Alexander Spotswood of Crumstaine, advocat, of 2 dayes sicknes. Item, Mr. Patrick Oliphant, of a few dayes sicknes, about that same tyme.

In the end of November 1675 died James Chalmers, advocat.

In the beginning of Januarie 1676 died James Hamilton, on of the under clerks of Session, and his place was bestowed on John Hay, wryter, and criminall clerk depute under Mr. Robert Martin.

On the 8 and 11 of January 1676 all the outed advocats to the number of 35 ware admitted again to their employments, conforme to his Majesties letter theranent.

In the end of March 1676 died Mr. William Strachan, advocat, and brother to the Laird of Glenkindy.

On the 16 of June 1676 was Sir Archbald Primerose, Clerk Register, by a letter from his Majesty, removed from his place of Register and from the Session, and a patent sent him to be Justice Generall, and the Earle of Murray gets a pension of 400 lb. Sterling for it, and his place in Session was instantly supplied by a letter from his Majestie in behalfe of Sir David Falconer of Neuton, Advocat; and the office of Register was conferred theirafter in February 1678 (neir 2 years vacancy) on Sir Thomas Morray, Lord Glendoick. See it in my remarks then.

On the 24 of June was a letter red from his Majestie, appointing their should be only 3 principall Clerks of Session, and that the Lords remove the rest, appointing them some satisfaction from thesse who stayed in.

Heirupon the Lords voted Messrs. Alexander Gibsone, Thomas Hay, and John Hay to be the 3 who should only officiat (See the manuscript[625] at November 1682, page 73), and removed Sir John Gibsone, but prejudice of the contract betuixt him and his sone of 100 lb. sterling yeirly, Alexander Monro and Robert Hamilton, and modified them 7000 merks from the other 2, which Comissar Monro refused unles they gave him a reason of their depriving him, which was refused till he raised his declarator if he had a mind to doe it. He within a 4'tnight after accepted it. The letter also commanded the Advocats consulting together.

[625] Interlined.

On the 28 of June 1676 was a letter from his Majesty red in the Thresaury commanding Sir John Nisbet his Advocat to call for Sir George M'cKeinzie in the concernes of his office, and act by his advice, and establist 100 lb. Sterling of pension upon him for the same. See the other Manuscript of Session Occurrents, page 13 and 42.

On the last of June 1676 Mr. John Eleis and Mr. Walter Pringle were suspended from being Advocats by the Lords, because they shifted to depone *super inquirendis* if their was any combination amongs the late restored advocats not to consult with thosse who stayed in. See the Sentence *apud me*.

On the 8 of July 1676 was Mr. John Eleis readmitted because he complied with the Lords and deponed. W. Pringle readmitted in June 1677.

On the 20 of July 1676 a new Commission of Secret Councell from his Majesty was red, wheirin six of the former Councelors ware left out and discarded, viz. the Duc of Hamilton, Earles of Dumfreis, Morton, and Kincairden, the Lord Cochrane and Sir Archibald Primrose, late Lord Register.

In the beginning of June 1676 died Mr. James Aikenhead, one of the comisars of Edinburgh; and in the end of July Mr. James Dalrymple was presented by the Archbishop of St. Andrewes in his place who had got the right of presenting all the comisars of Edinburgh during the vacancy of that diocese in *anno* 1671, only his gift was caution'd that he should confer them gratis, and on qualified persons.

On the 19 of August 1676 died Mr. Laurence Charteris, Advocate, and one of the Shireff deputies of Edenborough shire, in which office succeeded to him by the gift of deputation from my Lord Halton immediately Mr. Thomas Skein, brother to Halzeards, in West Lothian, and afterwards admitted an Advocate.

On the last of October 1676 died Mr. John Bailzie, advocate.

On the 13 of November 1676 Sir Archibald Primrose, late Register, took his place in the Criminal Court as Lord Justice General, and gave his oath *de fidei*. See more of it, *alibi*, page 144.

See the continuations of the changes and alterations and remarkable emergents of and in the Session in another paper book beside me that opens by the length.

(4)

OBSERVATIONS ON PUBLIC AFFAIRS, 1669-1670[626]

[626] From MS. II.

[In anno 1669 died the Q. mother of England. In anno 1670 died madame our K's sister mons'r the Duc of Orleans his Ladie she having bein in England but a litle while before. On the 24 of October 1670 was the church of the Blackfriars in Glasgow touched with lightning of thunder about seven a cloack of the morning, and having brok throu the roof it catcht hold upon its jests and had undoubtedly brunt the church to ashes had it not bein extiuguished in tyme. They say it brook also on their great church at the head of the toun.

What follows in thir 9 leives is copied and enlarged alibi.

In anno 1667 the French make ane invasion upon the Spanish Netherlands, and after he had ransact the country and made himselfe master of divers tounes][627] as Doway, Lisle, Tournay, etc., a peace was at last concluded in May 1668, whei of the articles ware, 1'o to be perpetuall. 2'do so soon as the peace is published all hostility most cease. 3'do the French to keip the couquiest of the late campagne. 4'to that he hold them with their dependances in soverainetie and the Spaniard to yeald them to him for ever. 5'to that the French King restore la France conté. 6'to the Spaniard most restore all places tane by him in the war. 7'o that all princes authorize the treatie and that nothing be retracted of the traitty of the Pyrenees save what is disposed on by this: To be mutually interchanged, ratified, and sworne by oath.

[627] The first page, as above, within brackets, is scored out in MS.

Upon the 27 of September 1669 was Candie toun (being the losse of the wholle Ile to the Venetians) surrendred to the Turks after a long seige wheir the French got a great overthrow, and their Admirall the Duc de Beaufort was killed with many other persons of note: and wheir Monsieur Annand our Master Annands brother behaved himselfe most gallantly, and since hes bein so hylie complemented for that his service by the Venetian senat that I

beleive never was any stranger more. He is admitted unto all their counsels and sits upon their Ducks right hand: the Englishs ware so affrontedly impudent as in their new books first to cal him ane Englishman, and being challenged for that they designed him after a subject of his Maj. of Great Brittain, so loath are they to give us our due praise.

In anno 1670 was ane insurrection of the paisants of the country of Vivarets in Daulphinée in France, upon the occasion of some extraordinarie tax cruelly exacted. They ware soon dissipat. Their is presently, in October 1670, a fellow called Ratzin[628] who hes taken up armes in Mosco agt the Emperor, and hes got of followers neir 100,000 men: he was a gunner, had a brother, who, being put to death for some crime, he in revenge of his brothers death hes made this commotion craving nothing lesse but that thesse who ware the cause of his brother's death (now they are the greatest men about the Ducks persone) may be delivered up to him.

[628] Rebellion of Stenka Razin against the Tsar Alexis.

It is apprehended by the wiser sort that this Union[629] is mainly set on foot by his Majestie, and so much coveted after by him, that he may rid himselfe of the house of Commons who have lyen verie heavy upon his loines and the loins of his predecessors Kings of England and especially of his brave father, and who have ever most crossed ther great designes. Now it being proposed that their should be but on parliament for all Britain, it will follow that the house of commons constitut no more a house apart, but that its members sit together with the Lords in the house of peers: and for the better effectuating this great point, I hear his Majesty caresses and complements thesse of the house of commons a great deall more then ever he was in use to do, and that he converses most familiarly with them, seikes their company, and that they get accesse when many great persons cannot. But this is not all, such of them as seimed most active and concerned in

pressing the priviledges and liberties of that house and of the commonalty of England, his majesty within this short tyme hes nobilitat them, and by this hes both engadged them to his oune party, and by setting them in a hyer sphoere weakned the house of commons.

[629] Charles II. having renewed the proposal for the union of the kingdoms, Commissioners were appointed for England and Scotland, and sat in London for some months in the autumn of 1670.

I confesse the King hes reason to wrest this excessive power out of the commons their hand it being a unspeakable impairment of his soverainetie, but I fear it prosper not. I hear the Earle of Strafford, who was Deputie of Ireland, was at first but a mean gentleman yet a member of the house of commons, and on of the most stirring amongst them, which K. Charles perceiving he created him a nobleman and by that so endeared him to his intrest that we know he suffered for it.

In the middle of 1669 came his majesties letter to the secret counsell for indulging some of the outed ministers libertie to return to their oune kirks if vacant, or to preach at any other vacant churches the S. counsell should think fit to place them, and that they should not be answerable to the Bischof of the diocese where they ware, but to the counsell. Then in the Parl. 1669 was the King's supremacie in a very hy straine established. This procedure startled all our Bischops extreimly, yet all of them ware so cunning and such tyme servers as they seimed to applaud it, only Mr. Alex'r Burnet, Arch B. of Glascow, and the Dean theirof, with some others more ingenuious then the rest, pens a remonstrance (which also they put their hands to) to be presented to the King, showing his majesty whow that course he had tane for uniting distractcd parties and healing our breaches

would prove unsuccesfull, yea was to be feared would produce the just contrare effect, vid., more dissentions, etc.

Upon this occasion he[630] gets a passe, and if he refused to dimit voluntarlie then their is a warrand from his Majesty for processing him criminally: upon that and other heads, he ather judging it not safe to contend with his m'r, or else not daring bid[631] the touch, dimits in his Majesties hands and *ex gratia* his Maj. grants him a pension out of the fruits of that benefice of 5000 mks. per annum for all the dayes of his lifetyme.

[630] *i.e.* the Archbishop.

[631] *i.e.* to abide.

Then Lighton, Bischof of Dunblaine, was presented to it, who, after much nicety, and a journey to London, at last condescended to take a tryall of it for a tyme under the name of Commendator Superintendent over the spirituality of that Bischopricks or some such like name, who took much paines to take up the differences betuixt the conformists and non-conformists, and to that purpose, in my Lord commissioners Audience in August 1670, ware then sundrie freindly conferences betuixt himselfe and some others adjoined to himself and some of the non-conformist ministers, upon which nothing then followed. He also in September 1670 took some moderat men, as Mr. Nairne, Mr. Cook, and others along wt him to his diocesse, by them to allure the people to frequent their oune parish churches, but he found them so exasperat wt the loud and scandalous cariage of the ministry that was planted amongs them on the removall of their former, that his great paines had not answerable successe.

In anno 1668 was Honieman B. of Orkney shot in the arme, being sitting in the coach wt Arch. B. Sharp, for whom, it was thought, the pistoll was levelled. Some sayd it behoved to be some great hater of the Bischops,

others said it might be out of privat splen and not for the privat quarrell of Religion; others said he was but suborned to do it by the Bychops themselves, that they might lay the blame on the Presbyterians, and draw the greater odium on them, and stoop the favor that was intended them of opening some of their ministers mouths; and the truth is, it did retard that better almost a year.

In anno 1670, about July their of, Mr. John Meinzeis, brother to the Laird of Culteraws, and minister at[632] in Annandale, left his church and emitted a declaration bearing what stings he suffared in his conscience for conforming with the present church government, which he fand to be a fertile soyle for profanity and errors of all kinds, and theirfor he gives all to whom thir presents may come to know that he disapproves of the said government and of his bypast compliance, and that in tyme coming he will forsake the ministrie, since he cannot exercise it unlesse he wound his soull farder by that sinfull compliance. The Bisc. ware verie pressing to have had him punisht, but his friends got him borne by.

[632] Blank in MS.

In that same year 1670 was that monster of men and reproach of mankind (for otherwayes I cannot stile him), Major Weir, for most horrible witchcraft, Incest, Bestiality, and other enorme crymes, at first confest by himselfe (his conscience being awakned by the terrors of the Almightye), but afterwards faintly denied by him, brunt. So sad a spectacle he was of humane frailty that I think no history can parallell the like. We saw him the fornoon before he died, but he could be drawen to no sense of a mercifull God, yea sometimes would he scarce confesse their was a God, so horribly was he lost to himselfe. The thing that aggravated his guilt most was the pretext and show of godlinesse wt which he had even to that tyme deceived the world. His sister also was but a very lamentable object, for she ran on

the other extreem and præsumed exceidingly on the mercy of God, wheiras their ware no great evidences in hir of soull contrition. She was hanged.

They say their is some difference fallen in betuen my Lo. Lauderdale and my Lo. Argyle about some desire my Lo. Lauderdale had in relation to the Lady Balcarras, now Lady Argile, which Argile relished not, and said, I think your grace would take the ward of my marriage. He answered, I may weill have that, for I once had the waird of your head, which was true in anno 1663, when the sentence of death and forfaultor was past on him as a traitor.

In anno 1669 did his majesty in his Royall wisdome compose the differences betuixt the tua houses of parlia. in Engl., which were likely to have occasioned great strife, it being anent their priviledges and liberties alledged brook[633] in the case of on Master Skinner, a member of the house of commons. His majesties course was that all memorie of discord betuen his 2 houses that might be found on record should be totallie abolished and expunged both out of the Registers of Parl., Exchequer, Counsell, and out of all other monuments, that the ages to come may not so much as know their was any variance betuixt them. On the 28 of September 1670 was Colonell Lockhart admitted a secret Counseller, and they say that Lambert is also made a Counsellor in England.

[633] *i.e.* broken.

The King in 1670 craving of his parliament a subsidie for defraying his debt, they proposed that ere any new tax could be granted account should be made of the former subsidies, whow the same ware employed by Mr. Cotteridge and others, whom the King made use of to that purposc. Sure this was very grievous to the King to sie himselfe so controlled in his expence, and that he could give no gratuity to my Ladie Castlemain (now Dutchesse of Cleveland, etc.) but that which they behoved to get notice of,

behold the stratagem he makes use of. The Presbyterians at that tyme, hearing of the Indulgence given to some ministers in Scotland, they offer to the King to pay all his debt, and advance him a considerable soume besyde, provydeing the same liberty be granted them. At the nixt sitting doune of parl. his mai. in a speach showed them whow harshly and uncivilly they had dealt with him, and, after much plain language, he told them if they would not grant his reasonable demands he know them that would do it. After they had come to know his majesties meaning by this,[634] who ware more forward then they, they passe fra craving any account of the former, they grant him a new subsidy of a million, they consent their should be a treaty wt Scotland anent ane union; yet onlie the dint of their fury falls on the Presbyterians, and they enact very strict statutes against them and against conventicles, because they had been the pin by which his mai. had scrued them up to that willingnesse. So we sie its usefull sometymes (as Matchiavell teaches) for a prince to entertaine and foment tua factions in his state, and whiles to boast the one with the other.

[634] His majesties meaning by this, *i.e.* 'what H.M. meant by this intimation.' As soon as they understood that, 'Who were more forward than they?'

In October 1667 did at last break out that inveterat hatred of the wholle people of England against Chancellor Hide, and he is arraigned as guilty of hy treason by the house of commons, who pressed strongly that his persone might be secured till such tyme they had verified the crimes they attached him of. This motion the house of peers wt indignation rejected as derogatorie of their priviledges, he being a member of their house. While the 2 houses are thus contending he judges it safest for him to retire till this storme blow over, and this was also thought to have bein the King's advice to him, who was very sorrie at their procedor, thinking it a bad precedent for the house of commons to medle with persones so eminently neir to

himselfe; yet in the breach he durst not stand but was forced to give them way, so much was Hyde hated in England, so that his Maj., rather then he will in the least endanger the disturbance of his oune peace and quiet, resolves now to quite his dearest minions and expose them to the malice of their ilwillers and haters then stand stoutly to their defence, and so make himselfe party against his people. So Hide makes his escape to France, leiving behind him a declaration wherin he refutes all the crimes they lay to his charge, as his being the author of the marriage of the King wt the Portugues, knowing she would be barren, and that his daughter's posterity might so reigne: item his being the occasion of the selling of Dunkerk to the French king, wheiras if it had bein in the English their possession in the year 1665, in their war betuixt them and Holland, they could have annoyed the States considerably theirby. But the truth is the Queen mother of England was wery instrumentall in that bargaine: item his being the active cause of the war betuixt England and Holland, of which he purges himselfe so largely that I think no man can scarce judge him any way accessor theirto.

That war (wt pardon) was hardly weill manadged on the English syde, and they committed errors most unpardonable in good policie: as first in that battell that was given on the 17 June 1665, wheir Admirall Obdan and his ship ware blowen up, being fired (as was supposed) by the English bullets levelled at it, they contented themselves with the simple wictorie and honor of commanding the seas, wheiras if they had followed forth their victorie and had got betuixt the Holland their shattered fleet and the coast of Holland and Zealand, it was thought by the most judicious men that that on battell might have put ane end to the war and have produced most advantagious conditions for the English: but they verified the known saying, *vincere scit Hannibal sed ã victoriâ uti*. Their pretence indeid was that they would not pousse their victory farder by hazarding what they had already won, because the appearand air of the croun, the Duc of York, was

present in person. But how weak this is let any man judge, unless they mean that by intercepting the Dutch their way home they might have made them desperate and so fight like Devils, and that it has ever been a good maxim to make a fleeing enemy a bridge of gold. Whomever the Dutch concluded that they would have no more Admirals that were gentlemen (for Obdam was so) because they never fought fortunately with their enemies when they had such. But certainly this is nought but a fiction made by a commonwealth to cast a blur upon nobility, seeing their same very states have fought most courageously and advantageously under the conduct of the Princes of Orange.

Upon his death De Ruyter was chosen admiral, and van Tromp the younger, upon a suspicion of being too affectionate to the interest of the King of Britain, was disgraced. The next (but rather should have been made the first) was his Majesty's bad choice of a false chinking villain, Mr. Downing, [635] to be his agent to negotiate affairs at the States General in the beginning of that war, who steid of composing things rancored them worse and made them almost incurable, judging it good fishing in troubled waters, whereas if a moderate and an honest man had been made use of in that business, things would never have come to the height they were at, since the offers of reparation then made by the Dutch to his Majesty were by all indifferent spectators judged most fair and reasonable. The 3^d is that in the engagement the following summer, 1666, the King's intelligence should have been so bad as to have apprehended at that time the joining of the French fleet with the Hollander (whereas there was no such thing, but it was of purpose done to divide his majesties fleet), and their ordering Prince Rupert with his squad away to attend their uniting; and in his absence the Dutch taking the advantage, provoked the Duke of Albemarle (who was a better land sojourner than a sea, and who died in 1669) with sixteen ships to fight their whole fleet, who more hardily than wisely encountering them, had undoubtedly been totally routed and defeat had not Prince Rupert

upon notice come up and releived them. By which conflict it at last appeared that it was possible for the English to be beat by the Hollander, which was never beleived before that.

[635] Sir George Downing, 1623(?), 1684, long Resident at the Hague under the Commonwealth and Charles II. See *Nat. Dict. Biog.*

The nixt error they committed was that the following summer, 1667, the King (for sparing of charges forsooth) was advysed not to set to sea that year, but to let his fleit lay up in the harbors, which gave cause to that mighty affront (then which since England was England it never received the like) given them at Chattan, and wheir the Scots regiment, brought over from France by the King's order, making braver resistance then all England beside, ware many of them slain, dying in the bed of honour. As for the Scots proclaiming war against France, and as for the more naturall way tane by our King in proclaiming the war then tane by France, I shall elsewheir speak more at large.

APPENDIX

APPENDIX I

EXTRACTS FROM ACCOUNTS 1670 to 1675

§ 1

On the 8 of July 1670, I receaved 168 lb. in 55 dollars,[636] which compleited one halfe a year's annuel rent,[637] vid., 900 m., wheirof first given out to my wife 8 dollars to defray sundrie debts, vid., 5 lb. to mistris Guthrie for 2 elle and a quarter of borders, 4 lb. 10s. to George Reidpeth, 7 lb. 4s. for 2 chandellers, 2s. for a pint of win, 3 lb. given to the wright with

some other lesser things; then I gave une dalle Imperiale a mon serviteur pour acheter les saintes ecritures, 8 pence for a quaire of paper. Then on the ij of July 1670, I gave my wife 10 dollars for keiping the familie: 4 dollars given to my wife to buy wooll with. This makes a 100 merk. Then I gave a dollar to buy covers for the chaires, 8s. and 8 p. for a pair of shoes, 2 lb. at a collation with Mr. Hamilton, 24s. at a collation with Mr. Thomas Bell, 5s. for a mutchin of wine.[638] Halfe a dollar to Walter Cunyghame, 12s. for paper and ink, 10 lb. for 20 leads of coalls at 10s. the load, 3 dollars given to my wife, a dollar given for a french croune to my wife, 5 p. for a mutching of win,[638] 24 p. in Caddells with Mr. Hendersone. Item, 2s. sterling given to my wife. Item, 4 dollars given to hir, a groat to the barber, 5s. sterling for a new board, a mark in the contribution for the burgh of Dundie, a shiling to the keiper of my gown, 3 dollars given to my wife, halfe a dollar at a collation in Cuthbertsones, 18 pence at a collation with Balmayne. Out of the last 3 dollars given to my wife, she bought a chamberpot for 3 shillings, a board cloath for 3 shillings and 10 p., then I gave hir 2 dollars: this is another 100 merks, then 20 lb. payed for 40 load of coalls, 10 pence given in drink money to the cawer,[639] 12 pence at a collation with Colinton, 7 pence at on with Sir George Lauder, 3 lb. at a collation with Mr. Falconer, 12 p. for wine, a dollar to my wife, then 2 dollars given hir for the familie, so this is the account of the other 9 dollars remaining of the 55 dollars, togither with 5 other dollars pris de l'argent donné a la nourrice.

[636] The dollar is here equal to 5s. 1d. sterling.

[637] From his father secured on the lands of Carington, settled in his marriage-contract.

[638] The shilling Scots and penny sterling are here used for the same value.

[639] 'Cawer,' driver, carter.

Then on the 16 of August 1670, I received from my father 20 dollars, the accompt wheirof follows:—

Item, payed for my press making and colouring, etc., 9 lb. 10s.
For the glasses footgang, 2s.
For seing the Duke's Berge at Leith, 2 lb. 10s.
Given to my wife, 2 dollars.
Given to the nurse to buy a bible with, one dollar.
With Kilmundie, 10 pence.
For the articles of Regulations, 10 pence.
Then given to my wife, 2 doll. and a shilling.
Then given hir to buy shoes, linnen, and other things with, 5 dollars.
For 2 quaires of paper, 18 pence.
At Hadoe's man's wedding, a dollar.
For seck with Thomas Robertstone, 10 pence.
For wine with my landlord, 5 pence.
Given for the houses use, 2 dollars.
For a coatch, 2 shillings.

Summa is 19 dollars and a halfe.

Then on the thrid of September 1670, I received my years annuel rent from

Thomas Robertstone, vid., 300 merks, the count wheirof follows:—

Imprimis, given to my wife when she went to Wauchton, 2 dollars.
Given to the barber, halfe a mark.
Given to a poor boy, halfe a mark.
Given in drinkmoney to my goodfather's nurse, a dollar.

Given to Huntar, my goodfather's man, a 6 pence.
A dollar to Jo. Scots nourrice, a dollar.
Given to the woman Margaret, 2 dollars.
Spent on Rhenish wine at Hadingtoun, 30 shilling.
For my breakfast at Lintoun bridges, 22 shiling.
To Idingtoun's men bigging the hay rick, 20 shiling.
To his gairdner, halfe a dollar.
To the kirkbroad, 10 shiling.
To Idington's serving woman, a dollar.
To his hielandman, 15 shilling.
To my goodbrother's man Lambe, a mark.
For the horse meat at Hadingtoun, 10 pence.
To the tailzeor for mending my cloaths, a shilling.
To my father's man Arthur, 45 shilling.
To Wodstone's man Florie, a shilling.
To the kirk broad at Abbotshall, a 6 pence.
For Rhenish in Kirkealdy, 55 shiling.
Then given to my wife for the house, 10 dollars.
For binding Durie's 2'd volume, 2 lb. 2 shil.

This makes one 100 merks of the 300 merks.

Then gave for the acts of the 2'd session of parliament, 10 pence.
Then for a pair of shoes, 1 lb. 19s.
Then for Androw Young's nurse for my selfe, a dollar.
Given then by my wife, halfe a dollar.
Given then for a pint of wine, 20 shiling.
Given to my wife to buy some slips with, a dollar.
Given to Grissell Ramsayes mother for drink furnisht
by hir to us by the space of 10 weeks, 3 dollars.
Payed for wine, 7 pence.

Payed for 2 horse hires to Preston, 3 shilings and 6 pence.

Payed for wine in Daniel Rosses, 3 shilings st.

For a quaire of paper, 9 pence.

For ink, 2 pence.

Given to my wife, 4 shilings s.

Payed for causing intimat the assignation to H.

Sinclar at Binny, 6 shil. st.

Given to my wife, 6 pence.

To the barber, 6 pence.

10 of October given to my wife for the house, 8 dollars.

Given to Pitmedden's nurse, a dollar.

Sent to a poor persone, a mark.

Payed for Heylin's Cosmographie, 22 sh. and 6 pence.

Given to the provest's woman, 6 pence.

Given for paper, 9 pence.

This makes another 100 mks. and 2 dollars more.

Then payed at a collation with Mrs. Wood and Bell, a dollar.

Payed to John Nicoll for a great bible, 17 shillings.

Payed again to Grissel's mother for drink, 2 dollars.

Given to my wife, halfe a dollar.

Given also to my wife, a dollar.

Given for a paper book by my brother for me, 12 p.

Given to my brother William at that tyme, 6 pence.

Given to my wife, 2 shil. 9 pence.

Given to the woman in part of hir fie, a dollar.

Given for 2 quaire of paper etc., 18 pence.

Expended farder on the intimating Hew Sinclar's
assignation, a shilling.

For binding the reschinded acts of parl., halfe a crowne.

At a collation with the Laird of Grange, 33 shiling.
On win with Ja. Lauds, 5 pence.
Given to my wife, a dollar.
Item given to hir, halfe a mark.
Given to the barber, a 6 pence.
Given in Pentherer's, 8 pence.
Given to my wife for my ...[640] a dollar.
Item given to my wife for the house, a dollar.
Given for new wine, a shilling.
Given to my wife, 29 shilling.
Given againe to my wife, a dollar.
Given for the house, a dollar.
Given to my wife, 3 dollars.

[640] Word interlined illegible, like 'manninie.'

This is the account of the wholle 300 mks. all till about a dollar which I remember not of.

Then towards the end of November I received from my father about 200 mks. and 3 dollars which with all the former made 1200 mks. wheirof imprimis.[641]

[641] In the first of these entries the value of the dollar comes out about 4s. 11d., in the second at 5s.

A dollar and a halfe given to a man for teaching
my wife writing and arithmetick, 4 lb. 8s.
Then a dollar for the serving woman's halfe fie, 3lb.
Item in drinkmoney to the bedell and others, halfe a croun.
Item to my wife, a dollar.
Item at Geo. Lauder's penny wedding, a dollar.

Item to the fiddlers, a 6 pence.
Given to my wife, a dollar.
Item, given hir for the use of the house on the 2'd
of December, 10 dollars.
To the barber, 10 pence.
Upon win and at cards, 13 pence.
To my wife, a mark.
For a pair of shoes and gallasches[642] to them, 5s. and 10 p.
To my wife, 6 pence.
Given to my wife to buy to hir nurse a wastcoat
with and shoes, etc., 2 dollars.
At a collation with Rot. Bell in Pentherer's, 34 shiling.
To Mr. Thomas Hay that he might give up the
papers, 2 dolars.
For Broun's Vulgar errors, 6 shilings 6 p.
For the Present State of England, halfe a croun.
For the moral state of it, 2 shilings.
Then given at the kirk door, halfe a dollar.

[642] Overshoes.

This is neir ane account of ane 100 mks. and the 3 dollars.

Then on the 21 of December 1670 was payed to the nurse as hir fee, 14 dollars. Item given hir as a pairt of the drinkmony she had receaved, 9 dollars. which two soumes make up the other 100 mks.[643]

[643] 23 dollars equal to 100 marks. Taking the mark at 13-1/2d.
dollar equal to 4s. 10-1/4d.

Then I receaved from my father other 200 mks., which made 1400 mks.
of all that I had received from him.

Wheirof first payed to the nurse to compleat hir
drinkmoney, which amounted in all to 18 dollars, 9 dollars.
At a collation with Idington and others, a dollar.
Given to my wife to buy a plaid with, 3 dollars.
Given to my wife to buy lace with to hir apron, a dollar.
Then on the end of December 1670 given to my
wife 4 dollars and a halfe to pay 8 barrell of ale
furnished us at 32s. the barrel, 4 dolars and a halfe.[644]
Item given to my wife, 18 pence.
Item payed for another pair of shoes, 3 shilings 3 pence.
Item for wine with Mr. G. Dickson in Caddell's, 16 pence.
Given to my wife, a dollar.
Payed for wine, 10 pence.
Given to my wife, halfe a dollar.
Then given hir, a dollar.
which makes up on hundred mks.

[644] Dollar equal to about 4s. 9d.

Then on the 2'd of January 1671 being hansell
Monday I gave my wife to give out to people
who expected handsel, 4 dollars.
Then that same day I gave hir for the house, 8 dollars.
Given for the Acts of G. Assembly 1638, 2 shillings.
Given to my brother William, a dollar.
Given to my wife, 2 mark.
Also given to hir, a dollar.
Then given to my wife to pay the waterman with, 30 shils.
Then payed for Goodwin's Antiquities, etc., 7 shilings.
Then given to my wife to buy linnen to make me
shirts with, 2 dollars.

Given at Mr. David Falconer's woman's brithell,[645] a dollar.

Payed for a chopping of win, 10 pence.

For a quaire of paper, 6 pence.

For wine, 6 pence.

At a collation with Idington, 23 shilings.

Given to my wife to buy sugar with, 6 shilings st.

Then given to Dr. Stevinson's nurse, a dollar.

[645] Bridal.

This is the other 100 mks. which makes in all the wholle 200 mks.

Then I receaved my pension, vid., 200 mks. from the toune of
Edenburgh: out of which imprimis:

Given by my wife to Doctor Stevincon's nurse, a dollar.

Given also to my wife, a dollar.

Given to my wife, a dollar.

Payed to John Jack for a pair of broatches to

William Ramsay, 5 lb.

Payed for wine, 15 pence.

Payed for a quaire of paper, 8 pence.

Payed to my man of depursements for me, 14 pence.

Payed for Papon's arrests of Parliament, a dollar.

Given to my wife, a dollar.

Given to my wife, a shilling.

Payed in a contribution for the poor out of money

given me in consultation, 4 lb. Scots.

Payed for a pair of gloves, 30 shil.

Given on the 2d of Febr. to keep the house with, 7 dollars.

Payed for horse hires when I went out and meit

the provest, 6 shilings and 6 pence.

Given to Rot. Lauder's man in Belhaven, a shiling.

Given to my wife, a dollar.

Given to Mr. Andro Wood's man in Dumbar, halfe a dolar.

Given at Waughton to Darling and Pat. Quarrier, a dollar.

Given at Gilmerton to the workmen their, a dollar.

Given for 20 load of coalls furnisht to us, 10 lb.

This is on 100 mks.

Then given 5 lb. to the nurse for hir child's halfe
quarter, 5 lb.

Then payed on the 15 of Febr. 1671 to my onckle
35 lb. in 12 dollars[646] for 6 bolls of meall, the first
3 bolls being at 5 lb. 12 s. the boll, the other 3
being at 6 lb. the boll, 12 dollars.

Given to my wife, halfe a dolar.

Given to Walt. Cunyghame, halfe a dolar.

Given to my wife, a dollar.

Given to my wife also, a dollar.

Given for the use of the house, 3 dollars.

Spent upon wine, 18 pence.

Given to the macer's man, a mark.

Given to my wife, 2 dollars.

Given to the under keiper of our gounes, a mark.

Given to the barber, a mark.

[646] 1 Dollar equal to 4 s. 10-1/2d.

This is the count of the other 100 mks. of the 200 given me in pension.

Then I received from Wm Binning thesaurer 10 dollars, 4 of them
consultation money, and 6 of them to make the 12 lb. st. or 150 lb. Scots,

[647] of pension to me, out of which:

[647] 150 l. Scots ought to have been equal to £12, 10s. This shows that the Scots money was not at the time at par with the English.

Imprimis, given at a collation with Mr. Wm Lauder, 30 shils.
Given to the bedell at Leith, 6 pence.
Given to my wife, 2 shilings.
For sweet powder, 2 shilings.
For wine, 5 pence.
Given to my wife, 6 pence.
Given for wine, 16 pence.
Given to my wife to buy shoes with and lint, a dollar.
Given for the use of the house, a dollar.
Paid for wine in Lieth, 20 shil.
Given at Hew Boyde's contribution, a shiling.
Given to my wife, a dollar.
Given to buy lint with, a dollar.
Given for a drinking glasse, 6 pence.
Given to my wife, a dollar.
Given for the State of England, 2d volume, 3 shilings.
Spent on wine, 18 pence.
Given for the use of the house, a dollar.

This is all the 10 dollars.

Then I received on the 17 of March 1671 from my father 300 mks. which made in all of what I had received from him 1700 mks., out of which:

Imprimis, given for the use of the house, a dollar.
Given to my wife to buy lace for a pinner, to buy

holland for napkins and aprons, etc., 5 dollars and a halfe.
Item, for a chopin of win, 10 pence.
Item, given to my wife, 10 pence.
Item, for the use of the house, a dollar.
To my wife to buy lace for apron and napkins, a dolar and a halfe.
Payed at a collation with collonell Ramsay, 42 shiling.
Lent to James Lauder, 2 dollars.
Given for the house, halfe a dolar.
Given to the barber, a shiling.
Payed to the baker conforme to his accompt, 13 lb. 5 s.
Payed for halfe a quarter's fie with the nurse's
child, 5 lb.
Given to my wife, 2 shilings.
Payed at a collation with Mr. Charles Wardlaw, etc., 29 shil.
Item, to buy figs with, 9 pence.
Item, for Knox his History and Navarri Manuale, 2 dollars.

This is the accompt of one 100 mks.

Then of the rest.

Imprimis, given for the use of the house on the 1 of
Aprile 1671, 7 dollars.
On the 8 of Aprill given to the midwife, 5 dollars.
Given to my wife to buy a litle silver dish with,
which cost hir 33 shiling, a dollar.
Given to my wife for sundry uses, 2 dollars.
Spent upon wine, 24 shiling.
Then given to my wife to buy turkies, etc., 2 dollars.
Then given for ribbans to be garters, etc., 35 shil.
Then on beir in Peter Wats at a morning drink, 5 shil.

Then to Sir John Dalrymple's child's nurse, a dollar.
To Mr. Archbald Camron for taking up[648] the child's name, a dollar.
To the scavenger, 2 shilings.
At the kirk door, a 6 pence.
To the bedells, a dollar.
Given to my wife for sundry uses, 3 lb. 15 shil.

[648] Registering.

This makes 200 mks.

Then given out of the other:

Imprimis, to my wife, a dollar.
At a collation with Patrick Don, 43 shil.
To my wife to pay a quarter for
the nurse hir bairnes fie,[649] 2 dollars.
Item for the houses use, 2 dollars.
For a quaire of paper, 8 pence.
Item given to my wife, 5 pound.
Item given hir for buying meat to the gossips when they visit, 2 dollars.
Given to pay the win and seck gotten out of Painston's, 4 dolars.
Given to buy a coat to the bairne John, a dolar.
Given to buy wool with, 2 dollars.
Given to the poor, a shiling.
Given for wine, 20 shiling.
Given to the house, a dollar.
Given by my wife and me to Sir Androw's nurse, 2 dollars.
Waired on wine, 30 shiling.
Given to my wife, 2 mark.
On win with Mr. Alex'r Hamilton, 10 pence.
Given for paper and ink, 12 pence.

Given for wine, 10 pence.

Given to the woman Margaret, 18 pence.

[649] Wages of nursemaid eight dollars, about £2.

Sie the rest of their accounts alibi. This is the accompt of the said 300 m. very neir. So that their is nothing resting to me to make up a compleit years rent: vid., from Lambes 1669 to Lambes 1670, but only one hundred merks, which I allowed to my father in respect he payed a compt of that value for me to John Scot: as also of his oune moneyes he was pleased to pay 90 lb. for me which I was addebted to the same John for 23 elle of cloath tane of for my bed and appertenances, at 4 lb. the elle and did not at all place it to my accompt.

§2

O Lord, teach me so to be counting my dayes, that I may apply my heart to thy wisdom.[650]

[650] These words stand as a motto at the head of MS. K.

* * * * *

Sie my counts praeceiding this in a litle black skinned book alibi.
[*Supra*, p. 239.]

On the 25 of May 1671, my father was debtor to me in the soume of 1800 mks., payable out of the lands of Carington, and that as my year's annuity from Lammas, in the yeir 1670, till Lambes coming in this instant year 1671; all preceidings are payed to me and discharged by me.

Of this 1800 mks., I receaved the formentioned day from him 200 mks.,
out of which I payed:

Imprimis, to the Janitor for 4 books, vid., the English laws,
Polidorus Virgilius, Zosimus and aliorum Historiae, and
Vimesius Theses, etc., 16 shil. st.

Given to my wife for sundry uses, 3 dollars.

For wine and seck in the Janitor's, 50 shil.

To my father's skild nurse by myselfe and my wife given, 2 dollars.

For 2 elle and a quarter scarlet ribban fra James Dick, 24 shil.

For this paper book wheiron I write thir compts., 6 pence.

Given to my wife, 6 pence.

For wine in Pentherers, 16 pence.

Given to the poor, a 6 pence.

Given to my wife for the use of the house and other things, 4 dollars.

Given to Joseph for shaving me, a shiling.

Given to my wife for sundry uses, 4 shilings.

On win, 6 pence.

Item, to my wife, 9 pence.

For a quaire of paper, a leather bag, and sundry
small things, 14 pence.

Item, given to my wife for the use of the house, 7 dollars.

This is 100 mks. laking on by halfe a dollar.

Then given to my wife for divers uses, 2 dollars.

For a pair of shoes, 3 shil. and 6 pence.

Upon win at Leith with Mr. Wood, etc., 16 pence.

Since on win and otherwayes, 8 pence.

Item, given since on beir, in Leith, for a velvet
cod,[651] etc., 10 pence.

On the 20 of June, given to my wife for the use of
the house, 7 dolars.

Item, for another pair of shoes, 42 shiling.

Item, for wine, 12 pence.

Item, for tent to my wife, a mark.

Item, for wine to the landlord when I payed him
100 lb., 10 pence.

Item, for sundry other adoes, 45 shiling.

On win. with Doctor Steinson, 13 pence.

Given to my wife to give hir wobster,[652] 3 shilings.

For more tent, a shiling.

Item, a dollar as a part of 6 lb. payed by me of
annuity, a dolar.

Item, on the 1 of July, given to my wife for the use
of the house, 6 dolars.

Item, at a collation with Kilmundy, 40 shil.

Given to my wife, halfe a dollar.

At a collation with Mr. Pat. Lyon, 50 shiling.

Item, on sundrie other uses, a dollar.

This is the accompt of the saids 200 mks.

[651] Pillow.

[652] Weaver.

Then on the 10 of June 1671, I received from the Provest, Sir A. Ramsay,
100 lb. Scots as a termes annuel rent of the principal soume of 5000 mks.,
[653] addebted by him to me, vid., from Candlemas 1670 to Lammas 1670.
Which 100 lb. I payed to James Wilsone, my landlord, in part of my house
maill, which was 160 lb.,[654] so that I remaine yet debtor to him on that
accompt in 60 lb., afterwards payed and all discharged.

[653] Unpaid half of his wife's marriage portion. See page xli; 3 per cent., equal to 6 per cent. per annum.

[654] House rent, £13, 6s. 8d. half-yearly.

Then on the 15 of July, I received from my father 400 mks., which made up 600 mks., of the year 1671, received by me, out of which Imprimis, payed to my landlord to compleit his maill, 60 lb. Item, to his woman Nans, a dollar. Item, to William Borthwick, the apothecar, conforme to his accompt, 36 lb. Item, to William Mitchell, the Baker, conforme to his accompt, 26 lb. Item, to Rot. Mein, for sweteis, glasses, etc., conforme to his compt., 14 lb. Item, given to my man when he brought me my 12 lb. sterl. from Wm. Broun, the burrows agent, a dollar. Item, given to my wife, 2 dollars. Item, upon win with Guus Grein, 15 pence. Item, to my wife for the use of the house, on the 22 of July 1671, 9 dollars. Given to my wife when she went to Innerkeithing fair, 2 dollars. Item, given hir to pay the deing[655] of hir hangings, 4 dollars. Item, on the 4 of August, given to my wife to buy a goune and petticoat, and furniture, conforme, 100 lb.

[655] Dyeing, I presume.

And because the 400 mks. received last from my father did not reach so far as to compleit it, theirfor I took 10 dollars out of 200 mks. payed me in July by Wm. Broun, in name and be halfe of the borrows for my pension, 1670, and made up the 100 lb. I gave to my wife theirby.

Item, farder payed out of the said 200 mks. of pension for 25 barrells of aile furnisht to the house from the midst of January till August, at 32 shil. the barrell, 12 dollars and a halfe.[656]

[656] Here the dollar is equal to 5s. 4d.

This is near ane accompt of one 100 mks. of the 200 m. payed to me in pension.

Item, given to my wife, 3 dollars.

Payed in R. Gilbert's when I was at Leith with the
Lady Wauchton, a dollar.

Item, payed for the coach hyre, a dollar.

Item, given to my wife to help to buy black lace
for hir gown, 2 dollars.

Item, given hir to buy coalls with from Leith and
elsewhere, 5 dolars.

Item, in Painston's with Sir Andro, 27 shill.

Item, given to my wife when she went to Waughton
to sie hir sone, 2 dollars and a halfe.

Item, in Painston's with Mr. Rot. Lauder and Rot.
Bell for our supper, 38 shill.

For 2 quaire of paper and ink, 18 pence.

For ane 100 plumes, 8 pence.

To Idington's Man when he come from Dundy
with the cloath, 29 shil.

To my man for sundrie depursements for me, 29 shil.

To the woman Marion for buying meall to the house, a shilling.

Item, in Peirson's with Rot. Bell, 27 shill.

Item, for my dinner in Pentherer's with Rot. Bell, etc., 48 shill.

Item, for a coach hyre out of Leith, 30 shiling.

Item, to Grange's man, a shilling.

Item, to my wife, halfe a dollar.

Item, for a mutching of tent, a shilling.

Item, given to the nurse to be compted in her fie, 2 dollars.

Item, given to my wife, a dollar.

This is the full accompt of the said 200 mks.

Then about the 14 of August I receaved from my father 300 mks. which made with all the former 900 mks. of this year 1671.

Out of which imprimis:

Given to my wife to pay the making of her gounne and other things, 4 dollars.

In Painston's with Mr. Jo. Eleis, 29 shiling.

To my wife, 50 shiling.

For a chopping of brandy, 14 pence.

Item for a hat in Broun's, 7 shilings.

Item, to my wife, a dollar.

Item, to Grange's nurse, a dollar.

Item, to the barber Henry Porrock, 6 pence.

Item, to George Gairner, a mark.

Item, to W'm Binning the thesaurer his nurse, a dollar.

Item, to David Colyear, 36 shilling.

Item, on the 5 of September given to my wife for the use of the house, ij dollars and a halfe.

This is one 100 merks.

Then on the same day given her farder for the same use, 11 dollars.

Item, given hir, halfe a dollar.

Item, for wax and soap, 7 pence.

Payed to Henry Hope for ports of letters when I was in Holland, 5 lb. 10s.

For the acts of parlia. in June 1649, 34s.

For 6 dozen of gold strips to the hangings at 7s.[657]

and 6 p. the dozen, 9 dollars.
Upon seck, 5 pence.

[657] Sterling.

This is another 100 mks.

Then given to my wife, a shilling.
For a quaire of paper, 9 pence.
At a collation with Hary Grahame, 36 pence.
To John Scots nurse, a dollar.
On win their, 26 shill.
In the Lady Home's yeards,[658] 6 pence.
Payed for my man's horsehire to Wauchton, 46 shill.
Payed of sundry depursements to my man, 20 shilling.
Given to George Gairner, a shilling.
Given to my wife, 10 dollars.
Item, on win with Walter Pringle, 35 shill.
Item, for a pair of botts, 17 shilings and sixpence.
To Alex'r Todrig's nurse, a dollar.
For a quaire of paper, 9 pence.
For rasing[659] me at 2 severall tymes, 18 pence.
Given at Coldinghame kirk, a 6 pence.
Given to the foot boy their, a 6 pence.
Upon sundrie other uses neir, a dollar.
Item, given to my wife, twa dolars.

[658] Probably means gardens.

[659] Shaving.

This makes neir the other 100 mks.

And in wholle it makes up the 300 mks. receaved from my father on the
14 of
August last.

Then on the 3 of Nov'r. I receaved other 300 mks. from him, which
makes 1200 mks. of what I received of my annuity 1671, out of which, etc.,
etc.[660]

[660] This account is omitted as of no interest.

* * * * *

On the 20 of february 1672 I receaved 300 mks. more from my father,
which with the former made 1500 mks. of the 1800 mks. due to me of
annuity from Lammes 1670 till Lambes last in 1671, out of which, etc., etc.

* * * * *

Then on the 17 of Aprill 1672 I farder receaved from my father other 300
mks., which being joined with all the former makes up 1800 mks., which is
a full years annuity owing to me by my father, vid., from Lambes 1670 till
Lambes last in anno 1671: wheiron I retired all my partiall discharges and
gave him a full discharge of that year's annuity and of all preceeding
Lambes 1671.

Out of this last 300 mks.

Imprimis, payed to Margaret Neilsone in part of 2 years fie owing hir (it
being 23 lb. Scots by year)[661] at Whitsonday approching, 34 lb. So that
their yet rests to hir of thesse 2 years fie 12 lb. Scots. Item, payed to Bailie
Drummond for the cloath of my wife's black goune, 46 lb. Item, for
Auctores Linguæ Latinæ, vid., Warre, Isidorus, etc., 40 shiling. Item, given
to my wife, a dollar. Item, given hir to buy worsted stockings for me, 3

shillings. Given at a collation with Eleiston, 30 shilling. Item, for a quaire of paper, 9 pence. Given to my wife for the use of the house on the 27 of Aprill, 15 dollars.

All which depursements make 200 mks. of the last 300 received from my father.

[661] Women servants wages, nearly £2 sterling.

Item, for the Covenanters Plea, a shilling.
Given for a new quarter with the nurse
hir bairne, 3 dollars and a halfe.
For the Informations about the Firing of London, 6 pence.
At a collation, 30 pence.
For a quaire of paper, 8 pence.
Given to my wife, a dollar.
At a collation with Wm. Aickman, 26 shil.
Item, given to the nurse in part of hir fie, 4 dollars.
Item, for G. Burnet's letter to Jus populi and for
the Tragi comedy of Marciano, 9 pence.
For a book against the commonly received tennents
of witchcraft, 8 pence.
Given to my wife, tua dollars.
Given to my unckle Andrew in compleit payment
of his meall, 9 dollars.
Given for the Seasonable Case and the Survey of Naphthali, 50 pence.
Given for Milton's Traity anent Marriages, 2 shillings.
Item, upon win, 2 shillings.
Item, for a pair of shoes, 40 pence.

This is the accompt of the haill 300 mks. last received by me from my father on the 17 of Aprill 1672.

Then on the 1 of June 1672 I receaved from Thomas Robertsone 350 lb. Scots: 200 lb. of it was a years interest of my 5000 mks. he hes in his bond, vid., from Lambes 1670 till Lambes 1671: the other 150 lb. was my pension fra the toune of Edr for the year 1672. Given out of the 300 mks.

Imprimis, to my wife, 20 rix dollars.

Item, for Petryes History of the Church, 15 shills. sterl.

This is one 100 merks.[662]

Item, for Taylor's Cases of Conscience or Ductor, etc., 22 shillings.

Item, for Baker's Chronicle of England and Blunt's

Animadversions on it, 20 shillings.

Item, for Plinius 2dus his Epistles cum notis variorum, 6 shillings.

Item, for Cromwell's Proclamations and other Acts

of his Counsell from Septr. 1653 till Decr. 1654, 4 shillings.

For a pair of silk stockings, ij shills: 6 p.

Given to the nurse's husband, a dollar.

Given for Tyrannick love and the Impertinents, tuo comoedies, 40 pence.

Given for Reflections upon the Eloquence of this tyme, 18 pence.

Given for the Mystery of Iniquity unvailled by G.B., 9 pence.

Given for the accompt of the sea fight betuixt E.

and D. in 1665,[663] and are answer of our Commissioners

to England in 1647, 4 pence.

Given for ane answer to Salmasius Def. Regia,. 7 pence.

Item, for my dinner and other charges at Leith,

the race day, 3 shillings stg.

Given for Holland to be a halfe shirt, 5 shillings.

Given to my wife for the house, a dollar.

Given for the life of the Duck D'Esperton, 15 shillings.

This is another 100 mks.

[662] This makes the dollar about 4s. 9-1/2d.

[663] English and Dutch.

Item, given to my wife for the use of the house, 18 dollars.

Item, at Halbert Gledstans woman's marriage, a dollar.

Item, at the comoedy, halfe a dollar.

Item, that night in Rot. Meins for wine, halfe a dollar.

Item, in James Dean's the consecration day, 23 shillings.

Item, payed to Jonet's nurse and hir husband,[664]

For hir fie drink money, bounty and all, 24 dollars.

which absorbed all the 300 mks. received by me from Thomas
Robertsons as my annuel rent and put me to take 21 dollars
out of the money given me in pension.

Hence of the 150 lb. given me in pension I payed
to the said nurse as already is got doune, 21 dollars.

Item, given to my wife, 2 dollars.

Item, given hir for the use of the house on the 1 of August 21 dollars.

[664] Amount torn off.

This is 128 lb. of the 150 received by me in pension, so that there
remains with me 23 lb. of that money, out of which 23 lb.

Imprimis on the first of September 1672 given the said haill 23 lb. to my
wife for the use of the house.

Then on the 24 of August I had received from Thomas Robertsons the
other year's interest of my 5000 mks. in his hands (being 300 mks.) vid.,
from Lambes 1671 till Lambes immediately bypast in 1672.

Out of which imprimis:

Given to my wife the forsaide 1 of September for
the use of the house, 5 dollars.

[Item lent to Eleiston, 3 dollars.[665]]

repayed.

Item, at a collation with Pat. Waus, a dollar.

Item, on the 16 of September 1672, given to the midwife, 6 dollars.

Payed in annuity from Whitsonday 1671 till Whytsonday

1672 in 3 dollars and a halfe, 10 lb. and a groat.[666]

Item, at a collation, a mark.

For a letter from France, 14 pence.

To my father's man, a mark.

For paper, vid., a quaire, 8 pence.

Item, given to Grissell Ramsay for the use of my house, a dollar.

Item, given at Gosfoord, 20 shiling.

Item, to St Germain's nurse, a dollar.

Item, to Mr. James Fausyde's man, 30 shill.

Item, for win at Cokeny,

[665] Erased in MS.

[666] Apparently the last groat coined in Scotland was the copper
twelvepenny groat of Francis and Mary in 1558. James V. coined a
silver groat in 1525 worth 18d Scots. The groat here is an English
groat, which was worth 4d.

This is more then one 100 mks. of the 300.

Item, given to my wife on the 28 of Septr. 1672, for providing things to
the christning, 22 dollars. Item, to Doctor Stevinson's nurse, a dollar.

This is 200 mks. of the 300 received from T. Robertstone.

Item, for registration of my daughter's name to Mr.
Archbald Camron, a dollar.
Item, to Thomas Crawford, kirk treasurer because
not christned at sermon tyme, a dollar.
To the kirk bedell, 42 shilling.
For a letter from France, 14 pence.
On win in Rot. Meins, a mark.
For a coach hyre to Ja. Dean's house, a shilling.
For a pair of shoes, 3 shillings.
Given in with a letter to Paris, a shilling.
For a quaire of paper and for ink, 10 pence.
For a mutching of seek with Mr. William Beaton, 9 pence.
Item, on the 13 of October, given to my wife, 9 dollars and a mark.
Item, for win., 10 pence.
Item, given to Pitmedden's man, a mark.
Item, to William Broun's man when he payed me my pension, a dollar.
Item, on the 22 of October, given to my wife, 7 dollars.
Item, on incident charges, a dollar.

This is the 300 mks. of annuel rent received by me from Thomas
Robertson on the 24 of August last.

Item, on the 22 of October 1672, I received from William Broun, agent
for the borrows, 12 pounds sterling, being my pension as their assessor for
the year 1671, of which:

Imprimis, for a pair of shoes, 40 shiling.
Item, in charity to Ja. Hog, 29 pence.
Item, for 4 quare of paper, 30 pence.
Item, for a letter from France, 14 pence.
Item, at a collation in James Halyburton's, 50 shiling.

To Robert Boumaker, a dollar.

On coffee and other things, 16 pence.

Item, given to my wife, two dollars.

Item, given to my wife, dollars 21.

So then their remains of the said 12 lb. st. given me by William Broun only 22 dollars.

With the which 21 dollars given to my wife, she payed first to Rot. Mein, for confections, wine, etc., to the christening, 28 lb.

Item, to William Mitchell for baken meit at the same tyme, 18 lb.

Item, for sundrie other accompts, 15 lb.

Which is the haill 21 dollars.[667]

[667] This brings out the dollar at about 4s. 10d.

Item, of the 22 dollars remaining to me of the foresaid money given me in pension,

Imprimis, given to my wife for the use of the house on the 5 of November 1672, 14 dollars.

Item, at a collation or on win in Grissel Ramsay's house, 2 shillings.

Item, for seing the comedy called the Silent Woman, halfe a dollar.

Item, at a collation after it, 14 pence.

Item, on some other charges, 2 shillings.

Item, at a collation, 35 shillings.

Item, given on the 13 of Nov. to my wife for the use of the house, 6 dollars.

This is all the 12 lb. of pension.

Then at a consultation of the Toune of Edrs, I receaved 23 dollars, of which:

Imprimis, given to my wife the tyme aforsaid, 2 dollars.

Item, for sundry books, vid.:

Barronius Annals compendized, 2 tomes,. \

Summa conciliorum, Tyrius Maximus, Danaei Antiquitates, |

Benzonis Historia Americae, Demosthenis | 15 shillings

Olynthiaca, | and 6 pence.

Apulei opera omnia, Bucholzeri Chronologia, |

S.G. M'Keinzies Plaidings, /

Item, for myselfe and my wife at the comedy called

Love and Honor, a dollar.

Item, on win after I came home, 18 pence.

Item, given to my wife for the use of the house on

the 20 of November, 16 dollars.

Item, upon win at sundry times, 40 shiling.

This is the haill 23 dollars.

Item,[668] at sundrie consultations, vid., on of George Homes, 4 dollars; on of Henry Lindsay's for the Laird of Guthry, 4 dollars. Item, from James Gibsone, 2 dollars; on of Mr. P. Hamilton of Dalserfes, 4 dollars; from Mr. Alex. Seaton in name of my Lord Winton, 10 dollars. Item, at a consultation with the toune of Edr., 10 dollars, making in all 34 dolars, wheirof upon sundry occasions which do not now occurre, I spent 8 dollars long ago. So then their remains 26 dollars, out of which Imprimis:

[668] Example of counsel's fees.

Given or lent to Margaret Ramsay at the hilhead, 3 dollars.

Given in charity to on Anna Gordon upon hir testificats, a shilling.

Item, at Jo. Meggets relicts brithle, a dollar.

Item, at collations since, a dollar.

Item, upon other affairs, tuo dollars.

For seing the comedy called the Siege of Granada,

2d part, for my selfe, my wife, and Grissell

Ramsay, a dollar and a halfe.

Item, to the bassin at the church door, halfe a dollar.

Item, given to my wife, a dollar.

Given to G. Patersone, the wright, his woman or
nurse, a dollar.

Item, at a collation with Charl. Oliphant about Touch, 24 pence.

Item, at the comoedy, being the first part of Granada's

seige, for my selfe, my wife, Rachel, and

Grissell Ramsayes, 2 dollars.

Item, given to my wife for the use of the house, 8 dollars.

Item, for the acts of parlia., session 1672, etc., 30 shiling.

Item, for binding Hadington's Praitiques, 42 shilling.

For a quaire of paper, 6 pence.

Item, upon other uses, 40 shilling.

Item, to my wife, 2 dollars.

This is the accompt of the haill 26 dollars.

Item, receaved at 2 sundry consultations 6 dollars, out of which:

Imprimis, given to my wife, 2 dollars.

Item, on win at Aberdour, a mark.

Item, for sieng the house and yairds of Dunybirsell, a mark.

To G. Kirkcaldie's servante, a dollar.

To my wife, halfe a croun.

For the New art of wyng vanity against Mr. G.

Sinclar, 15 pence.

Item, to my wife for the use of the house on the
last of Decr. 1672, 8 dollars.

Which was out of other money I had besyde me, which 8 dollars with
what I gave formerly makes up 14 dollars and 3 shillings sterl. of the money
due to hir for the moneth of January 1673.

Item, again to my wife, a dollar and 4 merks.

Item, given hir, 2 merks.

As also given to hir, two dollars.

Item, given to hir again, a dollar.

Item, given hir, thrie dollars and 2 shillings.

Item, given hir, 2 dollars.

Then on the 19 of february 1673, I receaved from Rot. Govan, gairdner,
20 lb. in payment of his tack duety for all termes preceeding Martinmas
1672, out of which Imprimis:

Payed for my selfe and Mr. John Wood for seing
the comoedy called Sir Martin Mar-all, a dollar.

Item, to my wife, 3 dollars.

Given in with the trades bill, a dollar.

Item, at a collation, 16 pence.

Item, given to my wife, a dollar.

Item, waired upon sundrie things, 40 shil.

This is the accompt of the 20 lb.

Then upon the 5't day of March 1673 I receaved from my father 400
merks, the first monie I lifted furth of the annuity payable to me from

Lambes 1671 till Lambes 1672 last bypast: all preceeding Lambes 1671 being payed to me by my father as I have already marked, out of which:

Imprimis, given to my wife, 23 dollars.

to pay hir ale compt which was 9 dollars: hir baxter compt, 5 dollars, hir wobster, 2 dollars; hir coalman, 3 dollars. Hir nurse for the bairne Jonets quarter, 4 dollars.[669]

Item, given my wife for the use of the house during this moneth of March, 10 dollars.

Item, for a pair of gloves, halfe a dollar.

Item, at a collation and on other uses, 3 shilings.

Item, spent upon the race day, 3 shillings.

Item, at a collation, 26 shiling.

Item, sent to Calderwood's man's wedding, a dollar.

Item, at a collation in Heriot's yards, 18 pence.

Item, for seck with A. Todrigde, ij pence.

To the Lady Pitmedden's nurse, a dollar.

Item, in Ja. Haliburton's, tua merks.

Item, to a poor woman, a mark.

Item, for a quair of paper, 6 pence.

Item, to the barber, 6 pence.

Item, to the kirk basin, 6 pence.

Item, given to my wife, a dollar and a halfe.

Item, given hir, tua dollars and 2 mark.

Item, spent in Ja. Haliburton's, 2 marks.

Given to my wife, tua dollars.

Given to the barber, a 6 pence.

Given for a timber comb, 8 pence.

Given on other uses, 8 pence.

Item, in the taverne, 20 pence.

Item, to my wife,. 20 pence.

Item, on the 1 of April given to my wife for the
use of the house that moneth, 12 dollars.

Upon win at sundry tymes, 40 shilling.

Item, to the barber, 6 pence.

Upon other uses, 9 pence.

Item to the kirk deacon for a year's contribution 2 dollars.

[669] Wages of a nurse sixteen dollars, or about £4 yearly, double
the wages of an ordinary woman servant.

[Sidenote: [This money is repayed me.][670]]

[Item, payed out for my Lord Provost's use and by his vreits[670] a
hundred merks and 8 dollars to Marie Hamilton in pairt of payment of the
right she had upon Popill][671] which being joyned with the former makes
up exactly the haill 400 mks. receaved by me from my father on the 5't of
March last.

[Sidenote: [Which money is yet owing me.][671]]

[670] Writs.

[671] Erased in MS.

Then out of 4 dollars receaved in a consultation, I gave first
To the maid at Dudingstone, a mark.

To the kirk broad their, a mark.

Item, to Rot. Craw, a shilling.

Item, for confections at Bervick, 2 shillings.

Item, to Idington's man, a mark.

Item, at Pople for shoing the horse, item at Auldcambus
for brandy to the Dutchmen, a shilling.

Item, to a barber at Hadinton, 6 pence.

Item, given to my wife, 31 shiling.

Item, to the kirk broads, a shilling.

Item, given to my wife, 2 shillings.

Item, spent at Leith and else wheir, 50 shilling.

In the beginning of May 1673, my father and I having made our accompts he was debtor to me in the soume of 1400 merks as resting of 1800 mks. of my annuity from Lambes 1671 till Lambes 1672 (for on the 5 of March last I got from him 400 mks. of the 1800, hence rested only 1400 mks. of that years annuity) and I was found resting to him the soume of 40 pounds sterling or 720 merks[672] as tuo years maill of my dwelling-house[673] videlizet-from Witsonday 1671 (at which I entered to it) till Whitsonday nixt approaching 1673, which being deducted and retained by my father in his oun hand, of the 1400 mks. their remained 680 merks; wheirof I receaved at the said tyme from my father 380 merks in money, wheirupon their rested to me behind of my annuity preceeding Lambes 1672 just 300 mks: and I gave my father a discharge of the said 720 mks. of house maill, and of the said 380 mks. receaved by me in money, making togithir ij00 mks, which with the preceeding 400 mks. gotten by me on the 5 of March last makes up 1500 merks in all.

[672] This is normal. £1 equal to eighteen marks.

[673] His house rent was £20 a year.

Out of this 380 mks. receaved from my father on the 8 of May 1673,

Imprimis, given to my wife for paying hir meal and
hir children's quarters, etc., 6 dollars.

Item, for 2 quaire of paper, 18 pence.

Item, for my decreit and charging Rot. Johnston, 18 pence.

Item, on other uses, tua shillings.

Item, on win with Mr. Pat. Hamilton, a shilling.

Given to my wife on the 10 of May for the use of
the house, ij dollars.

Which making up 18 dollars and more compleit the 80 merks,
so their remains 300 mks. behind, out of which imprimis:

In Haliburton's with Sam. Cheisley, 40 shiling.

Item, to the kirk broad at Dudiston, 6 pence.

Item, to the barber, halfe a mark.

Item, in Masterton's with G. Gibson, 31 shilling.

Item, to Will. Sutherland, a mark.

For G. Burnet's reply and conferences, 3 shillings.

To Mr. Mathew Ramsay's nurse, a dollar.

For a pint of win their, 24 shilings.

For copieng a paper, 40 shiling.

Item, for mum and walnuts, 9 pence.

Item, at the kirk door, 6 pence.

Item, for win and sugar, 7 pence.

Given to my wife for furniture to my cloaths and
hir ounne goune, 5 dollars.

Item, in Haliburton's for mum, 22 shiling.

Item, upon seck, 9 shiling.

Item, in James Haliburton's, 18 pence.

Item, given to my wife, a dollar.

Item, at the kirk door and on other uses, 13 pence.

Item, to Jo. Steinsone, gairdner, 14 pence.

Item, to my wife to be given to hir washer and other uses, 2 dollars.

Item, to Lancelot Ker for copieng a book to me first, a dollar.

Item, given to my wife, 6 dollars.

Upon other use I remember not, 2 dolars.

This is on 100 mks.

Item, on coffee, the poor and other uses, 3 shillings.

Item, given to my wife to pay hir servants fies on
the 31 of May 1673, ij dollars.

[Lent to Mr. Jo. W.][674] repayed me [3 dollars.][674]

Item, upon mum, 12 pence.

Item, for the provests last act, to Jo. Trotter in his
Improbation, 30 shilling.

For a quaire of paper, 9 pence.

Given to my wife on the 4 of June, 1673, 5 dollars.

In James Haliburton's, 14 pence.

Payed for 2 pair of shoes, 6 shillings and a groat.

On a quaire of paper and other uses, a mark.

[674] Erased in MS.

This is near another 100 merks.

Item, given to my wife on the 9 day of June 1673, 6 dollars.

To Joseph the barber, a shilling.

Item, in Ja. Haliburton's, 18 pence.

Item, for a timber chair, 18 pence.

Item, on Leith on the race day, 3 shillings.

Item, at the kirk door, 6 pence.

For the post of a letter from my goodbrother, 14 pence.

Item, in Maistertons with young Idington when he went away, 32 shiling.

At dinner in Haliburton's, 20 pence.

Item, to the barber, 6 pence.

Item, upon other uses, 6 pence.

Item, to my father's woman who keips the child

George, given by myself and my wife, 2 dollars.

Item, given to my wife, a dollar.

Payed to the coallman, 10 lb.[675]

Item, upon paper and ink, 10 pence.

Item, in Ja. Haliburtons, 10 pence.

Item, given to my wife for buying a scarfe, hood, 10 pence.

fan, gloves, shoes, linnen for bands, etc., 7 dollars.

[675] This is one of the few instances in which an item of expenditure is stated in pounds.

This is another 100 merks. And which compleits the haill 380 merks receaved from my father on the 8 of may 1673.

Upon the 20 of June 1673 I receaved from William Binning a years salarie as tounes assessor which he was owing me for the year 1671 wheirin he was tresurer, being 150 lb. Scots, which is about 229 merks, out of which:

Imprimis, for a pair of net leather shoes, 3 shillings. Item, in Painston's with Mr. Todridge, 48 shill. Item, given to my wife partly to pay Margaret Neilsons fie and partly for other uses, 3 dollars. For a triple letter its post for Rome, 15 pence. Item, for seing the play called the Spanish Curate, halfe a dollar. Item, for cherries to Kate Chancellor their, halfe a dollar. Item, theirafter in Aikman's, 14 pence. Item, at the kirk door, halfe a mark. Item, spent when I was at Liberton kirk, 2 shillings. Item, for Thomas the Rymer's Prophecies, 4 pence. For the Lords answer in Fairlies case, a dollar. Item, given to my wife to compleit Margaret Neilsons fie during the haill tyme of hir service besides what was payed hir formerly, 6 dollars and a mark. Given to my wife for sundry uses, 10 dollars. To my sone John's nurse, 10 merks. Item, to buy paper etc. to him who copied me Mckeinzies Criminals, 29 shiling. Item, payed at sundrie tymes in the taverne, 30 pence. Item, for a dozen of silver spoons wying tuo onces the peice in all 24 onces at 5

shillings and 6 pence per once, making each spoon to be eleven shillings sterling,[676] 47 lb. for I gave them in exchange 6 old silver spoons, which fell short of 6 new ones in 10 shillings sterling upon the want of weight, and the accompt of the workmanship, so they stood me in all as I said before 47 pounds Scots. Item, payed to the ailmán for an accompt of aill furnished, 24 lb.

[676] Price of silver.

This makes near the 150 lb. received from Bailzie Binnie.

Item, in the end of June 1673 I received from William Broun, agent for the borrows, in their name and behalfe, my pension of 12 lb. sterling, being for the year preceeding Whitsunday 1673; out of which:

Imprimis, given to my man when he brought it to me, a dollar.

Item, to the barber, a 6 pence.

To the kirk broad, halfe a mark.

Item, on coffee, 3 pence.

Item, for Reusneri Symbola Imperatoria to the Janitor, 18 pence.

Item, to him for the particular carts[677] of Lothian, Fyffe, Orkney and Shetland, Murray, Cathanes, and Sutherland, at 10 p. the peice, 3 pound.

Item, at Pitmeddens woman's marriage, given by my selfe and my wife, 2 dollars and a shil.

Item, on halfe a dozen of acornie[678] spoons, 2 shillings.

Item, payed to Adam Scot for a mulct in being absent from a meiting of the advocats, 28 shiling.

Item, payed to Edward Gillespie for my seat maill[679] from Whitsunday 1672 to Whitsunday 1673, 12 lb.

Item, to the copier of Mckeinzies Criminalls, a mark.

Item, to the barber, halfe a mark.

To the kirk basin, halfe a mark.

Given to my wife, a mark.

Item, on brandee, 3 shilling.

Given to M'ris Mawer in charity, 29 shiling.

Item, payed in Pat Steills, a mark.

Item, on the 15 of July 1673 given to my wife, 10 rix dollars.

Upon win in Rot. Bell's house, 2 shillings.

Item, at the Presidents man's penny brithell, a dollar and a 6 pence.

In H. Gourlay's with D. Stevinson, 38 shiling.

[Given to my wife to buy me a pair of worsted
stockings, 4 shillings.][680]

Item to the barber, a 6 pence.

Item, Tom Gairdner for bringing cheerries from Abbotshall, a shiling.

To the kirk broad, 6 pence.

Item, for mounting my suit of cloaths with callico,
buttons, pockets, etc., 3 dollars.

Item, to the taylor for making them, a dollar.

Item, to Walter Cunyghame for keiping our gounes, a dollar.

Item, upon cherries, 6 pence.

Item, in Painstons, a shilling.

Item, to the copier of Mckeinzies Criminalls, 2 mark.

Item, for seing the Maidens tragaedy for my selfe
and Mr. William Ramsay,[681] a dollar.

At the kirk door, 6 pence.

To the barber, halfe a mark.

In Aickmans after the comedy, a mark.

In Ja. Haliburtons, a mark.

Item, at a collation also their, 28 shiling.

Item, at collations theirafter, 7 shillings st.

Upon the 1 of August 1673 given to my wife for
the use of the house that moneth, 18 dollars and a halfe.

[677] Price of maps.

[678] This word, distinctly written, looks at first like acomie, but is no doubt the word acornie (French, *acorné*, horned), which Jamieson defines as a substantive, meaning 'apparently a drinking vessel with ears or handles.' He quotes from *Depredations on the Clan Campbell*, p. 80: 'Item, a silver cup with silver acornie, and horn spoons and trenchers.' It seems more probable that the word in both passages is an adjective, applicable to spoons, and descriptive of the pattern.

[679] Seat rent in church.

[680] Erased in MS.

[681] Price of theatre.

Which makes up the full 12 lb. sterling received by me from the borrows.

The nixt money I brok was some given me in consultation this summer session, or in payment ather by the gairdner or Rot. Johnston, who had the loft,[682] Mr. Jo. Wood or other, making in all as I have every particular set doune in writing beside me about 280 merks and upwards, out of which Imprimis the said 1 of August given farder to my wife for the use of the house, 4 dolars.
Item, to Samuel Colvill for his Grand Impostor discovered, 3 dollars.
Item, to him who brought home my session goune, a mark.
To Rot. Meins man when he brought me the confections
the nixt day after the tounes cherry

feast to the exchequer, 15 pence.
For the new help to discourse, 20 pence.
To the barber, halfe a mark.
To the kirk basin, halfe a mark.
For 2 quaire of paper, 14 pence.
For 4 quaire of great paper for copieng the statutes
of the toune of Edr. theiron, 32 shilling.
To Grange[683] his man, a mark.
To the barber, 6 pence.
To the kirk bason, 6 pence.
To Will Sutherland, a mark.
Given to my wife, a shilling.
Upon win with Rot. Hamilton the clerk, a mark.
For Evelins Publick employment against Mckeinzies Solitude, 9 pence.
Spent in Arthur Somervells, a mark.
Spent in Ja. Haliburtons on night, 2 mark.
For carieng a book to Hamilton, 6 pence.
To the barber, 6 pence.
For a quaire of paper, 9 pence.
To the kirk basin, 6 pence.
For a double letter from my good-brother Sir Androw R., 28 shilings.
To my nurse when she came to sie me on the 20 of August 1673, a dollar.
Item, given to my man, a mark.
Item, upon sundry other uses not weill remembred
by me because small, 29 shil.
To the barber, 6 pence.
Upon seck with Mr. Innes my Lo. Lyons clerk for Granges armes, 13 pence.
Upon pears and plumes, 5 pence.
To the kirk bason, 6 pence.

Item, upon seck, 8 pence.

Item, in Mary Peirs's with Stow and John Joussie, 27 shiling.

[682] Parts of his house sublet.

[683] William Dick of Grange, son of William Dick, a younger son of Sir William Dick of Braid. His grand-daughter and heiress, Isobel Dick, was married to Sir Andrew Lauder, Fountainhall's grandson and successor.

[After this portion of the MS. only selections have been made.]

For the Gentleman's calling, a shilling.

For the Guide to Gentlewomen, 2 mark.

For the colledge of fools, 4 pence.

Item, for a letter from Sir Androw R. from Paris, 14 pence.

For Donning's Vindication of England against the Hollanders, 16 pence.

For le tombeau des controverses, 7 pence.

For 4 comoedies, viz. Love in a Nunnery, Marriage
a la mode, Epsom Wells, and Mcbeth's tragedie at
16 p. the peice, 5 shils. and a groat.

Upon morning drinks for sundry dayes, 6 pence.

To Joseph Chamberlayne for trimming my hair, 6 pence.

To Thomas Broun for Howell's Familiar letters, 5 shilings stg.

For every man his oun doctor, 2 shillings.

For the journall of the war with Holland in 1672, 2 shillings.

For the Mercury Gallant, 2 shillings.

For the Rehearsall transprosd, 18 pence.

For the Transproser rehears't, 18 pence.

On morning drinks and other uses, a mark.

For Stubs Non justification of the present war with Holland, 4 marks.

For the Present State of Holland, 34 shiling.

For halfe a mutskin of malaga with Pat. Wause, 6 pence.

To Samuell Borthwick for letting blood of my wife, 3 mark.

To Ja. Borthwick's other prentise that was with him, a mark.

For a mutskin of sack in Ja. Deans at the Cannogate foot, 14 pence.

I had receaved from Thomas Robertsons thesaurer to the good toune on the 21 of August 1673 first 12 lb. sterling for a years pension due to me by the toune from Lambes 1672 till Lambes 1673: as also I got at the same tyme ane years annuel rent of the principall soume of 5000 merks he is owing me by bond being from Lambes 1672 till Lambes last 1673, which was only 263 merks, because he retained 37 mks. and a halfe or 25 lb. Scots of the ordinar annuelrent of 6 per cent. for 3 quarters of a year, vid., from Mertinmas 1672 till Lambes last 1673, conforme to the act of parlia. made in 1672,[684] and first out of the said 12 lb. sterling (being 220/219 merks) of pension given:

[684] See note, p. 273.

Imprimis to Granges man when he brought over the apples and pears, a mark. Item, on the 10 of October 1673 to my wife to buy hir great chimley with over and above hir old one, which she gave them in, 8 dollars. In Guynes with Mr. Wood, Mr. C. Lumsdean, and others, 20 pence. For taking out the extract of Granges blazoning, first to the Lyon himselfe, [10 merks.] [685] this is repayed me. Then to Mr. Rot. Innes his clerk, [6 merks.][685] this also. To Wil. Sutherland when he went to Grange with his patent of his bearing, a mark. At dinner in Ja. Haliburtons with Mr. Gray the converted papist, 22 shiling. At Jo. Mitchells with Mr. Pollock the merchand and Mr. Gilbert, 52 shiling. To J. Mitchell's man who lighted me home, 3 pence. Given to Wm Sim for copieng to me the compend of the Statutes of

Edenbrugh being. 6 rix dollars. just 5 quaire of paper, which 6 rix dollars makes just 3 pence the sheit; its only a shilling lesse.

[685] Erased in MS.

Item for a mutsking of sack with Mr. Garshoires, a shilling.
In Mr. Rot. Lauder's when we saw his wife, a dollar.
To my man Androw Bell to buy a bible and a knife
with to himselfe, a rix dolar.
On the 10 of Nov'r, the day the comissioner came
in, spent with Mr. Thomas Patersone, 52 shiling.
On the ij of Nov'r given to my wife more then hir
monethes silver to perfit the price of hir black
fringes to hir goune, which stood hir 36 lb., tua dollars.
For Temple's Observations, 35 shiling.
To the parson of Dyserts woman when she brought
over the ham, a mark.
At Mr. David Dinmuires woman's brithell, a dollar and a groat.
For Quean Margaret of France hir Memorialls, 16 pence.
For a black muff to my wife, ij shillings.
For buttons to my shag coat, 29 shiling.
For the kings letter to the parl. of Scotland, 2 pence.
Casten in at my servant John Nasmith's wedding
on the 5 of Dec'r, 5 rix dolars.
Item, to the music, a mark.
Given to my wife to cast in, 3 rix dolars.
Given in charity to on Christian Cranston, a dollar.
Item, given to my wife, a dollar.
Item, on the 8 of Dec'r given hir, 5 dollars.

Item, in this money their was a dollar of ill money.

The nixt money I brok upon was 52 dollars (wheirof 31 of them ware legs[686]), which I had receaved at sundrie tymes from severall parties in consultation money, conforme to a particular accompt of their receipt besyde me.

[686] See Introduction, Money.

Out of which payed Imprimis to Mr. Ja. Hendersone for Ja. Sinclar of Roslin in the begining of Dec'r 1673 to compleit the payment of the bill drawn by Sir Androw Ramsay upon me of 789 lb. 4 shillings Scots money conforme to Roslin's receipt of the haill bill. 185 mks. in 42 legged dollars, [687] so that their remains behind of that consultation money receaved by me before December 1673 about 9 rix dollars and some more, out of which For Loydes Warning to a careles world from T. Broun, 15 pence. For seing Marriage a la mode acted, for my selfe and Mr. J. Wood, a leg dollar. For M.A. Antoninus his Meditations on himselfe, 30 pence.

The nixt money I made use of was 32 lb. Scots in ij rix dollars[688] receaved by me from George Patersone the wright for his house maill before Whitsonday last 1673, the other aught lb. of the 40 lb. being allowed to him in ane accompt of work.

[687] This works out at about 4s. 10 3/4 d. for each leg dollar.

[688] Dollar 58 2/11d.

To on Lillas Darling in charity, 12 pence.

Given to my wife on the 3 of Januar 1674, 6 merks.

Payed in Ja. Haliburtons with Mr. Gabriell Semple, 21 shiling.

Item, on the 5 of January 1674 to give in hansell

being hansell Monday, 21 marks.

Item, with Mr. Robert Lauder, clerk at Dumfries, 25 shiling.

To Mr. Peirsone for writing the Observes out of the
old books of parl. secret councill and sederunt, 4 merks.

To criple Robin, a 6 pence.

To him who copied Mckeinzies Criminalls 1 tome in
compleat payment to him, 2 merks.

Item, for a book anent the education of young
gentlemen, 33 shiling.

In Sandy Bryson's, 9 pence.

To the contribution for the prisoners amongs the
Turks, a mark.

To Will Sutherland, 7 pence.

Given to Walter Cunyghame for keiping our gounes, a dollar.

Given to my wife on the 23 of february 1674, the 50 mk.
in ij dollars and a halfe.

For Lucas speech, the votes and adresses of the
house of commons and the relation of the engagements
of the fleets in 1673, 14 pence.

To Thomas Broun for Parkers Reproof to the
Rehearsall transp., 6 shillings stg.

To him for the Rehearsall transposed. 2d part, 28 shilling.

On mum with Mr. R. Forrest, 21 pence.

Upon sweities, 4 pence.

On win at Rot. Gilbert's bairnes christning, 24 pence.

For Fergusone against Parker about Grace and
morall vertue, 32 shilings.

For the Art of complaisance, 16 shil.

For the Articles of Peace, 2 shil.

Item, with Mr. Rot. Wemyss, 12 shiling.

To the Kirk Deacon for a yeirs contribution in
March 1674, 2 rix dollars.

Spent with Mr. William Ramsay, 5 pence.

For the Proclamations against duells, and that
about the E. of Loudon's annuity, and upon
sundrie other uses, a mark.

With Muire of Park, 9 pence.

Given to hir, my wife, to give to Arthur Temple ane
English croun which belonged to Mr. John Wood.

To my wife to buy a petticoat of cesunt[689] taffety, 4 dollars.

For Gudelinus and Zoesius deffendis, 29 pence.

Upon win with Mr. Mathew Ramsay, a mark.

Given to my wife on the 13 of April 1674, 13 Ib. 10 sh.

[689] Query, 'seasoned.'

To my wife to help to buy hir cow, for which she gave 20 Ib. Scots,[690]
and which 13 Ib. 10s. Scots just compleited and exhausted the 450, 13 Ib.
10 shil. merks receaved by me from my father on the 20 of februar last
1674. As for the other 6 Ib. 10 shillings that rested to perfit the price of the
cow, I gave that out of the other money I had besyde me.

[690] Price of a cow.

A dollar and a halfe that was owing me by Rot. Craw, and was repayed
by him to me, was given to my wife to buy lynning for my new black cloath
breatches.

Payed for 4 limons, 16 pence.

For the pamphlet called the Spirit of the Hat, 6 pence.

In drinkmoney for making my new cloaths, a mark.

Given to my wife, tua dollars.

Given to hir to pay for linnen bed sheits bought by hir, a dollar.

Given in the contribution anent the burnt houses, a dollar.
For the book of rates of the custome house of Rome, 8 pence.

The next money I made use of was 6 dollars given me in consultation by the tounes Threasurer of Edr., on the 23 of Aprill 1674, when we consulted with my Lord Advocat about the rebuilding of burnt and ruinous houses with stone. Out of which For a discourse by L'Estrange upon the Fischery, 6 pence. Of boull maill, 6 pence. For my dinner on sunday with Mr. Wm. Patersone in Guines, 2 shillings.

Au commencement du mois de May j'avois cent marks d'argent en vingt et trois thalers Imperiaux deposez chez moi par Monsieur Le Bois quand il alloit hors cette ville-cy, a fin les lui rendre a son retour [je les rendu.][691]
De cette monnoye je pris premierement.

[691] Interlined.

For a sword belt, 22 pence.
To Jo. Nasmith for morning drinks, etc., 15 pence.
Of boull maill, 6 pence.
In W. Cunyghames at the Linktoun of Abbotshall, a groat.
To my Lord Abbotshall, and given by him to Tom Gairdner, 6 pence.
For a quart of win in Mr. George Ogilbies of Kirkcaldy, 40 pence.
To David Colyear, a groat.[692]
With Mr. Lundy, Minister at Dysert, and others, 33 shill.
To the beggers, 3 pence.
To Tom Gairdner, a groat.
To George Gairdner, 6 pence.
For 2 oranges, a groat.
For Lentuli Dubia Decisa, a dollar.
To the beggers at sundry tymes, 6 pence.
With Androw Young, halfe a mark.

With Rot. Campbell, apothecar., 6 pence.
To Hary Wood, Mr. W.R.'s man, 20 pence.
With Mr. Wm. Ramsay in James Haliburtons, 12 pence.
For my part of the dinner on Sunday at the West Kirk, 16 pence.
For a horne comb, 6 pence.
For Andrews morning drinks 19 dayes and some other things, 25 pence.
To Comisar Aikenhead's masons, a shilling.

[692] See note, p. 255.

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[693] In margin: Cette monnoye lui est payé comment il apparostro cy dessous.

Then on the 13 of June 1674 my father and I compted, and we found I had receaved all my annuities due præceeding Martinmas 1672, and that the last money I got was 450 merks on the 20 of february last 1674, and which compleited that quarter of my annuity which ran from Lambes 1672 till the Martinmas theirafter; then we considered that I was owing him ane years rent and maill of my house, viz. 20 pounds sterling from Whitsonday 1673 till Whitsonday last past in 1674 (all the former years maill being payed to him, as is marked supra). Then we proposed the deduction of on of 6 of the annuel rents imposed by the act of parliament made in 1672[694] for the space of a year, viz., from Mertinmas 1672 till Mertinmas 1673, which tuo particulars of the maill and the retention being deducted, viz., 20 lb. sterling for a years maill being 240 lb. Scots or 360 merks being allowed my father and 150 merks being retained by him as the deduction due off 900 merks, which is the halfe years annuity from Mertinmas 1672 till Whitsonday 1673, which tuo particulars makes 510 merks of my 900 merks; wheirupon their rested to be given me of the said 900 merks 390 merks, which soume I only receaved the forsaid 13 day of June in money and gave my father a discharge of the haill 900 merks due to me by him as half a years annuity from Mertinmas 1672 till Whitsonday 1673, bearing alwayes that deduction was given him conforme to the act 1672, and in regard he seimed unwilling to give me any discharge in writing of my house maill to be in my custody, he shewed me in his minute book of receipt that he had marked he had such a day got payed him by me 240 lb. Scots as a year maill of my house fra Whitsonday 1673 till Whitsonday 1674, as also in another place wheir he hes written down the receipt from me of 480 lb. Scots as being 2 years maill

of my house, viz. from Whitsonday 1671, which was my entry, till Whitsonday 1673; and which memorandum is all I have for a discharge to show my payment: only he affirmed there was no hazard in regard he was to name me on of his executors with the rest of my brothers. But in regard these 3 years I had possessed I had never given him in any account of my disbursements on the said house, in glass windows, broads or others, he ordered me to give him in the account thereof that he might pay it me.

[694] In granting a supply of 864,000 lbs. Scots to Charles II., assessed on the land rent according to the valuations, the Parliament, 'considering it just that personall estates of money should bear some proportion of the burden,' enacted 'that every debtor owing money in the kingdom' should for one year, in payment of their annual-rents (interest) for that year 'have reduction in their own hands of one sixth part thereof,' and pay only the other five parts. The legal rate of interest was six per cent.

To my wife, a dollar. Given also to her on the 18 of June 1674 to buy a suite of french striped hangings with, which stood 10 pounds sterling in part of payment of the same, 6 lb. sterling, 6 lb. sterl. or 110 mks. At the well beside Comiston, 24 pence. For my horse hire to Bervick, 1j shill. ster. To Mr. Duncan Forbes for doubling[695] my Lord Hadington's reduction of Athelstanford, half a dollar. Given to Comisar Monro for reading the bill about the minister of Athelstanford's persuit, a dollar. For the post of a letter from S.A.R. of Waghington, 10 pence. To Ja. Brown's lad for brushing my hat, 40 pennies. Given in with Knocks bill to the Lo.s of Thesaurie for seeing Skelmurlyes signator, a dollar. To the woman who kept my niece Mary Campbell, a dollar. For raising and signing the summons of reduction in my Lord Abotshall's name, against the minister of Athelstanford, a dollar and a half. Spent with James Carnegie, 21 pence. With Mr. Wm. Morray and others, 20 pence. For black mourning gloves, 28

pence. Given to my wife, a dollar. Given hir to pay the harne[696] with which she lined hir hangings and for threid and cords to them, 6 rix dollars. With Walter Pringle, a mark. For a triple letter from S.A.R., 15 pence. With Ja. Inglis and others, 4 pence. With Mr. John Eleis, 16 pence.

[695] Copying.

[696] Coarse cloth.

Item, on the 10 of Julie 1674, payé a Monsieur Le Bois treize thalers Imperiales in compleit payment de ces cent marks, this being joyned to the dix thalers payé à lui in the beginning of June last, 13 dollars.

Given to David Coilzear when he went out to the Rendevous of the Eist Lothian militia regiment to defray his charge their, halfe a croun.

At a collation with Sir David Falconer when I informed him anent the reduction against the minister of Athelstaneford, 4 lb. 4 shilling.

Given to my wife to pay for 40 load of coalls at 10 p. the load, and for other uses, 8 dollars.

For Ziegleri dissertationes de læsione ultra dimid. de jure clavium, etc., 32 pence.

To Comisar Monro for calling and marking the reduction against the minister of Athelstainfurd on the 22 of July 1674, a dollar.

Item, the same day given to him for reading a bill desiring our reduction might be considered and tane in presently and to stop the said minister's report in the menu tyme, a dollar.

Item, on the 23 of July 1674, given by my wife and my selfe, at Mary Scot, my fathers serving woman,

hir pennie wedding, 2 dollars.
Item, to the fiddlers, 6 pence.

The next money I spent was some 7 dollars given me in 3 sundrie consultations as is marked besyde me in a paper apart.

With Merchinston at Dairymilnes, 2 shilings.
For the Empresse of Morocco, 18 pence.
For Shuttles[697] Observations upon the said farce revised
against Dryden, 18 pence.
At Arthur Somervells, 10 pence.
Le 29 de Juillet 1674, je empruntée de Monsieur
le Bois cent marques en vingt et trois thalers
Imperiaux de quoy premierement.

[697] Settle's. See p. 288.

Donnéé to William Stevinson, merchand, for compleiting
to him the price of my French hangings
which my wife bought from him at 10 lb. sterling,
and whei of he receaved 6 lb. st. before on the
18 of June, as is marked. I say payed to him, 4 lb. sterling.
For my dinner on a sunday, 15 pence.
Spent at the fountaine, 20 pence.
Item, spent at Tom Hayes and elsewheir by my selfe, 16 pence.
On the 15 of August given to my wife to pay of hir
women Jonet Nicolsones fee when she went
away from hir, 6 dollars.
For Sir David Lindsayes poems, 7 pence.
For the Baron D'Isola his Buckler of state and justice, 28 pence.
For the Interest of the United Provinces being a
defence of the Zeelander choice rather to be

under England then France, 20 pence.

Item, given in of the change of that 300 lb. sent
me in from Patrick Lesly of my Lord Abbotshalls
rents, 2 pence.

To the penny wedding at Gogar, 29 pence.

On 3 botles of botle ale, 9 pence.

On the 31 of August 1674 given to Joan Chalmers
the midwife when my wife was brought to bed
of hir 4 child and 2'd sone, 6 rix dollars.

To David Coilzear for to put tuo shoes on the horse, a mark.

5 Septembre 1674 donnée et payé à Henry le Bois
an nom et sur le epistre de Monsieur Jean Du
Bois, son frere dix thalers Imperiaux et dequoy
ledit Hendry on'a donné une quitance, 10 rix dollars.

On the 17 of September 1674 payed to Mr. Archbald
Camron for registrating my sone Androws
name with some of the witnesses, a dollar.

On the 18 of Septr. payed for a new razor, 2 shillings.

Payed to Thomas Wilsone kirk thresurer because
my sone was not baptised the tyme of sermon, a rix dollar.

Payed for a collation I gave to S.G. Lockhart,
W. Murray, W. Pringle, etc., 8 lb. ij shill. Scots.

Item, payed to Edward Gilespie for a years maill
of my seat in the church, viz., from Whitsonday
1673 till Whitsonday last, and got his discharge
of it, 12 lb. Scots.

The nixt money I made use of was 287 merks I receaved on the 28 of
September 1674 from Thomas Robertstone, being a years annuel rent of the
principall summe of 5000 mks. owing by the said Thomas to me by bond,
viz., from Lambes 1673 till Lambes last 1674 (which interest is indeed at 6

per cent. 300 merks), but in regard by the act of parliament 1672 their was deduction of on of 6 to be allowed for the quarter from Lambes to Martinmas 1673, theirfor 13 merks was abated of the full annuel rent upon the said accompt, and I receaved only the forsaid 287 mks. and discharged him of a years annuel rent including the deduction *per expressum*.

Item, on the 29 of September 1674, payed to John Cheisley of Dalry, younger, in presence of his brother James 29 lb. Scots in 10 rix dollars for the maill of the 2 chambers I possest from him in Brunsfield,[698] by the space of 4 moneths in the last summer, 29 lb. Scots in 10 rix dollars.

Item, spent that 6 of October 1674, that I quite Edenbrugh on the kings proclamation of banishment against the debarred advocats, 29 pence.

[698] Summer quarters.

In October 1674 my wife counted with George Patersone, wright, who had possest the low rounge[699] of our house from Whitsonday 1673 till Whitsonday last 1674, and thairupon was owing me 40 lb. Scots of maill, and receaved in from him onlie 24 lb. Scots, the other 16 lb. being allowed him for a compt of work furnished by him to us, and wheiron shee gave him up my discharge to him of the wholle 40 lb. as a years maill of the said house. This 24 lb. Scots was waired out and employed upon my house.

[699] Part of house sublet at 40 l. Scots.

On the 20 of January 1675 I receaved from my father 400 merks Scots, which compleited all my annuities due by him to me by vertue of my contract of marriage preceeding Candlemas 1674, and I gave him a discharge accordingly: for on the 13 of June last 1674 I discharged all

preceiding Whitsonday 1673 (having only received from Mertinmas 1672 till Whitsonday 1673 for that halfe years annuitie instead of 900 merks only 750 merks because of the retention of on per cent.[700] by the act of parliament) and receaved then 100 mks. in part of payment of the halfe years annuity betuen Whitsonday and Martinmas 1673.

[700] One per cent., i.e. on the capital sum of 30,000 merks for which his father had given him a bond, bearing interest at the legal rate of 6 per cent., equal to 1800 merks per annum. See Note, p. 273.

On a butridge[701] to my hat, etc., 4 pence.

[701] A form of spelling buttress. See Murray's *New English Dictionary*, s.v. Compare Jamieson, s. vv. Rig and Butt. It may mean the lace or band tying up the fold of a cocked hat.

Item, on the 25 of Januar 1675 when I returned back to Hadinton[702] I took with me 13 dollars, which keip't me till the 8 of Februar theirafter. The particulars whow I spent and gave out the same is in a compt apart beside me. On the forsaid 25 day of Januar I left behind with my wife the remanent of the 400 merks I had receaved from my father, taking of the foresaid 20 dollars, viz., 300 merks and 3 rix dollars. Of which money on the 8 of february I find she hath debursed first a hundred merks, item, fyve dollars more, so their is now only resting of the money I left with hir about 190 merks.

[702] He had retired to Haddington when 'debarred.'

Out of the forsaid 100 merks and 5 dollars, I find shee had payed 38 lb. Scots to Patrick Ramsay for 5 moneth and a halfes ale, furnished by him.

Item, on accounts in the creams[703] to John Nasmith, to the Baxters for win, etc., above 20 lb. Scots. And the rest is given out upon other necessar uses.

[703] Krames, the shops round St. Giles Church.

For S.G. Mck's[704] Observations on the act of p. 1621,
anent Bankrupts, 16 pence.

For binding the book of Cragie's collections and
some other papers, 4 shills. stg.

For fourbishing my sword and giving it a new
Scabbord, 4 shils. st.

For a candebec hat, 8 shils. st.

For 6 quarters of ribban to it, 9 pence.

On oranges, 6 pence.

For the share of my dinner in Leith, the race day, a dollar.

Item, for my part of the supper in Caddells when
the advocats all met together, 4 lb. Scots.

[704] Sir George Mackenzie.

On the 16 of March 1675 I receaved from James Sutherland, thresaurer of the good toune of Ed'r. 12 lb. sterling as a years pension or salary owing to me by the good toune as their assessor, from Lambes 1673 till Lambes last 1674, whei of and all years preceiding I gave him a discharge.

For the articles of war, 3 pence.

For halfe a pound of sweit powder, 2 shils, sterl.

On the 20 of March 1675 I receaved from Andrew Young in name of my Lord Abbotshall, 600 mks. Scots (their was 4 rix dollars of it ill money which my Lord took in and promised to give me other 4 instead of them)

wheirupon I discharged the said A.Y. and Lord Abbotshall of the said summe of 600 merks in payment and satisfaction to me in the first place of 89 lb. 17s. and 2 p. owing to me by the said L. Abotshall, as being payed out by me at his direction and order in Aprill 1673 (sie it marked their) to Mary Hamilton for 1200 merks, and hir papers being in Mr. John Sinclar minister at Ormiston his hands, he alledged their was 89 lb. 17s. and 2 p. owing him and would not give them up till he ware payed, wheirupon I at my Lord A's and hir order gave his sone Mr. James 100 merks and 8 rix dollars and retired them: item, for the remanent of the 600 mks. I accepted it in satisfaction and partiall payment and contentation to me of the bygane annuelrents (in so far as it would extend) of the principall summe of 5000 mks, yet resting by the said Lord Abbots: of 10,000 mks. of tocher contained in my contract of marriage and which annuelrents ware all resting owing to me from the terme of Lambes 1670, so that it will in compting pay me a yeir and a halfes annuelrent, viz., from the said Lambes 1670 till Candlemas 1672, and about 10 lb. Scots more in part of payment of the termes annuelrent from Candlemas to Lambes 1672: so that I may reckon that their is more then 3 years annuelrent of that principall summe of 5000 merks owing me, compting to the midle of this present moneth of March.

With Mr. W'm. Murray and Blackbarrony, 16 pence.

For my fraught to Bruntiland, 8 pence.

For my supper and breakfast at James Angus's their, 37 shill.

For 2 horses from thence to the Linkton, 16 pence.

To Jo. Nasmith to carry him over from Fyffe to Ed'r with, a mark.

To William Cunyghame's wife the tyme I staid at his house, 5 shills. st.

Item, for 8 elles of drogat at 16 pence per elle, 2 dollars.

In Jo. Blacks with Mr. A. M'cGill and Alexander Gay, 20 pence.

Item, on the 24 or 25 of March last spent by my

wife over and above the 48 lb. Scots, 8 rix dollars.

I left with hir to pay out all hir compts she or I ware owing, and to bring over the plenishing, so that we ware owing nothing to any person preceeding that tyme.

All which expenses being cast up they just make up and amount to 300 merks and 19 rix dollars, to which adde the 4 rix dollars of the wholle 600 mks. that ware not payed, their is spent 400 mks., and their rests behind 200 mks.

Out of which Imprimis:

On the 4 of May 1674 when I went to Ed'r., and stayed their till the 14 of May, during all that tyme spent according to the accompt of it particularly set doune in another paper besyde me, 10 dollars. Item, payed for a cow, [705] 34 lb. Scots. Donn   a ma femme et emprunt   d'elle de Rot. Craw, a dollar. Item, spent with Mr. Alex'r. McGil and Captain Crawford in Kirkcaldy, 3 lb. ij shil. Scots. Item, payed to the woman Mary[2] for hir years fie when she went away on the 24 of May 1675, 8 rix dollars. For seing the lionness and other beasts at Kirkcaldy, 12 pence. Donn   a ma femme, 29 pence. Item, given hir more to pay the other woman's fee,[706] 3 dollars and a halfe.

[705] Price of a cow.

[706] Apparently his maidservants.

Receaved from John Broun, elder, wool seller, 40 lb. Scots on the 12 of June 1675, and that for a years maill of the low chamber and sellar possest by him from me, viz., from Witsonday 1674 till Whitsonday last 1675, and wheirof I gave him a discharge.

For 2 proclamations, 3 pence. To Henry Mensen for cutting my hair, 30 shil. For a quarter's payment with my man[707] begun on the 22 of June 1675 to the Master and doctor of Kirkcaldy scooll for learning him to wryte better, to read Latin, etc., 32 shilings Scots. On the 19 of July 1675 given a la servante Joannette Smith qui alloit avecque mon fils 100 merks ainez a Londres par mer pour leur d'espences and 9 shill. du voiage, six livres sterling, ings sterling. Donné a la dite servante pour ellememe, a dollar. To Mr. Tennent, skipper of the ship pour leur fraughts,[708] 35 shillings sterling. Spent at Kirkcaldy on Rhenish with Rot. Fothringhame that day, 44 shilings. Payed for fraught from Kingborne, 8 pence. Spent with Sir Ja. Stainfeild and Sam. Moncreiff, 39 pence. For the 3'd tome of Alciats Commentar on the Digests, 48 pence. For the Gouvernement of the tongue, 12 pence. For botle aill, 4 pence. For a solen goose, 29 pence. Upon a mutskin of seck with Raploch and Camnetham, 10 pence. For 4 fraughts from Leith to Kingb., 16 pence.

[707] His clerk.

[708] Cost of passage to London.

In the beginning of July 1675, their being a convention of the burrows to meet at Glasgow, and I finding their was tuo years pension then owing by them to me as their assessor, I gave W'm. Broun their agent alongs with him a discharge of the said 2 years pension under trust and upon this consideration that if neid ware he might make use of it for facilitating the passing of his accompts as to that article. In the said meiting and convention they ordered and warranded him to pay all the arrears of my said pension. At his returne back I still suffered the said discharge to remaine in his custody, and in regard I was owing to Thomas Broun, stationer, 84 lb. Scots or 7 lb. sterling for the price and binding of *Prosperi Farinacij Jurisconsulti opera omnia*, 9 volumes in folio which I had bought from him, ... I

assigned the said Thomas Broun over with his oun consent to William Broun for the said summe of 7 lb. sterling, wheiron Thomas B. gave me on the 23 of July a discharge of the price of the said books, and William B. became oblidge to pay him the said summe, and he was to be allowed it in the foirend of the accompt betuixt him and me.

Upon sweities to be tane to my brother George at Idington, a mark.
For a horse hyre from Hadington to Idington, a dollar.
To obtaine the copie of the king's letter reponing
S.A.R.[709] to the Secret Councell, 6 pence.

[709] Sir A. Ramsay.

Then on the ij of August 1675 I was repayed the 2 rix dollars I had given out in the end of July last pour Monsieur Le Bois presse[710] which I gave a ma femme.

[710] Query for pressé.

Item, on the 13 of August 1675 Monsieur de la Cloche m'a repayé les douze thalers Imperiaux qu'il a empruntée de moy (as vous verrez ci devant on the 28 of fevrier 1674) and I gave them to my wife.

The rest of my accompts of depursements given out by me since the 14 of
August 1675 are to be found in another book like unto this.

APPENDIX II

A CATALOGUE OF MY BOOKS I BOUGHT SINCE 1667

Since my returne to Scotland from travelling, which was on the 9 of November 1667, I have got or bought the following books. As for the books I

had ather before my parture or which I acquired and bought in forraine parts, I have a full and perfit Catalogue of them in my litle black-skinned book, and now I have two large Catalogues of them all.

Imprimis,

Brossoei Remissiones ad Corpus Glossatum,
from Rot Broun, 10 shilings sterl.

Vinnius ad Peckium de re nautica, 4 shil's st.

Loccenius de Jure maritimo, 2 shi's st.

Corpus Juris Civ. van Leuven, in 2 folios gifted
me by Bailzie Calderwood.

Mathematicall Magick, given me by my unckle Andrew Lauder.

S.G. M'ckeinzies Solitude præferred, etc., given me by my father.

4 volumina Mascardi de probationibus, bound in
2 folios, from Thomas Broune, ij dollars.

Montholon's plaidoiz, 18 pence.

Received from Mr. James Ainsley,

De in Consilia and Jason in Codicem, for which I gave him in
exchange,

Melchioris Cani Loci Theologici,

Gaspar Pencerus de Divinationibus,

Elliot's method of the French tongue,

Manasseh ben Israel de termino vitæ,

Bayri enchiridion,
 Densingius de Peste,
 Bodechevi poemata, and
 Jacobi Hantini angelus custos, in all 8 old books in 8'ro and 12.
 Guillim's Herauldry illuminat, got from Sir A. Ramsay, my brother
 in law. Receaved also from him,
 Bacon upon the union of Scotland and England.
 Receaved in Alex'r Hamilton's in the Linkton of Abotshall,
 Henricii Institutiones Medicæ.
 Heylin's Cosmographie, best edition, 22 shil's st. and 6 pence.
 For a great Bible of Andrew Hart's edition, 16 shil. stg. & 4 pence.
 For Broun's Vulgar errors, 6 shils. 6 pence.
 Present state of England, 1 vol., 30 pence.
 Morall state of England, 24 pence.
 Acts of the Generall Assembly, 1643, received from Bailzie Calderwood.
 The reschinded acts of parliament, 1646, 1647, 1648, with other papers
 theirto relating receaved from Collonell Ramsay, which with the rest
 of thesse acts which I had beside me, made up a compleit volume of the
 haill reschinded parliaments from 1640 till 1650 (except only the acts
 of the parl. held in June 1640, which I have since that tyme purchast
 a part and the acts of the parliament held in 1650 which I can no
 wheir come by), all which reschinded acts together with thesse of the
 parliament 1633, which are not reschinded, I caused bind together in
 on book and payed for the binding 30 pence.
 The Acts of the Generall Assembly, 1638, 24 pence.
 Papon's arrests of parliament, a dollar.
 Corpus Glossatum Canonicum, 2 tomes in folio, of the
 [I have now got the 3d as is marked infra, so that
 I have it now entire[711]] 3, wheirof it consists,

for which I gave 3 dollars.

and Henricij Institutiones Medicinæ, to on Mr. Chrystie.

[711] Interlined.

Receaved from Mr. Alex'r Seaton of Pitmedden,
Criminalia Angeli de Aretino,
Albertus de Gandino and Hippolytus de Marsiliis super eadem
materia, all in on volume in the gothick letter;
for which I gave him in exchange Alstedii encyclopaedia.
Present state of England, 2d vol., 3 sh's st.
Midleton and Rothesses acts of parliament in 1661, 1662
and 1663 received from Mr. C. Wardlaw.
Knox's Cronicle of Scotland, 8 shils. st.
Navarri manuale confessoriorum, 26 pence.
A collection of the English laws, a dollar.
Polyd. Virgilij Historia Angliæ, a dollar.
Zosimus, Procopius, Agathias, etc., their Histories
in on volume, a dollar.

Wimesii theses and other miscellanies in with it, a shilling.
Thir 5 or six last books I bought from J. Nicoll,
Janitor of the Colledge, in May 1671.

Receaved from the provest S.A. Ramsay,
S. Colvill's mock poem of the whigs, 1 volume, a Reflection on
Monsieur Arnauld's book against Claud.
The English act of parliament laying are imposition upon all law suits.
Patavius his accompt of tymes.
See infra I got Ramsey's astrologie.
3 Tomes in 8'ro of Bellarmine.
Controversies in religion, from the Janitor, a dollar.

The cause of the contempt of the Clergie and
 ane answer to it, 18 pence.
 S.G. Mckeinzie's morall gallantry, 2 shils.
 Acts of parliament in June 1649, 34 pence.
 Doolittle on the Lord's supper, a mark.
 St. Augustines confessions, 3 shils. st.
 His de Civitate Dei, 4 shils. st.
 Plinii panegyricus in Trajanum, a mark.
 The act about the taxation imposed in the convention 1665, 4 pence.
 The Clergie's vindication from Ignorance to
 Poverty. Item, some Observations on the
 Answer made to the Contempt of the Clergie,
 bought on the 1 of febr. 1672, both stood me, 30 pence.
 A Collection of English proverbs, 2 mark.
 Indian Emperor, a comedy, 20 pence.
 Cromwell's acts of parliament in 1656, 3 shils. st.
 Dryden's Annus Mirabilis, 8 pence.
 Auctores linguæ Latinæ, 40 pence.
 Warro, Festus, Marcellus, Isidorus, etc.
 Covenanters plea against absolvers, a shilling.
 The Informations anent the firing of London in 1666, 6 pence.
 Gilbert Burnet's letter to the author of Jus Populi, 3 pence.
 Marciano, a comoedy, 6 pence.
 A Treatise against the common received tenents
 anent Witchcraft, 8 pence.
 For the Seasonable case and a survey of Naphtali, 4 shils. st.
 For Milton's traittee anent Marriages and their
 nullities, 20 pence.
 For Baker's Cronicle of England, last edition,
 and Blunt's animadversions theiron,

both stood me, 21 shillings sterling.
 Taylor's cases of Conscience, or
 Ductor Dubitantium, 22 shillings sterling.
 Petrie's Church Historie, 15 shillings sterling.
 Plinius 2'di Epistolæ cum notis variorum, 6 shillings sterling.
 Cromwell's proclamations and acts of council
 from 1653 til 1654, 4 shillings sterling.
 Tryrannick love and the Impertinents, 2 Comedies, 40 pence.
 Reflections on the eloquence of this time, 18 pence.
 The mysterie of Iniquitie unvail'd by G. Burnet, 9 pence.
 Ane Answer to Salmasius his defensio Regia by
 Peter English, 7 pence.
 A Relation of the fight in 1665 betwixt the Dutch
 and English and an answer of our commissioners
 to England in 1647; both of them, 4 pence.
 Argentarij Commentarii ad consuetudines Britannia, 9 shillings sterling.
 Peleus his Quæstiones illustres and arrests of
 parliament, 6 shillings sterling.
 The History and Life of the Duke D'Espèron, 15 shillings sterling.
 4 volumes of English pamphlets, most of them
 upon the late troubles in Britain, 15 shillings sterling.
 For the English Liturgie or book of common prayer, 5 shillings.
 Mr. G. Sinclaire's Hydrostaticks, given me by Mr.
 James Fawcett in Cokerie,
 Baronius annals compendized in two tomes, 3 shillings sterling.
 Summa Conciliorum et Pontificum per Carranzam 2 shillings sterling.
 Maximi Tyrii sermones, a shilling.
 Benzoni's Historia novi orbis seu America, a shilling.
 Dansæ's Antiquitates mundi Antediluviani, a shilling.
 Demosthenes orationes Olynthicae Græce et Latine, 6 pence.

Bucholzeri Index cronologicus, 3 shil's st.
 Apulei Madaurensis opera omnia, 6 pence.
 S.G. Mckeinzie's plaidings, 3 shil's st.
 Acts of the session of parlia' held in 1652, 27 pence.
 The New art of wying vanity against Mr. George Sinclars 15 pence.
 Hydrostaticks bought in Dec'r 1657.
 The Tempest, a Comoedie, 16 pence.
 The Dutch Usurpation, 6 pence.
 The Interest of England in the present war with Holland, 5 pence.
 The Dutch Remonstrance against the 2 De Wittes, 4 pence.
 The Lives of Arminius and Episcopius, 18 pence.
 The Way of exercising the French Infanterie, 3 pence.
 Moonshine or ane Answer to Doctor Wild's
 Poetica Licentia, 6 pence.
 Windiciae libertatis evangelii, 4 pence.
 The persecutions of the reformed churches of France, 4 pence.
 Rushworth's Collections, 23 shil's ster.
 The Civill wars of Great Britian till 1600, 4 mark.
 Charron upon Wisdome, 5 shill's 10 pence.
 Manchester al mondo, a mark.
 G. Burnet's Reply and 4 Conferences against the
 answerer, 3 shil. st.
 Walwood's maritime laws, given me by the provest Sir A. Ramsay.
 My Lord Foord's practiques, given me by the aird of Idingtoun.
 Thomas the Rymer's Prophecies, 4 pence.
 Reusneri Symbola Imperatoria, 18 pence.
 6 particular carts of shires in Scotland, 5 shil. st.
 For the Grand Impostor discovered, payed to
 Samuel Colvill, 3 dollars.
 Roma Restituta gifted me by Mr. Thomas Bell.

Thir which follow ware all bought from Thomas
Broun in August 1673.

A new help to discourse, 20 pence.

Evelin for publick employment against S.G. Mckeinzie, 9 pence.

The Gentleman's calling, a shilling.

[The Guide to all Gentlewomen, 2 marks.[712]]

The Colledge of foolls, 3 pence.

Douning's Vindication against the Hollanders, 16 pence.

Le Tombeau des controverses, 7 pence.

4 Comoedies, viz.: Love in a Nunnery, Marriage
a la mode, Epsom-Wells and Mcbeth's
tragedy, at 16 pence the peice, 5 shilings and a groat.

[712] Erased in MS.

Upon the 9 of September 1673 I bought from
Thomas Broun thir 8 following,

Imprimis,

Howell's Letters, 5 shillings st.

Every man his oune Doctor, 2 shillings.

The Mercury Gallant, 2 shillings.

The Journall of the French their war with
Holland in 1672, 2 shilings.

The Rehearsall transposed, 18 pence.

The Transproser rehears't, 18 pence.

Stub's Justification of the Dutch war, 4 mark.

The Present State of Holland, 34 shillings.

Temple's Observations on the Dutch, 35 shilings.

Memoires of Q. Margret of France, 16 pence.

Loydes warning to a carles world, 15 pence.

M.A. Antoninus Meditations upon himselfe, 30 pence.

For Gregory Grey beard, 30 pence.
For the Education of Gentry, 33 shiling.
For Lucas Speach, the Comons their addresses,
and the relation of the ingadgements of the
fleets 1673, 14 pence.
For Parker's reprooff to the Rehearsall
transposed, 6 shillings sterling.
For the Rehearsall transposed, 2d part, 28 shiling.
For Ferguson against Parker about Grace and
Morall vertue, 32 shilings.
For the Art of Complaisance, 16 pence.
For Gudelinus & Zoesius de Feudis, 29 pence.
For the pamphlet against the Quakers called the
Spirit of the Hat, 6 pence.
A Discourse on the fischerie, 6 pence.
The Book of rates used in the sin custome house
of Rome, 9 pence.
Les Exceptions et defences de Droit.
Formulaire des Advocats, both thir receaved
from G.T.[713] of Touch.

[713] Thomson. See p. 196.

Cyriaci Lentuli Dubia decisa, a dollar.
Ziegleri dissertationes de læsione ultra dimidium,
de juribus clavium.
Commerciorum monopoliorum, etc.
Epicteti Enchiridion et tabula cebetis, 32 pence.
For the Notes and Observations on the Empresse
of Morocco revised, 18 pence.
in behalfe of Sir Elcanah Setle.

For Sir David Lindsay's poems, 7 pence.

For the Baron D'Isola's buckler of state and justice, 28 pence.

For the Interest of the United Provinces and a
defence of the Zelanders choyce to submit
rather to England, 20 pence.

For the Empresse of Mororco, a farce, 18 pence.

The Honest Lawyer, a comedy, and the office of
general remembrance, got them from Idington
in Nov'r. 1674.

The Acts of the Assembly, 1648.

Ægidius Bard in his Methodus Juris Civilis,
from Edington.

Les Effects pernicioeux des meschans favoris par Balthazar Gerbier.

Glanvil's way to Happines, 10 pence.

The Bishop of Sarisburies animadversions on an
Arminian book intituled God's love to mankind.

Joannis a Sande decisiones Frisicæ, given me by Pitmedden.

The Statute Law of England from Magna Carta to
the year 1640. Collected by Ferdinando Pulton.

The first part of Litleton's Instituts of the Law
of England, with S. Edw. Coke's commentarie,
both received from Mr. James Lauder,
shireff clerk of Hadington.

S.G. Mckeinzie's Observations on the Statute of
Parliament 1621 against Banckrupts, etc., 16 pence.

For binding the book of Craigie's collections and
sundry other papers, 4 shil. s. et.

The English Physitians freindly pill.

Metamorphosis Anglorum, being ane accompt of
the state affairs in England from Cromvell's death till 1660.

Memoires de Philippe de Comines in French,
j'ay les aussi en Latin chez moy.

The Ladies calling, given me by my father.

Wossii Elementa Rhetorica, 2 pence.

Reginæ palatium eloquentiæ a patribus Jesuitis
compositum constructum, ij shillings sterligs.

For the 3d tome of Alciat's commentar upon the
Digests, 4 shillings sterling.

Payed to Thomas Broun conforme to his discharge
for Prosperi Favinaeii Jurisconsulti opera omnia,
in 9 volumes in folio, 84 lb. Scots, or 7 lb. sterling.
and which books I have gifted to the Libraire of
Edenbrugh in June 1675, and upon every one of the
volumes, as also in their publisht Register of gifts,
bestowed on the bibliotheque il a pleu a Messieurs
les Regens de cette université de me donner le
tesmoignage qui s'en suit dequoy je ne suis pas
aucunement digne.

Vir summa laude præditus
Magister Joannes Lauderus.

(Joannis prætoris urbani filius de Academia cum primis meriti cuius
Quæsturam agens temporibus difficillimis ejusdem res reditus que
Anglorum injuria periclitantes fide sua ac diligentia vendicavit conservavit
ordinavit amplificavit posteris que florentes tradidit.)

Juris civilis haud vulgariter peritus ejusdemque in causis publice agendis
consultus, civitatis hujus amplæ assessor, postquam Academiam suis studiis
ornaverat hunc librum cum octo fratribus Bibliothecæ donavit. Anno
Domini 1675.

Upon the forsaid bargain with Thomas Broun anent Faviniacius (because he had

great benefit) he gave me in

Protegredivibus or the art of wheedling and insinuation, worth 2 and 6 pence or 3 shillings sterling.

Item, Despauter's grammer worth, 12 pence.

For the Gouvernement of the tongue, by the author of the Gentleman's calling, 12 pence.

The Causes of the decay of Christian Piety, by the same author.

Item, his Wholle duety of man.

Item, his Art of contentment 12 pence.

New jests or witty Reparties.

Joannes Voet de Jure Militari, 18 pence.

The thrid tome of the Corpus Canonicum

Glossatum, containing the 6'tus Decretalium

Clementines et extravagantes communes, 8 shillings sterling.

and which 3'd volume I still before wanted,

having only the 2 first tomes of it.

For Joannis Tesmari exercitationes Rhetoricae, 4 marks.

De Prades Histoire de France from Pharamond

till 1669 in 3 small 8'vos with pictures, 2 dollars.

Hermannus Vulteius de Feudis, 4 shill. 8. ster.

[Sidenote: I have now got the rest of his works, which see infra folio 7't after this.]

Nicolai Abbatis Siculi Panor mi tani, his great glosse upon the Decretales Gregorii from the 25't title of the 2'd book, viz., de exceptionibus to the end of the haill 5 books of the Decretales, so that I want the volume before containing his glosse on the 1 book of the

Decretals and the 2'd till the said 25 title, and the volume after myne upon the 6'tus Decretalium Clementines et extravagants; his wholle glosse consisting of 3 great folios; for he hes written nothing on the Decretum Gratiani: this broken tome m'a été donné par Pitmedden.

Upon a review I made of my wholle library in Octobre 1675 I found sundrie books ware nather in this catalogue which containes all them I bought or acquired since my returne to Scotland from my travells, nor yet in that other Catalogue and list in the litle black-skinned book containing all them I had bought or got formerly ather at home or abroad: and theirfor I gathered their names together so many of them as I could remember on and wrot them upon 4 or 5 sydes of paper and shewed[714] it in at the end of my Inventar and Catalogue in the forsaid black-skinned writ book; ubi illud vide.

[714] Sewed. Sew is still pronounced like 'shoe' in Lowland Scots.

Receaved from Pitmedden,
Dynus ad Regulas Juris Canonici et Decius ad Regulas Juris Civilis, in exchange for my Ludovicus Gomez Commentarij ad Regulas Cancellariae Apostolicae et utriusque signaturae [of which I have bought another in October 1679.][715]

[715] Interlined.

Ratio reconcinnandi juris civil, 8 pence.
On the 1 of Novembre 1675 bought from on William Broun, a dragist, the following books, being in number 23,
Imprimis, Stoboei Sententiae Groecolat: 5 shillings and 6 pence.
Ammirati politica ad Tacitum, 40 pence.
Cypriani Censura Belgica, 56 pence.
Autumni Censura Gallica, 29 pence.

Bouritij Judex Advocatus et Captivus, 42 pence.
Mynsingeri Observationes, 29 pence.
Gudelinus de jure novissimo, 20 pence.
Cujacij Observationum libri 28, 24 pence.
Oldendorpij Classes Actionum, 24 pence.
Rolandini Ars Notariatus, etc., 22 pence.
Tuldeni Jurisprudens. extemporat. 22 pence.
Aegidij Bossij Criminalia, 22 pence.
Mindanus[716] de Continentia Causarum, 12 pence.
Costatij adversaria ad digesta, 29 pence.
Keckermauni Rhetorica, 20 pence.
Dieterici Institutiones Rhetorica, 9 pence.
Carpentarij Introductio Rhetorica, 6 pence.
Faber de Variis nummariorum debitorum solutionibus, 9 pence.
Herculanus de probanda negativa, 9 pence.
Epistolae Synesij Episcopi Gr. Lat., 6 pence.
Bouritij Satyricon in Saeculi mores, 6 pence.
Virtus vindicata seu satyra, 6 pence.
[23][717] Rhodolphinus de absoluta principis potestate, 6 pence.

[716] Mindanus, Petrus Friderus.

[717] Interlined.

From His[718] shop bought,

[718] i.e. Broun's.

Blunts Academy of Eloquence or his Rhetorick, 15 pence.
Clarks formulae Oratoriae, 15 pence.
Item from the said William Broun on the 6 of November 1675,
Imprimis, Matthias Stephani de officio judicis, 42 pence.

Benevenutus stracca de mercatura, etc., 29 pence.
 Langij loci communes seu Anthologia, 42 pence.
 Spankemij dubia Evangelica, 2 tomes,. 7 lib. 10s.
 Mindanus de Mandatis, 18 pence.
 Macrobij Saturnalia et alia opera, 10 pence.
 Bertrandus de jurisperitorum vitis, 24 pence.
 Farnabij judex Rhetoricus, 13 pence.
 Cypriani Regneri Censura Belgica juris canonici, 3 shills. sterl.
 For Platonis opera omnia 3 tomes, 6 shills. sterl.
 For a book containing some sermons of Mr.
 William Struthers anent true happines; item
 a defensative against the poyson of supposed
 prophecies, Peters complaint, etc., 2 merks.
 The first three parts of the famed romance Cleopatra.
 11 or 12 litle paper books all wrytten with my oun hand
 on miscellany subjects anno 1675 besydes many things
 then wryt be me in other books and papers.
 Reiffenbergij Orationes politicae, etc., 15 pence.
 Memoires of the reigne of Lowis the 14 of France.
 Doctorum aliquot virorum vivae effigies
 ad numerum 38, 3 shillings sterl.
 Luciani opera quae extant omnia gifted me by my client
 Mr. Patrick Hamilton of Dalserf. I had some of his
 Dialogues by themselves in a book apart of before.
 For a treatise of maritime affairs, 5 shillings and 6 pence.
 The case of the bankers and their creditors stated
 and examined, 2 shills. sterl.
 Shaftesbury and Buckinghames Speeches in October and
 November 1675 with the letter to a friend about the
 test against dissenters from the Church, 3 shill. and 6 pence.

For Robertj Baillij opus historicum, 4 shillings and 6 pence.
For Le Grands Man without passion or wise stoick, 28 pence.
For William Pens Inglands interest discovered
with honor to the prince, 12 pence.
For a treatise of human reason, 8 pence.
For observations upon it, 8 pence.
Vide Hobs infra in 1680.
Gassendi Exercitationes adversus Aristoteleos, item de
vita et moribus Epicuri, item L'Aunoy de varia
Aristotelis fortuna in Academia Parisiensi, all
bound together, stood me, 3 shills. sterl.
Kirkwoods Grammatica Latina, 8 pence.
Mitchells Answer to Barclay the Quakers angrie pamphlet, 11 pence.
Chevreau's Mirror of fortune, 28 pence.
John Bona's Guide to Aeternity, 20 pence.
A Rebuke to informers and a plea for nonconformists
and their meittings, a shilling.
A. Couleys poemes and works, 13 shil. ster.
Boyls Seraphick love, 18 pence.
Item, his Excellency of theology above Naturall Philosophy, 30 pence.
His Considerationes concerning the stile of the
Scriptures, 24 pence.
Thir four last bought at London by my brother Colin in May 1676.
The Naked Truth, 2 shillings ster.
The Answer to it, 2 shillings ster.
Vide in the other leiff another answer to it.
Additiones Joannis Baptistae hodierna ad Petri Surdi Decisiones
Mantuanas, gifted me in June 1676 by Mr. William Hendersone
bibliothecar in the Colledge of Edenbrugh.
Lesly Bischof of Rosse de rebus gestis Scotorum, 10 shillings sterling.

The Conference betuixt Archbischof Laud and Fischer the Jesuite
gifted me by the Lord Abotshall.

Ane book of stiles in Octavo.

Fullers History of the Holy War, 7 shillings sterling.

Caves primitive Christianity, 5 shills. and 6 pence.

Dutchesse of Mazarina Memoires, 12 pence.

Durhame on the 10 commands, 2 shillings.

Skinners Lexicon Ætymologicum Auglicanæ
linguæ, etc., 17 shillings sterling.

Le Notaire parfait, 12 pence.

Pierre Matthieu's 1st tome de L'Histoire de
France, I having the 2nd tome long before, 8 pence.

Plethonis et aliorum tractatus de vita et morte, 8 pence.

Judge Standfords plees del couronne and King's
prærogative, 8 pence.

For all the Acts of the Generall Assemblies from
1639 till 1648, 3 shillings st.

For Regiam Majestatem in Latin with Skeens
learned annotationes, 5 shills. ster.

For Mangilius de Evictionibus, 5 shills. st.

For Gildas Britannicus Epistola, 12 pence.

For Mr. Hugh Binnings wholle works in 4
volumes, being a practicall catechisme and sermons, a dollar.

For Drydens Notes on the Empresse of Morocco.

I have Setles answers and revieu of them
supra, 15 pence.

For the Siege of Granada in 2 parts, a comedy of
Drydens, 3 shills. sterl.

For the Libertin, a comædie, 15 pence.

Menagij Amoenitates juris, 16 pence.

Scipionis Gentilis parerga origines de jure
publico, cum Coleri parergis, 16 pence.

For the rules of Civility, 15 pence.

For Hugo Grotius his Annotata Critica ad Vetus
et novum testamentum in 6 volumes, 20 dollars.
in folio from Thomas Broun in December
1676 (Vide infra. I gift them in Januar 1683).

For Herberts Life of Henry the 8th of England, 40 pence.

For Senecæ Tragoediæ cum notis Faruabij, 12 pence.

Lord Bacons History of Henry the 7 of England gifted me by
the Lord Abotshall. As also gifted to me by him on the 2d
of March 1677 Euclids Geometry with Mr. Jo. Dees learned
præface; and item gifted Ramseys Astrologia restaurata et
munda with a vindication of it and rules for electing the
tymes for all manner of works; item gifted me Lex Talionis
being another answer made by Mr. Gunning or Mr. Fell
to The Naked Truth, which see in the praeceeding leiff.

For Daillees Right use of the Fathers, 4 shillings sterling.

Baxters Grotian Religion discovered, 6 pence.

Les Diverses leçons de Pierre Mexie et D'Antoine du Verdier.

The paquet of advices to the meu of Shaftsbury
in answer to his letter to a friend, supra, 9 pence.

Lukins cheiff interest of man, 6 pence.

Mr. Smirk or Divine a la mode, being a reply to the
animadversions on the Naked Truth mention'd in this
and in the former leiff, 2 mark.

Adam and Eve or the State of innocence, ane opera of Drydens, 18 pence.

For The Plain Dealer, a comedy, 18 pence.

The Toune Fop or Sir Timothy, etc., 18 pence.

Received in June 1677 from Mr. James Lauder in name of Mistris Ker in Hadington.

Francisci Connani Commentarius Juris Civilis in two volumes in folio. I had the first tome already, having bought it at Parise. Farder received from hir.

Hottomanni partitiones juris et juris consultus
and some other of his small tracts.

Item, Lanfranci Balbi Decisionum et Observationum centuriae 5.

The life of Pomponius Atticus, etc., 30 pence.

A Guide to heaven from the world, 6 pence.

For The 2'd paquet of Advices to the men of
Shaftsburie, 2 shills. sterl.

For Madame Fickle a comoedy, 18 pence.

For Johnstons History of King James the 6'th minority, 12 pence.

Midletons Appendix to the Scots Church Historie, etc., 2 shills: sterl.

Burnets Memoires of the 2 Dukes of Hamilton
from 1625 18 shillings sterling.

Doctor Hamonds Annotations on the New Testament, 18 lib. Scot.

Steelingfleets Origines Sacrae, 7 shills. sterl.

Glanvills Philosophicall Essayes, 4 shills. 6 pence.

The Art of Speaking, 30 pence.

Thir last 5 I bought from Thomas Broun on the 15 of September 1677.

Sir George McKeinzies Criminalls, 4 Lb. Scots.

The following books to the number of 13.

15 I receaved from my Lord Abotshall in October 1677, because he had doubles of them as we inventar'd his books, some of them I had myselfe already.

Imprimis, a Latin and French bible in folio.

2. The Review of the councell of Trent.

3. Bacon's resuscitatio 2'd part.

- [4. Swinnock's Christian Man's calling.][719]
given back to the Librarie.
- 5. Rosinus Romanae Antiquitates.
- 6. Goodwyns Moyses and Aaron.
- [7. Ja. Colvill's Grand Impostor discovered.][719]
having another I gave this to Mr. Alexr. Drummond
- 8. Sympson's compend of the ten persecutions.
- 9. Brinsley's Ludus literarius.
- 10. Hooll's grammatica Latino Anglica.
- 11. Acts of parliament in 1669.
- 12. Milton's Paradise Lost
- 13. Hudibras mock poem.
- 14. Caesars commentaries in English.
- 15. Arcandam upon the constellations.
- 16. Adam out of Eden on planting.

[719] Erased in MS.

A mesme temps je empruntée l'usage de ces sept livres suivans de lui
pour
les rendre quand il les demandoit.

- Imprimis Rutherford's Lex Rex.
- 2. Wiseman's law of laws, etc.
- 3. The accomplish't Atturney.
- 4. Natalis comitis mythologiae.
- 5. Stephanus praeparative to his apologie for Herodote.
- 6. Imagines mortis et medicina animae.
- 7. Dom Huarto's triall of wits.

The 3 following French books ware about that same tyme gifted me by
Rot.

Keith of Craig.

Imprimis, Mr. Wicquefort's Memoires touchant ambassadeurs et les ministres publiques.

2. Histoire de la Reyne Christine de Suede.

3. Lettre sur la campagne en Flandre, 1677.

For the art to make love, 12 pence.

For the countermines against the presb., 3 shils. stg.

From John Nicol bought on the 18 Dec'ris 1677
the 6 following books.

Bodinus de daemonomania majorum, 2 marks.

Hall's Cases of Conscience, 14 pence.

Walker against Socinianisme, 12 pence.

Juvenalis et Persius cum notis Farnab., 10 pence.

Sylvestri summa summarum, 2 dollars.

Scapulæ Lexicon Græco-Latinum, 2 dollars.

Drusius de tribus-sectis Judeorum, 20 pence.

Item, the book of fortune, 20 pence.

Vincent on Christ's Appearance at the Day of Judgement, ij pence.

Antonii Mornacii observationes ad pandectas et
ad Codicem, in 3 tomes in folio, at 22 shillings
sterl. the tome, 40 lb. Scots.

Gerardus Joan: Wossius de Historicis Latinis, 4 lb. Scots.

Christophori Sandii animadversiones in istum
Vosii librum, 12 pence.

For Divi Thomæ Aquinatis summa Theologica, 16 shillings sterling.

For Wallis Due correction of Hobs geometrie, 8 pence.

Lipsius Notes on Tacitus, 4 pence.

Dominici Baudii epistolæ et orationes, 34 pence.

Elberti Leonini consilia, a dollar.

About the 19 of Aprill 1678, receaved from Abotshall a manuscript containing a most elegant summary and collection of sundry remarkable things from the 7 tomes of St. Augustins works.

A meme temps je emprunté de lui les livres suivans: 2 manuscripts in Latin

de Decimis, contra Erastianos, Independentes, de politia civili et ecclesiastica, de controversiis theologicis, etc., of Mr. Andrew Ramsayes: but now I have given him thir back:

Rosse's Pansebeia or view of all Religions.

Grotii de imperio summarum potestatum circa sacra.

Florus Historie cum Lucii Ampelii memoriali.

Catonis Disticha et Mimi Publiani by Hoole.

Bought the 15 of Aprill 1678 from Mr. Charles Lumsdean thir six books, Imprimis,

Andrew Willet's Hexapla upon Exodus and Leviticus.

2 volumes in folio, 12 shillings sterling.

vide infra in 1679 and Aprill 1684. 6 shillings sterling each volume.

Jermynes commentarie and meditations on the book of Proverbs, 6 shils. stg.

Rosse's arcana microcosmi with a refutation of

Bacon, Harvey, Broun, etc., 12 pence.

The right of dominion, property, liberty, 10 pence.

Mr. R. Baillie's antidote agt Arminianisme, 4 pence.

Heraclitus Christianus, or the man of sorrow 12 pence.

Lo. Hatton on Status and acts of parlia', 12 pence.

Kirkwodi compendium Rhetorircæ, 2 pence.

Godolphin upon legacies, last wills and devises, 6 shills. ster.

Salernitana schola de conservanda bona

valetudine, 2 shillings and 6 pence.

Juvenalls Satyrca Englished by Stapylton, 2 mark and a halfe.
The Fulfilling of the Scriptures.

From Abotshall: ...[720] [Greek: kaina kai palaia]: Things new and old,
or a storehouse of similes, sentences, allegories, etc., by John Spencer.

[720] Word undeciphered.

Item, receaved Drummond's History of the lives of the 5 James's,
Kings of Scotland, with memorialls of state.

Item, Wilson's art of Rhetorique and art of Logick.

Item, l'Estat de l'Eglise by Jean de Hainault and Jean Crespin, they
being 4 books in number which at this tyme j'ay recu de Abotshall.

Fur a manuscript containing some law dictats of the professors at
Poictiers and Bourge en Berry annis 1611 and 1612, 12 pence.

For Masuerii practica forensis with Montis Albani
exceptiones, 12 pence.

Quintini Hedui Analecta juris ad Titul. Decretal
de verborum significatione, 12 pence.

For Jacobi de Voragine legenda aurea seu Vitæ
sanctorum, ij pence.

Ecloga Oxonio-Cantabrigiensis; being a Catalogue
of all the manuscripts in thesse 2 universities, ij pence.

Mr. D. Dickson's Therapeutica sacra.

The Christian education of children, 36 pence.

Gifted me by Mr. Wm. Henderson:

Bibliothekar of Ed'r, H. Cardani arcana politica seu de prudentia civili.

Gotten from Mr. Wm. Dundas Wisseinbachii

Manuale de verborum signifcatione, item, Nota nomico-philologica in
passionem Christi.

Annibal Trabrotus his enarrationes ad Cuiacij paratitla

in libros tres prinres Codicis, a mark.
For A.S. Boetius de Consolatione philosophiæ
et disciplina scholastica, 6 pence.
Gifted to me by Mr. John Craig of Ramorney, advocat, on the
16 of November 1678, Davila's Historie of the civill wars
of France.
Leidington's practiques and some other papers bound together by me
at this time.
Tbe Christians Patterne or A Kempis Imitation
of Christ, 12 pence.
For tuo volumes of Panormitans commentary upon the
decretales, which compleits what I had of him before.
Item, for Giuidonis Papae decisiones parlamenti
Gracionapolitanæ and Lipsius de constantia,
in all 4 books, 6 shillings sterling.
For Lucas de Penna ad tres posteriores libros codicis, 40 pence.
For Joannis Amos Comenii janua linguarum in
Greek; Latin and English, 18 pence.
I have another in Latin, French, and Dutch.
Poemata Niniani Patersoni gifted me by the said Mr. Ninian the author.
Code Lowis ou ordannances pour les matieres criminelles.
Georgii Macropedii methodus de conscribendis
epistolis, etc., 6 pence.
Jer. Taylor's liberty of prophecieng.
Lubbertus contra Socinum de Christo mediatore.
Aurengzebe and the destruction of Jerusalem by Titus
Vespasian, 2 comedies.
The Life of K. Charles the I. the pseudomartyr.
Ane Accompt of the Scots greevances anno 1674.
Mother Gregs Jest.

Raphaell Holinsched's Chronicle of England from
William the Conqueror till 1587, 9 shillings sterl.

An Abridgement and written collection drawn furth of the Register
of the commission for plantation of kirks and valuation of teynds,
from 1661 till November 1673.

Catalogus Librorum D. Jacobi Narnij, gifted by him to the Colledge
of Edenbrugh.

For Mr. Dods and Cleavers commentary on the
wholle proverbs of Solomon, 4 shills. stg.

For Mr. Cleaver's Commentar on some of the chapters of the Proverbs,
more amply then in the præceeding commentary, their
being only 5 chapters explained in this volume, viz., the 1, 2, 15,
16, and 17 chapters theirof, enriched with many discourses and
doctrines from thesse chapters, not in the former commentarie.

Gullielmi Cocci revelatio revelata, or expositio
Apocalypse[Greek: o]s, 12 pence.

Ludovici Cælii Rhodigini Antiquæ lectiones, Parisiis 1517.

The Apology for and vindication of the persecuted ministers in
Scotland, gifted me by Abotshall.

For the Differences of the tymes, written by Mr.
David Foster, minister at Lauder, a mark.

Erasmi Chiliades Adagiorum in folio, gifted me by
Mr. John Wood's brother, Mr. Wood having lost some
books lent by me to him, as Harprecht, etc.

Cartwright's commentar upon the Proverbs in
Latin, 3 shillings and 6 pence.

Rudimenta Rhetorica Ro'ti Brunii, 8 pence.

Academie Françoise pour l'institution des Moeurs, in 8vo, 6 pence.

On the 10 of June 1679 bought 7 old books, some of them but pamphlets,
viz., une recueil des gazettes nouvelles et relations de l'annee

1640, Cujacii ad tres postremos libros Codicis, des ordonnances de Louis 13 en assemblée de notables, directions for health, naturall and artificiall, Resolution de Question prouvant qu'il est permis a sujets a resister la cruauté de leur Prince, a discourse touching the distractions of the tymes and the Causes theirow, the canons and constitutions made by the Quakers: for which I payed, 30 pence.

The fyre upon the altar, or divine meditations and essayes, 28 pence.

The Lively Oracles, or use of the holy scriptures, 30 pence.

Atcheson's militarie garden.

A Picktooth for the pope, Item, the apple of his left eye, item the greivances of the Scots ministers in 1633, etc.

Regii Sanguinis clamor per Morum contra Miltonum Anglicum, 6 pence.

Botero des gouvernements des estats in Italian and French, 8 pence.

Mr. Traps commentar ou the Proverbs, Ecclesiastes and Song of Solomon, 3 lb. 7 shill.

Bought on the ij of September 1679 from Mistris Forrest in Fyffe the ten following books.

1. Erasmi concio de misericordia Domini and other tracts, 10 pence.
2. Erasmi encomion Moriæ et de Lingua and other tracts, a mark.
3. Bezæ Responsio ad Castellionem de versione Novi testamenti, 10 pence.
4. Flores Doctorum pene Omnium per Thomam Hibernicum, 18 pence.
5. Sylva locorum communiuni per Ludovicum Granatensem, 30 pence.
6. Poetarum omnium flores, a mark.
7. Refutatio Cujusdam libelli de Jure magistratuum per Beccariam, 8 pence.

8. Chrysostomes Homilies and morals on the Ephesians, 24 pence.
9. Virgil in English verse by John Ogilbie, 24 pence.
10. Simon Patrick's Reflections on the
devotions of the Roman Church, 24 pence.

Having in September 1679 casten up the accompt of the wholle manuscript books I have besyde me, I find they are 94 in number of which see more in my other more full Catalogues of my books.

APPENDIX III

SIR ANDREW RAMSAY, LORD ABBOTSHALL

Letter by John Lauder, Lord Fountainhall, to his Son[721]

[721] MS. in possession of Sir T.N. Dick Lauder.

The following letter from Fountainhall to his son, probably his eldest son and successor, John, is a characteristic specimen of his later style. It holds up to the young man as an example the character and career of his maternal grandfather, Sir Andrew Ramsay, Lord Abbotshall.

[Illustration: SIR ANDREW RAMSAY, LORD ABBOTSHALL]

'Appryll 3d, 1691.

Sone,—The letters I formerly sent you, tho replenished with the best advyces that ather my reading or my experience and observatione or my paternall affection affoorded, and in thesse important affaires they handled, yet I conceive they might be the less effectuall that they had no other authority to back them but my own. Theirfor I am resolved a litle

to trye another method, and so put thesse useful precepts in the mouths of some of your ancestors as if they wer allowed for some tyme to arryse from the dead and speak to those descended of them; and I shall set befor you some of their vertues and illustrious actions for ane pattern worthy your imitation, seeing there cannot be ane better direction in the steering the compass of our lyves then by reading the lyves of good men, espccially wheir wee are nearly related to them, and in the using of this prosopopoea I have no less examples to follow then the prince of orators Cicero and the great Seneca who to give the greater weight and authority to the moral precepts they delyvered to the people of Rome they conjure up the ghosts of Scipio, Laelius, Cato, Appius and thesse other worthies, and bringe them upon the Stage, teaching their own posterity the principles of vertue which is observed to have left a far greater impression, and have proselyted and convinced the mynds of the hearers more than what the greatest philosophers delyvered only as their own sentiments and opinions. And because it is not usuall to wryte the lyves of men whyle[722] they be dead, Theirfor I will begin with your maternall lyne and sett befor you some of the most eminent transactions wheirin that excellent Gentleman, Sir Andrew Ramsay, your grandfather, was most concerned in, with the severall vertues and good qualities that made him so famous and considerable, which ought to be ane spurr and incitement to all good and vertuous actions, and to non so much as to his oun grand-chyld. And because it layes ane great tye and obligation wheir on is descended of ane race that never did anything that was base and unworthy of a Gentleman, Theirfor I will also shortly as I can give you ane account of his pedegrie and descent befor I come to descrybe his oun personall merit and actions. For tho the poet sayes true, *Et genus et proavos et quae non fecimus ipsi, vix ea nostra voco*, yet to be of ane honourable descent of good people as it raises the expectation of the world that they will not beley their kynd as Horace sayes, *Fortes*

creantur fortibus, so they turn contemptibly hatefull when they degenerat and by their vices blacken and sully the glory and honour their ancestors had gained, and they turn a disgrace to the family and relations they are come of. Bot to begin: Sr Andrew was the 3d sone of Mr. Andrew Ramsay, minister of Edr., and Mary Frazer. He being a sone of the Laird of Balmaynes, and shee a daughter of the Laird of Dore, and it being fitt that a man should know his own genealogie that wheir ane of them has been signalized for vertue it may be ane motive to provock our imitation, and if they have att any tymes been led out of the way of vertue that it may serve for ane beacon and scar-crow to the descendants to hold of these rocks and shelves wheir they may see the bones of their friends as the memento of Lots wyfe to beware of these fatall errors. And tho a man should know the history of his own nation and not be *domi talpa*, yet there is no part of that history so usefull as that of his genealogie, and therfor I would give you some account of that family of Balmayn and of some remarkable things have happened therein.

The first of them was John Ramsay, sone to the Laird of Corstoun in Fyfe, who being ane handsome young boy was made choyse of to attend Ki: Ja: 3d att the Grammar School. Their was pains taken for another Gentleman's sone, who had been bred in the high-school of Edr. and both read and wrote better, yet the young King thinking John had more the mean of ane Gentleman preferred him, tho choyses of such princes being lyke Rhehoboams, not so much founded upon merits as fancy and ane similitude of humor, and I have observed friendship and acquaintance contracted betwixt boyes att schooll to be very durable, and so it proved here, for K.J. 3d made him on of his Cubiculars and then Captain of his guards, with this extravagant priveledge that non should wear a sword within two myles of the Kings palace without his speciall warrand and licence, which created him much envy and hatred, that for supporting him against the same, he first knighted him and then gave him the lands

of Kirkcanders in Galloway, Terinean in Carrick, Gorgie in Lothian, and Balmayn in the Mernes. All which lands his posterity hath sold or wer evicted from them by recognitions, except Balmayn. And tho wee doe not find him taxed as on of the bad counsellors that made ane discord betuixt the said K. James and his nobles, att least not so much as Cochran, who from being his Master Mason he had made E. of Marr, and other mean people about him whom he had advanced, yet it was impossible for him to be in so much favour with his prince without drawing the emulation and envy of great and auntient families, who thought non should come between them and their Sovereigne. For you will find from our Chronicles that this King was on of the worst of all the James's and came to ane fatall end by his variance with the Nobility, whom he studyed to humble as factious and tumultuary, bot they thought themselves slighted and disobleidged by his making use of mean men in all offices about him. Bot to return to Sr. John Ramsay. It shewes the Kings great affection to him att Lundie bridge when Archbald E. of Angus, called bell the cat (the reason whei of you know), and the other barons seazed upon Cochran and the bad Counsellors and hanged them over the bridge, and some of them apprehending Ramsay for that same end, the King grasped him in his armes and plead with them to spare him as more innocent than the rest, which was yealded to by the Kings intercession. Bot after this he created him E. of Bothwell, ane title that hes been funest and unluckie to all the three possessors of it, viz., the Ramsay, Hepburn, and Stewart, and which the Ramsay bruiked shorter then any of the other two. For after the killing of the King in Bannockburn myln when he had fled out of the battell, the parliament did annull that title of honour, and from that tyme they have only been designed Lairds of Balmayn. Some say he was killed with his master in that feild, bot I have two unansreable arguments agst it. The on is that in severall of K.J. the 4ths parliats. I find him on of the Commissioners as now but

joyned two or three in ane deputation. Neither had thesse offices att that tyme such splendour and greatness annexed to them as now, and by this it appears the K.J. the 4th durst not resent his fathers death, yet he took speciall nottice of those freinds who had faithfully adhered to him. Instance the iron belt and bitter repartee he gave the Lord Gray. The second is, That Mr. Andrew Ramsay his great grand-chyld, in his Latine epitaph made on him, printed amongst his Epigrams, affirmes that he was killed att the battell of Floudan with K.J. 4th, which, if true, he has out-lived J. the 3d 25 years. I find the said Sr. John Ramsay's sone hath lived till about the year 1567. For in the Sederunt books that year there is ane gift of tutory dative mentioned, making Sr Robert Carnagie of Kinnaird tutor to Wm. Ramsay of Balinayne, left ane minor by the death of his fayr., and this Sr Robt. did afterwards bestow Katharine Carnagie his daughter upon the said Wm. Ramsay. The present Earles of Southesk are lineally descended of the said Sr Robt. bot wer not nobilitat for 30 years after that. Of this Wm. Ramsay and the said Katharine Mr. Andrew Ramsay was their second sone, and being educat in literature, wes sent abroad by his parents to the famous protestant University of Saumur in France, where he gave such eminent specimens of his great knowledge that in 1600 he was created professor of theologie yr. And I have seen that printed Latine oration he had att his inauguration, and tho the Scots wer sooner preserved in France than any other strangers, yet it behooved to be extraordinary merits that adjudged the divinity chair to him befor so many candidats and rivals of their own nation. Bot being desirous to improve the talents heaven had bestowed on him in his oun countrey, he returned home, and about the year 1608 married that vertuous Gentlewoman, Mary Frazer, daughter to the Laird of Does, and wes by Sr. Alexr. Arbuthnot of that ilk her uncle by the mother called to his Church of Arbuthnot in the Mernes, bot he being ane star of ane greater magnitude than to be consigned to so obscure ane place he wes,

in 1613,[723] invited to the toun of Edr. to be on of their ministers, which he accepted, and continued their till 1649 that he was laid asyde by that prevailling remonstrator faction in the church, because he wold not dissown the engadgement undertaken by James Duke of Hamilton the year befor for procuring K. Ch. the first's liberty, and so continued solaceing himself with that *murus ahæneus* of a good conscience till he resigned up his blessed soule into the hands of his merciful creator in the end of that year 1659, having, lyke Moses of[724] Mount-pisga, seen the designes and inclinations of this Island to bring back their banished King which he had much promoted by his prayers; and so this good man, lyke ane sheaff of rype corn, was gathered into his masters barn in the 86 year of his age, a man who for his singular piety and vast reading was the phenix of his tyme as his manuscripts yet extant can prove, so that his memory is yet sweet and fragrant, but especially to those who are descended of him who are more particularly oblidge to imitat his goodness, vertue and learning. Bot befor I leave Balmaynes family I shall only tell on passage because its remarkable of David Ramsay of Balmayn, the said Mr. Andrews nephew. Their is ane sheett of paper in form of ane testament wheron their is no word written bot only this, Lord, remember the promise thou hes made to thy servant David Ramsay such ane day of such ane moneth and such ane year, and then he adds, Let my posterity keep this among their principall evidents and subscribes underneath it his name, and which paper is yet extant and kept by Sr. Charles the present Laird, bot what the revelation was I could never learn. Now to give you but on word of the maternall descent, they wer aunciently Thanes of Collie, and were come of the great Frazer, who was named by the parliat. on of the governors of Scotland be-north Tay with the Cummings till the controversie should be decyded betuixt the Bruce and the Ballioll in 1270.

Of thir parents was my Lord Abbotshall born in May 1619, being their 3d sone, and from his very infancy promised good fruit by the airlie blossomes of ane sharp and peircing witt, and his two elder brothers having been bred schollars, providence ordered him to be educat ane merchand, bot by his oun industry in reading and his good converse he supplied that defect in his education, and haveing been elected youngest Bailzie of Edr. in thesse troublesome tymes of the English invading and subdueing our nation in 1652, he behaved so well that Provost Archbald Tod comeing to dye in 1654, he was not only recommended by him bot was lykeways by the toun counsell judged fittest to succeed him; a step which few or non hes made to ryse from the lowest to the cheiff place of Magistracy in the burgh without passing throw the intermediat offices, and which station he kepted till Michaelmass 1658. Dureing which tyme the toun haveing many aflaires to negotiat att London with Oliver the protector, and those whose estates wer sequestrat haveing addresses to give in ather to have the sequestration taken of or are part allocat for their aliment, they all unanimously agreed to employ provost Ramsay as the fittest, which he discharged with great dexterity to all their satisfactions; which made some reflect upon him as complying too much with the usurper, bot when a nation is broke and under the foott of ane enemy, it has alwayes been esteemed prudence and policy to get the best termes they can for the good of their countrey, and to make the yoke of the slavery lye also easy upon our necks as may be: and the toun was so sensible of his wise and equall administration that they after tryall of severall others brought him in again to be provost in 1662, which he kepted for eleven years together more then what any had ever done befor hira, Chancellour Seton haveing continued for 10 years. When he entered upon this second part of his government he found the toun at the brink of ruine by the cruell dissentions then sprung up betuixt the merchands and trades about their priviledges, bot he lyke ane skilfull

Chirurgeon bound up and healed their wounds; and being lykewayes sunck under the burthen of debt he procured such gifts and impositions from his Mat'ie upon all sorts of Liquors that he in a short tyme brought doun their debt from eleven hundredth thousand merks to seven hundredth thousand: and being thrcatened by the Lord Lauderdale to erect the citadels of Leith in a burgh Royall, which wold have broke the trade of Edr., for preventing therof he purchased the same and annexed it to the toun, and finding that Sr. Wm. Thomson their Clerk by his influence upon the deacons of trades nominated and elected the Magistrats att his pleasure, he in 1665 caused the toun Counsell of Edr. depryve him, and notwithstanding all the pains he took by brybery of the then Statsmen and other wayes to reenter to his place, yet he was never able to effectuat it, and then he procured Mr. Wm. Ramsay his second sone to be made conjunct Clerk of Edr. Bot his death att Newcastell some few years after made the designe of this profitable place abortive.

Our Statsmen being att that tyme under great animosities and prejudices against on another, Lauderdale, Hamilton, and Rothes drawing three severall factions, Abbotshall, who could make a very judicious choyce, did strike in with Lauderdale, and upon his bottome reared up the fabrick of his enshueing greatnes. For by his favour he was both maintained in the provestrie of Edr., and advanced to the Session privy- Counsell and Excheqr. This could not but draw upon him the Vatinian hatred of the opposite parties. For they saw so long as Sr Andrew governed the toun of Edr. they could not expect non of those large donatives and gratifications which Lauderdale was yearly getting, besydes the citizens longed to have ane share in the government of the toun which they saw inhaunced and monopolized by Sr Andrew and his creatures, so that it was no wonder after so long ane sun-shyne of prosperity their should come ane storm, that being also usuall as after a long tract of fair weather to expect foull, and envy and malice are also

naturall concomitants of greatnes and merite as the shaddow is of the body, and it was never found that good offices done to are society was ever otherwayes rewarded than by ingratitude. Themistocles, Coriolanus and the old worthies of Rome and Greece are sufficient proofs of this. And for compassing their end Sr James Rocheid Clerk, Sr Ffrancis Kinloch, who aspyred att the provistrie, and sevl. other burgers wer hounded out to accuse him in the parliat. held in 1673, and money was largely contributed and given to the Dutches of Lauderdale, and shee considering that his power was now so farr diminished in Edr. that he wold not be able for to drop those golden shoures that formerly he did, shee prevailed with the Duke her husband to wheedle Myn Lord Abbotshall into ane dimission of all his offices. For Plautus observes[725] in *Trinummus* holds alwayes true that great men expect that favours most be laid so many ply thick on upon another that rain may not win through, which goes very wittily in his own language, *beneficia aliis benefactis legito ne perpluant*. It is true the Duke designed no more by this dimission bot to ward of the present blow, and promised to keep all those offices for his own behoof till the speat and humour of the people agst him wer spent and runne out, bot the Dutchess and others about him did so violent him that he was not so good as his word. They insinuating to him that it was not safe to trust a man of sense and parts whom he had so highly enraged and disobleidged, and that the bringing him back to power was but the putting him in a capacity to revenge himself, and the truth is that has ever been the practice of the inconsiderat mad world to runne down any man when he is falling, as Juvenal observes in the case of Sejanus, who brings in the mobile who had adored him the day befor with Hosannas crying with displayed gorge, *dum jacet in ripa, calcemus Cæsaris hostem*, and it is very fitt that divyne providence tryst us with such dispensations. For if wee had alwayes prosperous gales that is so inebriating are potion that lyke the

herb mentioned by Homer, it's ready both to cause us forgett our selves and our dewty to God, and I speak it from my own knowledge that Abbotshall was rauch bettered by thir traverses of fortune, for it both gave him ane ryse and opportunity with more leasure and tyme to examine what he had done in the hurry of publick busines, and to repent and amend our errors is in Seneca's *Moralls* the next best to the being innocent and not haveing committed thesse faults att all: the French proverb being of eternall truth that the shorter ane folly be it is the better; and tho' that physicall rule a *privatione ad habitium non datur regressus* be also true in politicks as in physicks that a man divested of his offices seldome ever recovers his former greatnes, yet Lauderdale being ashamed of the injustice with which he had treated Abbotshall, he made him many large promises of reparation, but ther was never any more performed bot the reponeing him again to his office as ane privy-Counsellor to teach us how litle the favour and assureances of great men are to be regarded, being lyke thesse deceiving brooks wherin you shall not find ane drope of watter in the droughth of summer, and to teach us to look up to God and to despyse the lubricity of this world and all its allurements, which is *modo mater statim noverca*, and being blind, foollish, and arrogant, renders all who greedily embrace her also foollish as herself, and instead of ane substance deludes us with ane empty shaddow of are Junonian cloud, and playes with men as so many tinnise-balls. I have oft blamed Abbotshall for his high manner of doeing bussines relyeing too much upon the strength of his own judgement which, tho' very pregnant, yet in his own concernes might be more impartially judged by other by-standers. I have wisht him, with the Marquesse Paulet, that he might have more of the complying willow and lesse of the sturdy oak, bot he oft acknowledged God's care of him in not suffering him to lose himself in ane false flattering world; and if it had been lawfull for him to have taken satisfaction in the calamities of others

he had the pleasure in his lyfe to see Kincardyne, Dirltoun, Carringtoun, Lauderdale, and his other enemies turned out of their places more ignominiously than he. Thus wearied with troubles and the death of many of his children come to age, he devoutly payed the last debt to nature in January 1688, being the 69 year of his age. This is all I can get at present proposed to you for one pattern and example, the sheat being able to hold no more.'

[722] *i.e.* until.

[723] Mr. Andrew Ramsay, Minister of the old Kirk in Edinr., was Professor of Divinity and Rector of the University of Edinr. for six years successively preceeding the 8th March 1626, att which time he gave up both offices.—Note in MS.

[724] *i.e.* off, from.

[725] *i.e.* Plautus's observation.

Abbotshall was a man of great force of character. He was much respected by Lauder, who, on his marriage with his daughter, was probably a good deal indebted to him for his first start in professional life. For example, it was no doubt by his influence that he was very early appointed one of the Assessors to the town of Edinburgh along with Sir George Lockhart and soon afterwards to the whole of the Burghs. To the facts of his life as narrated in the letter it may be added that in the course of his career he acquired extensive estates. Besides Abbotshall in Fife, he became the owner, among other lands, of Waughton in East Lothian, a place often mentioned by Lauder, where his brother-in-law, Sir Andrew Ramsay, junior, resided. The eulogy in the letter is somewhat deficient in light and shade, more so than some other passages in which Lauder mentions his father-in-law (see Introduction, p. xxxvi). A good deal about Abbotshall may be read

in Sir George Mackenzie's Memoirs, the following extract from which (p. 246) will help to supply the *chiaroscuro*.

'Sir Andrew Ramsay had, by obtaining 5000ll sterling to the Duke of Lauderdale for the Citadel of Leith, and other 5000ll to him for the new impositions granted to the town by the King upon ale and wine, insinuated himself very far into the favour of his Grace; and by his favour had, for ten successive years, continu'd himself Provost of Edinburgh, and consequently Preses of the Burghs; by which, and by having the first vote of Parliament, he was very serviceable to Lauderdale; who in requital of that favour obtained 200 ll sterling per annum settled upon the Provost of Edinburgh, and caused the king give him 4000ll sterling for his comprising of the Bass, a rock barren and useless. Thus they were kind to one another upon his Majesty's expenses. In this office of Provost he had governed most tyrannically for ten years, applying the Coramon Good to himself and friends, and inventing new though unnecessary employments within the town, to oblige those who depended upon him. But at last the citizens, weary of his yoke, resolved to turn him out at Michaelmas 1672.'

The attempt failed at that time.

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REPORT OF THE THIRTEENTH ANNUAL MEETING OF THE SCOTTISH HISTORY SOCIETY

THE THIRTEENTH ANNUAL MEETING OF THE SOCIETY was held on TUESDAY, November 21, 1899, in Dowell's Rooms, George Street, Edinburgh,—Emeritus Professor MASSON in the chair.

The HON. SECRETARY read the Report of the Council, as follows:—

During the past year the Society has lost twenty members, ten by death and ten by resignation. When the vacancies are filled up there will remain seventy names on the list of candidates for admission. In addition to the 400 individual members of the Society there are now 64 Public Libraries subscribing for the Society's publications.

The Council particularly desire to express their regret at the death of the Rev. Dr. Alexander Mitchell, formerly Professor of Ecclesiastical History at St. Andrews University, and of the Rev. A.W. Cornelius Hallen. From the foundation of the Society, Dr. Mitchell had been a corresponding member of the Council. He took a great interest in the Society's work, and, in conjunction with the Rev. Dr. Christie, edited for us two volumes of *The Records of the Commissions of the General Assembly of the Years 1646- 49*. Mr. Hallen was also an active member of the Council for many years, and edited *The Account Book of Sir John Foulis of Ravelston*.

The Society's publications belonging to the issue of the past year, viz., Mr. Ferguson's first volume of *Papers Illustrating the History of the Scots Brigade*, and Mr. Firth's volume on *Scotland and the Protectorate*, have been for some months in the hands of members. But members for this year, 1898-99, are to be congratulated on their good fortune in receiving, in addition to the ordinary issue of the Society, two other volumes as a gift. It will be remembered that at our last Annual Meeting Mr. Balfour Paul announced on behalf of the trustees of the late Sir William Fraser, K.C.B., that, acting on the terms of the trust, they were prepared to print and present to members on the roll for the year 1898-99, at least one, and perhaps two

volumes of documents having the special object of illustrating the family history of Scotland. The work then suggested, and subsequently determined upon, was the Macfarlane Genealogical Collections relating to families in Scotland, MSS. in the Advocates' Library, now passing through the press in two volumes, under the editorial care of Mr. J.T. Clark, the Keeper of the Library. The whole of the first volume and the greater part of the second are already in type. The Council, who very highly appreciate this welcome donation, desire to convey to the trustees the cordial thanks of the Society for their share in the presentation.

The following are the publications assigned to the coming year, 1899-1900:

(1.) The second volume of the *Scots Brigade* which is already printed, bound, and ready for issue.

(2.) *The Journal of a Foreign Tour in 1665 and 1666*, and portions of other Journals, by Sir John Lauder, Lord Fountainhall, edited by Mr. Donald Crawford, Sheriff of Aberdeen, Kincardine and Banff. The greater part of this book also is in type.

(3.) *Dispatches of the Papal Envoys to Queen Mary during her reign in Scotland*, edited by the Rev. J. Hungerford Pollen, S.J. The editor expects to send his manuscripts to the printer in January next.

Several new works have been proposed and provisionally accepted by the Council. Dr. J.H. Wallace-James offers a collection of Charters and Documents of the Grey Friars of Haddington and of the Cistercian Nunnery of Haddington. They will be the more welcome, as the desire has been frequently expressed that the Society should deal more fully with the period preceding the Reformation.

Mr. Firth has suggested the publication of certain unedited or imperfectly edited papers concerning the *Negotiations for the Union of England and Scotland in 1651-1653*, and Mr. C. Sandford Terry of Aberdeen has kindly consented to edit them.

The three retiring members of Council are Dr. Hume Brown, Mr. G.W. Prothero, and Mr. Balfour Paul. The Council propose that Mr. Prothero should be removed to the list of corresponding members, that Dr. Hume Brown and Mr. Balfour Paul be re-elected, and that Mr. John Scott, C.B., be appointed to the Council in the place of Mr. Prothero.

The Accounts of the Hon. Treasurer show that there was a balance in November 1898 of £172, 12s. 9d., and that the income for the year 1898-99 was £521, 15s. 5d. The expenditure for this same year was £438, 14s. 1d., leaving a balance in favour of the Society of £255, 14s. 1d.

The CHAIRMAN, in moving the adoption of the Report, which, he said, was very satisfactory, said that in the first place they had kept their promises and arrangements in the past year, and, in the second place, they had a very good bill of fare for the current year, even if there were nothing additional to their programme as already published. The books that had been announced as forthcoming were just the kind of books that it was proper the Society should produce. But, in addition, they would see there was forthcoming a very important publication which had come to them out of the ordinary run. The late Sir William Fraser, in addition to his other important bequests, which would for the future affect the literature of Scottish history, gave power to his trustees that they might, if they saw occasion, employ a certain portion of his funds on some specific publications of the nature of those materials in which he had been spending his life. The result had been that the trustees, chiefly he believed by the advice of their Lyon King of Arms, Mr. Balfour Paul,

had offered as a gift to this Society those very important genealogical documents, the Macfarlane documents, which had been lying in the Advocates' Library, and to which a great many people at various times had been referring, to such an extent that he believed Mr. Clark, the librarian of the Advocates' Library, had been almost incommoded by the number of such applications. Henceforth this would not be the case, as the Macfarlane genealogical documents were to be published under the editorship of Mr. Clark. That was a windfall for which he had no doubt all the members of the Society would be thankful, and when he moved the adoption of the report he meant specially to propose their adoption of a hearty vote of thanks to the trustees of Sir William Fraser.

Professor MASSON then alluded to the proposal of Mr. C. Stanford Terry to produce the silent records relating to the union of Scotland with England in the years 1651 to 1653. That was a portion of Scottish history that had been almost forgotten, but a very important and interesting portion of Scottish history it was. In 1651, after the battle of Dunbar, and after Cromwell's occupation of Scotland, and after he had gone back to England and had left Monk in charge in Scotland, with about eight thousand Englishmen in Scotland, distributed in garrisons here and there, it occurred to the Long Parliament of England, then masters of affairs in Great Britain, that there ought to be an incorporating union of Scotland with the English Commonwealth. That proposal came before the Long Parliament in October 1651. It was agreed upon, by way of declaration, that it might be very desirable, and a committee of eight members of the Long Parliament was appointed to negotiate in the matter. They came to Scotland, and there was a kind of convention, a *quasi* Scottish Parliament, held at Dalkeith, where the matter was discussed. Of course, it was a very serious matter, giving rise to various feelings. To part with the old Scottish nationality was a prospect that had to be faced with regret. To this Parliament the Commissioners proposed what was called

the Tender, or an offer of incorporating union. The variety of elements in Scotland— Royalists, Presbyterians, Independents—in the main said that they must yield, although they were reluctant. Even those who were most in sympathy with the English Commonwealth politically shrank for a while, and they tried whether the Long Parliament might not accept a kind of compromise, whether Scotland might not be erected into a little independent Republic allied to the English Commonwealth or Republic. But at last all these feelings gave way, and the English Commissioners were able to report before the end of the year, or in January—what we should now call 1652, but then called 1651—that twenty of the Scottish shires out of thirty-five had accepted the Tender, and that almost all the burghs had accepted it, Edinburgh and Aberdeen and all the chief burghs—Glasgow being the sole outstanding one. At last, however, Glasgow, on thinking over the thing, agreed, and the consequence was that in April 1652 the Act incorporating Scotland with the English Commonwealth passed the first and second readings in the Long Parliament. From April 1652 Scotland was, they might say, united with England, and in the Protectorate Parliaments, in Cromwell's first and second Parliaments, there were thirty members from Scotland sitting at Westminster with the English members, and so through the protectorate of his son Richard, and it was not till the Restoration that there came the rebound. Then the order universally was: 'As you were,' and a period of Scottish history was sponged out, so much so that they had forgotten it, and many of them rather regretted it. At all events, it was a very important period of Scottish history, and the proposed publication will give us flashes of light into the feelings and the state of the country between 1652 and 1660.

Proceeding, Professor MASSON said the Society had kept strictly to their announcements, and they had already contributed a great many publications, which, at all events, had proved, and were proving, new

materials for the history of Scotland, giving new conceptions of that history. They would observe in the first place how the publications had been dotted in respect of dates, some of them comparatively recent, others going far back. They would observe, in the second place, that the documents had been of almost all kinds—all those kinds that were of historical value; all those that really pertained to the history of Scotland—that was to say, the history of that little community which, with a small population, they named Scotland. There were various theories and conceptions of history. The main and common and the capital conception of the day was to give the story of the succession of events of all kinds. In that respect Scottish history, though the history of a small nation, would compete in interest with the history of any nation that had ever been. Small, but the variety, the intensity of the life, the changes, the vicissitudes, the picturesque incidents, no history could compete for that kind of interest with the history of that little torrent that had flowed through such a rocky, narrow bed. Crimes or illegalities got easily into books, and this was a little unfortunate, because people dwelt on such crimes and illegalities as constituting history. But they did not. No more would the digest of the trials of their Police Courts and of their chief Courts. They figured, of course, in history, but there ought to be a caution against allowing too great a proportion of those records of crimes and illegalities to affect their views. Then there was a notion of history very much in favour with their scholars at present, that it should consist merely of a narrative of the actions of the Government and the formation of institutions—what they should call constitutional history. There had been a school of historical writers of late who would almost confine history to that record—nothing else was proper history, and the consequence was that the constitution of history was in the publication of documents and in the changes in the manner of government. That was an essential and a very important part of history, but by itself it would be

a very dreich kind of history. History was the authentic record of whatever happened in the world, and Scottish history of whatever had happened in the Scottish world. If he had been told that on a certain date King James V., the Red Fox, rode over Cramond Bridge with five horsemen, one of them on a white horse, they might say what use was it to him to know that, but he did want to know it and have that picture in his mind. It was a piece of history, and any one who was bereft of interest in that sort of thing—however little use it might be turned to—was bereft of the historical faculty. Then there was a conception of history that it should consist in pictures of the generation, of the people, how they were housed, how they were fed, and so on. That was a capital notion. But he was not sure that there were not certain overdoings of that notion. In the first place, they would observe that they must take a succession of generations in order to accomplish that descriptive history of the state of Scotland at one time, then at another, then at a third, and so on. A description at one time would not apply to the society of Scotland at another.

'Quhan Alysander, our Kyng, was deid,
Quhan Scotland led in luv and le,
Awa' wes sons of ail and brede,
Of wyne and wax, of gamyn and glee.'

That was to say, it was a tradition before that time that there was abundance and even luxury in Scotland. There had been a tendency in history of late to dwell on the poverty and squalor of Scotland in comparison with other countries—all that should be produced, and made perfectly conceivable—and then also to dwell on the records of kirk-sessions and presbyteries, showing the state of morality in Scotland. All that it was desirable should be produced in abundance if they were not wrongly construed—but they were apt to be. A notion had arisen what a

comical country Scotland must have been with its Shorter Catechism, and its presbytery records, and its miserable food, and so on. That was a wrong notion, and ought to be dismissed, because if they thought of it the life of a community consisted in how it felt, how it acted. In those days of poverty and squalor of external surroundings there were as good men, as brave men, and as good women as there were in Scotland now. And at all events, if there was anything in Scotland now, any power in the world, it had sprung from these progenitors. They must have some corrective for an exaggeration of that notion, which was very natural. One was biography. They would be surprised if they were to know how many biographies there might be along the course of Scottish history, say from the Reformation. If they fastened on a single individual, and told the story of his life, they not only told the story of his community in a very interesting manner, but they got straight to some of those faults which they were apt to be impressed by if they gazed vaguely at the community. Dr. Hume Brown had written an admirable summary of the history of Scotland, but he had contributed to the history of Scotland in another way by his two biographies of Buchanan and Knox, and especially by his biography of Buchanan. Another corrective was literature. There had been no sufficient perception of how literature might illustrate history; and why should it not if their aim was to recover the past mind of Scotland? Every song, every fiction—was not that a transmitted piece of the very mind that they wanted to investigate? Here was matter already at their hand. Then, in a similar way, if a noble thought, if a fine feeling, was in any way expressed in verse or in prose, that came out of some moment or moments in the mind of some individual, and it must have corresponded and been in sympathy with the community in which it was expressed. Nothing noble had come out of any man at any one time, but that man, in the way of expression of literature, must have had a constituency of people who felt as he felt.

Unfortunately there was a long gap in what we called the finer history of Scotland from the time of the Reformation to Allan Ramsay—in literature of certain kinds. There were muses in those days, but they were muses of ecclesiastical and political controversy—very grim muses, but still they were muses. But from Allan Ramsay's time to this, to study the history of the literature was to know more of the history of the country than we would otherwise. David Hume, Adam Smith, Burns, Scott—all these men were born and bred in Scotland so poor and so squalid that we should say we would not belong to it now. Nobody was asking us to belong to it. But these men, their roots were in a soil capable of sustaining their genius and of pouring into their works those things in the way of thought and feeling that delighted us now, and that were our pride throughout the world.

Mr. D.W. KEMP seconded the adoption of the Report, which was agreed to.

The vacancies in the Council were filled by the re-election of Dr. Hume Brown and Mr. Balfour Paul, and the election of Mr. John Scott, C.B., in room of Mr. G.W. Prothero.

In reply to Mr. James Bruce, W.S., Dr. LAW said that the death of Dr. Mitchell had caused some delay in the preparation of the third volume of the Records of the General Assembly, but it had already been transcribed for the printer.

A vote of thanks to Professor Masson concluded the proceedings.

ABSTRACT OF THE HONORARY TREASURER'S ACCOUNTS

For Year to 31st October 1899.

I. CHARGE.

I. Balance in Bank from last year, £172 12 9

II. Subscriptions, viz.—

(1) 400 subscriptions for 1898-99,

at £1, 1s., £420 0 0

2 in arrear for 1897-98, and 6

in advance for 1899-1900, 8 8 0

1 in advance for 1900-1, and

1 for 1901-2, 2 2 0

£430 10 0

Less 4 in arrear for 1898-99, 4 4 0

426 6 0

(2) 64 Libraries at £1, 1s., £67 4 0

2 in advance for 1899-1900, 2 2 0 —————

£69 6 0

Less 1 in advance for 1898-99, 1 1 0

————— 68 5 0

(3) Copies of previous issues sold to New Members, 23 12 6

III. Interest on Deposit Receipt, 3 11 11

—————

Sum of Charge, £694 8 2

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II. DISCHARGE.

I. *Incidental Expenses*—

Printing Cards, Circulars, and Reports, £7 18 6 —————

Carry forward, £7 18 6

* * * * *

Brought forward, £7 18 6

Stationery, Receipt and Cheque

Books,..... 3 13 0

Making-up and delivering copies, 28 12 6

Postages of Secretary and

Treasurer, 3 9 7

Clerical Work and Charges on

Cheques, ... 5 13 6
Hire of room for meeting, 1 1 0

————— £50 8 1

II. *Montereul Correspondence, Vol. II.*,—

Composition, Printing, and
Paper,..... £139 9 0
Proofs, Corrections, and Delete
Matter, ... 20 8 0
Binding,..... 17 0 0
Indexing, ... 4 5 0

—————
£181 2 0

Less paid to account, Oct. 1898, 145 3 0
————— 35 19 0

III. *The Scots Brigade, Vol. I.*,—

Composition, etc., ... £133 8 0
Proofs and Corrections,.. 29 14 0
Binding,..... 17 11 0
Indexing Vol. i., ... 5 5 0
————— 185 18 0

IV. *The Scots Brigade, Vol. II.*,—

Indexing,..... £5 5 0

V. *Scotland and the Protectorate*,—

Composition, etc., ...	105 6 6
Proofs, Corrections, and Delete	
Matter, ...	18 3 0
Illustrations, ...	16 7 6
Binding,.....	17 11 0
Indexing,....	3 16 0
	————— 161 4 0
	—————

Carry forward, ... £438 14 1

* * * * *

Brought forward, £438 14 1

VI. *Balance to next account—*

Sum due by the Bank of Scotland on 31st October 1899—

(1) On Deposit Receipt, £200 0 0

(2) On Current Account, 55 14 1
————— 255 14 1
—————

Sum of Discharge, £694 8 2

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EDINBURGH, *23rd November* 1899.—Having examined the Accounts of the Hon. Treasurer of the Scottish History Society for the year to 31st October 1899, of which the foregoing is an abstract, and compared the same with the vouchers, we beg to report that we find the said Account to be correct, the sum due by the Bank at the close thereof being £255, 14s. 1d.

WM. TRAQUAIR DICKSON, *Auditor.*

RALPH RICHARDSON, *Auditor.*

Scottish History Society.

SCOTTISH HISTORY SOCIETY

* * * * *

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Hon. Secretary.

T.G. LAW, LL.D., Librarian, Signet Library.

RULES

1. The object of the Society is the discovery and printing, under selected editorship, of unpublished documents illustrative of the civil, religious, and social history of Scotland. The Society will also undertake, in exceptional cases, to issue translations of printed works of a similar nature, which have not hitherto been accessible in English.

2. The number of Members of the Society shall be limited to 400.

3. The affairs of the Society shall be managed by a Council, consisting of a Chairman, Treasurer, Secretary, and twelve elected Members, five to make a quorum. Three of the twelve elected Members shall retire annually by ballot, but they shall be eligible for re-election.

4. The Annual Subscription to the Society shall be One Guinea. The publications of the Society shall not be delivered to any Member whose Subscription is in arrear, and no Member shall be permitted to receive more than one copy of the Society's publications.

5. The Society will undertake the issue of its own publications, *i.e.* without the intervention of a publisher or any other paid agent.

6. The Society will issue yearly two octavo volumes of about 320 pages each.

7. An Annual General Meeting of the Society shall be held at the end of October, or at an approximate date to be determined by the Council.

8. Two stated Meetings of the Council shall be held each year, one on the last Tuesday of May, the other on the Tuesday preceding the day upon which the Annual General Meeting shall be held. The Secretary, on the request of three Members of the Council, shall call a special meeting of the Council.

9. Editors shall receive 20 copies of each volume they edit for the Society.

10. The owners of Manuscripts published by the Society will also be presented with a certain number of copies.

11. The Annual Balance-Sheet, Rules, and List of Members shall be printed.

12. No alteration shall be made in these Rules except at a General Meeting of the Society. A fortnight's notice of any alteration to be proposed shall be given to the Members of the Council.

PUBLICATIONS OF THE SCOTTISH HISTORY SOCIETY

For the year 1886-1887.

1. BISHOP POCOCKE'S TOURS IN SCOTLAND, 1747-1760. Edited by D.W. KEMP. (Oct. 1887.)

2. DIARY OF AND GENERAL EXPENDITURE BOOK OF WILLIAM CUNNINGHAM OF CRAIGENDS, 1673-1680. Edited by the Rev. JAMES DODDS, D.D. (Oct. 1887.)

For the year 1887-1888.

3. PANURGI PHILO-CABALLI SCOTI GRAMEIDOS LIBRI SEX.—THE GRAMEID: an heroic poem descriptive of the Campaign of Viscount Dundee in 1689, by JAMES PHILIP of Almerieclose. Translated and Edited by the Rev. A.D. MURDOCH. (Oct. 1888.)

4. THE REGISTER OF THE KIRK-SESSION OF ST. ANDREWS. Part i. 1559-1582. Edited by D. HAY FLEMING. (Feb. 1889.)

For the year 1888-1889.

5. DIARY OF THE REV. JOHN MILL, Minister of Dunrossness, Sandwick, and Cunningsburgh, in Shetland, 1740-1803. Edited by GILBERT GOUDIE, F.S.A. Scot. (June 1889.)

6. NARRATIVE OF MR. JAMES NIMMO, A COVENANTER, 1654-1709. Edited by W.G. SCOTT-MONCRIEFF, Advocate. (June 1889.)

7. THE REGISTER OF THE KIRK-SESSION OF ST. ANDREWS. Part ii. 1583-1600. Edited by D. HAY FLEMING. (Aug. 1890.)

For the year 1889-1890.

8. A LIST OF PERSONS CONCERNED IN THE REBELLION (1745). With a Preface by the EARL OF ROSEBERY, and Annotations by the Rev. WALTER MACLEOD. (Sept. 1890.)

Presented to the Society by the Earl of Rosebery.

9. GLAMIS PAPERS: The 'BOOK OF RECORD,' a Diary written by PATRICK, FIRST EARL OF STRATHMORE, and other documents relating to Glamis Castle (1684- 89). Edited by A.H. MILLAR, F.S.A. Scot. (Sept. 1890.)

10. JOHN MAJOR'S HISTORY OF GREATER BRITAIN (1521). Translated and edited by ARCHIBALD CONSTABLE, with a Life of the author by ÆNEAS J.G. MACKAY, Advocate. (Feb. 1892.)

For the year 1890-1891.

11. THE RECORDS OF THE COMMISSIONS OF THE GENERAL ASSEMBLIES. 1646-47. Edited by the Rev. Professor MITCHELL, D.D.,

and the Rev. JAMES CHRISTIE, D.D., with an Introduction by the former. (May 1892.)

12. COURT-BOOK OF THE BARONY OF URIE, 1604-1747. Edited by the Rev. D.G. BARRON, from a MS. in possession of Mr. R. BARCLAY of Dorking. (Oct. 1892.)

For the year 1891-1892.

13. MEMOIRS OF THE LIFE OF SIR JOHN CLERK OF PENICUIK, Baronet, Baron of the Exchequer, Commissioner of the Union, etc. Extracted by himself from his own Journals, 1676-1755. Edited from the original MS. in Penicuik House by JOHN M. GRAY, F.S.A. Scot. (Dec. 1892.)

14. DIARY OF COL. THE HON. JOHN ERSKINE OF CARNOCK, 1683-1687. From a MS. in possession of HENRY DAVID ERSKINE, Esq., of Cardross. Edited by the Rev. WALTER MACLEOD. (Dec. 1893.)

For the year 1892-1893.

15. MISCELLANY OF THE SCOTTISH HISTORY SOCIETY, First Volume—

THE LIBRARY OF JAMES VI., 1573-83. Edited by G.F. WARNER.

DOCUMENTS ILLUSTRATING CATHOLIC POLICY, 1596-98. T.G. LAW.

LETTERS OF SIR THOMAS HOPE, 1627-46. Rev. R. PAUL.

CIVIL WAR PAPERS, 1643-50. H.F. MORLAND SIMPSON.

LAUDERDALE CORRESPONDENCE, 1660-77. Right Rev. JOHN DOWDEN, D.D.

TURNBULL'S DIARY, 1657-1704. Rev. R. PAUL.

MASTERTON PAPERS, 1660-1719. V.A. NOËL PATON.

ACCOMPT OF EXPENSES IN EDINBURGH, 1715. A.H. MILLAR.

REBELLION PAPERS, 1715 and 1745. H. PATON. (Dec. 1893.)

16. ACCOUNT BOOK OF SIR JOHN FOULIS OF RAVELSTON (1671-1707). Edited by the Rev. A.W. CORNELIUS HALLEN. (June 1894.)

For the year 1893-1894.

17. LETTERS AND PAPERS ILLUSTRATING THE RELATIONS BETWEEN CHARLES II. AND SCOTLAND IN 1650. Edited, with Notes and Introduction, by SAMUEL RAWSON GARDINER, LL.D., etc. (July 1894.)

18. SCOTLAND AND THE COMMONWEALTH. LETTERS AND PAPERS RELATING TO THE MILITARY GOVERNMENT OF SCOTLAND, Aug. 1651—Dec. 1653. Edited, with Introduction and Notes, by C.H. FIRTH, M.A. (Oct. 1895.)

For the year 1894-1895.

19. THE JACOBITE ATTEMPT OF 1719. LETTERS OF JAMES, SECOND DUKE OF ORMONDE, RELATING TO CARDINAL

ALBERONI'S PROJECT FOR THE INVASION OF GREAT BRITAIN.
Edited by W.K. DICKSON, Advocate. (Dec. 1895.)

20, 21. THE LYON IN MOURNING, OR A COLLECTION OF
SPEECHES, LETTERS, JOURNALS, ETC., RELATIVE TO THE
AFFAIRS OF PRINCE CHARLES EDWARD STUART, by the Rev.
ROBERT FORBES, A.M., Bishop of Ross and Caithness. 1746-1775.
Edited from his Manuscript by HENRY PATON, M.A. Vols. i. and ii. (Oct.
1895.) *For the year 1895-1896.*

22. THE LYON IN MOURNING. Vol. III. (Oct. 1896.)

23. SUPPLEMENT TO THE LYON IN MOURNING.—ITINERARY
OF PRINCE CHARLES EDWARD. With a Map. Compiled by W.B.
BLAIKIE. (April 1897.)

24. EXTRACTS FROM THE PRESBYTERY RECORDS OF
INVERNESS AND DINGWALL FROM 1638 TO 1688. Edited by
WILLIAM MACKAY. (Oct. 1896.)

25. RECORDS OF THE COMMISSIONS OF THE GENERAL
ASSEMBLIES (continued) for the years 1648 and 1649. Edited by the Rev.
Professor MITCHELL, D.D., and Rev. JAMES CHRISTIE, D.D. (Dec.
1896.)

For the year 1896-1897.

26. WARISTON'S DIARY AND OTHER PAPERS—JOHNSTON OF
WARISTON'S DIARY, 1639.

Edited by G.M. PAUL. THE HONOURS OF SCOTLAND, 1651-52.
C.R.A. HOWDEN. THE
EARL OF MAR'S LEGACIES, 1722, 1726. Hon. S. ERSKINE. LETTERS

BY MRS. GRANT
OF LAGGAN. J.R.N. MACPHAIL. (Dec. 1896.)

Presented to the Society by Messrs. T. and A. Constable.

27. MEMORIALS OF JOHN MURRAY OF BROUGHTON, SOMETIME SECRETARY TO PRINCE CHARLES EDWARD, 1740-1747. Edited by R. FITZROY BELL, Advocate. (May 1898.)

28. THE COMPT BUIK OF DAVID WEDDERBURNE, MERCHANT OF DUNDEE, 1587-1630. With the Shipping Lists of the Port of Dundee, 1580-1618. Edited by A.H. MILLAR. (May 1898.)

For the year 1897-1898.

29. THE DIPLOMATIC CORRESPONDENCE OF JEAN DE MONTEREUL AND THE BROTHERS DE BELLIÈVRE, FRENCH AMBASSADORS IN ENGLAND AND SCOTLAND, 1645-1648. Edited, with Translation and Notes, by J.G. FOTHERINGHAM. Vol. I. (June 1898.)

30. THE SAME. Vol. II. (Jan. 1899.)

For the year 1898-1899.

31. SCOTLAND AND THE PROTECTORATE. LETTERS AND PAPERS RELATING TO THE MILITARY GOVERNMENT OF SCOTLAND, FROM JANUARY 1654 TO JUNE 1659. Edited by C.H. FIRTH, M.A. (March 1899.)

32. PAPERS ILLUSTRATING THE HISTORY OF THE SCOTS BRIGADE IN THE SERVICE OF THE UNITED NETHERLANDS, 1572-1782. Edited by JAMES FERGUSON. Vol. I. 1572- 1697. (Jan. 1899.)

33, 34. MACFARLANE'S GENEALOGICAL COLLECTIONS CONCERNING FAMILIES IN SCOTLAND; MSS. in the Advocates' Library. 2 vols. Edited by J.T. CLARK, Keeper of the Library. (To be ready shortly.)

Presented to the Society by the Trustees of the late Sir William Fraser, K.C.B.

For the year 1899-1900.

35. PAPERS ON THE SCOTS BRIGADE. Vol. II. 1698-1782. Edited by JAMES FERGUSON. (Nov. 1899.)

36. JOURNAL OF A FOREIGN TOUR IN 1665 AND 1666, AND PORTIONS OF OTHER JOURNALS, BY SIR JOHN LAUDER, LORD FOUNTAINHALL. Edited by DONALD CRAWFORD, Sheriff of Aberdeen, Kincardine, and Banff. (May 1900.)

37. DISPATCHES OF PAPAL ENVOYS TO QUEEN MARY DURING HER REIGN IN SCOTLAND. Edited by the Rev. J. HUNGERFORD POLLEN, S.J.

In preparation.

PAPERS ON THE SCOTS BRIGADE. Vol. III.

THE DIARY OF ANDREW HAY OF STONE, NEAR BIGGAR, AFTERWARDS OF CRAIGNETHAN

CASTLE, 1659-60. Edited by A.G. REID from a manuscript in his possession.

MACFARLANE'S TOPOGRAPHICAL COLLECTIONS. Edited by J.T. CLARK.

A TRANSLATION OF THE STATUTA ECCLESIAE SCOTICANÆ, 1225-1556, by DAVID PATRICK, LL.D.

SIR THOMAS CRAIG'S DE UNIONE REGNORUM BRITANNIÆ. Edited, with an English Translation, by DAVID MASSON, LL.D., Historiographer Royal.

RECORDS OF THE COMMISSIONS OF THE GENERAL ASSEMBLIES (*continued*), for the years 1650-53.

REGISTER OF THE CONSULTATIONS OF THE MINISTERS OF EDINBURGH, AND SOME OTHER BRETHREN OF THE MINISTRY FROM DIVERS PARTS OF THE LAND, MEETING FROM TIME TO TIME, SINCE THE INTERRUPTION OF THE ASSEMBLY 1653, WITH OTHER PAPERS OF PUBLIC CONCERNMENT, 1653-1660.

PAPERS RELATING TO THE REBELLIONS OF 1715 AND 1745, with other documents from the Municipal Archives of the City of Perth.

A SELECTION OF THE FORFEITED ESTATES PAPERS PRESERVED IN H.M. GENERAL REGISTER HOUSE AND ELSEWHERE. Edited by A.H. MILLAR.

A TRANSLATION OF THE HISTORIA ABBATUM DE KYNLOS OF FERRERIUS. By ARCHIBALD CONSTABLE, LL.D.

DOCUMENTS RELATING TO THE AFFAIRS OF THE ROMAN CATHOLIC PARTY IN SCOTLAND, from the year of the Armada to the Union of the Crowns. Edited by THOMAS GRAVES LAW, LL.D.

THE LOYALL DISSUASIVE. Memorial to the Laird of Cluny in Badenoch. Written in 1703, by Sir ÆNEAS MACPHERSON. Edited by the Rev. A.D. MURDOCH.

CHARTERS AND DOCUMENTS RELATING TO THE GREY FRIARS AND THE CISTERCIAN NUNNERY OF HADDINGTON. Edited by J.G. WALLACE-JAMES, M.B.

NEGOTIATIONS FOR THE UNION OF ENGLAND AND SCOTLAND IN 1651-53. Edited by C. SANDFORD TERRY, M.A.

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OF THE SCOTTISH HISTORY SOCIETY, VOLUME 36 ***

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